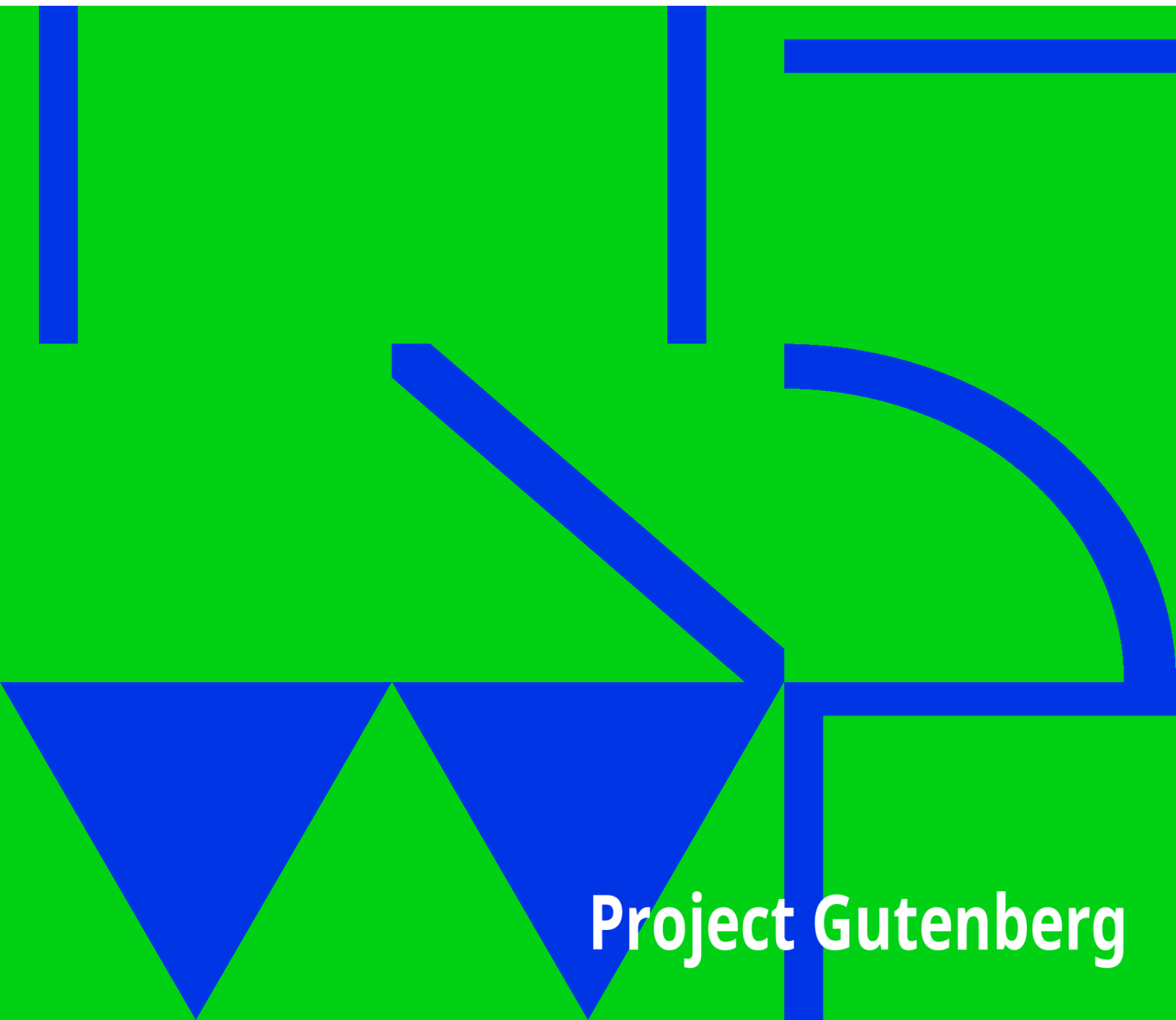


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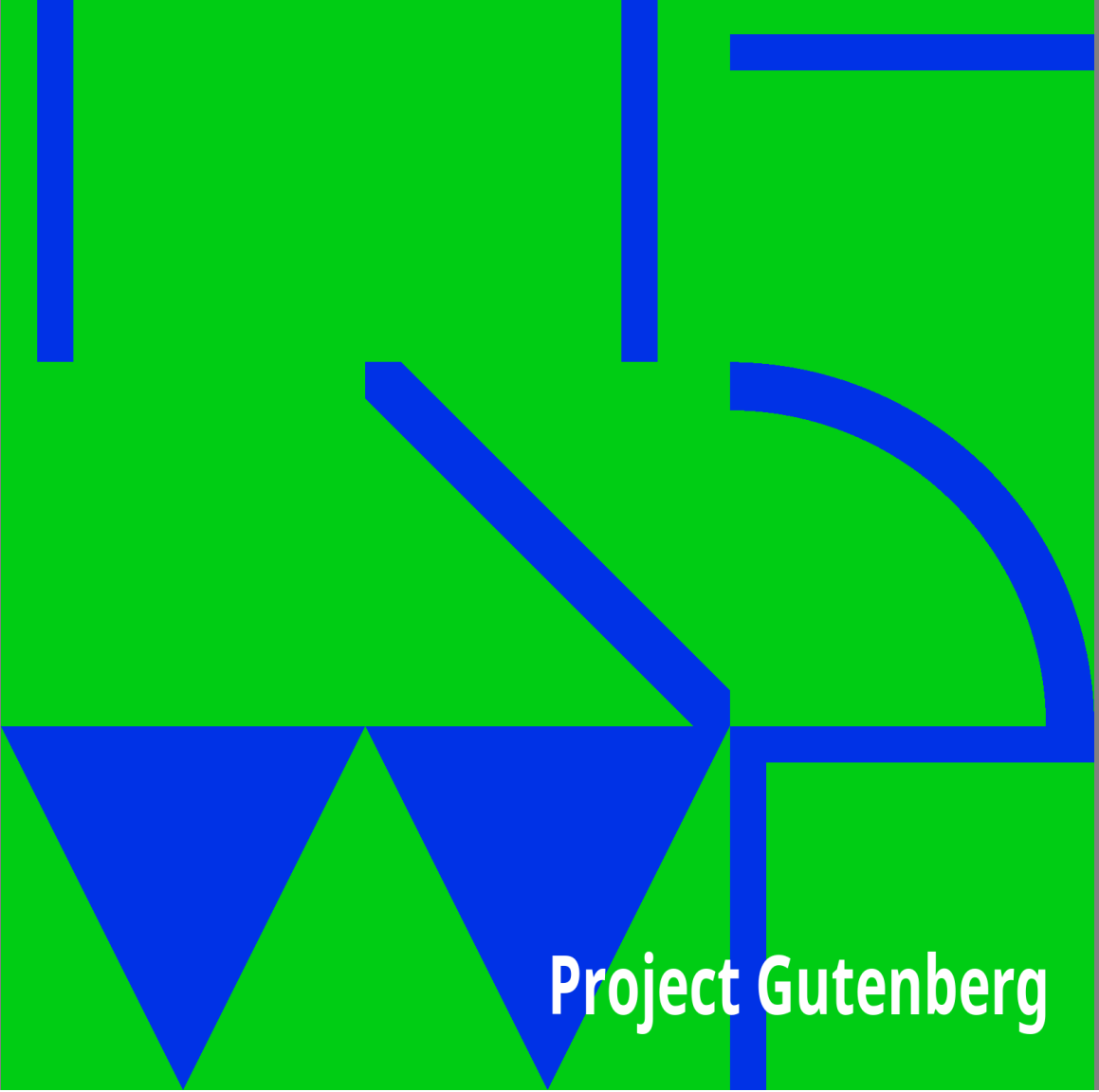
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THE MISSOURIAN



“JACQUELINE”

“She was the spirit of the enigma, the very personification
of the Napoleonic sphinx”

The Missourian

By
EUGENE P. LYLE, Jr.

“In my predestin’d Plot of
Dust and Soul.”

—Omar

Illustrated by Ernest Haskell

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To
MY TWO BEST FRIENDS
My Father and my Mother

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THE PEOPLE OF THE STORY

THE MISSOURIAN, known in every fight as the Storm Centre. His real name is John D. Driscoll, familiarly shortened to Din Driscoll. At the close of the Civil War he finds himself a lieutenant-colonel in General Joe Shelby's brigade of Confederate daredevils, sent by his comrades as emissary to the Emperor Maximilian of Mexico.

JACQUELINE, who is the Marquise Jeanne d'Aumerle, on a mission of high politics from Napoleon III. to the Court of Mexico.

BERTHE, her maid.

MAXIMILIAN, archduke of Austria, occupant of the New World throne created for him.

CHARLOTTE OF ORLEANS, the Empress.

ANASTASIO MURGUÍA, a Mexican hacendado, who acquires riches by running Federal blockades into Southern ports. He is both a coward and a miser.

MARÍA DE LA LUZ, his daughter.

RODRIGO GALÁN, brigand and guerrilla.

TIBURCIO, blackmailer of the highway, scout, and "loyal Imperialist."

AUGUSTIN FISCHER, "the Fat Padre," a renegade priest of subtle parts.

MICHEL NEY, grandson of the "Bravest of the Brave."

THE MARSHAL BAZAINE, commander-in-chief of the French Army of Occupation in Mexico.

MADAME LA MARECHALE, his bride.

COLONEL DUPIN, the "Tiger of the Tropics," chief of the Contra Guerrillas.

MIGUEL LOPEZ, colonel of Dragoons, a favorite of the Emperor.

MONSIEUR ÉLOIN, the Emperor's secretary.

MARQUEZ, MIRAMON, MEJÍA, MENDEZ, Imperialist officers.

RÉGULES, ESCOBEDO, Republican officers.

DANIEL BOONE, first scout among the Missourians, one-time editor and editor yet to be.

"OLD BROTHERS AND SISTERS," "TALL MOSE" BLEDSOE, OF THE COUNTY OF PIKE, and yet more of the Missouri colonels.

BENITO JUAREZ, president of the Mexican Republic.

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PART FIRST

THE THORN IN THE LAND OF ROSES

“Array you, lordyngs, one and all,
For here begins no peace.”

– *The Ballad of the Battle of Otterburn*

CHAPTER I

3

A WILFUL MAID ARRIVES FROM FRANCE

“I’ll tell thee, it is the stubbornest
young fellow of France, full of
ambition.”

—*As You Like It.*

Jacqueline was a gentlewoman of France. But there was usually mischief in her handsome head, for all its queenly poise. Just now, she was running away from the ship. Captain and officers of the *Impératrice Eugénie*, Imperial red pantaloons, gilt Imperial eagles, such tokens of awe were yet not awful enough to hold Jacqueline. So, with the humility of limp things in that sticky air, the sailors shoved closer in the small boat and made place for the adjustment of crisp skirts. With the lady went her gentle little Breton maid, who trembled with the trembling of every plank in those norther-rocked waters. The high sun, just showing himself after the late gale, was sucking a gummy moisture out upon all surfaces, and the perspiring men felt mean and base before the starchy freshness of the two girls.

No one was pleased that Jacqueline was going, except Jacqueline herself. But she was keen for it. She had been impervious to their flustered anxiety, also to the tributes to her importance betrayed therein. In vain they argued no fewer than two emperors to dissuade her. She meant to have a walk on the shore and—a demure Parisian shrug settled it.

Jacqueline rested a high-heeled boot on a coil of rope and blithely hummed an old song—“Miron-ton, miron-ton, miron-taine!” Oh, how she had wearied of bumping, heaving, bumping! At first she had enjoyed the storm. It was a new kind of play, and the *mise-en-scène* was quite adequate. But ennui had surged in again long before danger had surged out. And now she considered that some later sensation was due her, just as supper after an evening of fasting. In such a way, her life long, Jacqueline had sustained existence. Her nourishment was ever the latest “*frisson*,” to use her own word. She craved thrills of emotion, ecstatic

thrills. Naturally, then, three weeks of ocean had fretted the restless lass as intolerable, tyrannical.

During the norther's blinding fury, the liner of the Compagnie Trans-Atlantique had groped widely out of her course, to find herself off Tampico when the storm abated. But the skipper saw in his ill-luck a chance for fresh meat, and he decided to communicate with the port before going on to Vera Cruz. And when Jacqueline found that out, she decided to communicate with the port too.

Little enough harm in that, truly; if only it were any one else but Jacqueline. In her case, though, all concerned would have felt easier to keep her on board. Then, when the ship sailed, they were sure to have her there. Otherwise, they assuredly were not. For they knew well her startling capacity for whims. But never, never, could they know the startling next way a whim of hers might jump. Yet did she give herself the small pains of wheedling? Not she. The mystery of her august guardianship, of no less than two emperors, and the responsibility falling on captain, crew, red trousers, and gilt eagles—Hé bien, what then? Neither were they cunning with their dark warnings of outlawry and violence. Dreadfullest horrors might lurk in the motley Gulf town held by force against bloodthirsty Mexicans. But croaking like that only gave brighter promise of the ecstatic shiver. So, parbleu, she went!

The brunt of anxiety fell on poor Sergeant Ney. Here was a young soldier whom a month before Louis Napoleon had summoned to the Tuileries, to charge him with the lady's safe return to Maximilian's court in the City of Mexico, where she was First Dame of Honor about the Empress Charlotte. The order was not a military one, else it must have fallen to an officer of rank. It was not even official. But no doubt it enfolded more of weight for that very reason. Napoleon III. believed that in the unofficial, in littleness and dark gliding, lay the way to govern a state. Michel Ney regarded his task as a complete enigma. He had only to see a girl to the end of her journey. He was a slow-thinking, even a non-thinking agent, but in a contingency he could fight, still without thinking.

The girl under his escort, however, was another sort of agent entirely. She was the spirit of the enigma, the very personification of the Napoleonic sphinx. She was the Imperial Secret flung a thousand leagues, there to work itself out alone in a new land of empire. Two months ago Louis Napoleon had recalled her from the Mexican court to her old circle,

to the Tuileries, to St. Cloud, to Compiègne, and almost at once he had sent her back again. This time she came with the sphinx's purpose.

Getting himself into the small boat, Ney stole a glance at the gray eyes opposite him—for the moment they were gray, as well as treacherously innocent and pensive—and he reflected woefully that she had quite too much spirit altogether for an Egyptian dame of stone. She was making it very hard for him. What caprice might not possess her while on shore, and the ship to sail within a few hours? It was not a predicament for sabre play. And he made the mistake of trying to wield his wits a little.

"I should take it as an honor, mademoiselle," he faltered, "I should, truly, if you'd only believe that I would impose my escort for the pleasure it gives me, as well as—as well as—"

But she did not seem to notice that he stumbled. Her eyes were intent⁶ on the green water, which the oars transmuted into eddying crystals. He would go on, she knew, and lay more exposed the place where she meant to strike. She had coquetted with him, old play fellow that he was, for just a little during the voyage, as with others too, for that matter. But she had tired of it, as she had also of the chagrin of wives and sweethearts on board, or as she had of Hugo's "Napoleon le Petit," which she read purely out of contrariness to the censorship laid on the exiled poet. Michel Ney, however, and this she noted carefully, now kept close within his soldier's shell. He had that unofficial duty to think on, which was enough and over.

"—as well as," he finished desperately, "as a duty to an authority over us both. If you would believe that, mademoiselle?"

Then she struck. A word sufficed. "Oh, Monsieur the Sergeant!" she exclaimed. Her tone was deprecating, but she lingered wickedly on the title. The young Frenchman looked down on his natty uniform. No other cut or cloth in the whole imperial army of France was more dashing than the sky-blue of a Chasseur d'Afrique, but none of that filled Michel's eyes. For him there were only the worsted stripes. He colored and winced.

"Forgive me," she said meekly, "I should have said, 'Monsieur the Duke.'"

The Chasseur flushed like a boy. "Why *will* you harp on what a grandfather made me?" he blurted out. "And what's a duke—?"

"And a prince?—the Prince of Moskowa!" She courtesied from her slender waist.

“Alas for my blunders,” she sighed, “for it *was* more delicate after all to call you sergeant. In that I congratulate you yourself, Michel, and never a grandfather.”

Ney frowned unhappily. “The first prince of Moskowa was once a ⁷sergeant,” he murmured, “and why shouldn’t I, in this new country—”

“Mironton, mironton, mirontaine,” she sang, and smiled on him.

His eyes flashed, and because of the voice his heart quickened. He had heard of “this new country.” It was “a gold mine in a bed of roses,” but with a thorn, to say nothing of a bayonet, for every bud, and like many another young Frenchman he hoped to win renown in the romantic Mexican Empire, sprung like Minerva from the brain of his own emperor. And now here was a girl humming the war song of his fathers and of his race, and flaunting his warrior’s ambition in it.

“My Sergeant has gone to the wars,
Far off to war in Flanders.
He’s a bold prince of commanders,
With a fame like Alexander’s—
Mironton, mironton, mirontaine!

“Mon Sergot s’en va t-en guerre—
Ne sais quand reviendra.
Mironton, mironton, mirontaine!”

Having thus ousted the crusading hero of the song, and put the slang for “sergeant” in his stead, Jacqueline leaned back on the gunwale quite contented. She fell to gazing on the transparent emerald of the inshore, and plunged in her hand. The soft, plump wrist turned baby pink under the ruffles. Of a sudden Berthe her maid half screamed, whereat with a delighted little gasp of fright, she jerked out the hand. But she put it back again, to tempt the watchful shark out there.

“My grandfather was only a duke,” she mused aloud, very humbly. But she peeped up at Ney in the most exasperating manner. He could just see the gray eyes behind the edge of lace that fell from the slanting brim of her hat. He would not, though, meet the challenge. He kept to sincerity as the safer ground.

“Like mine, mademoiselle, yours made himself one, under Napoleon.” ⁸

“The *great* Napoleon,” she corrected him gently.

Michel assented with a sad little nod. Then he raised his head bravely. "And why not do things *without* a *great* Napoleon, and, after all, isn't he *a* Napoleon, and one who—"

"Is lucky enough to bear a name that means seven million votes. *I* should rather be a 'sergeant' and congratulate none but myself on it, Monsieur the-Duke."

Again, with the wisdom of a slow intelligence, the Chasseur held back from her subtleties. If only he might betray her into frankness—a compliment she paid to few men and to a woman never—then, just possibly, he might make her tractable as to their prompt return to the ship.

"Still, it *is* a name to rally to," he persisted, acknowledging in spite of himself the magic that had swayed the Old Guard.

For once she left the poor shark in peace.

"A name, a name?" she repeated.

"Isn't 'France' enough of a name for your rallying, monsieur?"

But the honest mood could not last. In the same breath she hastened on, "Yes, yes, France, the beloved of us proud grandchildren of original dukes. Of myself, sir, with a château in the Bourbonnais, whose floors are as well watered as the vineyards outside. And your France too, Michel, giving you only your clean linen to disguise the sergeant and remind us of the marshal of the First Empire. Of course," she added kindly, "there is the bravery. I had forgotten that, O grandson of the 'brave des braves.' But then?—Bonté divine, there's no rank in courage, mon ami! It's not the epaulette of a French uniform—it's the merest lining."

"And that," the youth cried doggedly, "is still enough to—"

"To do things for France, eh petit piou-piou?"

"Hélas! our France can't expect much from me. But you, ⁹mademoiselle, you will do things for her!" It was a spontaneous tribute, just that, without thought of prying into the secret of her mission, "While I," he ended dismally, "can only fight."

"But you forget," she answered gravely, "that after all a woman can only give."

That cynicism of life which had become a part of the young girl was yet gaiety itself. Youth and health and beauty would not have even cynicism otherwise. But now, as she spoke, the irony was bitter, and worn, as of age. And behind it was a woman's reluctance before some

abhorred sacrifice, a sacrifice which would entail the woman's power to give.

Ney stared at her uncomprehendingly. Here lay a clue to her mysterious errand in Mexico. But he was not thinking of her as the Napoleonic enigma personified. It was of herself he thought, an enigma apart. She was a flower of France. Yet many, many flowers blossom there. She might be a grande dame, of nobility of womanhood as well as of family. Or again, she might be only an alluring, heartless witch, that helped to make tempting, and damnable, the brilliant Second Empire. But in any case, Jacqueline was truly as dainty as a flower.

"It has already cost us enough to gain this New World," ventured the Chasseur, waving a hand toward the desolate shore, "and we made Maximilian emperor, but now they say that, that he would—they say so in Paris, mademoiselle—that he would rob us of it."

"Indeed, monsieur?" There was warning in the look she gave him.

"But," he plunged on boldly, "our soldiers still hold it, that is, until, until someone shall win it for us for our very own, absolutely. Ducal grandfathers never did more than that for France."

"Where *are* you leading, Michel? Please take me with you."

10

"To a question. Don't you think 'someone' is risking a great deal for a little walk on shore?"

Before she answered he knew that she had seen through all his blundering wiles.

"Are there guerrillas there?" she asked pensively.

"*You* should know. But they say, that out of Tampico especially—"

She was gazing toward the land, sandy and flat. Once she looked back with lively distaste at the rocking ship. Now she interrupted.

"It would be fun traveling overland—and *such* excitement!"

Ney's shoulders went up in despair.

"Oh, my poor guardian!" she exclaimed contritely. "But why aren't you a reader of the poets? Then you would find something to say to make me feel—sorry."

"*You* say it then."

"Why, for example, you might call all the stored vengeance of heaven right down on my ungrateful top."

The soldier gazed at the ungrateful top. It was of burnished copper. A rebellious lock was then blowing in the wind, and there was a wide,

rakish crown of rice-white straw. There was also a soft skin of creamy satin, lips blood red, a velvet patch near a dimple, and two gray eyes that danced behind the hat's filmy curtain. An ungrateful top, out of all mercy!

CHAPTER II

A FRA DIAVOLO IN THE LAND OF ROSES

“A haunter of marshes, a holder of moors.”

—*Beowulf*.

The torpid, sordid and sun-baked port of Tampico gave little promise of aught so romantic and rare and exotic as the young French woman's coveted thrill of ecstasy. There was first the sand bar, which kept ships from coming up the deep Pánuco to the town. Beyond there were lagoons and swamps mottling the flat, dreary, moisture-sodden, fever-scourged land. There were solemn pelicans, and such kind of grotesque bird as use only one leg, it being long enough for two, and never that to walk upon, so far as anybody had ever noticed. Such an old fellow would outline himself against the yellow loneliness, like a lump of pessimistic philosopher impaled on the end of his own hobbling crutch. Tarpons and sharks and sword-fish, monstrous, sinister, moved slothfully in the viscid waters. From scrubby growth on the banks a hundred or a hundred thousand crows had much ado with rebuking the invaders of their solitude.

Next, clusters of thatch roofs appeared, and in an hour the party from the *Impératrice Eugénie* gained the wharf of the port. The sailors managed to steer through a tangle of shipping and dugout scows, the latter heaped high with fruits and flowers of many colors, or hides or fish of many aromas. Before the small boat could touch the worm-eaten quay, Jacqueline had poised herself on its edge, caught her skirts, and hopped lightly over the stretch of water yet remaining. Then she gazed curiously around on Mexico.

And Mexico was there in various forms to greet her, though in no form animated. Sluggish creatures under peaked sombreros of muddied straw seemed to be growing against the foreground of wharf and dingy warehouses, and fastened to the background of sallow blazing streets and sallow reflecting walls there were still the same human barnacles. But no creature seemed ever to move. They all looked a part of the decay, of

putrefying vegetable and flesh and fish everywhere, which grew so rank in life that in death their rotting could never keep pace.

A lazy town stretched up a lazy street. On a hill farther up the river a fortress basked in peace, and had no desire to be disturbed. In the town the buildings were of warped timber, and a few of stone. Parasitic tumors, like loathsome black ulcers, swelled abundantly on the roofs. They were the buzzards, the only form of life held sacred. To clean up nature's and man's spendthrift killing was a blessed service in Tampico. It saved exertion.

A strange region, by all odds! But at least one could walk thereon, and Jacqueline thought it droll. An outlandish corner of the earth such as this was something never experienced before. But as to that, the outlandish corner might have said the same about Jacqueline. Men stared like dazed sheep on the astounding apparition of a lady. Some among them were entirely clothed, in sun-yellowed white. There was a merchant or so, a coffee exporter or so, a ranchero or so, and hacendados from the interior. But they were all hard, typical, and often darkly scowling, which seemed an habitual expression inspired by the thought of a foreign Hapsburg emperor so mighty and proud, far off in their capital. There was not an officer among them; nor, quite likely, a gentleman. Never a bit of red was to be seen from the garrison on the hill. The French invaders up there,¹³ with pardonable taste, kept to themselves. Their policing ended with the smothering of revolt. So against the stain of tainted mankind, the vision of delicate femininity contrasted as a fleck of spotless white on a besmeared palette. But crows, scavengers, men, they were all so many "creatures" to Jacqueline—the setting of a very novel scene, and she would not have had it otherwise.

She turned to her maid, who shrank hesitating in the boat. "Berthe, you pitiful little ninny, are you coming? Then do, and do not forget the satchel." For a promenade of an hour the inhabitants of two imperial courts must needs have a satchel, filled of course with mysteries of the toilet. The maid obeyed, and followed her mistress up the lazy ascending street. They passed through the Alameda of dense cypresses, an inky blot as on glaring manila paper, while the shade overhead was profane with jackdaws. The lady tripped on, and into the street again. Ney and a sailor hurried to overtake her. The other sailors meantime went on their errand for fresh meat, but Michel had said to the steward in charge, "If there

should be any need, I'll send this man to you. Then you come, all of you, quick!"

Jacqueline pushed on her voyage of discovery, and her retinue trooped behind, single file, over the narrow, burning sidewalks of patched flagstone. The word "Café" on a corner building caught her eye. It was a native fonda, overflowing with straw-bottomed chairs and rusty iron tables half-way across the street, making carts and burros find their way round. Mexico's outward signs at least were being done over into French. Hence the dignity of "Café."

"Here is Paris," the explorer announced. "And this is the Boulevard." She seated herself before one of the iron tables that rocked on the egg-like cobblestones. She made Ney sit down also, and included Berthe and the sailor. An olive barefoot boy took their order for black coffee. Jacqueline's elbows were on the table and her chin on two finger tips, and she disposed herself placidly, as though this were the Maison Dorée and Tout Paris sauntering by. The town was beginning to stretch after its siesta. That is to say, divers natives manifested symptoms of going to move in the course of time.

"Look!" exclaimed Jacqueline. "Only give yourself the trouble to look!"

She was pointing to a man, of course. The Chasseur stirred uneasily. One could never see to the end of Jacqueline's slender finger. "There, Berthe," she cried, "it's Fra Diavolo, just strayed from the Opéra."

The stranger she meant was talking darkly to another man in the door of the Café. If a Fra Diavolo, he was at least not disguised in his monk's cowl, either because the April day was too hot or because he had never owned one. But he stood appareled in his banditti rôle, very picturesque and barbaric and malevolent. And though he posed heavily, he yet had that Satanic fascination which the beautiful of the masculine and the sinister of the devil cannot help having. His battered magnificence of a charro garb fitted well the diabolic character which Jacqueline assigned him. Spurs as bright as dollars jangled on high russet heels. His breeches closed to the flesh like a glove, so that his limbs were as sleek as some glossy forest animal's. The cloth was of Robin-Hood green, foxed over in bright yellow leather. From hip to ankle undulated a seam of silver clasps. More silver, in braided scrolls, adorned his jacket, and wrapped twice around the waist was a red banda. Jacqueline would have preferred the

ends dangling, like a Neapolitan's. The ranchero, for such he appeared, wore two belts. One was a vibora, or serpent, for carrying money; the other held his weapons, a long hunting knife and a revolver, each in a scabbard of stamped leather embroidered with gold thread. His sombrero was high pointed and heavy, of chocolate-colored beaver encircled by a silver rope as thick as a garden hose. ¹⁵

"Now there's realism in those properties," Jacqueline noted with an artist's critical eye. "See, there's dry mud on his shoes, and his bright colors are faded by weather. That man sleeps among the rocks, I'll wager, and he's in the saddle almost constantly too. My faith, our Fra Diavolo is exquisite!"

The other of the two men was a withered, diminutive, gaunt and hollow old Mexican. He quailed like a frightened miser before Fra Diavolo.

"The risk? Coming to this town a risk!" Fra Diavolo was echoing the ancient man. "Bah, Murguía, you would haggle over a little risk as though it were some poor Confederate's last bale of cotton. But I—por Dios, I get tired of the mountains. And then I come to Tampico. Yet you ask why I come? Bien, señor mio, this is why." A gesture explained. Fra Diavolo unctuously rubbed his thumb over his fingers. The meaning of the gesture was, "Money!"

The old man recognized the pantomime and shivered. He shrank into his long black coat as though right willingly he would shrink away altogether. His parsimony extended even to speech. He pursued his fugitive voice into the depths of the voluminous coat and there clutched it as a coin in a chest. Then he paid it out as though it were a coin indeed.

"But—" he stammered.

"No buts," the fierce ranchero growled thunderously. "Not one, Don Anastasio, not while our country bleeds under the Austrian tyrant's heel, not while there yet breathes a patriot to scorn peril and death, so only that he get the sinews of war."

The curiously unctuous gesture grew menacing, brutal. Don Anastasio twitched and trembled before it. Under the towering and prismatic Fra Diavolo he cowered, an insignificant figure. The unrelieved black of his attire accorded with his meagre frame. It was secretive, miserly. A black stock covered a withered collar. A dingy silk tile was tightly packed over a rusted black wig. Boots hid their tops under the skirts of his coat, and ¹⁶

the coat in turn was partly concealed under a black shawl. But there was one incongruous item. Boots, coat, hat and all were crusted with brine. He had evidently passed through salty spray, had braved the deep, this shrinking old man in frayed black. Just now his eyes, normally moist and avaricious, were parched dry by fear, as though a flame had passed over them. They might have rattled in their gaping sockets. Fear also helped him clutch his voice, which he paid out regardless of expense.

“You know, Don—” But Fra Diavolo scowled, and the name died on his lips. “You know,” he went on, “why you haven’t seen me for so long. It’s the blockade up there. It’s closer than ever now. This time I waited many nights for a chance to run in, and as many more to run out again.”

“And you squeezed the poor devils all the harder for your weevily corn and shoddy boots?”

Jacqueline, who could not hear a word, told her companions with a child’s expectancy only to wait and they would see Fra Diavolo eat up the poor little crow.

The crow, meantime, was trying to oust the notion that had alighted in the brain of Fra Diavolo. “Of course I ought to ask the Confederates higher prices as the risks increase,” he said, then paused and shook his head and wig and hat like a mournful pendulum. “But how can I? The South hardly grows any more cotton. It cannot pay high, and—”

“And that’s not my affair, but—” Again the business of thumb and fingers—“but this is. Quick now!”

“Señor, I—Your Mercy knows that I always pay at—at the usual place—near the forest.”



“MURGUÍA”

“He had evidently passed through salty spray, had braved the deep, this shrinking old man in frayed black”

“You mean that you won’t pay here, because I am the one in danger here,¹⁷ and not you? Bien, you want a money-getting man for your daughter, eh, Don Anastasio, though you’ll deny that you would give her to any man? Bien, bonissimo, I am going to prove myself an eligible suitor. In another minute Your Mercy will be frightened enough to pay. Attention now!”

So saying he drew a reed whistle from his jacket. It was no thicker than a pencil, and not half so long.

Murguía gripped his arm. “My daughter?” he cried. “It has been weeks since I—but you must have seen her lately. Oh tell me, señor, there is no bad news of her?” He had forgotten the threatened extortion. His voice was open too, generous in its anxiety.

“News of her, yes. But it is vague news. There’s a mystery about your daughter, Don Anastasio.”

But at this point Fra Diavolo dismissed mystery and daughter both with an ugly grimace. Nor would he say another word, for all the father’s pleading. Instead, he remembered the little reed whistle in his hand, and swung round to blow upon it, in spite of the palsied hand clutching at his arm. But in turning, he became aware of the amused Parisienne watching him. His jaw fell, whereat Don Anastasio’s hand slipped from his arm, and Don Anastasio himself began to slip away.

“Stop!” roared Fra Diavolo. “No, go ahead. Wait at the mesón, though, until I come. Wait until I give you your passports.”

Then he turned again to stare at the girl who all unconsciously had wrought the poor little crow’s release.

CHAPTER III

THE VIOLENT END OF A TERRIBLE BANDIT

“Come listen to me, you gallants so free,
All you that love mirth for to hear,
And I will tell you of a bold outlaw.”

—*Robin Hood.*

“Oh, oh, now he’s coming to eat *us!*” Jacqueline gasped.

The fierce stranger, however, seemed undecided. His brow furrowed, and for the moment he only stared. Jacqueline peeped through the lashes curtaining her eyes. She wanted to see his face, and she saw one of bold lines. The chin was a hard right angle. The mouth was a cruel line between heavily sensuous lips. The nose was a splendid line, and a very assertive and insolent nose altogether. The forehead was rugged, with a free curving sweep. Here there would have been a certain nobility, only its slope was just a hint too low. The skin was tawny. The moustache was black and bristling, as was also the thick hair, which lay back like grass before a breeze. The shaggy eyebrows were parted by deep clefts, the dark corrugations of frowning. One wondered if the man did not turn the foreboding scowl on and off by design. But all these were matters that fitted in with the other striking “properties,” and Jacqueline was fairly well satisfied with her Fra Diavolo. As she declared to herself, here was the very dramatic presence to mount upon a war charger!



“RODRIGO GALÁN”

“The fierce stranger, however, seemed undecided.
His brow furrowed, and for the moment he only stared”

Now when Jacqueline peeped—there was something irresistible about it—¹⁹
the furrows in the black-beetled brow smoothed themselves out, whether
the stranger meant them to or not. And a vague resolve took hold on him,
and quickened his breath. Her glance might have been invitation—
Tampico was not a drawing room—but still he hesitated. There was a
certain hauteur in the set of the demoiselle’s head, which outbalanced the
mischief in her eyes. He felt an indefinable severity in her tempting
beauty, and this was new to his philosophy of woman. But as he drank in
further details, his resolve stiffened. That Grecian bend to her crisp skirt

was evidently an extreme from the Rue de la Paix, foretelling the end of stupendous flounces. Then there was the tilt to the large hat, and the veil falling to the level of the eyes, and the disquieting charm of both. The wine-red lips had a way of smiling and curling at the same time. And still again there was that line of the neck, from the shoulder up to where it hid under the soft, old-gold tendrils, and that line was a thing of beauty and seductive mystery. The dreadful ranchero went down in humility before the splendor of the tantalizing Parisienne.

Michel Ney leaned nearer over the table. "In all conscience, mademoiselle, your Fra Diavolo is bizarre enough," he said, "but please don't let us stir him up. Think, if anything should happen to you, why Mexico, why France would—"

"You flatter!" she mocked him. "Only two empires to keep me out of a flirtation? It's not enough, Michel."

A shadow fell over them. "My apologies," spoke a deep voice, "but the señorita, she is going to the City, to the Capital, perhaps?"

The syllables fell one by one, distinct and heavy. The Spanish was elaborately ceremonious, but the accent was Mexican and almost guttural.

"L'impertinent!" cried Ney, bounding to his feet. No diffidence cloyed his manner now. He was on familiar ground at last, for the first time since fighting Arabs in Algeria. He was supremely happy too, and as mad as a Gaul can be. "L'impertinent!" he repeated, coaxingly.

"Now don't be ridiculous, Michel," said Jacqueline. "He can't understand you."

Moreover, the fame of the Chasseurs, of those colossal heroes with their terrible sabres, of their legendary prowess in the Crimea, in China, in Italy, in Africa, none of it seemed to daunt the Mexican in the least.

"How, little Soldier-Boy Blue?" he inquired with cumbrous pleasantry.

"Alas, señor," said Jacqueline, "he's quite a little brother to dragons."

"What are you talking about?" Michel demanded.

"I am keeping you from being eaten up, young sire, but," and Jacqueline's tone changed, "pray give yourself the trouble to be calm. He only means a kindly offer of service, no doubt, however strange that may seem to your delicacy of breeding, Monsieur the Duke."

Michel heaved a sigh and—sat down. He was no longer on familiar ground. Then Fra Diavolo proceeded to verify mademoiselle's judgment of him. Sombrero in hand and with a pompous courtliness, he repeated

his natural supposition that the señorita was on her way to the City (meaning the City of Mexico), and perhaps to the court of His Glorious Majesty, Maximiliano. He offered himself, therefore, in case he might have the felicity to be of use. This she need not consider as personal, if it in any way offended, but as an official courtesy, since she saw in him an officer—an officer of His Most Peace-loving Majesty’s Contra Guerrillas. And thus to a conclusion, impressively, laboriously.

Jacqueline was less delighted than at first. The dash and daredeviltry was somehow not quite sustained. But she replied that he had surmised correctly, and added that she was Mademoiselle d’Aumerle.

He started at the name, and her eyes sparkled to note the effect. “The ²¹Marquesa Juana de Aumerle!” he repeated.

“Jeanne d’Aumerle, no other, sir,” she assured him, but she watched him quizzically, for she knew that another name was hovering on his lips.

“Surely not—” he began.

“Si señor,” and she smiled good humoredly, “I am—‘Jacqueline.’”

It was a name that had sifted from the court down into distant plebeian corners of the Mexican Empire, and it was tinged—let us say so at once—with the unpleasing hue of notoriety.

“His Ever Considerate Majesty Maximiliano would be furious if any harm should befall Your Ladyship,” Fra Diavolo observed, “though,” he added to himself, “the empress would possibly survive it.”

Jacqueline looked at him sharply. But in his deferential manner she could detect no hint of a second meaning. Yet he had laid bare the kernel of the whole business that bore the name of Jacqueline. She betrayed no vexation. If this were her cross, she was at least too haughtily proud to evade it. For a passing instant only she looked as she had in the small boat, when she had said that about the mission of a woman being to give. The next moment, and the mood was gone.

With knowledge of her identity, the project that was building in the stranger’s dark mind loomed more and more dangerously venturesome. But as he gazed and saw how pretty she was, audacity marched strong and he wavered no longer. And when she thanked him, and added that the ship was only waiting until she finished her coffee, he roused himself and drove with hard will to his purpose.

“Going on by water?” he protested. “But Señorita de Aumerle, we are in the season for northers. Look, those mean another storm,” and he

pointed overhead, to harmless little cotton bunches of clouds scurrying away to the horizon.

“Éh bien,” returned the señorita, “what would you?”

22

He would, it appeared, that she go by land. He hoped that she did not consider his offer an empty politeness, tendered only in the expectation of its being refused. He so contrived, however, that that was precisely the way his offer might be interpreted, and in that he was deeper than she imagined. She grew interested in the possibility of finishing her journey overland. He informed her that one could travel a day westward on horseback to a place called Valles, then take the City of Mexico and Monterey stage, and reach the City in two days, which was much shorter than by way of the sea and Vera Cruz. He spoke as dispassionately as a time table. But he noted that she clothed his skeleton data with a personal interest. And Ney also, who had caught the drift of things, saw new mischief brewing in her gray eyes.

“You really are not thinking, mademoiselle—” he interrupted.

“And why not, pray?”

“Why not? Why—uh—the bandits, of course.”

Jacqueline turned to the stranger who served as itinerary folder. Would he dispose of the childish objection? He would. But he wondered why the señor had not mentioned one who was the most to be feared of all bandits; in fact, the most implacable of the rebels still battling against His Truly Mexican Majesty. The stranger paused expectantly, but as Ney seemed to recognize no particular outlaw from the description, he went on with a deepening frown, “—and who is none other than the Capitan Don Rodrigo Galán.”

“Who’s he?” Ney inquired, willing enough to have any scarecrow whatever for Jacqueline.

“Is it possible?—Your Mercy does not know?”

Ney pleaded that he had never been in the country before.

“But surely,” the Mexican objected, “Don Rodrigo is a household word throughout Europe?”

“He has certainly been heard of in Mexico,” said Jacqueline, whereat Fra Diavolo turned to her gratefully. “But,” she added, “Monsieur Ney will now find in him another objection to my journeying overland.”

23

The ardor of the bandit’s eulogist faltered. “The señor might indeed,” he confessed, “only,” and here he hesitated like a man contemplating

suicide, “only, Don Rodrigo has been—yes, he’s been shot, from ambush; and his band—yes, his band is scattered forever.”

Having achieved the painful massacre, Fra Diavolo traveled on more easily to assure the señorita that since then the country had been entirely pacified. Ney, however, was not. How did they know the story was true? And if it was, he was sorry. He would enjoy meeting the terrible and provokingly deceased Monsieur Rodrigue, if only to teach him that being terrible is not good manners. But, did they know for certain that the bandit was dead?

“We do,” said the Mexican, again like a reluctant suicide, “because I killed him myself.”

“But how are we to know, sir,” Ney persisted, “that you are so terrible on your own account?”

“My identification, you mean? Bueno, it is only just. Here, this may do,” and the ranchero drew a paper from his money belt and handed it to Jacqueline. The paper was an order addressed to one Captain Maurel, who was to proceed with his company to the district of Tampico, and there to take and to shoot the guerrilla thief, Rodrigo Galán, and all his band, who infested the district aforesaid, known as the Huasteca. The Captain Maurel would take note that this Rodrigo Galán frequented the very city of Tampico itself, with an impudence to be punished at all hazards. Signed: Dupin, Colonel of His Majesty’s Contra Guerrillas.

“Colonel Dupin?” Jacqueline repeated with a wry mouth. Dupin, the Contra-Guerrilla chief, was a brave Frenchman. But the quality of his mercy had made his name a shudder on the lips of all men, his own countrymen included.²⁴

“Yes,” said Fra Diavolo between his teeth, “Mi Coronel Dupin—the Tiger.”

“So he is called, I know,” said Jacqueline. “And you, it appears, are Captain Maurel—Maurel, but that is French?”

“The way it is spelled on the paper, yes. But my Coronel, being French, made a mistake. He should have written it ‘Morel.’”

“No matter,” said Jacqueline, “for you are only a trite, conventional officer, after all. But how much merrier it would be if you were—were—” and suddenly she leaned over the paper and placed an impetuous finger on the bandit’s name. “So,” she continued wistfully, “there is no danger. We ride, we take a stage. It is tame. I say it is tame, monsieur!”

Captain Maurel, or Morel, desired to add that there was a trader who owned an hacienda in the interior, and that this trader was starting for his plantation the very next morning; all of which was very convenient, because the trader had extra horses, and he, Captain Morel, had a certain influence with the trader. The señorita's party could travel with his friend's caravan as far as the stage.

"Voilà!" cried Jacqueline. "It is arranged!"

"Diable, it is not!" Michel was on his feet again.

His wayward charge looked him over reflectively. "Our Mars in his baby clothes again," said she, as a fond, despairing mother with an incorrigible child.

The Mexican had shown himself hostile and ready. But seeing Jacqueline's coolness he melted out of his somewhat theatrical bristling, lest her sarcasm veer toward himself.

The tempestuous Mars, however, was beyond the range of scorn. He kept one stubborn purpose before him. "We go back to the ship, or"—he took breath where he meant to put a handsome oath—"or—it's a fight!"

"There, there," said Jacqueline gently. "Besides, are you not to go with me just the same?"

Ney turned to the stranger. "I ask you to withdraw, sir, both yourself and your offers, because you're only meddling here."

The intruder grew rigid straightway. "I am not one to take back an offer," he stated loftily. His voice was weighted to a heavier guttural, and in the deep staccatos harshly chopped off, and each falling with a thud, there was a quality so ominous and deadly that even Jacqueline had her doubts. But she would not admit them, to herself least of all. "And I, Monsieur Ney," she said, "have decided to accept," though she had not really, until that very moment.

Ney turned to the one sailor with him. "Run like fury!" he whispered. "Bring the others!"

"Oh, very well," said the Mexican.

As he doubtless intended, Fra Diavolo's words sounded like the low growl of an awakening lion, and at the same time he brought forth the reed whistle and put it to his lips. The note that came was faint, like that of a distant bird in the forest.

Ney smiled. It seemed inadequate, silly. Lately he had become familiar with the sonorous foghorn, and besides, he was not a woodsman and

knew nothing of the penetration of the thin, vibrant signal. When the sailors should come, he would take the troublesome fellow to the commander of the garrison on the hill. But then a weight fell on him from behind, and uncleanness and garlic and the sweating of flesh filled his nostrils. Bare arms around his neck jerked up his chin, according to the stroke of Père François. Other writhing arms twined about his waist, his legs, his ankles; and hands clutched after his sabre and pistol. But at last he stood free, and glared about him, disarmed and helpless. Jacqueline's infernal Fra Diavolo was surveying him from the closed door of the Café,²⁶ behind which he had swept the two women. His stiff pose had relaxed, and he was even smiling. He waved his hand apologetically over his followers. "His Exceeding Christian Majesty's most valiant contra guerrillas," he explained.

The so-called contra guerrillas were villainous wretches, at the gentlest estimate. Their scanty, ragged and stained cotton manta flapped loosely over their skin, which was scaly and as tough as old leather. Most of them had knives. A few carried muskets, long, rusty, muzzle-loading weapons that threw a slug of marble size.

Almost at once the burly French sailors appeared, but Fra Diavolo's little demons closed in behind them and around them and so kept them from reaching Ney. Thus both sides circled about and moved cautiously, waiting for the trouble to begin in earnest. Michel only panted, until at last he bethought himself that there was such a thing as strategy.

"One of you out there," he shouted in French, "quick, go to the fort. Bring the soldiers!"

The Mexicans did not understand, and before they could prevent, a sailor had taken to his heels.

Then Fra Diavolo comprehended. "You idiots!" he bellowed. "You—Pedro! Catch him! Faster!—Catch him, I say!"

A little demon darted away in pursuit of the sailor. Obviously, the situation hung on the swifter in the race.

CHAPTER IV

27

LA LUZ, BLOCKADE RUNNER

“For now, these hot days, is the mad
blood stirring.”

—*Romeo and Juliet.*

“Mesón” is Spanish for hostelry. In the ancient caravansaries, like the one at Bethlehem sacred to the Christ child, the same accommodations were meted out to man and beast alike. More recently there are “hotels,” which distinguish a man from his beast, usually; though sometimes undeservedly. And so the word “mesón” got left behind along with its primitive meaning. But in Mexico word and meaning still go together to this day, and both described pretty well the four walls in Tampico where Anastasio Murguía tarried. Excepting the porter’s lodge at the entrance, the establishment’s only roof formed an open corridor against one of the walls, in which species of cloister the human guests were privileged to spread their blankets in case of rain or an icy norther. Otherwise they slept in the sky-vaulted court among the four-footed transients, for what men on the torrid Gulf coast would allow his beast more fresh air than himself?

Don Anastasio’s caravan filled the mesón with an unflurried, hay-chewing promise of bustle-to-be at some future date. Except for the camels and costume lacking, the Mexican trader might have been a sheik in an oasis khan. His bales littered the patio’s stone pavement. They were of cotton mostly, which he had bought in the Confederate States, in exchange for necessities of warfare and life. Complacent burros and horses were juggling into their mouths some final grains from the sacks over their noses. Peon servants stolidly busied themselves around charcoal braziers.

28

An American leaned in the cavernous doorway. The tarnished insignia on his collar indicated an officer of Confederate cavalry. He was smoking a cob pipe, of which he seemed quite fond. And as a return for such affection, the venerable Missouri meerschaum lent to its young master an

air that was comfortably domestic and peaceable. The trooper wore a woolen shirt. His boots were rough and heavy. Hard wear and weather had softened his gray hat into a disreputable slouch affair. A broad black-leather belt sagged about his middle from the weight of cartridges. Under his ribs on either side protruded the butt of a navy-six, thrust in between shirt and trousers. He watched with dozing interest the muleteers inside as they roped up straw, tightened straps, and otherwise got ready for departure. Then Anastasio Murguía appeared coming up the street, just from his lately recorded interview with Fra Diavolo. The weazened little old Mexican was in a fretful humor, and his glance at the lounging Southerner was anything but cordial. He would have passed on into the mesón, but the other stopped him.

“Well, Murgie, are we projecting to start to-night?” the trooper inquired in English. “Eh?—What say?”

What Don Anastasio had said was nothing at all, but being thus urged, he mumbled a negative.

“Not starting to-night?” his questioner repeated. “Now, why don’t we?—What?—Lordsake, man, dive! Bring up that voice there for once!”

Murguía sank to the chin in his black coat. Glancing apprehensively at the cavalryman’s long arm, he edged away to the farther side of the doorway. Experience had accustomed the ancient trader to despots, but in this cheery youngster of a Gringo the regal title was not clear, which simply made tyranny the more irksome. The Gringo was the veriest ²⁹usurper. He did not justify his sway by the least ferocity. He never uttered a threat. Where, then, was his right to the sceptre he wielded so nonchalantly? Were there only some tangible jeopardy to his pelt, Murguía would have been more resigned. But his latest autocrat was only matter-of-fact, blithely and aggravatingly matter-of-fact.

By every rule governing man’s attitude toward man, the Señor Don should have been the bully, and the youngster the cringing sycophant. For since their very odd meeting two weeks before, the tyrant had been in the power of the tyrannized. It began on Murguía’s own boat, where Murguía was absolute. Any time after leaving Mobile he had merely to follow his inclinations and order the fellow thrown overboard. Yet it was the soldier boy who had assumed the ascendancy, and it could not have been more natural were the boat’s owner a scullion and the intruder an admiral.

“And why *don’t* we start to-night?” the complacent usurper demanded in that plaintive drawl which so irritated the other. “You went for your passports, didn’t you get ’em?”

“Si–si, señor.”

“Good! Then to-night it is, eh?–Can’t you speak out, *my* gracious!”

“*You* might go to-night,” the trader suggested timidly.

“Alone?–N-o, parting isn’t the sweet sorrow it’s cracked up to be. Besides, I don’t know the roads, but of course that’s nothing to losing a jovial old mate like you, Murgie.”

Don Anastasio smirked at the pleasantry. “But *I* can’t go to-night, señor. I–I have to see–someone–first.”

The trooper betrayed the least impatience. “Now look here–usurer, viper, blanketed thief, honorable sir, you *know* I’m in a hurry!”

That his haste could be any concern of Murguía’s was preposterous, and Murguía would have liked nothing better than to tell him so. But he did not, and suffered inwardly because somehow he could not. He harbored a dim but dreadful picture of what might happen should the amiable cavalryman actually lose his temper. Loss of patience had menace enough, though the Southerner had not stirred from his lazy posture in the doorway nor overlooked a single contented puff from the Missouri meerschaum.

“I’m sorry,” Don Anastasio paid out the hard-found words through his teeth, “but possibly we can leave to-morrow. Will, will that suit Your Mercy, Señor Coronel?”

“Oh perhaps. Anyhow, don’t go to forgetting, now, that I’m in a hurry.”

Don Anastasio breathed easier, and he even grew so bold as to recall a certain suspicion he had entertained. “Your errand down here must be of considerable importance, Señor Coronel?” he ventured.

“There you are again–crawling again.” It was evident that the trooper’s normal condition was a great, hearty, calm good humor.

But the Mexican’s shriveled features grew sharper and his moist eyes more prying. His suspicion had tormented him ever since fate had thrown the Confederate in his way. This had happened one stormy night at Mobile. The night in question was pitch dark. The tide was favorable, too, but a norther was blowing, the very same norther that had turned the *Impératrice Eugénie* off her course. Murguía’s skipper had chosen the hour of midnight for running the Federal blockade outside, and he had

already given the order to cast off, when a horseman in a cape overcoat rode to the edge of the wharf.

“Wait there!” the horseman trumpeted through his hand.

It was the first word Murguía had ever heard from his future tyrant, and even then the cool tone of authority nettled him. But he reflected that here might be a passenger, and a passenger through the blockade usually meant five hundred dollars in gold. He ordered the plank held for a moment.

“They tell me—whoa, Demijohn!—you are going to Tampico?” halloood the same voice.

“Yes,” Murguía answered, and was going to name his price, when without more ado the cavalier rode across, dismounted on the deck, and tossed his bridle to the first sailor.

“Ca-rai!” sneered the astonished Mexican, “one would think you’d just reached your own barnyard, señor.”

“My own barnyard?” echoed the stranger bitterly. “I haven’t seen my own barnyard, or anything that is mine, during these four years past. But you were about to start?”

“Not so fast, señor. Fare in advance, seven hundred dollars.” Murguía looked for the haggling to come next, but somehow the sniff he heard was not promising.

“Usurer, viper, blanketed thief, benevolent old rascal,” the trooper enumerated as courteously as “Señor Don” or “Your Mercy,” “you don’t surprise me a bit, not when you charge us three thousand dollars gold for freight on a trunk of quinine!”

“G-g-get back on your horse! G-get off this boat!”

But the intruder calmly drew off his great coat, and Murguía saw the butts of pistols at his waist. Yet they had no reference to the removal of the cape. The latter was a simple act of making oneself at home.

“I reckon,” said the newcomer cheerily, “there’s no question of fare. Here, I’ve got a pass.”

By a lantern Murguía read the paper handed him. It was signed: “Jefferson Davis, President C. S. A.” Therein Mr. Anastasio Murguía or any other blockade runner was required on demand of the bearer, Lieut. Col. Jno. D. Driscoll, to transport the said Driscoll to that part outside the Confederacy which might happen to be the blockade runner’s destination.

The peevish old man scowled, hesitated. He read the order again,³² hesitated again, and at last handed it back, his mind made up.

“Have the goodness, señor, to remove yourself from my boat.”

But the lieutenant colonel placidly inquired, “Carry any government cotton this trip? No, I know you don’t. Then you’re in debt to the government? Correct. So I reckon you’ll carry me in place of the cotton.”

The demand was just. For their golden privileges the blockade runners took a portion of their cargo on government account. But Murguía knew that the army of Northern Virginia must surrender soon. The Confederacy was really at an end, and this would be his last trip. Why, then, pay a dying creditor?

“The favor, señor! Or must I have you kicked off?”

The señor, however, with his charger behind him, was foraging over the deck to find a stall, and in a fury Murguía plucked at his sleeve. But Driscoll wheeled of his own accord to inquire about horse accommodations, and then the Mexican wondered in his timid soul at his own boldness. It loomed before him as unutterably more preposterous than the lone wanderer’s preposterous act of taking possession single handed. Yet the lone wanderer was only gazing down on him very benignly. But what experience of violent life, of cool dealing in death, did poor Don Anastasio behold on those youthful features! In a panic he realized certain vital things. To evade his debt to a government that could never claim it was very seductive and business-like. But there were the Confederate batteries on the wharf, and a line of torpedoes across the entrance to the bay. There were the Federal cannon of Fort Morgan, just beyond. His passenger, if rejected, had only to give the word, and there would be some right eager shooting. And as the Southerners shot, in their present mood, they would remember various matters. They would remember the treasure he had wrung from their distress; the cotton³³ bought for ten cents and sold abroad for a dollar; the nitre, the gunpowder, the clothing and medicines, rated so mercilessly dear; the profits boosted a thousand per cent., though an army was starving.

And yet Murguía could not lift his soul from the few hundred dollars of passage money. He almost had his man by the sleeve again. But no, there were four hundred odd bales on board. There was *La Luz*, his fleet £20,000 Clyde-built side-wheeler, bought out of the proceeds of a single former trip. Even if torpedoes and cannon missed, the Fort and

blockaders outside would be thankful for the alarm, and make sure of him. A few hundred dollars was an amount, but the benignity in Driscoll's whimsical brown eyes meant a great deal more, such for instance, as cotton and steamer and Don Anastasio plunging to the bottom of the bay.

"Oh I s'y, sir," interrupted a voice in vigorous cockney, "this 'ere tide ain't in the 'abit o' waitin'. If we go to-night, we go this minute, sir!" It was the skipper, and the skipper's ultimatum.

"W'y yes," drawled the lieutenant colonel, "let's be marching. I forgot to tell you, I'm in a hurry. Come on, Demijohn," and man and horse went in search of beds.

Murguía looked venomous, but the plank was drawn on board.

CHAPTER V

34

THE STORM CENTRE

“God forbid I should be so bold as to
press to heaven in my young days.”

—*Titus Andronicus.*

The feathering buckets of the paddle wheels began to turn; and *La Luz*, long, low, narrow, and a racer, moved noiselessly out into the bay. A few yards only, and the loungers on the wharf could neither see nor hear her. Except for the muffled binnacle light, there was neither a ray nor a spark. The anthracite gave almost no smoke. The hull, hardly three feet above water amidships, was “Union color,” and invisible at night. The waves slipped over her like oil, without the sound of a splash, almost without breaking. She glided along more and more swiftly. The silent engines betrayed no hint of their power, though breathing a force to drive a vessel five times as large.

There were many entrances to the bay, and Murguía had had his steamer built of light draft especially, to profit by any outlet offering least danger from the vigilant patrol outside. The skipper had already chosen his course. Because of the gale, he calculated that the blockaders would get a considerable offing, lest they flounder mid the shoal waters inshore. He knew too, even if it were not so dark, that a long, foamy line of surf curtained the bay from any watchful eye on the open sea. By the time she reached the beach channels, *La Luz* had full speed on. Then, knifing the higher and higher waves, she made a dash for it.

For a slender steamer, and in such weather, the risk was desperate. The skipper hoped that the blockaders would never credit him with quite the insanity of it. He held the wheel himself, while beside him his keenest-sighted quartermaster stood guard with a glass. The agitated owner was there also, huddled in his black shawl, but the binoculars glued to his eyes trembled so that he could hardly have seen a full-rigged armada in broad daylight.

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Suddenly the quartermaster touched the skipper's arm under the shrouded binnacle. "I s'y sir," he whispered excitedly, "they're—*there!* There, anchored at the inshore station, just off the bar! My eye, but hain't they beastly idiots? They'll smash to pieces."

The skipper looked and Murguía tried to look. But they saw nothing. Except for the booming of the surf, they might have been on a landless sea, alone in the black night. Don Anastasio was shaking at such a rate that his two companions in the dark wheelhouse were conscious of it. He cursed the quartermaster for a pessimist. The skipper, though, was brave enough to believe.

"We're expected, that's gospel," he muttered. But he did not change his course, for he knew that on his other side there was a second fleet, tugging at drift leads off the entrance to the main ship channel. It was near hopeless, but he meant to dart between the two.

"Now for a reception as 'ull touch us to the quick, as Loo-ee Sixteenth said—" The skipper cut himself short. "Aye, aye, sir," he cried, "they've spied us!"

"They haven't!" groaned Murguía. "How could they?"

"'T'aint important now, sir, how they could. There might be a gleam in our wake. But any'ow they 'ave."

They had indeed. Less than a mile to port there suddenly appeared two red lights, two sullen eyeballs of fire. Then, a rocket cleft the darkness, its slant proclaiming the fugitive's course. Hurriedly the *Luz's* quartermaster²⁶ sent up a rocket also, but in the opposite direction. It was useless. A third rocket from the signaling blockader contradicted him.

"We're bein' chased," announced the skipper. "One of 'em 'as slipped her chain and got off."

As *La Luz* had gained the open, the skipper let his quartermaster take the wheel. "'Old her to the wind, lad," he cautioned. "A beam sea 'ud swamp us." Next he whistled down to the engine room. They were to stoke with turpentine and cotton. At once Murguía began to fidget. "It, it will make smoke," he whined.

"An' steam. We're seen a'ready, ain't we, sir?"

"But it costs more."

"Not if it clears us. Soft coal 'ud seem bloomin' expensive, sir, if we got over'auled."

The race was on. In smooth water it would scarcely have been one. But the boiling fury cut knots from the steamer's speed, while the Federals sent after her only their sailing vessels, which with all canvas spread bent low to the chase. They had, however, used up time to unreef; and with the terrific rolling they would not dare cast loose a gun.

When morning dawned thickly behind the leaden sky, the three men in the wheelhouse made out a top-gallant sail against the horizon. "By noon," said the skipper, "the beggars 'ull 'ave us."

He was a small pert man, was the skipper, with a sharp face, an edge to his voice, and two little points of eyes that glowed. Salt water had not drenched his dry cockney speech, and he was a gamin of the sea and as keen to its gammon ways as in boyhood he had been to those of pubs around the old Bow Bells.

Don Anastasio heard the verdict with a shudder. Given the nature of the man, his mortal fear was the dreadfulest torture that could be devised. The game little cockney peered into his distorted face, and wondered. Never was there a more pitiful coward, and yet the craven had passed through the same agony full twenty times during the last few years. Murguía knew nothing of the noble motives which make a man stronger than terror, but he did know a miser's passion. He begrudged even the costlier fuel that was their hope of safety.

"Your non-payin' guest, sir," said the skipper, pointing downward. "'Spose he wants to buy them 'ere smokestacks?"

The trooper had appeared on deck. He was clinging to a cleat in the rail with a landsman's awkwardness and with the cunning object of proving to the ship that he wasn't to be surprised off his feet another time. He swayed grandly, generously, for'ard and aft, like a metronome set at a large, sweeping rhythm. Every billow shot a flood from stern to bow, and swished past his boots, but he was heedless of that. His head was thrown back, a head of stubborn black curling tufts, and he seemed absorbed in the *Luz's* two funnels. They gave out little smoke now, for with daylight the skipper had changed to anthracite again, in the forlorn hope of hiding their trail. But it had lessened their steam pressure, and in a short time, the skipper feared, the pursuer would make them out, hull and all.

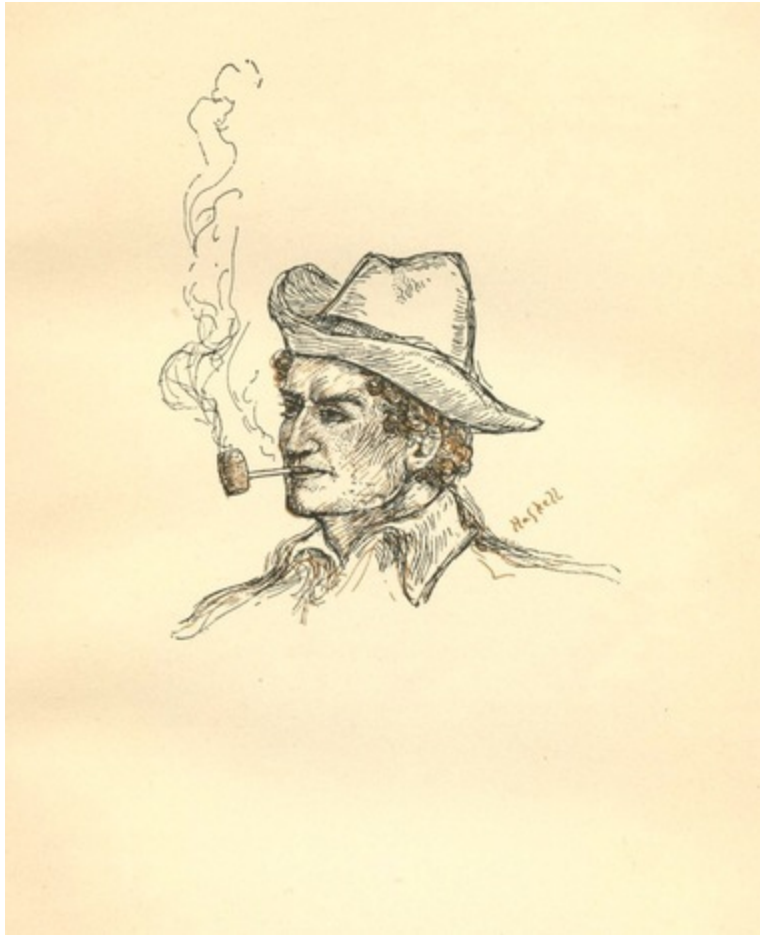
A moment later the passenger climbed into the wheelhouse. "Look here—Mur—Murgie," he said, "for a seven-hundred-dollar rate that was a toler'ble unsteady cabin I had last night; restless, sort of. It's mighty

curious, but something's been acting up inside of me, and I can't seem to make out *what* it is!" As he spoke, he glanced inquiringly from owner to skipper. He might have been another Panurge envying the planter of cabbages who had one foot on solid earth and the other not far away. He looked pale.

It afforded Don Anastasio little satisfaction to find a young man not more than twenty-two or three. Without his great coat the Southerner proved lithe rather than stocky. There was even an elusive angular effect²⁸ to him. Yet the night before he had looked as wide and imposing as the general of an army. His cheeks were smooth, but they were tight and hard and brown from the weathering of sun and blizzard. His features had that decisive cleanliness of line which makes for strong beauty in a man. Evidently nature had molded them boyishly soft and refined at first, but in the hardening of life, of a life such as his, they had become rugged. Most of all, the face was unmistakably American. The large mouth had that dry, whimsical set, and that sensitiveness to twitching at the corners, which foretells a smile. The brown eyes sparkled quietly, and contour and expression generally were those which one may find on a Missourian, or a Texan, or on a man from Montana, or even on a New Yorker born; but never, anywhere, except on an American. Whatever is said to the contrary, the new Western race in its fusing of many old ones has certainly produced not one but several peculiarly American types, and Driscoll's was American. It was most so because it had humor, virility, and the optimism that drives back despair and holds forth hope for all races of men.

Murguía was right, his passenger seemed a boy. But war and four years of hardest riding had meant more of age than lagging peace could ever hold. Sometimes there flitted across the lad's face a vague melancholy, but being all things rather than self-inspecting, he could never quite locate the trouble, and would shake himself out of it with a sort of comical wonder. Bitterness had even touched him the night before, as it did many another Southerner on the eve of the Surrender. Yet the boy part in him made such moods rare, and only passing at their worst. On the other hand the same boy-part gave a vigor and a lustre to his occupation, though that occupation was—fighting. He knew no other, and in that the young animal worked off excess of animal life with a refreshing gusto. Even his comrades, of desperado stripe that they were, had dubbed him

the Storm Centre. And so he was, in every tempest of arms. The very joy of living—in killing, alas!—always flung him true to the centre. But once there, he was like a calm and busy workman, and had as little self consciousness of the thing—of the gallantry and the heroism—as the prosiest blacksmith. He had grown into a man of dangerous fibre, but he was less aware of it than of his muscles.



“JOHN DINWIDDIE DRISCOLL—THE MISSOURIAN”

“His cheeks were smooth, but they were tight and hard and brown from the weathering of sun and blizzard”

Various items on the *Luz* struck the trooper as amusing. There was the incongruity of his seven-hundred-dollar cabin, the secession of his stomach from the tranquillity of the federal body organic, and finally, this running away from somebody. But he quickly perceived that the last was serious enough. The skipper lowered his glasses, and shook his perky head a number of times. “*Who* said life was all beer and skittles?” he

demanded defiantly, and glared at Driscoll as though *he* had. But getting no answer, he seemed mollified, as though this proved that the man who *had* said it was an imbecile. Murguía, by the way, had come to hate no truth more soulfully than the palpable shortcoming of life in the matter of beer and skittles. And now it was borne in upon him again, for the skipper announced, definitely and with an oath, that they'd have to begin throwing the cargo overboard.

Poor Don Anastasio behaved like a man insane. He wrung his hands. He protested stoutly, then incoherently. He whined. He glared vengefully at the dread sail on the horizon, and then he shrank from it, as from a flaming sword. And as it grew larger, his eyeballs rounded and dried into smaller discs. But at once he would remember his darling cotton that must go to the waves, and the beady eyes swam again in moisture, like greenish peas in a sickly broth. Avarice and terror in discord played on the creature as the gale through the whimpering cordage.

"No 'elp for it, sir," said the skipper, bridling like a bantam. "Didn't I try to save *my* cargo, off Savannah, and didn't I lose my sloop to boot?¹⁰ Didn't I now, sir?—Poor old girl, mebbby she's our chaser out 'ere this very minute."

"Try—try more turpentine," said Murguía weakly.

"Yes, or salt bacon, sir, or cognac, or the woodwork, or any blarsted thing I see fit, sir!" The little skipper hit out each item with a step downward to the deck, and five minutes later Murguía groaned, for bale after bale came tumbling out of the hold. Then over they began to go, the first, the second, the third, and another, and another, and after each went a moan from Anastasio. He leaned through the window to see one tossing in the waves, then suffered a next pang to see the next follow after. It was an excruciating cumulus of grief. The trooper regarded him quizzically. Destruction of merely worldly goods had become routine for him. He returned to his contemplation of the two funnels.

The skipper came back, dripping with pray. "The wind's changin'," he said, "and that'll beat down the sea some."

"Reckon they'll get us?" Driscoll asked.

Murguía took the query as an aggravation of woe, and he turned wrathfully on the trooper. "Don't you see we're busy?"

"I see you're very damn sullen, *gra*-cious me!—Reckon they will, captain?"

“We’ll be eatin’ a United States of America supper, chained, sir.”

“Now look here,” said Driscoll plaintively, “I don’t want to get caught.”

“But I hope as you’ll bide with us, sir?”

“Still, I was just thinking—now that smoke—”

“And I’m a thinkin’ you don’t see much smoke. We’re keepin’ out o’ sight as long as God’ll let us.”

“But, Captain, why not smoke up—big? Just wait now—this ain’t any of my regiment, I know that—but listen a minute anyway. Well, once or twice when we were in a fix, in camp, say, and we knew more visitors were coming than was convenient, w’y, we’d just light the campfires so they would smoke, and then—meantime—we’d light out too. Old Indian trick, you know.”

The skipper was first impatient. But as that did no good, he cocked himself for a laugh. Then his mouth puckered to a brisk attention, and at the last word he jumped to his feet. “Damme!” he said, and went thumping down the steps again. He splashed through the water on deck, minding the stiff wind not at all, and dived into the engine-room.

“Soft coal!” gasped Murguía with relief.

It was pouring from the stacks in dense black clouds.

The captain returned. “We’ll try to save the rest o’ that ’ere cotton, sir,” he said.

He looked out at the trembling smoke that betrayed their course so rashly, and from there back to the pursuer on the horizon. He waited a little longer, carefully calculating; then sent an order down the tube to the engineer. The dampers were shut off, and the fuel was changed to anthracite. Soon the smoke went down, and a hazy invisible stream puffed from the funnels instead. The *Luz* swung at right angles to her former course. The paddles threshed hopefully, and on she sped, leaving no track. The skipper gazed back at the lowering line, which ended abruptly on their port and trailed off toward the horizon with a telegraphy of deceit for the distant sail.

“You soldiers, colonel,” he announced, “don’t ’ave no monopoly on tricks and gammon, *I’m* a thinkin’. But I s’y, w’at if you and me go down to my cabin and have a *noggin*?”

Thus *La Luz* ran her last blockade, and came safely into port. She reached Tampico some two days before the *Impératrice Eugénie*. Whereupon Din Driscoll, as he was called anywhere off the muster roll, informed Don Anastasio that he would continue with him on into the interior. And as⁴² seen already, Murguía humbly excused delay, though his guest was not invited, not wanted, and cordially hated besides. That meek smirk of Don Anastasio's was the absurdest thing in all psychology.

Yet what perhaps aggravated the old man most was curiosity. He craved to know the errand of his young despot. In the doorway of the Tampico mesón he still hovered near, and ventured more questions.

"How was it that, that *you* happened to be sent, señor?" he asked.

"Well now," observed the trooper, "there you go figuring it out that I was sent at all."

"It must have been—uh, because you know Spanish. Are you a—Texan, Señor Coronel?"

"They raised me in Missouri," said the colonel. "But I learned to talk Pan-American some on the Santa Fé trail. We had wagon trains out of Kansas City when I was a good sight younger."

"I thought," said the old man suspiciously, "that perhaps you learned it with Slaughter's army, along the Rio Grande. Slaughter, he's near Brownsville yet, isn't he?"

"Is he?"

"With about twenty-five thousand men?"

"Lord, I've clean forgot, not having counted 'em lately."

"Where did you come from then, when you came to Mobile?"

"W'y, as I remember, from Sand Spring, Missouri, near the Arkansas line."

A more obscure crossroads may not exist anywhere, but its bare mention had a curious effect on the prying Don Anastasio. In the instant he seemed to cringe before his late passenger.

"Then you—Your Mercy," he exclaimed, "belongs to Shelby's Brigade?"

The Missourian nodded curtly. His questioner was extraordinarily well⁴³ informed.

"And, and how many men has Shelby at Sand Spring?"

"Oh, millions. At least millions don't appear to stop 'em any."

“But señor, how, how many Confederates are there altogether west of the Mississippi?”

Driscoll, though, had had enough. “Look here Murgie,” he said, “if you keep on crawling, you’ll crawl up on a mongoose one of these days, and *those* things have teeth.”

He might have gone further into natural history, but a sudden commotion down the street interrupted. “It’s a race!” he cried. “No—Lordsake, if they ain’t fighting!”

He drew off his coat, took the pipe from his mouth, and shoved it into his hip pocket, all with the air of a man who has smoked enough and must be getting to work. His brown eyes quickened. It was akin to the satisfaction a merchant feels who scents an unexpected order. He was ready to deliver the goods instantly. His heavy boots went clattering and his great spurs jangling, and soon he was stooping over two men rolling in the dust. But he straightened and thrust his hands into his pockets. He was disappointed. The unexpected order was a hoax. The combatants were one to one, and he could not fairly enter into competition. Then an unaccustomed method for getting into the bidding occurred to him. He might be peacemaker. He leaned over again, to separate them. Each long-fingered hand reached for a collar. Yet even as he caught hold one of his prizes went limp in his grasp. He pulled out the survivor, who proved to be a ragged Mexican with a knife. The other was a French sailor. Driscoll shook the native angrily, whereupon the little demon swung the knife with vicious intent. But Driscoll held him at arm’s length, and the sweeps fell short, to the amazement and rage of his captive.

“You miserable little chocolate-hided galoot, why couldn’t you wait for me?”⁴⁴

But the chocolate-hided only squirmed to get away. Driscoll glanced up the street whence the two had come. At the next corner, before a café, he saw things more promising. A ranchero with a drawn revolver was holding off a young officer in sky-blue uniform, while around them a swarm of natives and ten or eleven sailors were circling uneasily, as if waiting for some sign to begin hostilities. The joy of battle dilated the trooper’s nostrils.

“W’y, here I’ve been wasting time on a smaller edition.”

So saying, he flung aside his prisoner; and in another minute he was the centre of the main affair, and having an excellent time.

CHAPTER VI

45

A Bruising of Arms for Jacqueline

“Then John bent up his long bende-bowe,
And fetteled him to shoote.”

—*Robin Hood.*

Into the crowd before the café, the Storm Centre pushed the argument of shoulders, and quickly gained for himself the place which his pseudonym indicated. Then he stopped, and looked puzzled. Which side to take? The French, being outnumbered, offered the larger contract.

“What’s the row?” Driscoll inquired of Ney. But he was ignored. “Might answer,” he suggested insidiously, “for it’s only a toss-up anyhow which way I enlist. Look here, Sky-Blue, if you don’t understand Spanish, just say so, and tell me why you don’t start the game.”

Ney shoved him aside impatiently, but he calmly stepped back again.

“Come now,” he argued plaintively, “let me in, don’t be selfish? But—goodness gracious, man, why don’t you draw your gun?”

“Because, my good fellow, I haven’t any.”

The mystery cleared at once, for now Driscoll understood the strategic outlay. Its key was Fra Diavolo, with a pistol at Ney’s head, and quite statuesque the romantic Mexican looked. But out of the tail of his eye Fra Diavolo noted the American, at first with contemptuous amusement only. Then, as though such had been the situation from the start, he grew aware of an ugly black muzzle under his chin. For very safety he froze rigid,⁴⁶ and dared not turn his own weapon from Ney to his new aggressor. But he wondered how the ugly black muzzle came there. He had not seen the American move. But for those who did see, the action seemed deliberate, with no hint of the actual panther-like turn of the wrist from the waist outward.

With his left hand Driscoll next drew forth the second of the brace, and held it out to Ney in his palm. The Chasseur seized the weapon joyfully. He straightened as the humiliation of a disarmed soldier fell from him.

But at once his face clouded, and with an oath he handed back the navy-six.

“W’y, what’s the matter?” asked Driscoll.

“You are trifling, man. That thing has no trigger.”

Much as an artisan would explain the peculiarities of a favorite tool, Driscoll said, “Now look here, you strip it—this way—so.”

And as he explained, he illustrated. He raised the hammer under his thumb, he released it on the cartridge, and Fra Diavolo’s sombrero flew off.

Fra Diavolo threw up his hand involuntarily, and there was a second report. Fra Diavolo’s pistol twisted out of his grasp. The brace of navies had not gone higher than the American’s waist.

“So,” Driscoll concluded.

At the same moment one of the sailors, a bullet-headed lad of Normandy, was observed to do a very peculiar thing. Jumping in front of Fra Diavolo he drew up one knee, for all the world like a dancer who meant then and there to cut a pigeon’s wing. His foot described a circle under the knee, then the performer turned partly round, and as a lightning bolt his leg straightened out full against Fra Diavolo’s stomach. The ranchero dropped like a bag of sand, except that he groaned. Ney captured the fallen pistol. A musket blazed, and a sailor cursed. And forthwith the maelstrom began. It went swirling round, with weird contortions and murderous eddies, but always its seething vortex was the lone trooper.

Luckily, firearms were out of the question where both sides were so mixed together. But Mexicans and sailors plied their knives instead, so that there was much soppy red spreading over the yellowish white of shirts, and over the blue of jackets. The pigeon-wing diversion, called the savate, also played its bizarre rôle, for wherever a Frenchman found space for the straightening out of a leg, in that instant a little native shot from him as a cat from the toe of a boot. Fra Diavolo was deposited flat on his back each time he tried to rise, till the sole of a foot took on more terror than a cannon’s mouth. As for Michel Ney, he was beautiful and gallant, now that what he had to do came without thinking. He achieved things splendidly with the butt of his enemy’s revolver, and exhorted his men the while to the old, brilliant daring of Frenchmen.

The Storm Centre, though, was merely workmanlike. He put away the six-shooters, and strove barehanded with joy and vigor, which was delightful; yet so systematic, that it was anything rather than romance. It might have been geometry, in that a foe is safer horizontal than perpendicular, and the theorem he applied industriously, with simple faith and earnest fists.

Yet, all told, it was a highly successful affair. Din Driscoll objected to the brevity, but that could hardly be altered for his sake. The little demons of Mexicans crawled from the outskirts of the mess, here one, there two or three, and now many, limping and nursing heads, and rubbing themselves dubiously, with hideous grimaces.

Suddenly the café door opened, and Jacqueline emerged, tripping lightly. Din Driscoll was filling his cob pipe, but he paused with a finger over the bowl. "If there isn't a woman in it!" he muttered. He felt imposed upon. The game was a man's game, and now its flavor was gone.

Jacqueline had seen nothing of the fray, but now she saw Fra Diavolo's⁴⁸ Contra Guerrillas skulking away and the sardonic captain himself fuming in ignoble soreness on his back. "Indeed," with fine scorn she demanded of Ney, "and how did you manage it?"

"Looks like the wrong side won out," mused Driscoll, feeling a little uncomfortable.

"Permit me to congratulate you—sergeant," she went on. "It's a good beginning for promotion. If you only knew how hard Maximilian tries to win over these natives, and here the very first thing you—Hélas! poor Prince Max!"

Driscoll caught one word from her French. "What's that about Maximilian?" he interrupted. He had to repeat, and then Jacqueline only glanced at him over her shoulder. Some mule driver, she imagined, and turned again to the abashed Chasseur.

But the pseudo mule driver moved squarely in front of her. He was embarrassed and respectful, but determined. Jacqueline lifted her brows. "My good man, this is effrontery!" But her good man did not quail. She noticed him a little then. He was ruddy and clean, with a stubble growth on his jaw. Since the civilization of Mobile, Lieutenant Colonel Jno. D. Driscoll had backslided into his old campaign ease. His first genuine stiff beard had found him sabre in hand, so that his knowledge of cutting

instruments and of arched brows was limited. He said that he would be much obliged to have his question answered. Whereat Jacqueline thought, by her faith, "What a round, wholesome voice these rustics sometimes have!" The one she heard possessed the full rich quality of an Irishman's brogue, with the brogue worn off.

"You know Spanish, do you not, señorita?"

"Mais—why, better than I thought," she returned in English; and in English that was piquant because it could not help being just the least bit French as well. "Much better—because, I comprehend even yours, sir."

"Con-*grat*-ulate you," Driscoll returned. "But what's this about Maximilian?"

An eagerness in his manner caught her attention. But she answered with her old irony. "His Imperial Majesty seems to concern you profoundly, monsieur?"

"H'm'm—oh no! Only it's curious how he gets mixed up in this shindy of ours."

"If—if you are asking about Maximilian, señor," a heavy voice began. Fra Diavolo at least was not indifferent to the American's questioning, and now he explained that the lady was the Marquesa d'Aumerle, and that she was on her way from Paris to the Mexican court. But a storm having brought her to Tampico, she wished to finish her journey overland. He, the Capitan Morel of His Majesty's Contra Guerrillas, had offered her escort for the trip. But the French caballero had presumed to force her to continue by water.

"By water?" Driscoll repeated, glaring at Ney. "That poor little girl!—And make her sick again!"

Jacqueline's chin tilted. "Ma foi, monsieur, I was not sick."

Driscoll noted her fragile dainty person, and recalling his own experience, had grave doubts about the consistency of Nature. But this was apart. There was still the mystery of his having blundered into a business that somehow concerned the Emperor of Mexico. And it was a matter that must be set right.

"You say you are an officer," he demanded of the ranchero, "but your Greaser clothes, that's not a uniform?"

Uniforms were not necessarily a part of the contra-guerrilla service, said the Mexican; and besides, there might be reasons for a disguise. But as to his own identity, he reproduced the order signed by Colonel Dupin.

“Correct,” said Driscoll, and handed back the paper.

“Now then,” he added to Ney, “what do you say for yourself?”

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Unconsciously the French soldier replied as to a superior officer. “I’ve just been transferred to the service of His Excellency, Marshal Bazaine, in the City of Mexico, and am on my way there now.”

“You are in the French service?”

“Of course I am.”

“Your rank?”

“Sergeant.”

Here, in a caprice of kind heart, as well as of mischief, Jacqueline interposed. “Your sergeant, Monsieur the American, is the Duke of Elchingen.” But she might have called Ney a *genus homo*, for all the impression it made.

“Too bad, sergeant,” said Driscoll, “but a captain ranks first, you know, and—well, I reckon I’ll have to change sides. I know it’s tough,” and his brow knitted with droll perplexity, “but I’m afraid we’ll just have to do this thing all over again, unless—well, unless you give in, sergeant.”

Jacqueline had been waxing more and more agog, and her boot had tapped impatiently. Now she gave way, and declared that it was too much. What, she demanded, had monsieur to do with the matter in the first place? Driscoll took off his slouch hat and ran his fingers through his hair to grope for an answer. It had never been brought to him before that fighting might be a private preserve. But his face cleared straightway. In this second skirmish, due momentarily, he would be a legitimate belligerent and not a trespasser, because since he had stumbled amuck of Maximilian’s authority, another joust was needed to correct the first. It all depended on whether Miss—Miss—if the *señorita*—still wished to go by land.

“If monsieur will have the condescension,” returned Jacqueline.

Then out came the brace of navies once more, as naturally as the order book of the grocer’s clerk on your back porch. Involuntarily Ney reached for his cap.

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“Now captain,” said Driscoll.

Fra Diavolo took the cue instantly. “A-i, mis muchachos!” he called, and the little demons came hurrying back, like a damned host with a new hope of heaven.

If there were any police about, or had been, they were mysteriously indifferent. But Jacqueline did just as well. No one had thought to put her back in the café, and she promptly took a hand in the man's game.

"Michel Ney," she commanded, "do you hear me; lower that pistol!"

"You, you wish me to surrender, mademoiselle?"

"You know I don't! If anyone even asks it, I will go back to the ship with you, at once."

"But I, I don't understand."

"You understand that I want your escort overland. Is it gallant, then, to disappoint me by getting yourself killed?"

"But all your trunks are on the ship."

Jacqueline turned to her Fra Diavolo. He could answer that? To be sure he could, and he was honored. He suggested, with her permission, that she spend the night on shore, she and her maid, since the café was also a hotel. Meantime, the sailors could bring what she needed from the boat.

As he listened, Ney's slow thoughts came to a focus. And when Jacqueline turned to him again, he gave way graciously, which brought on him a sharp scrutiny from the ranchero. However, the truce between the two antagonists was patched up with a readiness on both sides. Ney restored to Fra Diavolo his pistol, and had his own weapons back in exchange. Next he took the ship's steward aside, apparently to instruct him about bringing the trunk. "And steward," he whispered, "don't forget to make it urgent. The skipper must land all the troops on board at once."⁵² He decided that meantime he would stroll up to the fort on his own account, and bring down more aid from there.

"Now then," reflected the beaming young Gaul, "our *spirituelle* little marquise will find that one may have wits, and not read her dense old poets, either."

He opened the café door for her and both joined the maid Berthe, who was still clinging to sanctuary inside.

The American lieutenant-colonel and the Mexican capitan looked at one another. They felt deserted. Fra Diavolo's teeth bared. "Ai, que mal educados," he observed. "They're ill-bred, I say. They kick a gentleman in the stomach—in the stomach, señor!"

Driscoll turned to go. It was enough of satisfaction to reflect that, if any mention of the affair reached Maximilian, his own part therein would not injure his errand to Mexico. As for the rest, Mexicans and French

could go their own ways—he had amused himself. “Well, adios, captain,” he said, and swung on his heel.

“Wait! Which direction, señor?”

“To this mesón here, around the corner.”

“If Your Mercy is not in a hurry—”

Driscoll nodded, and the capitan stopped to say a few words to two of his vagabonds. One of these immediately hurried off in the direction of the river. The other was still loafing outside the café when his chief rejoined Driscoll.

“Looks like you were interested in His Resplendent Majesty,” Fra Diavolo began with weighty lightsomeness. “Mustn’t hurt his feelings, eh, caballero?”

Driscoll laughed easily, “It was all on the girl’s account,” he said.

The ranchero glanced at him quickly, sideways, a dark look of suspicion. “On her account, señor, not Maximilian’s?” he repeated. “Dios mio, caballero, I’ll wager you have forgotten her already.” Which, to tell the truth, was fairly exact.

At the mesón Don Anastasio regarded the American with much more respect to see him returning in such company. But to Fra Diavolo he addressed himself in his thin obsequious voice, “You see I am waiting, as you wished. But on my, my daughter’s account, I—”

“So, captain,” Driscoll interrupted, “you’re the one that’s holding back Murgie! Just tell him, Murgie, that I am in a rush.”

Fra Diavolo smiled and bade his American have patience, for he quite believed that the Señor Murguía would be starting in the morning.

“Si señor,” he went on in a different tone, when Driscoll had left him alone with the trader, “you set out to-morrow, and you are to have two extra horses ready. But for whom, do you suppose? Bien, they are for La Señorita Jacqueline and her maid.”

Murguía’s countenance changed strangely, a most inexplicable contortion. His little rat eyes focused on the ranchero, and he drew back in a sort of fear. Convoy her whom people called Jacqueline through the lawless Huasteca, at the bidding of this man! “No, no, no!” he cried, and shuddered too.

Trying to read a meaning behind the capitan’s dark scowl, he knew only too well the meaning that was there. He moaned at the thought. Maximiliano would have him shot, or burned, or tortured. He would lose

his ranch, his cotton mill. He would be poor. It was vague, what would happen, but it was horrible, horrible!

“Hush, you fool!” growled Fra Diavolo. “The entire mesón will hear you, including that Gringo.”

“That Gringo? He, he is one of your friends?”

“Friend! For Dios, he nearly ruined my little plans for Jacqueline. Listen, he has business of some kind with Maximiliano.”

“Yes, yes. And there’s a—a mystery in his business.”

“What do you mean?”

“If I knew, would it be a mystery?”

“Who is he?”

“He won’t tell. I only know that he is a Confederate officer.”

“A Confederate officer?” The capitan whistled low and softly. “Come to the Plaza, there you can tell me what you think.”

And in the solitude of the Plaza they planned according to their suspicions.

CHAPTER VII

55

SWORDSMANSHIP IN THE DARK

“Cry ‘holla’ to thy tongue, I prithee; it curvets
unseasonably.”

—*As You Like It.*

“Strange there’s no motion,” thought Jacqueline the next morning, rubbing her eyes. “Why, what ails the old boat, I wonder?” Then she remembered. She was in the Tampico hotel which called itself a café, and the landlord’s wife was knocking on her door and calling “Niñ-a, niñ-a” with a plaintive stress on the first syllable. The word means girl, and oddly enough, is often used by a Mexican servant to address her mistress.

“I’m not a n-e-e-n-ya,” Jacqueline assured her drowsily, “and if I were, madame, why make a fête out of it this way in the middle of the night?”

“Niñ-a,” the unctuous nasal rose higher, “if Your Mercy goes with Don Anastasio, she must hurry. It is late. It is four o’clock, niña.”

“Four o’clock—late?” gasped the luxurious little marquise. “And how much difference, exactly, would your four o’clocks make on the planet Mars, my good woman?”

“But niña, there is Don Anastasio, he is ready to start.”

“And who is Don Anastasio, pray?”

“The trader, niña, at the mesón. He is to take Your Mercy to Valles, as Don—as the Capitan Morel told Your Mercy yesterday.”

“The Capitan Morel, *pardi!* Faith, if any man had told me it meant rising at any such unholy hour. Oh well, I suppose it is the hour for larks, too.”

And sighing at the sacrifice of an age of slumber, Jacqueline reached out for the matches. But there was no dainty limbed night table of a Louis XV. beside her bed, which helped her again to remember where she was, and if doubts still remained, they were gone when her bare feet touched the fibrous, prickly native carpet instead of soft furs.

She groped to the door, and opened it enough to take a greasily odorous candle from a dusky hand outside. As the sickly glimmer

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awakened the shadows, she called the woman back in sudden dismay. "My trunk, señora, kindly have it sent up at once. No," she added, catching a fluffy garment from a chair, "in five minutes."

There was a brief silence, followed by positive lament. "Niña, it is not here. I believe, niñ-a, it is at the mesón, with Don Anastasio."

"F-flute!" cried Jacqueline. The word means nothing at all, but it may express a lass's exasperation in a wardrobe crisis, and that is nothing except a catastrophe. "Now just possibly," she soliloquized, "they permit themselves to imagine that one can wear a white frock two days together," whereupon she sat herself down despairingly among the crisp things that had already had their poor little day. To mock her there was the jaunty handsatchel packed for an hour's shore leave. She let petulance have sway, and informed herself that she should not go a step, when the voice in the hall pleaded insidiously that Her Mercy make haste.

"But I am, señora, I'm making fast haste," and she sat three minutes longer, communing with her tragedy. "Oh, this bitten, biting country," she cried, gazing ruefully at arms and shoulders, and fiery blotches on the soft white skin. "Still, if there's a brigand for every mosquito, it may yet be worth while." Hopefully she rose and called Berthe from the next 57 room to help her dress.

When the two girls came downstairs, the landlord's wife took their satchel, and led them over broken sidewalks to the mesón, where the street was filled with torches and laden burros and blanketed shadows. Murguía's caravan was forming, making a weird, stealthy scene of activity. Jacqueline picked up a lantern, and searched here and there.

"Now where *can* it be?" she cried.

The rebosa about the shoulders of the Mexican woman rose. She knew nothing. But the gesture was an unabridged philosophical system as to the resignation and the indifference that is seemly when one knows nothing. Jacqueline refrained from pinching her, and pursued the quest of her trunk even into the mesón.

Hardly had she passed within when a greatly agitated little old man tried to overtake her. But at the door he thought better of it and vented his chagrin on the Mexican woman.

"Why did you let her go in there?" he cried. "She will wake the Gringo, she will wake the Gringo!"

Jacqueline reappeared. “No trunk,” she announced. “Do you know, Berthe, I do not believe it came at all?”

The old man’s voice sounded at her elbow, faltering, placating. “With permission, señorita, we must be starting.”

“And similarly with permission, señor, who are you?”

“Anastasio Murguía, the servant of Your Mercy.”

“Ah, the poor little crow? Perhaps you will tell me, sir, why neither the Señor Ney nor Fra—nor Captain Morel is here?”

“The young French caballero had visited the fort last evening, he replied. Her Mercy knew that? Yes, precisamente. Yes, the caballero had spent the night up there with his compatriots of the garrison. Her Mercy did not know that? No? But it was quite exact, yes, because he, Don Anastasio, had been so informed. But the Señor Ney would meet them out of Tampico—yes, precisamente, with a detachment of cavalry from the fort.”

“That poor Michel!” said Jacqueline. “He’s determined that I am to have a French escort. But Captain Morel, señor?”

Murguía would not answer. He repeated the question to the Mexican woman, who took up explanations with a glib readiness. “Si, niña, I saw the capitan, not more than an hour ago. He was riding by the café, to meet his—Contra Guerrillas. But he stopped and woke me. He said that I was to bring Your Mercies here to the mesón, and to say that he would meet Your Mercies—yes, surely, before you had gone very far, niña.” Her tone was a sugared whine, and more than once she peered around at Murguía; while he, for his part, stood by as though overseeing a task. But Jacqueline only allowed herself a little inconsequential sniff, and went back to the really serious business that did worry her. She demanded her trunk.

“How, the señorita does not know?” asked Murguía.

“Know what?”

“That the sailors did not come back from the ship?”

“Not come back! Eh bien, I will not go a step.”

At first Don Anastasio’s pinched face lighted with relief. But at once a conflicting anxiety, lest she might *not* go, seemed to possess him. “But señorita,” he protested, “what will Your Mercy do? The ship, yes, señorita, the ship has sailed already. It left last night for Vera Cruz.”

“And here am I,” Jacqueline exclaimed, tapping her foot, “with only one dress!”

A long bubbling whistle sounded near a gendarme’s lantern in the middle of the street. A block away another sounded, then another, and another, and others yet, each thinly shrill and distant. It was the challenge to slumber and the answer of wakefulness from the watches of the night over the silent city.

“Another quarter gone by!” Murguía exclaimed nervously. “Come, señoritas, if we are to reach the Valles stage by nightfall, we have no time to lose. There are your horses, I will—”

A tremor cut short his words. Someone had just emerged from the mesón.

“Gracious, Murgie, off so early?” the newcomer observed cheerily.

Murguía scowled. He knew that tone.

“If I’m late, I apologize,” the other drawled gently, from behind the flare of a match over his pipe. “Howsoever, all my eyes weren’t shut, and you wouldn’t of left me. Pretty quiet about striking camp, though! Didn’t want to disturb me, maybe? Well, well, who made you so thoughtful? Not Captain Morel? Now I wonder!”

“I uh, why *should* I wake you, Mis-ter Driscoll? Have I asked you even to go?”

“N-o, but you evidently asked old Demijohn there.” And Driscoll pointed to his horse, all saddled. “But cheer up, Convoluting Squirmer, of course I know you aren’t a horse thief. No, I just come out to say you forgot the blanket. I was sleeping on it.”

Then he turned to the two girls. They were going also. But why try to leave him behind, even without a horse? He knew, for all his whimsical cheerfulness, that something serious was afoot. It was hardly likely that the girls themselves had interfered. Still, he must make sure. To provoke a reply elsewhere, he asked Murguía if it were the señoritas, perhaps, and not Captain Morel, who preferred his absence? A surprised “Ma foi!” from Jacqueline answered him. As he supposed, she had not thought of him one way or another.

But she deigned to say, that since the American *gentleman*—there was a lingering on the word, which opened wide the Storm Centre’s eyes with anticipation of battle—that since the American gentleman had broached the subject of his going (as no doubt interesting him, being about

himself), then she would permit herself to inquire why, indeed, he should be going with them at all. She had not observed any cordiality in the requests for his society.

The light was not good, and she did not see his lips pucker as for a long whistle. But he did not whistle. He replied very humbly; and so sweetly that Murguía quailed for the little shrew.

“W’y miss,” he said, “it all comes of feeling my responsibility. I’m the cause of your going, and that’s why I’m going too.”

His very earnestness gave her to understand that he had forgotten her entirely. The finesse of the Tuileries could not have struck home more delicately, and more keenly. “I’ve often heard,” she thought to herself, “that an awkward swordsman is dangerous.” But she made no cry of “touchée!” Instead she caught at the point to turn the blade aside. “Responsibility? Truly sir, you *are* considerate. But permit me—my safety on this trip, what concern can that have for Your Mercy?”

“None at all,” replied Driscoll, heartily.

His brow, none the less, was crinkled, and he watched dubiously as Murguía helped the two girls into great armchair-like saddles. There was not a woman’s saddle in Tampico, but Jeanne d’Aumerle did not mind that. She, the marchioness, enjoyed the oddity of a pommel in lieu of horn. And the lady’s maid might have been on a dromedary, for all the consciousness the poor child had of it.

“Say,” Driscoll interrupted with cool obstinacy, “where’s our friend the captain and that sky-blue Frenchman?”

Murguía pretended not to heed him. Jacqueline really did not. But Berthe spoke up eagerly. She said that the two gentlemen were to meet them later in the day. At least she hoped so, but—no, no, there could be no doubt of it! Yet her words faltered, and there was an appeal in them. But if she placed any hope in the strange American, she was quickly disappointed.

“All right,” he said, as if the matter were of no further consequence. “Then I can make a nice comfortable report to Maximilian.”

“Report to Maximiliano?” exclaimed Murguía.

Driscoll nodded indifferently.

“But Señor Coronel, when you do, you—you will remember that I said nothing to—that is, to persuade the señoritas to take this journey.”

“Nor not to take it, Wiggler.”

“Yet you will say to His Majesty that I did suggest—yes, I do now—that they had better not—”

His utterance drivelled to incoherency. The Mexican woman, she of the café, stood before him. There was a warning on her stolid countenance. Murguía wet his lips. “But,” he stammered, “there—oh what danger can there be in their going?”

Driscoll shoved him aside and placed himself at the head of Jacqueline’s horse. “You had better risk the water, miss,” he said quietly.

“My good sir,” she replied, clear and cold, “I commend your prudence, in making certain, before you dared touch my bridle-rein, that neither of the two gentlemen were here.”

Din Driscoll swung on his heel. “Damned!” he murmured, and he pronounced the “n” and the “d” thoroughly, to make the word adequate if possible. “Lord, I believe I feel like a closed incident! And to think, Demijohn,” he went on as he busied himself about his horse, “to think that it’s the first and only time we’ve ever seen trouble coming and tried to keep out of it.”

But the trouble might appear now, he had done what he could. The thought brightened him, and he patted his short ribs musingly. There was a friendly protuberance there on either side. His belt sagged comfortably. He opened the pack which he was tying with his blanket behind his saddle, and from it he filled with cartridges the pockets of his rough cape coat.

By now the caravan was passing him. The burros, like square-shelled monstrosities with ears, were settling into a steady trot. Their blanketed arrieros ran beside them and prodded, and were in turn prodded by the fretful Murguía. Then Jacqueline rode by on an ambling little mountain-climber. She had forgotten his presence. This was not a pose with the Marquise d’Aumerle; she had, really. But her little Breton maid coming behind timidly drew rein. Driscoll looked and saw in the moving yellow torchlights that her face was white. A thing like that somehow alters a man’s attitude. “W’y, child,” he exclaimed, “what’s—”

“Monsi—señor,” she said hastily, in pathetic and pretty broken Spanish, “you, oh, you will not leave us! In the mercy of heaven, tell me that you will not! Ah, seigneur,” she sobbed, “mademoiselle will yet lead us to our death!”

“Berthe,” mademoiselle at that instant called, “oh you little ninny, are you coming ever?”

The maid obeyed. “Just the same,” she sighed, “God bless her!”

“And did I,” Driscoll had begun angrily, but she was already gone, and he finished it to himself, “did I once intend to leave you?”

He leaped astride his buckskin horse, who trotted with him briskly to the head of the caravan. Behind was Anastasio Murguía, a quaint combination of silk hat, shawl, and ranchero saddle. The two Frenchwomen followed, and behind came the straggling file of burros and pack horses.

Yet the American was as a solitary traveller leaving a town for the wilderness at the first touch of dawn. The road soon narrowed down to a trail as it wound through the undergrowth of the Huasteca lowlands, then westward toward a bluish line of mountains. At each cross trail the American would turn in his saddle to force an indication of their course from Murguía. Then on he would ride again, the while sinking deeper and deeper into his thoughts; thoughts of why he had come, of how he might succeed, and of the Surrender at that moment perhaps a fact. For him, though, there was his sabre yet, dangling there under his leg. And there were the sabres of comrades that likewise would not be given up, for to save them that shame was he in Mexico. Riding there, so much alone, and lonely, he was a rough, savage, military figure. But in his meditations, so grave and unwonted in the wild, hard-riding trooper lad, there was nothing to indicate a second nature in him, an instinct that was on the alert against every leafy clump and cactus and mesh of vine.

CHAPTER VIII

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THE THOUGHTS OF YOUTH MAY BE PRODIGIOUSLY LONG THOUGHTS

“And many a Knot unravell’d by the Road;
But not the Master-Knot of Human Fate.”

—Omar.

Another young person, Jacqueline herself, was also pondering rather soberly this morning. And her thoughts fitted as oddly with her piquant, lightsome, cynical youth as the gloomily patriotic ones of the Storm Centre did with his youth, which was robust and boyish and swashbuckling. To judge from the way their brains worked now, both young people might have been grave wielders of state affairs, instead of the lad and the lass so heartily and pettily scorning each other a short hour before.

Yes, the great rugged Missourian had his disdain too, and for none other than the darling beauty of two imperial courts. The beauty would have been vastly amused, no doubt, had she known of the phenomenon. But knowing a little more, such as its source and the man himself, she must have flushed and drooped, piteously hurt, as none in her own circle could have wounded her. The shafts which flashed in that circle were keenly barbed. They were the more merciless for being politely gilded. But she understood, and despised, the point of view there. It was a dais of velvet, of scarlet velvet. And a worldly little gentlewoman like the Marquise Jeanne was not one to be unaware of the abyss beneath, of which the flaming color was a symbol. But she rather enjoyed the darts, if only to fling them back more dazzlingly tipped.

The perspective of the Missouri boy was different. And his disdain was different. A titled belle mattered little with him, and was apart, like the girl in a spectacular chorus. Operettas and royal courts were shows, which real men and women paid to see, and to support. He was a deep-breathing, danger-nourished man of life and of things that count. And his only cynicism, and even that unconscious, was the dry honest sort which sheer unpolished naturalness bears to all things trivial and vain and artificial. One can readily understand, then, the attitude of such a man toward a playactor off the stage; toward a playactor, that is, who thinks to impress the great, wide, live world with the superficial mannerisms of his little playacting world. Here was Din Driscoll, Jack Driscoll, Trooper Driscoll, here he was, traveling near a handsome young woman who for the moment had been cut off from her precious wee sphere. And he saw her outside of it, playing coquettishly, and to her own mind, seriously;

playing bewitchingly her shallow rôle patterned after life, yet without once realizing the counterfeit. The Western country boy, whatever his Cavalier stock, had a Puritanical backbone in common with the whole American race. And without being aware of it, his personal, private bearing toward the light and airy French girl was a sneer, a tolerant, good-natured and indifferent sneer.

However, Mademoiselle la Marquise was neither amused nor hurt, because, quite simply, she rode in happy oblivion of the rustic and his standards for the appraising of a girl. He looked very straight of neck and spine, and she wondered if he had been cradled in a saddle, but that was all.

Now if Lieutenant-Colonel Driscoll had had the slightest glimpse of what was actually passing through the winsome and supposedly silly little head behind him, there is no reliable telling into what change of opinion he might have been jostled. But this is certain, that if he had known, he could have saved himself some rare adventures afterward.

In Jacqueline's musings there was poetry and there were politics. The poetry justified the politics; moreover, was their inspiration. A dilettante such as Jacqueline, æsthetic and delicately sensitive, was naturally a lover of the beautiful in her search after emotions. A sentiment for her surroundings came now as a matter of course. If she turned, she beheld the chaparral plain stretching flatly back of her to the sands and lagoons of the coast. If she flirted her whip overhead, down hurtled a shower of bright yellow hail from the laden boughs. Her nostrils told her of magnolias and orange blossoms; her eyes and ears, of parrots and paroquets and every other conceit in fantastic plumage. They were a restless kaleidoscope of colors blending with the foliage, and from their turmoil they might have been quarreling myriads, and never birds of a paradise. Little red monkeys grinned down at her as they raced clutching among the branches, while a big bandy-legged sambo, an exceedingly ill-tempered member of the same family, bawled his reproaches in a tone gruesomely human. Now and then her horse reared from an adder squirming underfoot, or she would see a torpid boa twined sluggishly around a limb, as about a victim. Once in a jungle-like place she experienced something akin to the prized ecstatic shudder as she made out the sleek form of a jaguar slinking into the swamp. The ugliest of the

picturesque “properties” was a monstrous green iguana with his prickly crest and horn and slimy eye, basking full five feet along a rotten log.

But the things of horror merely gave to those of beauty a needed contrast, and did not hurt the poetry in the least. They were every one on the same grand, wild scale. As the palms, for instance, rising like slender columns a hundred feet without a single branch. As yet other palms, which were plumed at the summit like an ostrich wing; or as the smaller⁶⁷ ones at their base, spreading out into fans of emerald green. Again, as the forest giants which far overhead were the arches of a watercourse, like the nave of a Gothic cathedral. And even the parasite vines were of the same Titan designing, for they bound the girders of the vault in a dense mat of leaves and woven twigs, while underfoot the carpet was soft inches deep with fern and moss. As for the flowers—Jacqueline wanted to pluck them all, to wreath the wondering fawns, as ladies with picture hats do in the old frivolous rococo fantasies. And as to that, she might have been one of those Watteau ladies herself, so rich was the coloring there, and she in the foreground so white, so soft of skin, so sylvan and aristocratic a shepherdess.

And then it was a thing for wonderment, that beyond, where the mountains were, all this world changed, yet changed to another as strange and vast. And that still farther on there stretched yet other regions, and each one different, and each no less marvelous and grand. A bewildering prodigality of Nature, spelling the little word “romance”! Jacqueline’s lip quivered as she gazed and imagined, and as the poetry of it filled her soul. But of a sudden the little woman sighed. It was a sigh of rebellion. And just here the politics leaped forth, inspired of the wild thrilling beauty of the world.

“To think,” she half cried, “that we are losing this—all this! And yet we have won it! Mon Dieu, have we not won it? Yet for whom, alas? Maximilian?—Faw, an ungrateful puppet such as that, to have, to take from us, such as—this! Now suppose,” her lips formed the unuttered words, while her gray eyes closed to a narrowing cunning, “just suppose that we—that someone—reminds His Majesty how ingratitude falls short of courtesy between emperors.”

The boy’s thoughts were of the country he had lost. Those of the resplendent and wayward butterfly were of an empire she meant to gain.⁶⁸ But in her, who might suspect the consummate diplomat? Even then she

was speaking to Murguía, asking if it were not time that Fra Diavolo remembered his engagements. Driscoll heard the query, and his comment was a mental shrug of the shoulders.

CHAPTER IX

69

TOLL-TAKING IN THE HUASTECA

“And when he came bold Robin
before,
Robin asked him courteously,
‘O, hast thou any money to spare,
For my merry men and me?’”

—*Robin Hood.*

For all his campaigner's instincts, the first of Driscoll's expected troubles came and was gone before he knew that it was trouble. It arrived so naturally, and was so well behaved! With a stop for a bowl of coffee at a roadside fonda, they had been traveling for perhaps five hours, when Driscoll saw the heads of two horses and their riders over the brush, and at a turn in the trail he found that they were coming leisurely toward him. He observed them suspiciously, and wistfully. The wild tropics around him had quite won his heart as peculiarly adapted to violent amusements of a desperate tinge, far more so really than his own Missouri woodlands. Yet thus far the uneventful tameness had depressed him as a shameful waste of environment.

To boot all, here was this brace of villainous, well-armed Mexicans not giving the least promise of entertainment. There was nothing to distinguish them from the usual sun-baked rancheros of the Huasteca, unless it were the first man's straw sombrero, the heavy silver mounting of which must have been worth in bullion alone a fair pocketful of pesos. There was a cord of silver hanging over the broad brim, and there was a silver “T” on one side of the sugar loaf, an “M” on the other side, and a Roman sword in front, and all three were linked together in fanciful silver scrolls. But the rest of the man was wretched. His feet were encased in the guaraches, or sandals, of a peon. One of his eyes was so crossed that hardly more than a baleful crescent was ever visible. The other vaquero, his companion, had no relieving trait at all, either luxurious or strikingly evil. His breeches of raw leather flapped loosely from the knee down, and at the sides they were slit, revealing the dirty white of cotton calzoncillos

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beneath. Though the April morning was hot, a crimson serape covered his shoulders. Both men had pistols, and each also had a long machete two inches wide hanging with a lariat from his saddle.

They lifted their sombreros, and he of the gorgeous one inquired if that were Don Anastasio's outfit coming up behind. A civil answer was merest traveler's courtesy, and Driscoll reluctantly took his cob pipe from his mouth to reckon that they were pretty nearly correct. He might have loaned them a thousand dollars, to judge from their gratitude, and they made way for him by drawing off the trail entirely. Here they halted till all the burros and horses had gone by. The muleteers in passing them, confusedly touched their hats. Murguía, who was then in the rear, stopped when he saw the two strangers. Driscoll looked back, but judged from the greetings that the three were old acquaintances. The assiduously respectful bearing of the timorous old man was to be counted as only habitual. And when he saw one of Don Anastasio's mozos bring a bottle and glasses, he was completely reassured, and rested like the others of the caravan some little distance ahead.

Murguía dismissed the mozo, himself poured the cognac, and begged the honor of drinking health and many pesetas to his two "friends." They craved a like boon, and the clinking of the copitas followed ceremoniously.

"I counted three hundred and sixty-eight half-bales," said he of the crossed eye, with a head cocked sideways and tilted. The evidence was against it, but Murguía knew well enough that the sinister crescent was fixed on himself. "Three-sixty-eight, at half a peso each, that makes one hundred and eighty-four pesos which Your Mercy owes us, Don Anastasio. Add on collection charges, ten per cent.—well, with your permission, we'll call it two hundred flat."⁷¹

Don Anastasio manifested an itch for argument.

"Oh leave all that," he of the crimson serape broke in. "Why go over it again? We are loyal imperialists, and only our lasting friendship for you holds us from informing His Majesty's Contrás how you contribute to that arch rebel, Rodrigo Galán."

"But," weakly protested Murguía, "but who believes that Don Rodrigo turns any of it over to the Liberal—to the rebel cause?"

"A swollen-lunged patriot like your Don Rodrigo—of course he does, every cent," and the cross-eye took on a jocular gleam.

“Now, Señor Murguía,” he of the same eye continued, “the favor of your attention. See that ‘T’ on my sombrero? That’s ‘Tiburcio.’ See that ‘M’? That’s ‘Maximiliano.’ And that sword? That’s ‘Woe to the Conquered,’ at least the sombrero maker said so. Well, Don Anastasio—” and he ended with a gesture that the poor trader saw even in his dreams, the unctuous rubbing of fingers on the thumb.

Sadly Don Anastasio unstrapped a belt under his black vest, and counted out in French gold the equivalent of two hundred Mexican dollars.

Don Tiburcio took the money, and observed, as in the nature of pleasant gossip, that Don Anastasio had quite an unusual outfit this time.

Murguía took alarm immediately. “Not so large as usual, Don Tiburcio. The crops up there—”

“Crops? No, I don’t mean your cotton. I mean fine linen and muslin,⁷² and silks, and laces—petticoats and stockings, Don Anastasio.”

“They—they are Don Rodrigo’s affairs, not mine.”

“Enough yours for you to be anxious to deliver the goods safely, I think. But the rate on that class of stuff is rather high. Now what do you suppose, my esteemed compadre, Don Rodrigo would say if we had to confiscate the consignment?”

But Don Anastasio did not need to suppose. “How much?” he whimpered.

“Well, with the American—”

“Fires of hell consume the American! Collect your tolls from him yourself. He’s no affair of anybody’s.”

The vaqueros laughed. “We’ll throw in the American for nothing,” said Don Tiburcio generously. “Besides, to look at him, he may not be very-tollable. But delicate dress goods now, there’s a heavy duty on them. I should say a hundred apiece.” And without any seeming reference to this revenue statement, the toll taker placed the tip of an index finger under each ear, then pointed them lower down against his throat, then lower again, and at the last the two fingers met in an acute angle, significantly acute, under his chin, while the half-veiled black bead in the outer corner of his eye had a sheen unutterably merry and malignant.

The pantomime bore a money value, for Murguía stifled his wrath, again drew out the belt, and more Napoleons changed hands. Murguía was then for remounting, leaving the flask of brandy with the two

imperialist emissaries, as had become his custom. But the jovial Tiburcio stopped him. "What must you think of us, Don Anastasio?" he exclaimed contritely. "We haven't offered you a drink yet." Murguía dared not refuse, and he paused for the return of hospitality from his own bottle. At last he was on his horse, when Tiburcio again called.

"I say, Don Anastasio, if you want a big return for your money"—Don Anastasio halted instantly—"if you do, well, we ought not to say it, being devoted to Maximiliano. But no matter, I will tell you this much, poor old man—look after your daughter! Look after her, Don Anastasio! We've just come from up there."

A half cry escaped the father as he jerked back his horse. He demanded what they meant. He pleaded. But they waved him to go on, and rode away indifferently, taking a cross trail through a stretch of timber.

Rigid, motionless, Murguía looked after them until they had disappeared. But when they were gone, a frenzy possessed him. He turned and galloped to his caravan, which was again moving. He did not stop till he reached the American. "You owe me two hundred dollars," he cried. Thus his decent emotion concerning his daughter found vent. "Two hundred, I tell you!"

"Will you," asked Driscoll, "take 'em now, or after you tell me what I owe 'em for?"

Murguía wavered. The simple question brought him to his senses. But he had gone too far not to explain. Besides, his insane device for reimbursing himself appealed to him as good. "Because—don't you know, señor, that travelers here must pay toll? You don't? But it's true, and—and I've just paid out two hundred pesos on Your Mercy's account."

The trooper's brown eyes flashed. "Which way did those thieves go?" he demanded. "Quick! Which way?"

Murguía's avarice changed to trembling. He feared to tell. Driscoll caught his bridle. "Which way, or by-by—Never mind, you'll pay toll to me, too! I'll just learn this toll-taking trade myself."

Murguía saw a six-shooter sliding out. "You also!" he cried.

"Also?" laughed Driscoll. "There, I knew it, they were robbers."

He wheeled and rode back with the fury of a cavalry charge, heedless of Murguía's cries to stop by all the saints, heedless of the saints too. Murguía did not care what happened to his guest, but he cared for what might happen to himself, afterward, at the hands of Don Tiburcio and

partner. He frantically called out that he was jesting, that Driscoll owed him nothing. But Driscoll had already turned into the side trail, and was following the hoof prints there. Murguía could hear the furious crackling of twigs as he raced through the timber. But in a little while he heard and saw nothing.

“He’s a centaur, that country boy,” observed Jacqueline critically. “The identical break-neck Centaur himself. Really, Berthe, I think we shall have to dub him Monsieur the Chevalier. Why Berthe, how pale you are!”

“I? Oh, mademoiselle, is there any danger?”

“Danger, child? Nonsense!”

“But what made him do that, that way?”

“Poor simple babe! That was a pose. Our mule driver knows he can ride, but we did not. And there you are.”

“But the little monsieur, he looks like a ghost?”

Jacqueline laughed. “That, I admit, is not a pose. With the little monsieur, it’s become—constitutional.”

A half-hour later they heard an easy canter behind them, and Din Driscoll reappeared, flushed and happy as a boy pounding in first from a foot race. His left hand covered the bowl of his cob pipe from the wind, the other held his slouch hat doubled up by the brim. As for bridle hand, old Demijohn needed none. Driscoll seized Murguía’s silk tile and poured into it from the slouch a shimmering stream of coin and a mass of crumpled paper.

“To be robbed while I’m along, now that makes me *mad*,” he said.⁷⁵
“You won’t tell anybody, will you, Murgie?”

The old man did not hear. His palsied hands were dipping down, dipping down, bathing themselves in the deep silk hat. The hat was heavy with gold and silver pesos, and foaming with bills.

“Greenbacks, Confederate notes,” he mumbled. “Some I’ve paid before—only, lately, the rascals won’t take anything but coin.”

“Why’s that, Murgie?”

“Why, because these green things are not worth much now, while these gray ones”—he fingered them contemptuously—“would not, would not buy a drunkard’s pardon from our cheapest magistrate.”

The slur on Mexican justice only emphasized his scorn of the Confederate notes.

“Give ’em here!” Driscoll snatched them from the yellow, desecrating fingers. “These here are promises,” he muttered, “and we’ve been fighting for four years to make them good. For four years, even the children and old men, and—yes, and the women folks back of us!”

The impulsive mood carried him further. He counted and pocketed the despised notes. Then from an humble tobacco pouch he sorted out a number of British sovereigns, and flung them into Murguía’s hat.

“Prob’bly my last blow for them promises,” he murmured to himself.

Meantime a burro back of them had become possessed of an idea, which for some reason necessitated his halting stock still directly across the trail to think it over. The caravan behind stopped also, while the arrieros snorted “Ar-re!” and “Bur-ro!” through their noses, and prodded the beast. Jacqueline lost patience. She touched her horse, which bounded out of the trail and galloped past the outfit almost to Driscoll and Murguía. So she had seen the exchange of money and she had heard. She looked thoughtfully at the trooper’s straight line of back and shoulder.

“Monsieur the Chevalier,” she murmured softly, as though trying the sound of the words for the fast time. She would have supposed that none but a Frenchman could have done that.

As to Don Anastasio, the Quixotic redemption in specie was beyond him entirely. He gave it up. The counting of discs was more tangible to his philosophy. His rusty black tile, so wondrously become a cornucopia of wealth, had by that same magic upset the old fellow into a kind of hysterical gaiety, which was most elfish and uncanny. He motioned Driscoll to ride faster.

“Ai, ai, mi coronel,” he cackled, when they were gone out of hearing, “you talk of bandits! Ai, ai, Dios mio, *you* have robbed *them*!”

“What the devil—”

“Si señor, robbed *them*! A-di-o-dio-dios! here’s more than they took from me!”

“N-o?” said Driscoll in dismay. “Gracious, I hadn’t any time to count money when I searched ’em!”

“You!—searched Don Tiburcio?”

“Why not? Isn’t he a thief?”

“But—he permitted—”

“W’y yes, they both let me, I had the drop. But they got indignant and called me a thief—I believe they’d of called a policeman if there’d been

one handy, or even— Now what,” he exclaimed, “what ails the old bare-bones now?”

The senile mirth had left the trader’s face, and his olive skin was ashen. “Next time,” he moaned, “next time, Santa María, they will be in force and they—they will take the very horse from under me!”

“Tough luck,” Driscoll observed.

Murguía darted at him a look in which there was all the old hate, and more added. But it disturbed the trooper as little as ever. “Come,” he said, “own up. You knew we were going to meet those fellows?” Murguía said nothing. “Of course you knew. But why didn’t you change your route, seeing you’re too high-minded to fight?—What’s that?—Oh that voice! Dive for it, man!”

“I, I couldn’t change on account of my passport.”

“What’s that got to do with it?”

“In the passport I declare the route I take.”

“I see, and you can’t change it afterward?”

“No.”

“Now look here, Murgie, have you got any more of these dates on?—Yes? No?—Murgie, if you don’t dive, by—”

Murguía dove, and denied with eagerness that he had any further toll-paying appointments. But Driscoll reckoned that he was lying. “And,” he added, “we are going to change our route, passport or no passport. We’ll take—let’s see—yes, we’ll take the very next crosstrail going in the same general direction.”

Murguía’s alarm at the proposal belied his former denial. The law required him to follow the course laid down in his passport, but he feared the law less than the disappointment of road agents. Don Tiburcio’s receipt protected him from those controlled by Don Tiburcio. But Tiburcio was not powerful, except in blackmail. Murguía paid him lest he inform the government of tribute also paid to Don Rodrigo. Now Rodrigo Galán was powerful. His band infested the Huasteca. He called himself a Liberal and a patriot, and he really believed it too. But he also declared that the tolls he collected went to the revolutionary cause, which declaration, however, even he could hardly have believed.

Don Rodrigo gave receipts, and his receipts were alleged guarantee against other molestation, since he controlled the highway more thoroughly than ranger patrols had ever done. But lately a competitor had

appeared in the brush, and he was that humorous scoundrel, Don Tiburcio of the crossed eye. Goaded near to apoplexy by the double tolls, Murguía had once ventured to upbraid Don Rodrigo with breach of contract. There was no longer immunity in the roadmaster's receipts, he whined. Then the robber chief had scowled with the brow of Jove, and hurled dreadful oaths. "You pay an Imperialista!" he stormed in lofty indignation. "You give funds to put down your struggling, starving compatriots! So, señor, this is the love you bear your country!"

It was a touching harangue, and the remorse-stricken trader ever after denied that he even saw Don Tiburcio, at which times a queer smile would supplant Don Rodrigo's black frown.

It was this same Don Rodrigo who had been reported as slain by Jacqueline's Fra Diavolo. But Driscoll, not having heard of his death, was quite ready to expect more brigands. He insisted, therefore, on changing trails.

"The Señor Coronel is most valiant," sneered Murguía.

"So darned much so, Murgie, that I want to dodge 'em."

But his struggle against temptation was evident. He glanced back at the two women and again denounced the unfamiliar feminine element in men's affairs. To avoid the brigandage encounter took more of manhood than Don Anastasio might imagine in a lifetime.

But they had not followed their new route five minutes before Murguía was again at the trooper's side. An "I-told-you-so" smirk hovered on his pinched visage. "Segundino has gone," he announced.

"So Segundino has gone?" Driscoll repeated. "Well, and who's Segundino?"

"He's one of my muleteers, but now I know he is a spy too. He will tell the bri—if there are brigands—where to meet us." Murguía was thinking,⁷⁹ too, of their reproachful increase on collection charges for the extra trouble.

"Then," said Driscoll, "we'll go back to our old trail," which they did at once. Soon after he was not surprised to hear from Murguía that "this time it was Juan who had disappeared."

"Didn't I tell you to set a close watch?"

"Y-e-s, but what was the use? He slipped into the brush, and," the trader complained, "I can't spare any more drivers."

"Don't need to. We'll just keep this trail now."

CHAPTER X

THE BRIGAND CHIEF

“Don Rodrigo de Vivar,
Rapaz, orgulloso, y
vano.”

—*El Cid.*

Imagine an abnormally virtuous urchin and an abnormally kindly farmer. The urchin resolutely turns his back on the farmer's melon patch, though there is no end of opportunity. But the farmer catches him, brings him in by the ear, makes him choose a big one, and leaves him there, the sole judge of his own capacity. Driscoll had tried to dodge a fight, but Fate was his kindly farmer.

“Better fall back a little, Murgie,” he said. “You'd only scare 'em, you know.”

He himself passed on ahead. But it was mid-afternoon before anything happened. Jacqueline meantime had shown some pettish ill-humor. Those who had fought to be her escort were now singularly indifferent. Driscoll was idly curious and quietly contemptuous, but he detected no fright in her manner. “Fretting for her silver-braided Greaser,” he said to himself. “A pretty scrape she's got herself into, too! Now I wonder why a girl can't have any sense.” But as the answer was going to take too long to find, he swerved back to the simpler matter of a possible fracas.

“Well, well,” he exclaimed at last, rising in his stirrups, “if there isn't her nickel-plated hero now!”

A quarter of a mile ahead, mounted, waiting stock-still across the trail, was Fra Diavolo. The American put away his pipe and barely moved his⁹¹ spurred boot, yet the good buckskin's ears pointed forward and he trotted ahead briskly. From old guerrilla habit, the cavalryman noted all things as he rode. To his left the blue of the mountain line, being nearer now, had deepened to black, and the Sierra seemed to hang over him, ominously. But the dark summits were still without detail, and midway down, where the solid color broke into deep green verdure and was mottled by patches

of dry slabs of rock, there was yet that massive blur which told of distance. Foothills had rolled from the towering slide, and mounds had tumbled from the hills, and a tide of giant pebbles had swept down from the mounds. These rugged boulders had turned the trail, so that the American was riding beneath a kind of cliff. To his right, on the east of the trail, the boulders were smaller and scattered, like a handful of great marbles flung across the cactus plain. He may have glanced toward this side especially, at the clumps of spiny growth over the pradera, and caught glimpses behind the strewn rocks, but his look was casual, unstartled. He breathed deeply, though. The old familiar elation set him vaguely quivering and tingling, with nervous, subtle desire. The young animal's excess of life surged into a pain, almost. Even the buckskin, knowing him, took his mood, and held high his nostrils.

Fra Diavolo's peaked beaver, his jacket, his breeches, his high pommeled saddle, his great box stirrups, the carabine case strapped behind, all be-scrrolled with silver, danced hazily to the magic of rays slanting down from the lofty Sierra line. Like himself, his horse was a thing of spirited flesh, for glorious display. The glossy mane flowed luxuriantly. The tail curved to the ground. A mountain lion's skin covered his flanks. He was large and sleek and black, with the metal and pride of an English strain. He was a carved war-charger. The man astride was rigid, stately. Man and horse had a heroic statue's promise of instant, furious life.

"Oh, la beauté d'un homme!" cried Jacqueline, perceiving the majestic outline silhouetted against the rocks. "Why, why—it's Fra Diavolo!"⁸²

"It—it is!" confessed Murguía. There was dread, not surprise, in his exclamation. The waiting horseman, and a lonely hut there behind him—none other than a brigand "toll-station"—these were but too significant of an old and hated rendezvous. Don Anastasio got to his feet and nervously hurried his caravan back a short distance. Then he ran ahead again and overtook the two Frenchwomen. "Señoritas, wait! Neither of you need go. But I will—I must, but I can go alone, while you—"

"Why, what ails the man?"

"Back, señorita, back, before he sees you!"

Jacqueline looked at the imploring eyes, at the palsied hand on her bridle. "Berthe," she said, "here's your little monsieur getting constitutional again."

“You *will* go, señorita?”

“Parbleu!” said the girl, and lashed her mustang.

“Dios, Dios,” gasped the little monsieur, hurrying after them, “when Maximiliano hears of this—”

“You should see Maximilian when he is angry,” Jacqueline called over her shoulder. “It is very droll.”

Din Driscoll had vaulted to the ground in the instant of halting. Immediately he led his horse behind the solitary hut, which was a *jacal* of bamboo and thatch built under the cliff, and left him there. Demijohn was a seasoned campaigner, and he would not move until his trooper came for him. When Driscoll emerged again, his coat was over his left arm, and the pockets were bulging. Fra Diavolo had already saluted him, but gazed down the trail at the two women approaching.

“How are you, captain?” Driscoll began cordially.

Fra Diavolo looked down from his mighty seat. “Ai, mi coronel, I was expecting Your Mercy.”

“Honest, now? Or weren’t you worrying lest I’d got left back in Tampico?”

One of the rancho’s hands rose, palm out, deprecatingly.

“But someone might have told you I didn’t get left at all,” Driscoll pursued. “Segundino maybe? Or was it Juan?”

“Or Don Tiburcio?” suggested the captain. He dismounted and doffed his big sombrero. “Good, I see you brought Her Ladyship safely.”

“Or I myself, rather,” said Jacqueline, reining in her pony at the moment, “Ah, the Señor Capitan as an escort knows how to make himself prized by much anticipation.”

“Señorita!” The Mexican bent in heavy ceremony, the sombrero covering his breast. “I am honored, even in Your Mercy’s censure. Those who deserve it could not appreciate it more.”

“Forward then, captain. On with the excuses, I promise to believe them.”

“Those sailors, my lady, who fight with kicks. Ugh!—they attacked some of my men this morning in Tampico. I had to call at the fort for aid.”

“Oh, but Maximilian shall hear of this!”

“I think he will,” and Fra Diavolo bowed again, hiding the gleam of a smile. “But I forget, your compatriot—”

“Monsieur Ney?—Yes?”

“He meant to help the sailors—”

“But he was not hurt?”

“Oh, no, no! But he had to be held in the fort.”

“That poor Michel!”

“So,” the syllable fell weightily, as if to crush Ney out of her thoughts, “here I am at last, to claim the distinguished pleasure of seeing Your Ladyship to the stage at Valles.”

Din Driscoll had been gazing far away at the mountains, his thumbs tucked in his belt. He stood so that the Mexican was between him and the scattered boulders on the right of the trail. Now he addressed the mountains. “The stage at Valles? There is no stage at Valles— And, captain,” he dropped Nature abruptly, and turned on the man, “who are you, hombre? Come, tell us!”

If Fra Diavolo were a humbug, he was not nearly so dismayed as one might expect. For that matter, neither was Jacqueline. She inquired of Driscoll how he knew more about stage lines than the natives themselves. Because the natives themselves were not of one mind, he replied. For instance, Murgie’s muleteers had assured him fervidly that there was such a stage, whereas passing wayfarers had told him quite simply that there was not, nor ever had been.

Jacqueline’s gray eyes, wide open and full lashed, turned on Fra Diavolo. “You are,” she exclaimed, noiselessly clapping her hands as at a play, “then you are—Oh, *who* are you?”

The Mexican straightened pompously. “Who?” he repeated deep in his chest, “who, but one at Your Mercy’s feet! Who, but—Rodrigo Galán himself!”

“The *terrible* Rodrigo?” She wanted complete identification.

He looked at her quickly. The first darkening of a frown creased his brow. But still she was not alarmed. Berthe, however, proved more satisfying. “Oh, my dear lady!” she cried, reining in her horse closer to her mistress.

“And who,” drawled the American at a quizzical pitch of inquiry, “may Don Rodrigo be?”

“What, señor,” thundered the robber, “you don’t—” He stopped, catching sight of the timorous Murguía hovering near. “Then, look at that

old man, for he at least knows that he is in the presence of Don Rodrigo. He is trembling.”

But Jacqueline was—whistling. The bristling highwayman swung round full of anger. Driscoll stared at her amazed. Then he laughed outright. “Well, well, Honorable Mr. Buccaneer of the Sierras, now maybe— Yes, that’s what I mean,” he added approvingly as Fra Diavolo leaped astride his charger and jerked forth two pistols from their holsters, “that’s it, get the game started!”

Jacqueline’s red lips were again pursed to whistle, but she changed and hummed the refrain instead:

“Mironton, mironton, mirontaine!”

Driscoll stared at her harder. The words were strange and meant nothing. But there was a familiarity to the tune. That at least needed no interpreter. The old ballad of troubadours, the French war song of old, the song of raillery, the song of Revolution, this that had been a folk song of the Crusader, a Basque rhyme of fairy lore, the air known in the desert tents of Happy Arabia, known to the Jews coming out of Egypt, known to the tribes in the days without history or fifes—why, if this wasn’t the rollicking, the defiant pæan of Americans! But how came she by it, and by what right?

““And we won’t go home till morning,”” he joined in, inquisitively.

The girl paused, as explorers singing it have paused when savages never before seen by white men joined in with barbarian words. But she went on, letting the miracle be as it might.

““The news I bear, fair lady—””

she sang, and nodded at the bandit, to indicate that here was *his* line,

““The news I bear, fair lady, Will cause your eyes to weep.””

“—Till daylight doth appear,”” Driscoll finished it with her. Then both looked up like two children, to the awful presence on horseback.

Don Rodrigo was at some pains to recover himself. A helpless girl and one lone trooper were practising a duet under his very frown. Only a glance toward the boulders and cacti reassured him.

“Well, what next?” Jacqueline demanded sweetly. “Is it to be the—*the* ‘game’ at last?”

“One word,” said the Mexican solemnly. Straight in his saddle, he fixed them with keen eyes, keen, black eyes under shaggy brows. The

syllables fell portentously. His voice deepened as far away thunder. "One word first," growled the awakening lion. "You know now that I am Don Rodrigo Galán. Yes, I am he, the capitan of guerrillas, the rebel, the brigand, the hunted fugitive. Such names of ignominy a true patriot must bear because he dares to defy his poor country's oppressors." Here Fra Diavolo scowled; he was getting into form. "But to His Majesty in our own Mexican capital, to His Glorious Resplendent Most Christian, Most Catholic, priest-ridden, bloodthirsty, foppish, imbecile decree-making fool of a canting majesty—to this Austrian archduke who drove forth the incarnation of popular sovereignty by the brutal hand of the foreign invader—to him I will yet make it known that the love of liberty, that the loyalty to Liberal Reforms, to the Constitution, to Law and Order, to—uh—are not yet dead in these swamps and mountains of our Patria. And he will know it when he—when he hears my demand for your ransom, Señorita Marquesa. He will know it, too, when he learns that Captain Maurel—a Frenchman, señorita, not a Mexican—now lies stark in death in the brush near Tampico, where he came to take and to hang the steadfast patriot, Rodrigo Galán. But his Tender-Hearted Majesty will grieve less for that than for the loss of you, Señorita—Jacqueline. For is it not known that you, the first lady of honor to the Empress, that you are also His Majesty's—"

"My faith," said Jacqueline, "he speaks Spanish well!"

Thus she stopped the insult. Also she stopped an unforeseen champion at her side. Driscoll, with pistol half drawn, was willing to be checked. A shot just then, placed as they were, would mean a bad ending to the game. That he knew. So he was thankful for Jacqueline's hand on his wrist.

Forked eloquence was silenced by now. Yet the patriot had been in earnest, under the spell of his own ardor. Don Anastasio, with head bowed, had listened in sullen sympathy. But both Mexicans started as though stung at Jacqueline's applauding comment. Don Rodrigo purpled with rage. She only looked back at him, so provokingly demure, that something besides the ransom got into his veins. He wet his lips, baring the unpleasant gleam of teeth.

"Come!" he said thickly. "You and your maid go with me."

Driscoll's jaw dropped. "Diablos," he exclaimed, bewildered, "you don't mean— Look, Don Roddy, you're crazy! Such things—"

“Come!”

“But I tell you it’s foolish. Such things do not happen, unless in melodrama.”

For reply the guerrilla chief wheeled his charger and caught the bridles of the two horses that the girls rode. He pulled, so as to leave exposed the troublesome American behind them.

“Grands dieux,” exclaimed Jacqueline, “have the men in this country nothing to do except catch my bridle! But really, sir, this situation is forced. It is not artistic. As—as Monsieur the Chevalier says, it’s quite impossible.”

She looked around for Monsieur the Chevalier to make it so, but to her dismay, to her disgust, he had taken to his heels. He was running away, as fast as he could go. Then her horse reared, for musket firing had suddenly, mysteriously begun on all sides of her. Many fierce pairs of eyes were bobbing up from behind the boulders on the right of the trail; yellow-brown faces, like a many-headed Hydra coiled in the cacti. They were shooting, not at her, but at the fleeing American. She felt an object in her hand, which Driscoll had thrust there, and she remembered that he had whispered something, though she had forgotten what.

Her captor was straining at the bridle. In his frenzy he leaned over, to lift her from the saddle, and then she struck him across the face with her whip. And then, with what the American had put in her other hand, she struck again. The weapon was Driscoll’s short hunting knife. The blade grazed Rodrigo’s shoulder. He loosed his hold, and before he could prevent, both she and Berthe were in the shack under the cliff. The maid sank to the floor. The mistress stood in the doorway. There was a glint in the gray eyes not lovable in man or woman, but in her it was superb.

Fifty feet back up the trail she saw Driscoll scaling the cliff. That demon yelling, which is the first spasm of Mexican warfare, had not ceased, and each demon was shooting as fast as he could reload. She saw the white dust spurt out from the bullet peppered rock. But either the sun slanting down from the mountain line was in their eyes, or they were disconcerted at the American’s change in their plans; at any rate their laboriously ascending target did not drop. Up he climbed. Jacqueline wondered why he still clung to the jacket over his arm, as people will cling to absurd things in time of panic.

“To go through that peril, and yet a coward!” she murmured. “It’s a waste—”

The runaway gained the top of the embankment, and fell behind a rock. And now a half dozen of the little demons were coming across the trail to the shack—to take her.

“Oh, the frisson, the ecstasy!” she cried. There was a certain poignant sense of enjoyment in it.

CHAPTER XI

89

THE COSSACKS AND THEIR TIGER COLONEL

“Ah, Captain, here goes for a fine-drawn bead;
There’s music around when my barrel’s in tune.”

—*Song of the Fallen Dragoon.*

Din Driscoll tumbled himself over among the rocks. “There, I’m fixed,” he grunted, as he squatted down behind his earthworks. “Plenty of material here”—he meant the cartridges which he poured from his coat pockets into his hat—“and plenty out there too”—indicating the Hydra heads—“and my pipe—I’ll have a nice time.” He got to work busily.

In the door of the shack Jacqueline saw the campaign for her possession begin. Don Rodrigo had fled to the corner of the shack, taking his horse with him. The hut of bamboo and thatch was no protection against Driscoll’s fire, but the two girls, though inside the hut, were between and afforded a better screen. Jacqueline did not, however, hold that against her *Fra Diavolo*. To save himself behind a woman was quite in keeping with his sinister rôle. And she, as an artist, could not reproach him, and as a woman she did not care. But the American’s running away—now that was out of character, and it disappointed her.

She heard Rodrigo bellowing forth an order, and she saw five or six guerrillas rise out of the cacti and spring toward her. But the constant shadow of self-introspection haunted her even then. In her despair, and worse, in her disgust, feeling already those filthy hands upon her, she yet appraised this jewel among ecstatic shudders, and she knew in her heart that she would not have had it otherwise.

“Oh, am I ever to *live!*” she moaned in startled wonderment at herself.⁹⁰ “Always a spectator, always, even of myself!—God, dost thou know? It is a robbery of living!” And the vagabonds were twenty paces away!

Something hurt her hand, she opened her clenched palm; it was the horn handle of Driscoll’s knife. Had she really thought to defend herself with that inadequate thing? “Poof!” She tossed it from her, vexed at her own unconscious heroics. Then two dark arms reached out, nearer and

nearer, and ten hooked fingers blurred her vision. But the arms shot upward, the fingers stiffened, and a body splashed across the doorway at her feet with the sound of a board dropped on water.

“Ai, poor man!”

She was on her knees, bending over him. But a second of the vermin lurched against her, and he too lay still. A pistol report from the cliff was simultaneous with each man’s fall. Both were dead. A third sank in the trail with a shattered hip, and another behind knew the agony of a broken leg. The marksman’s mercy was evidently tempered according to distance. For, having the matter now under control, he nonchalantly cracked only shin bones. Fra Diavolo from his shelter roared commands and curses, but not another imp would show himself. Crouched jealously, they chose rather to besiege their lone enemy on the cliff.

“Must have howitzers,” muttered Driscoll. The soft lead, bigger than marbles, went “Splut! Splut!” against the rock on all sides of him, flattening with the windy puff of mud on a wall. But he was well intrenched, and as the guerrillas were also, he lighted his pipe and smoked reflectively. But after awhile he perceived a slight movement, supplemented by a carbine. One of the besiegers was working from boulder to boulder, parallel with the trail. He did it with infinite craft. At first the fellow crawled; then, when out of pistol range, he got to his feet and ran. Still running, he crossed the trail at a safe distance beyond the hut, and began working back again, this time along the cliff, and toward Driscoll. When about a hundred yards away, he disappeared; which is to say, he lowered himself into a little ravine that thousands of rainy seasons had worn through from the foothills. But almost at once his head and shoulders rose from the nearer bank, and Driscoll promptly fired. The shot fell short. A pistol would not carry so far; which was a tremendously important little fact, since the other fellow was aiming a rifle. The bullet from that rifle neatly clipped a prickly pear over Driscoll’s head. The strategist certainly knew his business. There was a familiar shimmer of silver about his high peaked hat. Yes surely, he was Don Tiburcio, the loyal Imperialist of the baleful eye. No doubt the malignant twinkle gleamed in that eye now, even as the blackmailer bit a cartridge for the next shot. A victim who had only pistols, and at rifle range, and with not a pebble for shelter from the flank bombardment—it was assuredly a situation to tickle Don Tiburcio.

Now Driscoll's point of view was less amusing. To change his position, he must expose himself to a fusilade from across the way. And if he tried to rush his friend of the gully, the brigands meantime would carry off the two girls. A gentleman's part, therefore, was to stay where he was and be made a target of. But he varied it a little. At Don Tiburcio's second shot, he lunged partly to his feet and fell forward as though mortally wounded. He lay quite still, and soon Don Tiburcio came creeping toward him. Don Tiburcio was thinking of his lost toll-moneys that should be on the corpse. Driscoll waited, his nerves alert, his pistols ready. But just beyond range, the blackmailer paused.

"Go for the women, you idiots," he yelled. "The Gringo's dead."

The idiots verified the title straightway, for up they popped from behind their boulders and started for the shack.

"Possuming's no use," Driscoll muttered, then fired. The guerrillas got⁹² back to cover quickly enough, and so did Don Tiburcio, grinning over his stratagem. In his arroyo again, he proposed to make the Gringo as a sieve. Each bullet from his carabine twanged lower and lower. "Ouch!" ejaculated Driscoll. One had furrowed his leg, and it hurt. He looked anxiously, to see if the Mexican were lowering his aim yet more. An inch meant such a great deal just then. But a tremendous surprise met him. For Don Tiburcio had changed his mind. The rascal was firing in another direction entirely, firing rapturously, firing at his very allies, at the little imps themselves among the boulders and nettles. And the little imps were positively leaping up to be shot. They ran frantically, but straight toward the traitor, and on past him up the trail. The Storm Centre could not shoot lunatics any more than he could babies. He only stared at them open mouthed.

"Los Cosacos!—El Tigre! Los Cosacos!" they yelled, scrambling out upon the road, bleeding, falling, praying, and kissing whatever greasy amulet or virgin's picture they owned.

Then there beat into Driscoll's ears the furious clatter of hoofs. It deafened him, the familiar, glorious din of it. The blood raged in his veins like fiery needle points. To see them—the cavalry, the cavalry! Then they were gone—a flashing streak of centaurs, a streamer of red in a blur of dust, maniac oaths, and pistol shots, and sweeping sabres. Hacked bodies were sucked beneath the swarm as saplings under an avalanche. Driscoll sprang up and gazed. Through eddying swirls he still could see red

sleeved arms reach out, and lightning rays of steel, and half-naked fleeting creatures go down, and never a jot of the curse's speed abate.

"Lordy, but Old Joe should 'a seen it!" he fairly shouted. He was thinking of Shelby, of the Old Brigade back in Missouri; daredevils, every one of them.

Don Tiburcio had sighted the vengeful horde from afar, and had recognized them, since he was, in fact, one of their scouts. They were the Contra Guerrillas, the Cossacks, the scourge wielded by the French Intervention and the Empire. And they were Don Tiburcio's cue to loyalty. For seeing them, he began firing on his late friends, the brigands. Yet he spared their Capitan. At the first alarm Fra Diavolo had vaulted astride his black horse, and Tiburcio darting out, had caught his bridle, and turned him into the dry bed of the arroyo. Others of the fugitives tried to escape by this same route, but Tiburcio fought them off with clubbed rifle, and in such occupation was observed by him who led the Cossacks, who was a terrible old man, and a horseman to give the eye joy. At the gully he swerved to one side, and let the hurricane pass on by.

"Sacred name of thunder," he cursed roundly, "a minute later and—"

"Si, mi coronel," the faithful Tiburcio acknowledged gratefully, "Your Excellency came just in time."

The colonel of Contra Guerrillas frowned a grim approval for his scout's handiwork of battered skulls. He was a man of frosted visage, a grisly Woden. The hard features were more stern for being ruggedly venerable. His beard was wiry, hoary gray, through whose billowy depth a long black cigar struck from clenched teeth. If eyes are windows of the soul, his were narrow, menacing slits, loopholes spiked by bristling brows. Two deep creases between the eyes furrowed their way up and were lost under an enormously wide sombrero. This sombrero was low crowned, like those worn farther to the south, and ornately flowered in silver. His chest was crossed with braid, cords of gold hung from the right shoulder to the collar, and the sleeves were as glorious as a bugler's. His brick-red jacket fell open from the neck, exposing the whitest of linen. His boots were yellow, his spurs big Mexican discs. Altogether the blend in him of the precise military and the easy ranchero was curiously picturesque. But Colonel Dupin, the Tiger of the Tropics, was a curious and picturesque man. His medals were more than he could wear, and each was for splendid daring. But on a time they had been stripped from him.

It happened in China. He had made a gallant assault on the Imperial Palace, but he had also satiated his barbarian soul in carnage and loaded his shoulders with buccaneering loot. And though he wondered at his own moderation, a court martial followed. However, Louis Napoleon gave him back his medals, and sent him to Mexico to stamp out savagery by counter savagery.

“There were two accomplices in this business,” the Tiger was saying, “one a trader, Murguía—”

“Killed him my very first shot,” lied Tiburcio. He would save his golden goose of the golden eggs.

“And the other, an American?”

“Got away with the others, señor.” Again Tiburcio’s reason was obvious. The American, if taken, might tell things.

“And”—Dupin gripped his cigar hungrily—“and Rodrigo?”

For answer the scout waved a hand vaguely up the trail.

“None went that way?” and the Colonel jerked his head toward the ravine.

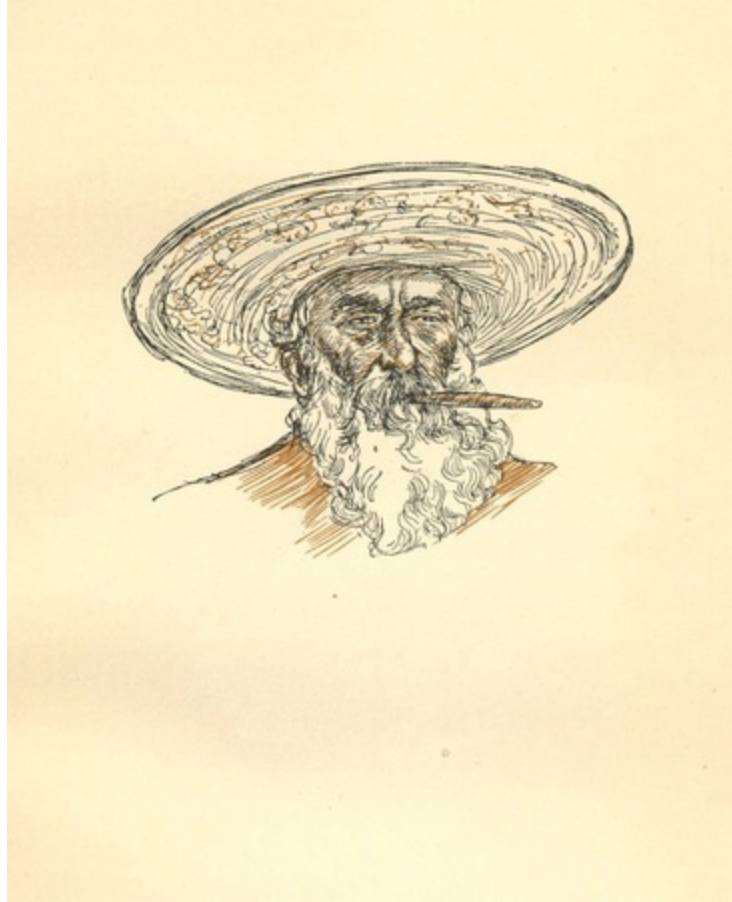
“No, none. Your Mercy saw me driving them back.”

“Quick, then, on your horse! We’re losing time.”

Don Tiburcio was reluctant. He had not yet recovered his money from the American. “But the women, mi coronel? They are there, in that shack. Hadn’t I better stay—?”

“Jacqueline, you mean? Of course the little minx is in trouble, the second she touches land. But you come with me. She shall have another protector.”

Tiburcio knew the Cossack chief. He obeyed, and both men galloped away after the chase.



“COLONEL DUPIN”

“The Tiger of the Tropics ... the chief of Contra Guerrillas”

They had not gone far when they passed Michel Ney swiftly returning.⁹⁵ He was the protector Dupin had in mind. He had seen Jacqueline in the doorway of the hut as he stormed past with the Contra Guerrillas, but he had been too enthusiastic to stop just then. He was a Chasseur d’Afrique, and to be a Chasseur d’Afrique was to ride in a halo of mighty sabre sweeps. And Michel had fought Arabs too—but the good simplicity of his countenance was woefully ruffled as he turned back from that charge of the Cossacks.

“Michel!” cried Jacqueline, stepping over the forms of men before the hut, and forgetting them. The natty youth was torn, rumpled, grimy. The sky-blue of his uniform was gray with dust. But to see him at all proved that he had escaped Fra Diavolo’s web in Tampico. And the relief! It made her almost gay. “Ah, Michel—le beau sabreur!—and did you enjoy it, mon ami?”

He alighted at her feet, and raised her hand to his lips.

“Monsieur,” she demanded quick as thought, “my trunk?”

“Mon Dieu, mademoiselle, I did well to bring myself.”

“You should have brought my trunk, sir, first of all. Deign to look at this frock! No, no, don’t, please don’t. But tell me everything. What could have happened to you last night? Why did you not meet me this morning?”

His story was brief. Of his contemplated strategy at Tampico, there had been a most lugubrious botching. The night before, when he started to the fort for aid, Fra Diavolo’s little Mexicans had waylaid him, bound him, and dragged him back to the café, where Jacqueline that very moment reposed in slumber. And there, in a back room without a window, he had gritted his teeth until morning. As for the sailors, who were to return to the ship for her trunk; well, more little Mexicans had fired on them from the river bank. The small boat, riddled with shot, had sunk, and the sailors, splashing frantically to keep off the sharks, had gained the shore opposite. But they could neither get word to the ship, nor cross back to Tampico.

“Yet,” demanded Jacqueline, “how could you know all this, there in your prison room?”

“Am I saying I did, name of a name? Well, those poor sailors wandered about all night in the swamps across the river, and this morning they ran into Colonel Dupin and his Contras, and the colonel was frothing mad. He had only just stumbled on the bodies of Captain Maurel and some of his men, who had been ambushed and murdered. Poor Maurel was dangling from a tree among the vultures. Others were mutilated. Some had even been tortured. And all were stripped, and rotting naked. Mon Dieu, mon dieu, but it’s an inferno, this country!”

“Yes, yes, but how did they find you?”

“Colonel Dupin simply brought the sailors back to Tampico and searched that café, and got me out. The proprietor wasn’t thought to be any too good an Imperialist, anyway. They shot him, and then we came right along here.”

“Very nice of you, I am sure.”

“Not at all. Dupin isn’t thinking of anybody but your Fra Diavolo, who must have killed Captain Maurel.—Was he here?”

“Who? Don Rodrigo?”

“Don Rodrigo?”

“Of course. He’s the same as Fra Diavolo.”

“You mean that bandit,” cried Ney, “that terrible Rodrigue? But he is dead, don’t you remember, Fra Diavolo said so?”

“Stupid! Fra Diavolo is Don Rodrigo himself.”

“Not dead then? And I’ll meet him yet! But,” and his sudden hope as suddenly collapsed, “Dupin will get him first.”

“I think not, because Rodrigo did not take the trail.”

“Then which way did he go? Quick, please, mademoiselle, which way?”

“He turned off into that arroyo.”

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“Oh, what chance, what luck!” But the boy stopped with his foot in the stirrup. “No, mademoiselle, I can’t leave you!”

“Oh yes you can. I daresay there’s another champion about.” She glanced up at the cliff. “And besides, all danger is past. The donkey caravan is still here, and for company, I have Berthe, of course.”

“Really, mademoiselle?”

“Yes, Michel, really.”

“Good, I’m off! But we will meet you at—Dupin just told me—at the next village on this same trail. Now I’m off!” He was indeed. “I say, mademoiselle,” he called back, “I’m glad we left the ship, aren’t you?”

Jacqueline turned hastily her gaze from the cliff. He startled her, expressing her own secret thought.

Chasseur and steed vanished in the ravine, and she smiled. “The God of pleasant fools go with him,” she murmured.

CHAPTER XII

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PASTIME PASSING EXCELLENT

“Il y a des offenses qui indignent les
femmes sans les déplaire.”

—*Emile Augier.*

Like another Black Douglas, Din Driscoll rose among the crags, the dark tufts curling stubbornly on his bared head. He looked a sinewy, toughened Ajax. But he only spoiled it. For, raising his arms, he stretched himself, stretched long and luxuriously. His very animal revelling in the huge elongation of cramped limbs was exasperating. Next he clapped the slouch on his head, and clambered down.

Jacqueline might have been surprised to see him. Her brows lifted. “Not killed?” she exclaimed. “But no, of course not. You gave yourself air, you ran away.”

Driscoll made no answer. He was thinking of what to do next. She knew that he had run because of her, and she was piqued because he would not admit it. “So,” she went on tauntingly, “monsieur counts his enemy by numbers then?”

“Didn’t count them at all,” he murmured absently.

“But,” and she tapped her foot, “a Frenchman, he would have done it—not that way.”

She was talking in English, and the quaintness of it began to create in him a desire for more. “Done what, miss?” he asked.

“He would not have run—a Frenchman.”

“Prob’bly not, ’less he was pretty quick about it.”

She looked up angrily. Of course he must know that he had been splendid, up there behind the rocks. And now to be unconscious of it! But that was only a pose, she decided. Yet what made him so stupidly commonplace, and so dense? She hated to be robbed of her enthusiasm for an artistic bric-à-brac of emotion; and here he was, like some sordid mechanic who would not talk shop with a girl.

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“I wager one thing,” she fretted, “and it is that when you bring men down to earth you have not even at all—how do you say?—the martial rage in your eyes?”

“W’y, uh, not’s I know of. It might spoil good shooting.”

“And your pipe”—her lip curled and smiled at the same time—“the pipe does not, neither?”

His mouth twitched at the corners. “N-o,” he decided soberly, “not in close range.”

She gave him up, he had no pose. Still, she was out of patience with him. “Hélas! monsieur, all may see you are Ameri-can. But there, you have not to feel sorry. I forgive you, yes, because—it wasn’t dull.”

“Hadn’t we better be—”

“Now what,” she persisted, “kept you so long up there, for example?”

Driscoll reddened. He had lingered behind the screen of rock to bandage his furrowed leg. “S’pose you don’t ask,” he said abruptly, “there’s plenty other things to be doing.”

He turned and invited the little Breton maid to come from the shack. She was white, and trembled a little yet. “I knew, I knew you would not leave us, monsieur,” she was trying to tell him. “But if you had—oh, what would madame—”

“Now then,” the practical American interrupted, “where’s Murgie?”

Jacqueline pointed with the toe of her slipper. There were prostrate bodies around them, with teeth bared, insolent, silent, horrible. One couldn’t be sorry they were dead, but one didn’t like to see them. Jacqueline’s boot pointed to a man lying on his face. A silk hat was near by in the dust. A rusty black wig was loosened from his head. The girl invoked him solemnly. “Arise, Ancient Black Crow, and live another thousand years.”

Driscoll lifted the shrunken bundle of a man, held him at arm’s length, looked him over, and stood him on his feet. The withered face was more than ever like a death’s head, and the eyes were glassy, senseless. But as to hurt or scratch, there was none. The beady orbs started slowly in their sockets, rolling from side to side. The lips opened, and formed words. “Killed? yes, I am killed. But I want—my cotton, my burros, my peons—I want them. I am dead, give them to me.”

“You’re alive, you old maverick.”

The gaze focused slowly on Driscoll, and slowly awakened to a crafty leer. Believe this Gringo?—not he!

With an arm behind his shoulders Driscoll forced him down the trail to his caravan. Most of the animals were lying down, dozing under their packs. Murguía's eyes grew watery when he saw them, but he was still dazed and his delusion was obstinate. The leer shot exultant gleams. "A rich man *can* enter heaven," he chuckled with unholy glee.

"Oh wake up, and give me two donkeys for the girls. Their horses got hit, you know."

Then the stunned old miser began to perceive that he was not in heaven. His tyrant's voice! "You get my horses killed," he whined, "and now you take my burros."

Driscoll said no more, but picked out two beasts and bound some cushioned sacking on their backs for saddles. Then with a brisk hearty word, he swept Berthe up on the first one.

"Next," he said, turning to Jacqueline.

But the marchioness drew back. Next—after her maid! It nettled her that this country boy, or any other, could not recognize in her that indefinable something which is supposed to distinguish quality.

"What's the matter, now?" he asked. "Quick, please, I'm in a hurry."

"It's too preposterous. I'll not!"

"You will," he said quietly.

Her gray eyes deepened to blue with amazement. She stood stock still, haughtily daring him. She even lifted her arms a little, leaving the girlish waist defenseless. Her slender figure was temptation, the pretty ducal fury was only added zest. Up among the rocks Driscoll had found himself whispering, "She's game, that little girl!" But at the same time he had remembered Rodrigo's innuendo, the linking of her name with Maximilian's. She was so brave, and so headstrong, so lovably headstrong, and her beauty was so fresh and soft! Yet he could not but think of that taint in what nature had made so pure. Of a sudden there was a something wrong, something ugly and hideously wrong in life. And the country boy, the trooper, the man of blood-letting, what you will, was filled with helpless rage against it; and next against himself, because the girlish waist could thrill him so. "A silly little butterfly," he argued inwardly. Before, he had been unaware of his own indifference. But now he angrily tried to summon it back. He set his mind on their situation, on

what it exacted. It exacted haste, simple, impersonal haste. And keeping his mind on just that, he caught her up.

“Oh, you boor!” she cried, pushing at him.

His jaw hardened. His will was well nigh superhuman, for he battled against two furious little hands, against the dimple and the patch so near his lips, against the fragrance of her hair, against the subtle warmth of his burden.

“No, no!” she panted. “Monsieur, do you hear me? I am not to be carried!”

“Maybe not,” said he, carrying her.

A moment later she discovered herself planted squarely on the burro. 102

“Bonté divine!” she gasped. But she took care not to fall off.

He drew a long breath.

“Now whip ’em up,” he commanded.

The first village beyond, where Dupin had promised to meet Jacqueline, was a squatting group of thatched cones in a dense forest of Cyprus and eucalyptus. Its denizens were Huasteca Indians, living as they had before the Conquest, among themselves still talking their native dialect. The name of the hamlet was Culebra.

The coy twilight waned quickly, and the caravan was still pushing on through the thick darkness of the wood, when a high tensioned yelping made the vast silence insignificant, ugly. But as the travelers filed into the clearing where the village was, the curs slunk away with coyote humility, their yellow points of eyes glowing back on the intruders.

With a forager’s direct method, Driscoll roused the early slumbering village. He would not take alfafa, he declined rastrojo. It was human food, corn, that he bought for his horse. He housed his dumb friend under a human roof too. After which he prepared a habitation for the women. He swept the likeliest hut clean of ashes, brazier, and bits of pots and jars. He carpeted the earth floor in Spanish moss, as King Arthur’s knights once strewed their halls with rushes. It was luxury for a coroneted lass, if one went back a dozen centuries. There were chinks between the sooty saplings that formed the wall, but over these he hung matting, and he drove a stake for a candle.

Supper followed. The trooper chose to change Don Anastasio from host to guest, and he exacted what he needed from the Inditos. They, for

their part, were alert before his commands. None of them had been overlooked in his preliminary largesse of copper tlacos and they made the teaming wilderness contribute to his spread. Kneeling, with sleeves rolled from his hard forearms, he broiled a steak over hickory forks. The torches of gum tree knots lighted his banquet, and the faces of the two girls, rosy in the blaze and mysterious in the shadow, were piquant inspiration. Even the sharp features of Don Anastasio stirred him into a phase of whimsical benevolence. He knocked two chickens from their perch in a tree and baked them in a mould of clay. There was an armadilla too, which a Culebra boy and the dogs had run down during the day. Its dark flesh was rich and luscious, and the Missourian fondly called it 'possum. Crisply toasted tortillas, or corn cakes, served for bread, and for spoons as well. But to Driscoll's mind the real feast was coffee—actual coffee, which he made black, so very good and black, a riotous orgie of blackness and strength and fragrance. Here was a feast indeed for the poor trooper. He thought of the chickory, of the parched corn, of all those pitiful aggravations that Shelby's Brigade had tried so hard to imagine into coffee during the late months of privation along the Arkansas line.

And the Marquise d'Aumerle? Learning to eat roasting ears, which somehow just would leave a grain on her cheek with every bite, the dainty Marquise thought how much finer was this than the tedious bumping ship. How much more tempting than the ultra-belabored viands on white china that had to be latticed down! Here was angel's bread in the wilderness. And the appetite that drove her to ask for more, that was the only sauce—an appetite that was a frisson. A new sensation, in itself!

And later, sleep too became a passion, a passion new and sweet in its incantation out of the lost cravings of childhood. When the nearer freshness of the woods filled her nostrils, there from the live-oak moss in her night's abode, she smiled on the grave young fellow who had left her at the door. And both girls laughing together over the masculine notions for their comfort, knew a certain happy tenderness in their gaiety.

"Éh, but it's deep, madame," said one.

"It's the politeness of the heart," the other explained.

Outside Driscoll spread his blanket across the doorway where his horse was sheltered, and wrapped in his great cape-coat, he stretched himself for a smoke. But Murguía came with cigars, of the Huasteca, gray and

musty. Driscoll accepted one, waving aside the old man's apologies. He puffed and waited. Conviviality in Don Anastasio meant something.

"Ah, amigo," the thin voice cracked in a spasm of forced heartiness, "ah, it was a banquet! Si, si, a banquet! Only, if there were but a liqueur, a liqueur to give the after-cigar that last added relish, verdad, señor?"

Driscoll tapped his "after-cigar" till the ashes fell. "Well?" he asked.

"Ai de mi, caballero, but I am heavy with regrets. I can offer nothing. My poor cognac—no, not after such a feast. But whiskey—ah, whiskey is magnifico. It is American."

He stopped, with a genial rubbing of his bony hands. But his sad good-fellowship was transparent enough, and in the darkness his eyes were beads of malice. Driscoll half grunted. A long way round for a drink, he thought. "Here," he said, getting out his flask, "have a pull at this."

Murguía took it greedily. He had seen the flask before. The covering of leather was battered and peeled. "Perhaps a little—water?" he faltered. Driscoll nodded, and off the old Mexican ambled with the flask. When he returned, he had a glass, into which he had poured some of the liquor. The canteen he handed back to the trooper, who without a word replaced it in his pocket. Murguía lingered. He sipped his toddy absently.

"I, I wonder why the friends of the señoritas do not come?" he ventured.

"Want to get rid of them, eh, Murgie?"

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The old man shrugged his shoulders. "And why not? You may not believe me, señor, but should I not feel easier if they were—well, out of the reach of Don Rodrigo?"

"Out of—Look here, where's the danger now?"

"Ai, señor, don't be too sure. Colonel Dupin still does not come, and it might be—because the guerrillas have stopped him."

"Man alive, he had 'em running!"

"H'm, yes, but there's plenty more. This very village breeds them, feeds them, welcomes them home. Don Rodrigo can gather ten times what he had to-day. And if he does, and if, if he is looking for the señoritas again—"

Driscoll shifted on his blanket. "I see," he drawled. "F'r instance, if the señoritas vanish before he gets here, he won't blame you? Oh no, you were asleep, you couldn't know that I had up and carried 'em off. Anyhow, you'd rather risk Rodrigo than Colonel Dupin—Yes, I see." He

tucked his saddle under his head, and lay flat, blinking at the stars. "This trail go on to Valles?" he inquired drowsily.

Murguía's small eyes brightened over him. "Yes," he said, eagerly.

"Correct," yawned the American, "I've already made sure."

"And if—" But a snore floated up from the blanket.

When Murguía was gone, the sleeper awoke. He carefully poured out all the remaining whiskey. "It may be what they call 'fine Italian,'" he muttered, with a disgusted shake of the head, but he neglected to throw the flask away as well. Next he saddled Demijohn and two of the pack horses, then lay down and slept in earnest, as an old campaigner snatches at rest.

The night was black, an hour before the dawn, when his eyes opened wide, and he sat up, listening. He heard it again, faint and far away, a feeble "pop-pop!" Then there were more, a sudden pigmy chorus of battle. He got to his feet, and ran to call the two women.

"So," said Jacqueline, appearing under the stars, "monsieur does not wish to be relieved of us? He will not wait for his friends?"

"Get on these horses! Here, I'll help you."

Soon they three were riding through the forest, in the trail toward Valles. Behind them the fairy popping swelled louder, yet louder, and the man glanced resentfully at his two companions. He was missing the game.

Back in the village of Culebra a demon uproar hounded Don Anastasio out of serape and slumber. All about him were fleeing feet. They were shadows, bounding like frightened deer from the wood, across the clearing, and into the wood again. Some turned and fired as they ran. Screaming women and children hurried out of the *jacales*, and darted here and there. Dogs howled everywhere. A storm of crashing brush and a wild troop of horsemen, each among them a free lance of butchery, burst on the village. A second crashing storm, and they were in the forest again. They left quivering blots in their wake, and a moaning gave a lower and dreadfuller note to the wailing of women. Only the leader of the pursuers, with a few others, drew rein.

"Death of an ox!" the French oath rang out, "We're in their very nest. Quick, you loafers, the torch, the torch!"

Flames began to crackle, and in the glare Murguía was seen frantically driving burros and peons to safety. The leader of the troop leaned over in

his saddle and had him by the collar.

“Who the name of a name are you?”

Don Anastasio looked up. His captor was a great bearded man. “Colonel Dupin!” he groaned.

“Who are you?—But I should know. It’s the trader, the accomplice of Rodrigo. *Sacré nom*, tell me, where is she? We can’t find her here. Where is she?”

“How can I know, señor? She—perhaps she is gone.”

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“With Rodrigo—ha! But he’ll have no ransom—no, not if it breaks Maximilian’s heart.—Now, Señor Trader—”

He stopped and called to him his nearest men. Murguía sank limp.

“But he hasn’t got her! Rodrigo hasn’t got her!”

“Who has then?”

“The other one, the American.”

“Which way did they go?”

“If Your Mercy will not—”

“Shoot him!” thundered the Tiger.

“But if he will tell us?” someone interposed.

It was Don Tiburcio, still the guardian angel of the golden goose.

“Bien,” growled the Tiger, “let him live then until we find the American.”

“Which way did they go?” Tiburcio whispered in Murguía’s ear.

“To, to Valles,” came the reply.

The blazing huts revealed a ghoulish joy on the miser’s face. The Gringo, not he, would now have to explain to the Tiger.

CHAPTER XIII

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UNREGISTERED IN ANY STUDBOOK

“La belle chose que l’aristocratie
quand on a le chance d’en être.”

—*Voltaire.*

That garish daub which was sopped up from the burning homes of men and bespattered over the forest’s dark crest was already mellowing under the gentler touch of dawn, when the three travelers gained the open country.

“Poor, dirty, little Inditos,” Jacqueline mused aloud. Berthe struck her pony in a tremor of fright. The American was riding ahead. “Fire and sword,” Jacqueline went on, and her voice lowered to intense scorn, “they make the final tableau, but—it’s gaudy, it’s cheap.”

The trail had broadened into a high road, and now it wound among the hills like a soiled white ribbon. Driscoll turned in his saddle. “I shouldn’t wonder,” he observed in the full-toned drawl that was peculiar to him, “but what we’d better be projecting a change of venue. This route is too public, and publicity around here strikes me as sort of prejudiced. S’pose we just stir up an alibi?”

A certain stately old judge back in Missouri would have smiled thus to hear the scion of his house. But the marchioness, confident in her mastery of English, thought it was the veriest jargon. What was the boy trying to say? His next words grew fairly intelligible. “We are now headed for Valles. Well, we’ve decided not to go to Valles.”

Perhaps they had, but she at least had ceased deciding anything, since the overruling of her veto in the matter of precedence when one is hoisted upon a burro.

A narrow pony path crossed the road. “First trail to the left, after leaving the wood,” Driscoll said aloud, “and this must be it.” Campaigner in an unfamiliar country, he had informed himself, and it was with confidence that he led his little party into the bridlepath. But he looked anxiously at the forest behind. He did not doubt but that Rodrigo, if it

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were he back there, would terrify Murguía into betraying their destination, or their supposed destination, which was Valles.

“Can’t you hurry ’em up a bit?” he called back.

“We do try,” protested Jacqueline, holding aloft a broken switch, “but they only smile at us.”

Driscoll got down and undid the spurs from his boots. One of the immense saw-like discs he adjusted to mademoiselle’s high heel, passing the strap twice around the silk-clad ankle. Jacqueline gazed down on the short-cropped, curly head, and she saw that the back of his neck was suddenly red. But the discovery awakened nothing of the coquette in her. Quite the contrary, there was something grateful, even gravely maternal, in the smile hovering on her lips for the rough trooper who took fright like a girl over a revealed instep. Still, the interest was not altogether maternal as she watched him doing the same service for Berthe. Perhaps he was too far away, or perhaps practice brought indifference, but at any rate, his neck was no longer tinged in that fiery way.

“Now dig ’em!” said he. “We want to make that clump of mesquite yonder, now pretty quick.”

The trees he pointed to were two or three miles away, but the travelers covered the distance at an easy lope. Driscoll kept an eye on the road they had just left, and once hidden by the mesquite he called a halt. As he expected, a number of horsemen appeared at a trot from the direction of the forest. They did not pause at the cross trail, however, but kept to the highway in the direction of Valles. The American and the two girls could now safely continue their journey along the bridlepath.

“Monsieur,” Jacqueline questioned demurely, and in her most treacherous way, “how much longer do we yet follow you up and down mountains?”

“W’y, uh—I’m going to the City of Mexico.”

“And we others, we may tag along, n’est-ce pas? But the city is far, far. And, to-night?”

“Of course,” said Driscoll, “if you should happen to know of a good hotel—” He paused and gazed inquiringly over hills covered with banana and coffee to the frost line. He would not have tried a frailer temper so, but to provoke hers was incense to his own.

“You others, the Americans,” she said tentatively, as though explaining him to herself, “you are so greedy of this New World! You won’t give us

of it, no, not even a poor little answer of information. Alas, Monseigneur the American, I apologize for being on this side the ocean at all—in a tattered frock.”

Driscoll looked, but he could see nothing wrong. She seemed as crisp and dainty as ever. If there were any disarray, it was a fetching sort, with a certain rakish effect.

“Oh that’s all right,” he assured her heartily, “*you* can stay.”

“Really, and after you’ve been writing us notes from Washington to—to ‘get out’? We French people do not think that was polite.”

“I never wrote you any notes, and,” he added in a lowered tone, “the devil take Washington, since Lee didn’t!”

Jacqueline’s lips pursed suddenly like a cherry. “Oh pardon me,” she exclaimed. “I did not know. And so you are a—a Confederate? But,” and the gray eyes fastened upon him. She rode, too, so that she could see his face, just ahead of her, “but your faction, the—yes, the South—she is¹¹¹ already vanquis—no!—whipped? I—I heard.”

He did not reply, but his expression disturbed her unaccountably. She could almost note the whimsical daredevilry fade from his face, as there came instead the grimmest and strangest locking of the jaws. She tried to imagine the French beaten and her feelings then, but it was difficult, for her countrymen were “the bravest of the world, the unconquered.” They had borne victory over four continents, into two hemispheres. But this American, what must he feel? He was thinking, in truth, of many things. Of his leave taking with his regiment, with those lusty young savages of Missourians whom perhaps he was never to see again. He was thinking of his ride through the South to Mobile, of the misery in stubborn heroism, of the suffering everywhere, matching that in the dreary fever camp of the Old Brigade. He was thinking of all the beautiful Southland torn and ravaged and of the lowering cloud of finality. Of the Army of Northern Virginia so hard pressed; of the doom of Surrender, a knell already sounded, perhaps. Never had Jacqueline seen such bitterness on a human face. It was a man’s bitterness. And almost a desperado’s. At least there was the making of a desperado in the youth of a moment before. She caught herself shuddering. There was something so like a lurking death astride the yellow horse in front of her.

But over her also there came a change, and it grew as she saw and appreciated the man in him. Her caprices fell from her, and she was the

shrewd woman of the world, a deft creature of courts, a cunning weaver of the delicate skeins of intrigue and politics. A glint of craft and purpose struck from the gray eyes, as in preparation for battle. Her mischievous bantering had really been fraught with design, and by it she had revealed to herself this man. But the change in her came when he proved an antagonist, as she now supposed him to be. For in the uncloaking he stood forth a Confederate. His cause was lost. He was in Mexico. He was on a mission, no doubt. One question remained, what could the mission be?

Abrupt frankness, with its guileful calculation to surprise one into betrayal, was the subtlest diplomacy. "Let us see," she mused aloud, "you, your comrades, monsieur, you have no country now? Bien, that accounts for your interest in Maximilian?"

"And what is your interest, Miss-Jack-leen?"

She staggered before the riposte. The "Jack-leen" was innocent blundering, she knew that. He had heard Rodrigo address her so, and he used it in all respect. But there was her own question turned on herself. By "her interest" he of course meant the interest she was showing in himself; he was not referring it to Maximilian. And yet the double meaning was there, just the same. He had struck back, that was certain, but because she could not tell where, nor even whether he had wounded, she was afraid to parry, much more to venture another thrust. Those who had sent the rustic evidently knew what they were about. He could shoot well, which was exhilarating. To redeem one's country's discredited bills, was quixotic. She rose to that, because she was French. But to fence with herself—well, that was quality. Instinctive, inbred, unconscious, and unregistered in any studbook of Burke or Gotha—but quality. And she recognized it, for there was deference in the silence which her baffled diplomacy now counseled.

They passed many natives plodding on to Valles with market stuff, going at the Inditos' tireless foxtrot, now a man in loincloth stooped under a great bundle of straw or charcoal, or a family entire, including burro and dog. Of a gray-bearded patriarch with a chicken coop strapped to his back, Driscoll inquired the distance to an hacienda of the region which had the name of Moctezuma. "Probablemente, it will be ten leagues farther on, señor," the Huastecan replied.

“We are going,” Driscoll now informed his companions, “to drop in on ¹¹³ Murgie—the hospitable old anaconda.”

They acquired a pineapple by purchase, and stopped for their morning coffee at a hut among numberless orange trees, and at another farther on for their midday lunch, where they learned that the Hacienda de Moctezuma was only just beyond the first hill, and only just beyond the first hill they learned that they had six leagues more to go. They covered three of these leagues, and were rewarded with the information that it was fully seven leagues yet. Geography in Mexico was clearly an elastic quantity. But towards three o’clock a young fellow on a towering stack of fagots waved his arm over the landscape, and said, “Why, señor, you are there now.” Yes, it was the hacienda, but how far was it to the hacienda house? Oh, that was still a few little leagues.

In the end, after nightfall, they rode into a very wide valley, where two broad, shallow rivers joined and flowed on as one through the lowland. Here, on the brow of a slope, they perceived the walls and the church tower of what seemed to be a small town. But after one last inquiry, they learned that it was the seat of Anastasio Murguía’s baronial domain.

CHAPTER XIV

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THE HERALD OF THE FAIR GOD

“Les grenouilles se lassant
De l'état démocratique,
Par leur clameurs firent tant
Que Jupin les soumit au pouvoir monarchique.”
La Fontaine.

A wide country road swept up the slope of the hill, curved in toward the low outer wall of the little town on the brow, then swept down again. The portico of the hacienda house was set in the wall where the road almost touched, so that the traveler could alight at the very threshold of the venerable place. Mounting the half-dozen steps, Driscoll crossed a vast porch whose bare cement columns stood as sentinels the entire length of the high, one-storied façade, and on the heavy double doors he found a knocker. Visitors were infrequent there, but at last a surprised barefoot mozo answered the rapping, and in turn brought a short man of burly girth and charro tightness of breeches. This chubby person bowed many times and assured Their Mercies over and over again that here they had their house. Driscoll replied with thanks that in that case he thought that he and the other two Mercies would be taking possession, for the night at least.

The man was Murguía's administrador, or overseer. He took it for granted that the French señor (in those days Mexico called all foreigners French) and the French señoras were friends of his employer, and Driscoll did not undeceive him. The trooper's habits were those of war, and war admitted quartering yourself on an enemy. He brought the news, too, that Murguía had come safely through his last blockade run, which alone insured him a welcome without the fact that rancho hospitality may be almost Arabian and akin to a sacrament.

Plunging into apologies for every conceivable thing that could or might be amiss, Don Anastasio's steward led them into the sala, a long front room, the hacendado's hall of state. To all appearances it had not been so

used in many years, but the old furnishing of some former Spanish owner still told the tale of coaches before the colonnade outside and of hidalgo guests within the great house. There was the stately sofa of honor flanked by throne-like armchairs, with high-backed ones next in line, all once of bright crimson satin and now frazzled and stained. The inevitable mirror leaned from its inevitable place over the sofa, but it was cracked and the gilt of the heavy frame had tarnished to red. At the other end of the sala, a considerable journey, there hung a token of the later and Mexican family in possession. The token was of course the Virgin of Guadalupe in her flame of gold, as she had gaudily emblazoned herself on the blanket, or serape, of a poor Indian. Murguía's print was one of thousands of copies of that same revered serape.

Urging them to be seated, clapping his hands for servants, giving orders, ever apologizing, the overseer finally got the travelers convinced that it was their house and that supper would be ready now directly. With a glance at his two companions, Driscoll inquired for the señoras of the family, whereupon a sudden embarrassment darkened the administrador's fat amiable features.

"Doña Luz, Your Mercy means? Ai, caballero, you are most kind. And you tell me that her father will come to-morrow, that he will—surely come?"

"Might we," Jacqueline interposed, "pay our respects to Señor Murguía's daughter?"

The poor fellow begged Their Mercies' indulgence, but Doña Matilde,¹¹⁶ the señora aunt of Doña Luz, lay sick in the house. As for Doña Luz, yes, Doña Luz had gone to the chapel, as she often did of an evening lately, to pray for her aunt's recovery. Doña Luz had vowed to wear sackcloth for six months if her dear patron saint, María de la Luz, would but hear her petition. Out of compassion, Jacqueline said no more.

Next morning Driscoll was astir early. He wandered through a thick-walled labyrinth of corridors and patios, and came at last into a rankly luxuriant tropical garden, where the soft perfume of china-tree blossoms filled his nostrils. Keeping on he passed many of the hacienda buildings, a sugar mill, a cotton factory, warehouses, stables with corrals, and entered a tortuous street between adobes, where he found the hacienda store. Here the administrador was watching the clerks who sold and the peons who bought. The latter were mostly women, barefooted and

scantily clothed. Their main want was corn, weevil-eaten corn, which they carried away in their aprons. They made tortillas of it for their men laboring in the hacienda fields, or on the hacienda coffee hills. The store was a curious epitome of thrift and improvidence. One wench grumbled boldly of short measure. She dared, because she was comely and buxom, and her chemise fell low on her full, olive breast. She counted her purchase of frijoles to the last grain, using her fingers, and glaring at the clerk half coaxingly, half resentfully. But an intensely scarlet percale caught her barbarian eye, and she took enough of it for a skirt. A dozen cigarettes followed, and by so much she increased her man's debt to the hacienda.

A shrunken and ancient laborer was expostulating earnestly with much gesturing of skeleton arms, while the administrador listened as one habituated and bored. The feeble peon protested that he could not work that day. He parted the yellow rags over one leg and revealed decaying¹¹⁷ flesh, sloughing away in the ravages of bone leprosy. He showed it without emotion, as some argument in the abstract. And he was arguing for a little corn, just a little, and he made his palm into a tiny cup to demonstrate. The administrador opened a limp account book, held his pudgy forefinger against a page for a second, then shut it decisively. "No, no, Pedro, not while you owe these twelve reales. Think, man, if you should die. You have no sons; we would lose."

"But, mi patron, there's my nephew."

"True, and he has his own father's debt waiting for him."

"Just a wee little," begged the man.

The overseer shook his head. "When you've worked to-day, yes. Then you may have six cents' worth, and the other six cents of the day's wages counted off your debt. There now, get along with you to the timber cutting."

The administrador brightened on perceiving Driscoll. "How was His Mercy? How had His Mercy passed the night? How—"

"Where," interposed Driscoll, "might one find the nearest stage to Mexico?"

Almost nowhere, was the reply. What with the French intervention and guerrillas, the Compañia de Diligencias had about suspended its service altogether. "Then," said Driscoll, "could we hire some sort of a rig from

you?” The administrador believed so, though he regretted continuously that Their Mercies must be leaving so soon.

With a nod of thanks Driscoll turned curiously to the loaded shelves, and gazed at the bolts of manta, calico, and red flannel. “Jiminy crickets,” he burst forth, “is there anybody on this ranch who can sew?”

Yes, the wife of one of the clerks was a passable seamstress. She did such work for the Doñas at the House.

“And can she do some to-day, and can you send it on to overtake me by to-morrow?” 118

Most certainly.

Then Driscoll invested in a number of varas of calico print. It was the best available. But the light blue flowering was modest enough, and there was even a cheery freshness about it that called up mellowing recollections of bright-eyed Missouri girls. Yet each time he thought of the costumes he had ordered, he blushed until his hair roots tingled.

Intent once more on departure, Din Driscoll hastened back to the House. But he only learned that Jacqueline and Berthe were not up yet. He mumbled at such looseness in discipline, until he remembered that they were not troopers, but girls. And since girls are to be waited for, he did it in his own room. From his saddlebags he laid out shaving material. The Old Brigade had advised these things, while speculating with dry concern on what was correct among emperors. After much sharp snapping of eyes, for the razor pulled, the clean line of his jaw emerged from lather and stubble. “Just in case any emperor should happen in,” he tried to explain it, taking a transparently jocose manner with himself.

Eight o’clock! Even civilized people do not stay abed that late! Yet he found only Berthe in the dining room. She had come on a foraging expedition. He watched the little Bretonne’s deft arranging of a battered tray, and offered droll suggestions until she began to suspect that he really did not mean them. Berthe was a nice girl with soft brown hair, and a serious, gentle way about her.

The maid found mademoiselle not only still abed, but stretched on a rack of torture as well, her helpless gaze fixed on a Mexican woman with a hot iron. It was a flatiron, and it was being applied to Jacqueline’s poor rumpled frock. The dress was spread over a cloth on the floor, and the woman strove tantalizingly, and Jacqueline was trying to direct her. 119

“Madame is served,” Berthe announced.

Madame raised herself on an elbow and looked at the tray, at the sorry chinaware, at the earthen supplements. "Served?" she repeated. "Berthe, exaggeration is a very bad habit. But child, what are you about? This is not a petit déjeuner!"

"I know, madame, but he told me to bring it. He said we'd be traveling, and there wouldn't be time for a second breakfast."

"*He?* Who in the world—"

"Why, the, the American monsieur. He said just coffee wasn't enough, and for me to bring along the entire contest of marksmanship—the, the whole shooting match—and for madame to hurry."

"Berthe! one would say you thought him a prince."

"He—he is a kind of prince," said the little Bretonne doggedly.

Madame whistled softly. Still, she ate a hearty breakfast.

Meantime, outside two resplendent horsemen were galloping up the curving sweep of the wide road. Their haste smacked of vast importance, and the very dazzling flash of their brass helmets in the sunlight had a certain arrogance. The foremost jerked his horse's bit with a cruel petulance and drew up before the hacienda house. Several natives were basking on the steps, and he cut at them sharply with his whip.

"Wake, you r-rats!" A Teutonic thickness of speech clogged his utterance, and he turned to his companion. "Tell this canaille," he snarled in Flemish, "to go fetch their master here at once."

The administrador came hurrying, and was overcome. His hospitable flow gushed and choked at its source before the splendor of the two cavaliers. They were Belgians. The first wore a long blue coat bedecked with golden leaves and belted with a sash. Crosses and stars dangled on his breast. His breeches were white doe, and his high glossy boots had wrinkles like a mousquetaire's. Heavy tassels flapped from his sword hilt. A brass eagle was perched on his helmet. Altogether, here was a glittering bit of flotsam from the new Mexican Empire. But a narrowness between the man's eyes affected one unpleasantly. It was a mean and a sour scowl, of a fellow lately come into authority. The other man graced the ornate uniform of an aide in Maximilian's imperial household.

"Your Mercy is—is the Emperor?" stammered the poor fat administrador.

He had, indeed, heard rumors of Maximilian on one of his ostentatious voyages. The first Belgian, however, was in no way embarrassed at the

question. It was a natural mistake, in his opinion.

“Explain to this imbecile,” he ordered, “since there’s no better here to receive us.”

The aide explained. His Imperial Majesty, Maximiliano, was returning to his capital. Fascinated by the beauty of the tropics, as well as ill of a cough, he had lingered for a week past at the adjoining hacienda of Las Palmas. He had also been deep in studies for the welfare of his people. But now the business of the Empire demanded that he relieve the Empress of her regency. Accordingly, His Majesty and His Majesty’s retinue had left Las Palmas that very morning, and would shortly pass by the hacienda of Moctezuma. His Majesty, when en voyage, always took a loving interest in his subjects, and a sincere ovation never failed to touch his heart. So Monsieur Éloin—here the aide glanced with some irony at the first Belgian—so Monsieur Éloin thought that the master of La Moctezuma would be grateful to know of His Majesty’s approach, in order to gather the peons from the fields to welcome him. It would be as well, perhaps, to reveal nothing to the Emperor of this thoughtful hint.

“To make it quite plain,” concluded the speaker, “can you assemble enough men within an hour to do a seeming and convincing reverence to your ruler?”

“And tell him,” interrupted Monsieur Éloin, “not to forget the green boughs waving in their hands. Make him understand that there will be consequences if it’s not spontaneous.”

As they galloped back to rejoin Maximilian, the imperial aide was thoughtful. “I can’t help it,” he said aloud, “I feel sorry for him. How his blue eyes glisten—there are actually tears in them—when he talks to these Indians of freedom and a higher life! He thinks they love him! And all this elegance—no wonder they believe that the Fair God is come at last to right their sorrows.”

“The loathsome beasts!”

“But I do feel sorry. He really believes that he will verify the tradition and be their savior. It’s his sincere goodness of heart. Man, how exalted he is!”

“But where’s the harm?”

“Because, because the poor devils were fooled once before. And their new Messiah may deceive them as bitterly with unwise meddling as Cortez did with greed and cruelty.”

“Messiah for these pigs!” Éloin sneered. “What pleasure it gives him, *I* can’t see.”

CHAPTER XV

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THE RITUAL

“... a bearded man,
Pamper’d with rank luxuriousness and ease.”

—Dante.

The Emperor was coming—elaborately, by august degrees.

First, and far in advance, arrived a haughty pack liveried in the royal green of ancient Aztec dynasties. New tenants might have been moving on this bright May day, for the flunkies attended a small caravan of household stuff, which they crammed through the gaping doorway as nuts into a goose’s maw. The stuff was all royal, of royalty’s absolute necessities. There were soft rugs, and finely spun tapestries, and portières to smother a whisper. There was a high-backed chair, and a velvet-covered dais for the high-backed chair. There were brushes, whose stroke caressed gently and purringly the Hapsburg whisker. There was a Roman poet, fastidiously bound, and then—there was the Ritual.

The Ritual was a massive tome, of glazed, gilt-edged paper, of print as big for the proclaiming of truth as the Family Bible, of weight to burden a strong man, of contents to stagger a giant brain, unless the giant brain had in it the convolution of a smile. Maximilian and Charlotte had reigned a year, and so far the Ritual was the supreme monument to the glory and usefulness of their Empire. It decreed, by Imperial dictation and signature, the etiquette that must and should be observed in the courtly circle. But alas, you can’t codify genuflections, nor yet a handshake.

The next degree in the imperial advent was the imperial courier, who proclaimed from a curveting steed what everybody suspected. “Our August Sovereign” was approaching.

Several hundred peons stared with open mouths. Gathered before the house, they prattled to one another in childlike expectancy of the Señor Emperador. Most of them were learning for the first time that they had an emperor. Still, it sufficed to know this was an occasion for auto-inspiring vivas, like once when the Ilustrísimo Bishop came. They took new hold

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on the green boughs they were to wave. A handkerchief here and there fluttered from a bamboo pole. Down in an adobe village by the river junction, every gala scrap of calico print, whether shirt or skirt, pended from cords stretched across the street; and cotton curtains, some of crude drawn work, hung outside the windows. All the poor finery of the Indians was on exhibition to do honor to a gorgeous Old World court. But the fiesta air had already gotten into the susceptible native lungs, and that alone, with only a trumpet's blare, would make for a hurrah in genuine fervor.

The roomy porch of the old mansion was crowded with the chief people of the hacienda, clerks, foremen, house servants, besides the administrador and the chaplain. Behind a remote column were the three wanderers in the wilderness; the Storm Centre, the Marchioness, and the Maid. They were to have been gone by now, and yet it was not the coming of the emperor that had stopped them. The cause was nearer at hand. Smoking a long black cigar, "grizzled and fierce, as ornate in braid and decorations as a bullfighter," Colonel Dupin had delayed them.

His Cossacks thronged the colonnade. The brick-red of their raw leather jackets splotched every other color with rust. The Contra Guerrillas were many things. They were Frenchmen and Mexicans. They were Americans, Confederate deserters, Union deserters. They were Negroes and Arabs. They were the ruined of fortune, now soldiers of fortune. They were pirates and highwaymen. They were gold hunters, gamblers, swindlers. They were fugitives from the noose, from the garrote, from the guillotine. But they were all right willing desperadoes. And there was not a softened feature on a man of the troop. Only a tigerish ferocity could lead them, could hold them.

They surrounded the Missourian on the hacienda portico. If only for his debonnaire indifference, they knew him for a "bad man" such as none of them might ever hope to be. And they watched him like lynxes, though he was unarmed. Yet he did not look "bad." He merely looked bored. He was a prisoner, but not the only one. Anastasio Murguía fidgetted among the Cossacks on his own porch. His restless eyes roved incessantly over the crowd, seeking his daughter, but they were steadily baffled.

Down in the valley, where the Rio Moctezuma joined its course with the Pánuco, a dusty mist moved nearer along the old Spanish highway, and faintly there came the sound of clarions. An eager murmuring arose

from the throng on the hillside. It swelled more confidently to a buzz as the far-away dust lifted at the ford and revealed the beaded stringing of a numerous company. The distant bugles rang clearer on the pure air. "Yes, he comes," the people cried, "There! Seest thou, hombre?—*There!* Viva el Señor Emperador!"

For Colonel Dupin the cloud of dust would shortly evolve into a staying hand of mercy, into the exasperating stupidity of mercy. He had captured the American not ten minutes before, and here was interference in a gauzy haze of dust. He signed to one of his men to follow with Murguía, and he himself placed a gauntleted hand on Driscoll's shoulder. "Now," he said.

But a white figure of Mexican rebosa and silken instep moved swiftly from behind a column and touched the Tiger's arm. Both Jacqueline and Berthe had been watching the Cossack chief rather than the spectacle in the valley. And as he turned on his prisoner, Berthe half screamed and clutched at the bosom of her dress. It was Jacqueline who gained his side. She addressed him sharply as one who hates to reopen a tedious argument.

"Monsieur Dupin," she cried, "have I not already permitted myself to tell you—yes, I repeat, you are mistaken. He is in no sense whatever an accomplice of Rodrigo Galán."

The Tiger heard, no doubt, but he did not stop. He kept on toward the door, Driscoll beside him, and his men around him. He meant to pass through the house. Some secluded corral in the back would do for the execution. Driscoll seemed as indifferent as ever, though there was a lithe, alert spring in his step. Behind him Murguía was moaning, praying to see his daughter. Berthe followed, bewildered, and silently wringing her hands. But the death march was so business-like, and every one else was so intent on the approach of a royally born person, that the crowds shoved aside by the little group never once suspected that they had just brushed elbows with tragedy in the making.

Jacqueline caught her breath, sucked it in rather, in a pang of angry despair; and plucking up her skirts she ran ahead until she could oppose her slender figure squarely in front of the burly Frenchman. If he were to move on, he must trample her down. Her eyes, usually so big and round and shading to a depth of blue with their lively mischief, were all but

closed, and through the narrowed lashes they gleamed like white steel. Her voice, though, was clear and even, of a studied courtesy.

“Yes, I know, Monsieur le Coronel, suspicion with you is quite enough. But,” she went on in contempt and feigned surprise at his dullness, “this rage of yours at being outwitted by Rodrigo Galán blinds you to something else.—Pardon, monsieur, a Frenchman does not jostle a woman.—Thank you.”

“But the jostling by a woman’s tongue, mademoiselle.—Well, what is it? Have mercy, be brief, since I am not even to breathe while my lady talks.”

“I was thinking, dear monsieur, of the feelings of an artist, to which you are very, very blind.”

“Feelings, artist? Name of a name, mademoiselle!”

“Precisely, Maximilian’s feelings. You know how he abhors the sight of blood. Ma foi, and I agree with him.”

“Go it, Miss Jack-leen!” Driscoll abetted her. Never a word of their French did he understand, but he knew that she had a power of speech. Dupin evidently knew it better yet, for though he laughed, he did not laugh easily.

“Never fear,” he said, “His Majesty’s delicate prejudices are safe. It will be all underground before he comes, and no muss at all.”

“But you forget,” Jacqueline cried testily, “you forget the imagination of a poet.”

“And he will imagine—”

“Yes, because I shall tell him.”

“Sacré—”

“And possibly he would brace his feelings to a second æsthetic horror as a rebuke for the first. In a word, my colonel, there will be one more body to follow—underground. Now is this quite clear, or—do you require my promise on it?”

The savage old brow manifested the desire to make her a victim as well, but in this extra blood-thirst she knew that Driscoll was safe. “I understand, Mademoiselle la Marquise,” he said, laying on heavily the suave gallantry of a Frenchman. “Yes, I understand. Prince Max values Your Ladyship’s good taste so highly— Pardi, I believe he would certainly shoot me if you told him to.”

“Exactly,” Jacqueline coldly assented.

“And Monsieur l’Americain may congratulate himself on the influence¹²⁷ of mademoiselle, the arbiter elegantiarum—with His Majesty.”

“As Monsieur le Tigre may congratulate himself that the American does not understand this insult, sir.”

Behind her rose a dry hysterical cackle of renewed hope. “The Little Black Crow!” she exclaimed. “See, my colonel, he is not worth an execution all to himself, so do we all go back to contemplate Prince Max’s loving ovation.”

“The Emperor arrives!” she cried gayly, returning to the porch. With the others she was once more behind the remote column, an end of the rebosa hanging over her arm ready to be flung across her face. “But what—Hélas, I haven’t my Ritual with me.”—The Ritual classified every movement, every breath of the Court, as rigidly and with as little consciousness of humor as Linnæus did his flowers.—“It can’t be a Minor Palace Luncheon of the Third Class,” she mused, “and it isn’t Grand Court Mourning of the First Degree. Ha, I have it, He—that ‘H’ is a capital, please, not as a sacrilege, but to be Ritualistic—He is out on a voyage of the Minor Class, Small Service of Honor, Lesser Cortège. Now then, all’s comfortable; no room for plebeian misconceptions.”

On they came, each rigidly after his kind, a Noah’s procession of Dignitaries with the August Sovereign first of all. To bring on the majestic climax so early was illogical, of course, but dust having happened to be created before precedence, the Cortège was changed the other way round for a voyage, so that the First Category people breathed what the August Sovereign kicked up and kicked up some additional for the Second Category, and the Second did the same for the Third, and so on down to the Ninth, or “And all others,” who breathed the best they could and paid the bill.

Nothing preceded the royal coach except the royal escort, and that by exactly two hundred paces, in which interval a canonical obligation was¹²⁸ laid on the dust to settle. It was a particularly gallant royal escort. The Empress’s Own, or the Dragoons, or Lancers, or Guardsmen, or Hussars, or whatever they were, were picked Mexicans; and they were frankly proud of their rich crimson tunics; also, perhaps, of their heavily fringed standard worked by Carlota herself. A cavalry detachment in fur caps with a feather completed the body guard. Mexico is a hot country, but

that was no reason why an Austrian regiment should sacrifice its furry identity.

“Belgians too!” exclaimed Jacqueline. “And the Mexican emigrés! They came back when we made it safe for them. But where, oh where, are the French?”

“Everywhere,” growled the Tiger, “in mountains and swamps, dying everywhere, fighting for this Austrian archduke. But he doesn’t like to be seen with them.”

Behind eight white mules of Spain, four abreast, rolled the coach of the Emperor, solitary and marked as majesty itself. There were postilions and outriders and footmen arrayed in the Imperial livery with the Imperial crown. And on the coach door flashed Maximilian’s escutcheon, his archducal arms grafted on the torso of his new imperial estate. There were the winged griffins with absurd scrolls for tails. They had voracious claws, had these droll beasts of prey, and they clutched at an oval frame ruthlessly, as though to shatter it and get at a certain bird within. Poor bird, his shelter looked very fragile, and he about to be smothered under an enormous diadem as under an extinguisher. He was none other than the Mexican eagle perched on his own native cactus, and he desired only peace and quiet while he throttled the snake of ignorance in his talons, which snake had been his worry ever since the Aztec hordes from the north had first caged him in. Beneath the Imperial arms was the motto, “Equidad en la Justicia,” but it seemed an idle promise.

In the huge traveling coach, with a greyhound at his feet, sat one lone man. He had a soft skin, rosy like a baby’s, and blue eyes, and what some called a beautiful golden beard. The huzzas swelled and surged from all sides, and he smiled on the people. But he gazed beyond them, and into the blue eyes came the light of exaltation such as is inspired by music that starts a heartstring in vague trembling.

The Cortège followed in carriages one hundred paces apart. The first held the First Grand Dignitary, the only Dignitary of Third Category rank, and hence the only one who could stand near the throne after Highnesses, Grand Collars, and Ambassadors. He was the Grand Marshal of the Court and Minister of the Imperial Household. His privileges consisted of seeing “His Majesty when called for,” and of “communicating with Him in writing.” But he could not see Him when not called for. In reality the Grand Marshal was a quiet old Mexican gentleman who seemed ill at

ease. He was General Almonte, one of those conservatives who had sought their country's tranquillity in foreign intervention. But Maximilian had bespangled him into a Dignidad, and thus lost to himself an able politician's usefulness. The real man of affairs was an obscure Belgian who openly and insolently despised everything Mexican. He also sang chansonettes. He was the sour-browed Monsieur Éloin already mentioned.

Dignidades enough to make up the Lesser Cortège were not lacking. Riding alone was the Chief of the Military Household, who could return no salutes when near His Majesty except from First and Second Category personages. Under the circumstances, recognition of his own father would have been rank heresy. Then there was the Grand Physician, the Grand Chaplain, and Honorary Physicians and Chaplains, who could wear Grand Uniforms and a Cordon and eat at the Grand Marshal's table; and there were Chamberlains and Secretaries of Ceremony and Aides. Many surreptitiously peeped into a monster volume as they rode. It was ¹³⁰not a mass book nor a materia medica. It was the Ritual.

The Sixth Grand Dignitary of Cabellerizo Mayor helped His Majesty to descend from His coach. He did it mid vociferous cheering and waving of boughs and agitation of handkerchiefs on bamboo poles. Aides and Deputy Dignitaries worked industriously driving back the simple Inditos.

““The General Aide de Camp,”” Jacqueline quoted reverently, ““will keep the people from the Imperial coach, but without maiming them.””

CHAPTER XVI

HE OF THE DEBONAIR SCEPTRE

“And let us make a name.

”—*Genesis*.

The flame of lofty resolve burned with a high, present heat in Maximilian's dreamy eyes. But the thing was not statesmanship. The danger dial pointed to some latest darling phantasy.

When the young prince—he was but thirty-three—descended from his carriage, he signed that the Cortège should not form as yet. And instead of mounting the colonnade steps, he turned and mingled with his humble subjects. A pleased murmur arose among the Indians. “Que simpático!” they breathed in little gasps of admiring awe.

The unusually tall and very fair young man, in the simplicity of black, with only the grand cross of St. Stephen about his neck, moved about among the ragged peons. Now and again he spoke to one and another, questioning earnestly. Anxious orderlies were quick to brush aside the touch of an elbow, but to those outside the circle, watching what he would do, he seemed alone with his people. And in thought, he really was. There was a great pity upon his face, and it was the more poignant because these timorous children could not comprehend the wretchedness which so appealed to him.

“And thou?” he demanded of an aged man whose tatters hung heavy in filth.

A look of poor simple craft came into the Indian's face. “I, señor? María purísima, I am cursed of heaven. But the rich señor wishes to know—see!” and ere Monsieur Éloin could prevent, he bared a limb of rotting flesh. “If it were not for my leg, Your Mercy—”

“*Animal*,” snarled Éloin in his ear, “can't you say ‘Your Majesty’?”

“Your—Majesty, or if I had children, I could make my debt—oh, grande, grande, twenty reales, maybe. And then, and then I should have a red and purple scrape, with a green eagle, like my nephew Felipe has.—He owes,” the man added in a kind of pride, “thirty reales, my nephew Felipe does.”

But his wiles failed. The rich señor turned toward the colonnade, his sailor's easy swing giving way to a tread of determination. Also, the pure flame burned consumingly.

From the top of the steps, between files of dismounted Dragoons, Maximilian looked over the people, beyond, in some far away gaze of the spirit.

Jacqueline hid the golden gleam of her hair under the rebosa. "Silencium!" she whispered, laying a finger across her lips. "For now we'll have the mountains to frisk, and the little hills to skip. In all the Orient there blooms no flower of eloquence like unto his."

The monarch's inspired look promised as much. "Mexicans," he began. The peons huddled closer, their responsive natures quickened. His sonorous voice was electrical, despite an accent, despite the German over-gush of stammering when words could not keep pace with the vast idea. But the one word of address gave the peons a dignity they had never suspected.

"Mexicans: you have desired me. Acceding to the spontaneous expression of your wishes, I have come to your noble country—our dear patria—to watch over and direct your destinies. And with me came one who feels for you all the tenderness of a mother, who is your Empress and my August Spouse."

"But not," murmured the sententious lady of the rebosa, "august¹³³ enough to appear before Him unless He sends for Her."

Proceeding, the speaker solemnly told them of his divine right as a Hapsburg, as one of the Cæsars, and of his anointment by the Vicar of God at Rome, so that to God alone was he responsible. As a Mexican he gloried with them in their liberties, in the True Liberty he brought, for had not the Holy Father said to him, "Great are the rights of a people, but greater and more sacred are the rights of the Church?" Hence he burned with Heaven-given fire to lift them, his subjects, into the vanguard of Nineteenth Century Progress.

Here Maximilian paused mid cheers, and thinking on his next words, his delicate hand of a gentleman clenched.

"Mexicans," he began again, now in the vibrant tone of an overpowering emotion. "I pray to fulfil the mission for which God has placed me here. There are six millions of you, a sober and industrious race. Cortez found you so, and you astounded him with your civilization.

But the conditions that followed have enslaved you. Enslaved, I repeat, for you are bound by debt. Your hacendado master contrives that you cannot pay even his usurious interest. The food you eat, you must buy from him, at his prices, of the quality he prescribes. And if your debt be not sufficient, that is, if there seems a chance of your paying it off, then you must increase it to obtain your daily bread. Your very children are slaves at birth, since with their first birth they inherit your chains. And if you or your children run away, you or they may be brought back as runaway slaves. It is thus that I find you, Mexicans. And I find you awaiting a liberator, waiting vainly through the centuries. But now, at last, the reward of your suffering and your faith has come. In a word, which shall be formally recorded in the Journal Official, We this day decree—”

“I knew it,” exclaimed Jacqueline, “he always coins his inspirations.”

“—We this day decree your debts extinguished, and each and every ¹²⁴peon in all our beautiful country—a free man!”

“Yet with not,” said Jacqueline, “a foot of land to be free on. But you know, messieurs, that Utopia is an asylum for the blind.”

“It’s a spider on his ceiling,” muttered Colonel Dupin, touching his own head significantly.

The emancipator’s face was beatific. He heard the peons acclaim him, as gradually they began to understand that there was to be no more unhappiness. But it was curious how far, far away the sweet music sounded, even when some belated “Viva el Señor Emperador!” cracked in ludicrous falsetto. For the poet-prince these human chords might have been the strings of a harp, softly touched. And as far away as posterity.

Jacqueline fell to clapping her hands noiselessly. “Oh, lá-lá,” she cried, “if we are not to have an epic flight from Monsieur Éloin!”

It was true in a degree. Five minutes of stupendous history making had just elapsed, and some graceful tribute was due. The royal favorite had foreseen the need, and he was prepared; but whether by borrowing or originating, it is impossible to say.

“‘Vous l’avez relevé; votre main souveraine L’a rendu d’un seul coup à la famille humaine. De ce premier bienfait, Sire, soyez content: L’Indien fera de vous MAXIMILIEN LE GRAND!’”

“Parbleu, why not?” demanded Jacqueline. “If only he were as great as his decrees, poor man!”

Maximilian by this time remembered that he must be somebody’s guest. “Who receives Us here?” he asked. But none of his court knew. Even Monsieur Éloin could only point to the administrador. “Why is your master not present?” inquired General Almonte. The administrador opened his mouth, and it stayed open. Colonel Dupin had promised to shoot him if he breathed a word of Don Anastasio being a prisoner.



THE EMPEROR MAXIMILIAN

But someone whispered something to a person on the outskirts of the entourage, who passed it on to the very centre till it came to the ear of Col. Miguel Lopez of Her Majesty’s Dragoons. The someone who initiated the message was Don Tiburcio, the watchful herder over one

golden goose. As a result, an aide rescued Murguía from the claws of the Tiger.

Maximilian looked the weazened old man over in disappointment. Here, then, was the lord of Moctezuma, an hacendado, and hence one of the heavy timbers for his empire building. Don Anastasio scraped awkwardly and craved many pardons for not being on hand to welcome His Majesty. Overcoming a curious aversion to the man, the emperor straightway invested him with the newly created order of Civil Merit, and Don Anastasio, without a peon to till his fields or to oil his machinery, quaked under the honor of a copper medal.

“And,” pursued the monarch, “We find a need of stout officials, for We have been grieved to learn of hacendados who secretly aid the prowling rebellious outlaws that infest our country.—And as We must have a prefect in this district of an integrity like your own, it pleases Us, dear caballero, to name you jefe político.”

The new jefe’s greenish eyes contracted in terror. He thought of the brigands whom magistrates were supposed to discourage, and he tried to frame excuses.

“Accept, you fool,” someone whispered. “Mexicans can’t refuse office—that’s decreed.” It was Don Tiburcio, his sombrero against his breast. To Murguía the Roman sword on the crown seemed more than ever emblematic of “Woe to the conquered.” In a veritable panic he accepted.

As it was fitting that this day of a people’s emancipation should be commemorated by public praise to Almighty God, the Lesser Cortège formed, and careful of precedence, went to worship their Maker. The freedmen trooped after, waving jubilee branches.

The little church of the hacienda stood on a barren knoll, mid chaparral and graves. The curate’s white adobe adjoining was the only near habitation. A stone walk as wide as the church itself approached for a hundred yards, sloping up from a pasture below. The one tower opened on four sides for the better ease of the bell ringers. Its bright mosaic peak rose peaceful and still in the clear air.

The Emperor and suite arranged themselves within, and the Inditos gaped stolidly outside, to hear the Te Deum for their broken shackles. At the most solemn moment, the Grand Chaplain availed himself of his exclusive privilege, which was to present the Gospel to the royal lips.

Assisting him in the general service was the hacienda curate. This curate, obscurely found in the Huasteca wilds and yet not a Mexican, was a large sleek man whose paunch bulged repulsively under the priestly surplice. His flabby jowls hung down, and gave his head the shape of a pea, in the top of which were the eyes set close together. They were restless fawning little eyes and they roved constantly. But more than aught else, they were adventurous; two bright, glowing beads of adventure. From the folds of dull yellow flesh they peered forth at the august worshipers. They hovered first over the Emperor before his cushioned *prie-dieu*. Then, in hungry search, they began to roam. They lingered with General Almonte for a moment, but darted on, unsatisfied. They fluttered yet longer over Miguel Lopez, the gorgeously uniformed colonel of Dragoons, and left him only reluctantly. But when they lighted on Monsieur Éloin, they gleamed. There was no longer uncertainty. They laid bare the man as the print of a mass-book, and found him profitable reading. After that, the adventurous orbs returned to their larger prey, the Emperor, and gorging themselves, scintillated more adventurously than ever.

And such a feast as the unconscious Hapsburg afforded the ghoul of a priest! It was a loathsome surgery; greedy fingers trembling on the knife, the victim's soul flayed, each nerve of a vanity, or tendon of an ambition, or full-throbbing vein of hope, each and all lifted one by one from the clotted mass and scrutinized exultantly. There was not a feature but held a revelation as sure as vivisection. The high, broad forehead of a gentle poet was often shaded by a dreamy melancholy, but never once did it furrow in either craft or cruelty. In that the priest knew his man for a devout mystic, knew him for a child confidingly looking to a Destiny to inspire his every footstep. Then there was the beard. It was too great a wealth of whisker, its satin, glossy flow of too dandified a precision. The delicate finger tips stroked it softly, affectionately, to the left; then softly, affectionately to the right; and always dreamily. But the most shameless traitor of all was the lower lip. It was the Hapsburg lower lip, heavy and thick and sensuous, and ill-fated. Hanging partly open under the silken drooping moustache, it revealed the spoiled child of royalty, who mistakes obstinacy for decision, and changes whims with despotic petulance. Maximilian believed in his star. But a lower lip is more potent than predestination. He need only have leaned close to his mirror. Then he might have seen what the priest saw so clearly.

Maximilian paused on coming out. The freedmen were just rising from their knees among the thorns and stones. Then it occurred to the liberator that their participation in the rejoicing was not exactly, ah—conspicuous. “Would you not think it well, father,” said he to the Grand Chaplain, “that these poor people partake of the holy communion on this day that has been so eventful for them? If you approve, let it be ordered that—”

“But Sire—”

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Maximilian turned quickly, a pleased smile on his lips. The interruption came in his own tongue, in German. And he who had spoken was a German. It was the hacienda curate. His voice was soft, and purring with deference. He wished to say, with permission, that the holy sacrament for the Inditos was out of the question; scarcely one of them had been baptized.

“Not baptized!” Maximilian exclaimed. “And this, is this fulfilling your sacred obligations?”

The curate bowed his head. He had found them thus, when he first came, a few weeks ago.

“And you came—”

“From Durango, sire, where as secretary I served His Señoría Ilustrísimo, the Bishop of the state.” But, as he meekly explained, he had sought the Lord’s service among the Huastecans. Pastors were said to be needed, yet never had he imagined—He stopped short, in naïve embarrassment.

Maximilian appreciated his delicacy in not wishing to reflect on the Huasteca bishop. But from others he learned that neither baptism nor other spiritual office had been performed in the community for years and years, and that the bishop resided in the capitol, because among his flock he had neither comforts nor a befitting state.

“But why,” Maximilian demanded sternly, “have you not put to use the few weeks you have been here?”

The curate’s small eyes leaped to adventure. But he lowered them hastily, and folded his hands over his rounded soutane. He had heard that His Majesty might come, he said, and he had presumed so far as to hope that His Majesty might deign to act as godfather for the poor Indians, and so he had waited.

Nothing could have pleased Maximilian more, and he looked at the good priest with an awakening favor. “Then let it be this afternoon,” he

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commanded. "I will stand their sponsor."

"—Before God, who will bless Your Majesty," murmured the priest.

And to be brief, let it be recorded that they were baptized by the hundred, with hurried pomp—"pompes à incendie," as the godfather himself described it.

CHAPTER XVII

RATHER A SMALL MAN

“Besides the queene, he dearly loved a fair and comely dame.”

—*The Ballad of Fair Rosamond.*

Jacqueline was protesting to a worried personage in Grand Uniform. The personage was the Cerberus of the Emperor’s antechamber, and he barred her way. He was newly a personage, and did not know Jacqueline.

“But, Señor Oficial de Ordenes,” she insisted, “don’t you see that if I put my name in your old register there, the man will be shot while your Dignitaries are deciding to grant my audience!”

“Shot?” vaguely repeated the monarchial flunkey. He was a Mexican, and took his unfamiliar responsibilities seriously. He turned to the Book of Court Etiquette on the centre table.

“I tell you,” exclaimed the impatient girl, “you won’t find any precedence for shooting in that thing. A doomed man hasn’t any, take the word of the Dama Mayor.”

“Dama Mayor?” This was more tangible, and the Grand Uniform seized on it gratefully. “But,” and he quoted from the Ritual in triumph, “no Dama can present herself except on matters of service.”

Jacqueline hedged guilefully. “Of course not,” she agreed, “and it’s precisely that why I must see His Majesty. It’s about, about a piece of valencienne he wished me to bring the Empress from Europe.”

The Oficial de Ordenes hesitated. “But the man to be shot?”

“No matter, the lace is my business.”

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With which assurance, the Grand Uniform presumed to announce la Señorita Marquesa d’Aumerle. He reappeared at once from the inner apartment. The Emperor’s order to admit her that instant rather disturbed his faith in the Ritual and the leisurely decorum it prescribed.

Hardly had she stepped within the portières than someone caught her hand, and she saw Maximilian bending over it. There was an involuntary warmth in his formal courtier grace. The only other occupant of the hacienda sala was Bebello, the greyhound. He sprang up from a Hungarian bear rug, and frisked about her joyfully. Her greeting to him was equally sincere. Quietly releasing her hand, she patted him fondly, and cooed endearing French. “My little Tou-Tou! Pauvre petite bête!” Then, raising her head, she seemed to perceive His Majesty, “Isn’t a bit older, is he, sire?”

“Mademoiselle!” the man exclaimed reproachfully.

All the time he was staring at her. He stared at the tempestuous ruffling of her petticoat, which had a wanton air that was most disturbing, at the rebosa tossed rakishly over her shoulder, with the waistline beneath as languorously suggested as though she were Spanish-born to rebosas, and lastly, at a freckle on the very tip of the creamy nose. He admired extravagantly, but he was no less amazed to see her at all. A moment before he had supposed her demurely breaking hearts at St. Cloud, and Paris under her feet. He knew how capable she was. It had happened to him. How he had sought her, before she left! And how maddening she was! He could recall nothing of encouragement, and yet, blind, susceptible fool, he had never ceased to be encouraged. She was a master craftsman, since her art was hidden. Then she had gone back to France; some said because of a note from Napoleon. But he was of the gloomy opinion that she had simply ceased to amuse herself. Yet for all that, here she was again, and the astonished prince was eager to suffer yet more, if it amused her still.

She explained in a word, as though their meeting in the Huasteca were nothing extraordinary. Away from Mexico, she had discovered that she wanted to return to Mexico. The man left in Mexico would have augured much from this, but at her matter-of-fact tone the glad light faded from his eyes. Jacqueline, by the way, was a good manager. She reminded him that she had no mother nor father nor other relative in France—which disposed of France. Then, though he winced, she added that the experiment of a New World court was a novel spectacle and she enjoyed it more than the conventional affairs in Europe. Accordingly she would resume her place as first lady of honor. At Tampico she had wearied of ocean travel, and—well, that was all.

Maximilian shuddered. He imagined the terrors she must have encountered. “But, mademoiselle, the bandits? You did not come alone through that terrible coast country?”

“Of course not, sire. And that’s why I reveal myself to Your Majesty. You are to save the person that brought me.”

“Have mercy, mademoiselle. One must leap too far who hopes to understand you.”

“But there’s nothing to understand. Your Majesty has only to keep Colonel Dupin from shooting him.”

Maximilian frowned heavily at the Frenchman’s name.

“On the porch just now,” Jacqueline explained, “when you finished speaking, he—the man I am speaking of—announced that he wanted to see you, but the Tiger drew his pistols to shoot him if he moved.”

“Then naturally your friend did not move?”

“Your Majesty does not know him. But he stopped for me.”

“Were you so afraid Dupin would lose his prisoner?”

“I had no desire to see the prisoner commit suicide. But I had to promise him that he should see Your Majesty later.”

“To beg—”

“He is not one to whine for his life, sire. It is other business he means. But Your Majesty need not hear his business. Your Majesty need only *see* him. Besides, it would hardly be court usage, granting him an audience so informally, would it?”

“N-o, but if I am not to hear him, why should I see him?”

“To save his life, parbleu!”

“And why, since he is not concerned about that?”

“But I am, sire, and I count on Your Majesty to help me repay an obligation.”

Maximilian was quick at clemency, but no one likes to have his weaknesses played upon.

“Mademoiselle, who is this man? What has he done?”

“An American, sire.” Maximilian frowned. “A Confederate, I believe.” The frown vanished. “And Colonel Dupin believes him to be an accomplice of Rodrigo Galán. But he is not. He fought Rodrigo Galán, in—in my behalf.”

Maximilian frowned again. “And so,” he said, trying to do it lightly, “I have this unknown American to thank for the pleasure of seeing you, mademoiselle? Otherwise, I should not have known that you were here, and—”

He stopped. The gray eyes were laughing at him. Was his jealousy then so apparent? And was it jealousy? Evidently, since she had discovered it. And that vexed him, because he had supposed that he was hiding his pique under a great self control. Angrily he stepped toward her, but the saucy eyes only grew merrier. Then his mood changed. He resolved grimly on open fighting. He meant to have either decisive honors or a decisive repulse. For it was his tantalizing doubts of her that made her

laugh at him. Yet, when he spoke, he could not help the quaver of entreaty in his voice. 144

“Mademoiselle, tell me, *why* have you returned?”

The question was so abrupt and so stern, she thought in a flash that he must have penetrated that Napoleonic intrigue which had flung her back upon the Western shores. But Maximilian believed he knew another reason for her pallor, and was encouraged.

“You have already given one answer, mademoiselle,” he hurried on, “and in too great a humility to dare hope it otherwise, I took you at your word. But now that you mock me—ah, you shall confess, you are back in Mexico on *my* account!”

“And would that merit this august displeasure, sire?”

Her words sprang from relief; he suspected nothing of her secret mission. So the color might flood to her cheeks again, the mischief to her eyes, and with it a most perilous daring.

For the Hapsburg, it was coy surrender.

“Mademoiselle—Jacqueline!”

Her name! The old nickname fondly given her in childhood, when she was a torment, and an anarchist to all law, and got innumerable scoldings, and basked unperturbed in love and adoration! Her name, that only Mexico had tainted! For the first time it passed his lips. But the sweet, quaint syllables had long been in his thoughts, with something, too, of the early worship in their bestowal.

Curiously enough, a whimsical hardy figure in homespun gray took acute shape in her mind’s eye. The features were oddly sharp and clear. There was even the rough trooper’s disdain, which had been in his expression when first he saw her, but which she had not noticed at the time. She brushed the vision aside haughtily, as she would have done had the man himself intruded. But she could not stem so easily the wave of self disgust that swept her back from this other man, a prince of Europe. And when she smothered that self-abasement, it was a matter of will. She recalled her interview with the Sphinx in the Tuileries. She recalled her country, and the empire she meant to win, a gift to France, worthy of Napoleon, of the Great Napoleon. Then her will became as a master outside of self, and horrid in its iron cruelty. She half lifted her hand, and allowed the royal prince to possess it. 145

The tapestry behind them parted and fell. A light step crossing the room was suddenly arrested, and a low bewildered cry, half stifled in the utterance, arrested them.

“Fernando!”

The Emperor straightened and wheeled. Turning round, Jacqueline placidly surveyed a young girl, and her brows arched. She was not deceived. There was recognition in the startled gaze of the newcomer, and of Maximilian too. Only for Jacqueline did the situation hold aught that was amusing.

She was Mexican, a beautiful Mexican. She might have been Spanish too, or Moorish even, or perhaps to say that she seemed a gentle, drooping Egyptian would give the better idea of her dark loveliness. Under her skin, under a faintest tinge of brown, the rich blood drove its color through, and blending with that other shade, made the cheeks a dusky ruby, and seemingly softer and warmer. Her figure had prettily rounded curves, and her wine-red dress and the filmy black shawl over her shoulders deepened the tender, trusting depths of two large black eyes. The long lashes were wet with tears. She looked once at the calm French woman, as though afraid of her, and then at Maximilian, and at Maximilian alone. Her gaze was vacant, groping, non-comprehending, yet with a something of heartbreak in the beginning of comprehension.

To the Hapsburg came the dignity of proud generations, exalted above mere human scrutiny. He turned to Jacqueline, “As you see, mademoiselle,” he said coldly, “the stupid lackeys outside have admitted a second visitor. If you will excuse us—”

“But Fernando—”

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This time the girl’s moan throbbed with questioning. She was as far from understanding as before. But she noted unconsciously his princely bearing, his European dress, and the luxury about him in the transformed hacienda sala. Her eyes, in spite of grief and doubts, shone with timid, admiring love. “Que elegante!” she breathed. “Oh, is he not, truly, a caballero!”

“Fernando?” murmured Jacqueline. “Bonté divine, this *is* bucolic!”

“But Fernando,” the girl persisted, “who is there to—to admit me? I only come from my room.” With a tremulous gesture she indicated a door which the imperial scene shifters had covered with portières.

Maximilian's surprise at the existence of such a door was genuine. "And I find," she cried, "I find you here, you, Fernando?"

"There, there, señorita," said Jacqueline kindly, "His Majesty, I imagine, can explain—"

"Majesty?" exclaimed the girl. "Don Fernando—Majesty?" Yet a third time she repeated it, as by rote; and, very slowly, understanding grew into the words, and with understanding, terror. The dark innocent eyes went appealingly from one to the other, and the lids began to flutter wildly in a kind of spasm. "Majesty? Majesty?" Then, suddenly, she flung both hands to her face, and a piteous shivering racked her body.

"Catch her, stupid!" cried Jacqueline. "Don't you see, the child is fainting!"

But it was into Jacqueline's readier arms that she fell, and it was Jacqueline who let her slip gently into the high-back chair that was the imperial throne en voyage, under the claws of the oaken Hapsburg griffins.

"Get water! quick—Majesty, you—your cologne flasks!"



“MARIA DE LA LUZ”
“The tapestry behind them parted and fell”

A mist was in the prince’s eyes. “Pobrecita, pobrecita,” he muttered helplessly.

On Jacqueline depended what was next to be done. She ran to the door by which the girl had entered. “See, there’s a corridor here,” she cried, “and that must be her room, there at the end, where the door is open. Help me carry her—unless,” and she deliberately punctuated her scorn, “unless Your Majesty desires to call for aid?”

But His Majesty was so far from desiring anything of the kind that he nodded gratefully, impatiently. So to her own room they bore her between them, and laid her on the bed there. A pewter waiter with napkin and

coffee service was on a little table. But the tiny loaf of pan de huevo lay untouched. Her thoughts rather than appetite had possessed the girl when she awoke that morning, and they had kept her until she emerged to stumble upon an emperor in her father's house.

"Out of here," ordered Jacqueline. "I am going to call the servants." She had no sympathy for his wistful, forlorn gazing.

"It's the end, the end of my idyl," he murmured.

"Are you going?"

He came nearer instead, and looked in profound melancholy at the girl. The ruby flush was no longer there, and the face was olive and waxen. The lips were parted, baring teeth that were marvelously white. The shawl had fallen to the floor, and an ivory cross on a chain about her neck caught his eye. He turned it over in his hand, and on the gold, where the chain was attached, he saw an inscription.

"María de la Luz," he read. "So, that is her name. But I never asked it. Identity would have blighted the idyl."

"Sire," Jacqueline protested angrily, "this poor child needs help. I shall—"

"One moment, mademoiselle, I wish to say that I still do not know who she is."

Then, with a last sorrowful look, he turned back to his apartment of state.

Jacqueline's lip curled as she watched him go.

"And you wish me to find out who she is?" she apostrophized his back. "But I shall not tell you. And she—no, she is not the kind that would, knowing who *you* are."

CHAPTER XVIII

149

LITTLE MONARCHS, BIG MISTAKES

“How now, good fellow? wouldst thou speak with us?”

“Yea, forsooth, an your mistership be emperial.”

—*Titus Andronicus.*

For the moment, Colonel Dupin had established headquarters in the granary, which was a long, low adobe among the stables, with a pasture between it and the House. The pasture opened on the highway through a wide gap in the hacienda wall, and the coaches and steeds of the imperial party which had passed in that morning gave the old cow lot a gala air. The colonel was seated before a box, improvised into a desk, and his rusty jacketed Cossacks lounged everywhere. Tiburcio and other scouts were reporting on the dead and wounded of yesterday's raid. A maimed enemy brought a chuckle deep in the Tiger's throat, but any mishap to one of his own darlings got the recognition of a low-growled oath. He was busy over this inventory of profit and loss when Jacqueline appeared with the Emperor.

Dupin arose and saluted after the grim manner of an old soldier. The half-dozen of obsequious courtiers he did not see at all, but to Jacqueline he bent from the waist with a duellist's punctilio. His countrywoman was the one adversary whom he never thought of cursing.

There was an opening innuendo. “No, Colonel Dupin,” Maximilian reproved him sternly, “I have not come to interfere with justice. I merely desire to see what prisoners you have here.”

Driscoll and Murguía were brought in. Maximilian stared dumfounded at his new magistrate in the rôle of criminal. Don Anastasio looked apologetic. They had locked him up in his own stable, bronze medal and all. Dupin explained. This Murguía, like many another hacendado, had long been suspected of aiding the guerrillas, and yesterday morning he had actually set him, Dupin, on a false trail. The Contrás were tracking one of Rodrigo Galán's accomplices in the abduction of Mademoiselle d'Aumerle. The accomplice was the other prisoner, the American, whom

they had found at last taking refuge at Murguía's own hacienda. Here he had had the effrontery to welcome them as mademoiselle's rightful escort, had even seemed surprised when a dozen Contrás pounced upon him from behind and disarmed him. Dupin added that mademoiselle herself was deceived by the American's cunning, and he did not doubt but that she still persisted in his innocence. He might speak further of the fellow's part in the ambush and murder of Captain Maurel near Tampico, but he confessed that that required further investigation.

No one could say that Maximilian had so much as listened. Such tangles had long since become irksome, though he never ceased plunging into the mesh. To unravel details, and incidentally confuse them more, was a notorious mania with the poet-prince. But his thoughts now were all for a girl who had fainted. Murguía he would leave to a court martial. If guilty, the medal should be torn from his breast. Don Anastasio's terrors, however, ran on the other penalties of court martial.

"Now you," Maximilian turned to the American, "I understand that you wish to see me. But you must know that law prevails in Mexico at last, and that even the Emperor may not keep a man from trial."

Driscoll's chin lifted eagerly. "Certainly not, but my business with you, sir—"

"Not 'sir,'" whispered Jacqueline. "You must call him 'sire.'" Little she cared for etiquette, but she did not propose that Driscoll should broach his errand.

Maximilian overheard and smiled. "Yes," he said, "one tiny letter added, and you change a man into a sovereign."

Now Jacqueline, for her purposes, had thought to disconcert the man unused to courts. But it struck her at once that nothing of the kind would happen. His easy naturalness was too much a part of him, was the man himself. And she was glad of it. She was glad of the something distinguished which his earnestness gave to the clean-cut stamp of jaw and forehead. He had stopped and looked at them inquiringly, as an eager speaker will when interrupted. Then his brown eyes deepened, and there was a tugging at the corners of his mouth. He seemed to comprehend. If this was their humor, he would play to it. A diplomat must be all things to the people he is after.

"'Sire?' W'y," and his drawl was exquisite, "that's what we call the daddy of a horse."

Jacqueline turned quickly, clapping her hand over her mouth. Maximilian was always uneasy when Jacqueline did that.

"To be sure," he observed affably, "our American friend is not so far wrong. Listen, am I not the father of my people?"

The entourage buzzed admiringly at the imperial cleverness; all except Jacqueline, who now that she should laugh and relieve the situation, obstinately pulled a long, blank face.

Maximilian's tone changed. He meant to wound now, and did. "So," he added, with chilling stress, "it's 'sire,' if you will be so good as to remember."

Driscoll flushed as though struck. He became aware that it was all some patronizing rebuke.

"There is one," he answered gently, "who taught me manners at her knee, or tried to, and *she* never hurt a mortal human being by a word in her life, but that, that, sir, seems to be where *you* have missed it. Now look here," he went on, kindling in spite of himself, "I respect any man who has grounds—discoverable grounds—for respecting himself, and if you are a man, then 'sir' won't overtop you any."

Colonel Lopez of the Dragoons nudged him anxiously. "Don't say 'you'; say 'Your Majesty.'"

"Better let him alone," Maximilian interposed wearily. "He recognizes in me a man, and—it's not unpleasant. But which," he added, "gives me leave to hope that as a man himself he will not cringe before the drum-head."

"May I," said Driscoll quietly, "have one minute with you alone? It's not about myself, I promise you that. But for you, sir, it's of the very greatest importance."

Instantly all stirred with curiosity, except Maximilian. All there were keenly affected by the stranger's mysterious business with the Emperor, except the Emperor himself. And each man's wits were straightway alert, according to the hates and ambitions of each. Even Miguel Lopez, dense of understanding, had his suspicions. Murguía's yellow features darkened malevolently. The hacienda priest whispered to M. Éloin, and M. Éloin, brushing the man of God aside as though he had been thinking of the very same thing himself, tried to get a word with Maximilian. But Jacqueline spoke first to the Emperor. She knew the susceptibility of the royal ear. Maximilian nodded at what she said, and Éloin bit his lip. Maximilian

glanced at the American's clothes. Homespun did not correspond with pressing business of state, to his mind.

"My good man," he said, caressing his beard, "it's not regular, you know. Another time, perhaps, when you can have yourself inscribed by Our Grand Chamberlain and when your application for an audience—"

"But if these señores shoot me before then?"

Maximilian shrugged his shoulders. In any case, the Ritual would suffer no outrage.

"But I tell you," cried the exasperated Missourian, "this thing is serious. And it can't wait either, not if it's to help you any. I may be too late now. I don't know what's happened since I started down here three weeks ago. Richmond was in danger then. And the Army of Northern Virginia—General Lee—"

"Have surrendered," calmly interposed the Emperor.

Driscoll stiffened as he stood, his lips parted as his last word had left them. He wondered why these foreign, unsympathetic beings of Austria and France and Belgium and Germany and Mexico looked so blurred to him. He never imagined that there were tears in his eyes.

"It is really true," continued Maximilian, addressing them all. "A courier brought me the news this morning. Yes, my friends, the North is free at last to attack our Empire. But," he added blandly, "let us not fear, not while we are sustained by the unconquered legions of France."

"How he remembers us now!" thought Jacqueline.

She thought too of him who had sent the legions. The entire fabric of Napoleon's dream of Mexican empire was builded on the dismemberment of the American Union. But, as the Southerners began so well by themselves, Napoleon had left them to do his work alone. He just failed of genius.

"Oh, mon petit, *bien* petit Napoleon," she cried in her soul, "how terribly you have miscalculated!"

The room had filled with murmurs, with awed whispering, with frightened questioning looks at one's neighbor, with ambitions and hates gone panic-stricken. Driscoll came forward. The fellow of homespun held the Empire in his hand, if they but knew it. "Now let me deliver my message," he said earnestly. "And, afterward, on with the drum-head, I'll not complain."

“There, there,” spoke the unseeing monarch, though affected by the dignity of sorrow, “you shall have no cause. I came here, meaning to pardon.” 154

“Pardon?” came the Tiger’s growl. “Your Majesty saves so many enemies, does he fear that soon he will have none left?”

“Perhaps, Colonel Dupin, since my imperial brother, Napoleon, sends me so efficient a bloodhound. But I thought the prisoners were already tried and condemned. That must come first, of course. Yet We are constrained to find another judge, one without preconceived notions of guilt, to hold the court martial. Ah yes, as Monsieur Éloin here suggests, I name Colonel Lopez.—Colonel Lopez, you will stay behind with a company of your own men. Finish the trial to-night, if you can, and overtake me before I reach the city.—Colonel Dupin, I have to request yourself and men as escort, to replace the Dragoons left with Colonel Lopez. And you, Mademoiselle d’Aumerle, shall have a carriage. We start this afternoon. You will be ready, mademoiselle?”

“Is Your Majesty quite resolved,” Jacqueline asked in French, “that the American must be tried? He can easily be found guilty, I warn Your Majesty.”

“And is that not reason enough?”

“Reason enough that he should not be tried, since he is not guilty. But perhaps Your Majesty has thought of sending him under guard to the frontier, back to his own country, where he would not longer be an annoyance?”

“My dear young lady,” returned the Emperor, “it seems that you expect me to blot out the processes of law simply because even I cannot make them infallible. But you do not answer my question. I offer you protection to the City?”

“He must stand trial then?”

“Yes—but will you be ready to start this afternoon?”

“Your Majesty should know that I cannot accept.”

“Does this trial interest you so much, mademoiselle?”

“Thanking Your Majesty,” said Jacqueline coldly, “I should rather not accompany him.” 155

Maximilian swung on his heel and called Lopez aside. “Mi coronel,” he said, “when you follow to-morrow, you will offer to bring the Señorita

d'Aumerle, if she desires it.—And Lopez, you remember the young Mexican girl we used to meet near here, during the last few evenings?”

“When you and I, sire, would ride over from Las Palmas incognito?”

“Yes. She was able to—to tell me much about the peon life, and I should like to reward her in—in some way. Do you know, Miguel, I suspect she lives on this very ranch. It was at the church here that we would meet her, you know? And now, since I must leave, I wish you to find her. Induce her to come with mademoiselle to the City under your escort. Assure her that she shall have an honored place at court.—Jove, there’s my new order of San Carlos for women! She shall have that for—for aiding my researches among the peons. Now, Miguel mio, do your best!”

With which words Maximilian turned back alone, and as he went, he thought how as a simple man he had won a maiden’s heart. He had been learning that a prince may miss one or two very dear things in life. “It’s ended, the little rancharo idyl,” he murmured. “But there’s been no harm. She shall not regret it.”

CHAPTER XIX

156

A TARTAR AND A TARTAR

“But all’s brave that youth mounts and folly
guides.”

—*As You Like It*.

As Maximilian crossed the pasture, he suddenly had to jump aside with considerable sprightliness. A brace of horsemen came swerving through the gateway from the highroad and tore down upon him as though the Day of Judgment galloped behind. They were abreast, ten feet apart, but the oddest thing was a lariat that dangled between them, from saddle-horn to saddle-horn.

The thunder of hoofs brought Dragoons and Cossacks and Dignitaries, and emptied the granary. Even insane horsemen could see that the Empire was encamped over that cow lot. And as nearer they rushed, the two maniacs seemed to recognize the fact. One was straightway more anxious to arrive; a directly opposite effect was apparent in the other. And there was the rope between them, from saddle-horn to saddle-horn. Their opinions on destination, unexpectedly diverging, promised something. And since one wanted to stop and the other to hasten, the something was not long in happening.

One of the horsemen—he wore a sombrero—leaned back frantically. The other—who wore a battered soldier cap—passed ahead like the wind. The lariat twanged, but held. Sombrero’s horse got its feet planted. The horse of Soldier Cap slowed to a standstill, and panted. Sombrero flung out his pistol, Soldier Cap his. They aimed at each other, the triggers snapped, no report. They looked amazed, embarrassed; and tried again. Same result.⁴⁵⁷ “Por Dios!” “Sacré nom!” They hurled the pistols, each at the other’s head. Both ducked. Sombrero wheeled, drove home the spurs, and headed for retreat. Soldier Cap and horse braced themselves against the shock. The spectators, running nearer, now perceived that the lariat was tied round each man’s waist as well as wrapped over his pommel. Soldier Cap weathered the jolt, next plunged suddenly closer, and in the instant of the

slack, unwound the rope from his saddle and leaped to the ground. In two leaps more he had Sombrero about the neck. They fell together, rolling and fighting, while Sombrero's horse reared and plowed the soil with them. Dragoons and Cossacks heaped themselves on all three. It was quite an energetic mystery altogether.

Under the soldier cap, under dust and blood and scratches, Jacqueline caught glimpses of a happy face.

"Oh lá-lá, it's—it's Michel!"

"Rodrigo Galán!" roared the Tiger, in his turn recognizing Sombrero. "Here, up with him! Six of you, quick there, in line, shoot him!"

It was near the sweetest moment of the old warrior's life.

"One moment, colonel!" someone spoke quietly. "Is it a Huastecan custom, by the way, to shoot a cavalier the instant he—ah—dismounts?"

"But this scoundrel is Rodrigo Galán, Your Majesty. And that black horse, sacré tonnerre, that is Maurel's horse. Captain Maurel, sire, whom he murdered!"

Don Rodrigo straightened pompously. "Your Most Opportune Majesty—" he began.

"Also, Colonel Dupin," Maximilian continued, "he waylaid the Belgian ambassador, sent by Leopold, brother to Our August Spouse."

"The more reason to shoot him, pardi!"

"Without doubt, monsieur. But his execution must have éclat. Europe must know that Mexican outlaws do not go unpunished.—Colonel Lopez, you will take charge of Our prisoner. Guard him well, and bring him with you to the City. He shall be tried there, with every ceremony."

Colonel Dupin, that policeman of the backwoods forced upon Mexico by Napoleon, could only grind his teeth, which he did.

"Now then," said His Majesty, "let Us see this brigand-catcher who excels the redoubtable Contra Guerrillas.—As I live, the young man is a Chasseur d'Afrique! Step nearer, sir, and tell Us who you are."

"Michel Ney, at Your Majesty's service."

"The Prince of Moskowa!" exclaimed the Emperor. In his court, he was grateful for even a Napoleonic prince.

"Sergeant, Your Majesty." It looked as though Ney were hinting to be made something else.

"I see," said Maximilian. "And so Our Empire of romance is to hold a baton for another of the family of Ney. But to start more modestly, how

would a lieutenancy suit, do you think?"

"Your pardon, sire, but I report to His Excellency, Marshal Bazaine."

Maximilian's white brow clouded. The French occupation was ever a thorn in his side. He could never quite be Emperor in fact. He could not even promote a likely young man. He had to "recommend" to one Bazaine, who had carried a knapsack.

"Quite so," he answered coldly. "I shall inform Our dear Marshal how well you deserve."

"The fact is, Your Majesty," said Ney in some confusion, "I did not—exactly—capture him. It was, uh, sort of mutual."

Everybody stared curiously. There was the rope, the unloaded pistols. It was a queer puzzle. How did it happen? Ney began with an apology. Would Mademoiselle d'Aumerle forgive him? But he had worried⁸⁹ though! He should not have left her, day before yesterday!

"Because of a greater attraction?" the young woman suggested.

Ney demurred so earnestly that Jacqueline laughed outright. "Don't make it worse, Michel," said she. "I know how you regretted the death of the terrible Rodrigo. Then you learned that he was alive. Oh no, I couldn't have held you.—But go on. Did he prove interesting?"

The Frenchman told his story. It appeared that, on deserting mademoiselle two days before, he went at the best speed of his horse up the ravine she had so graciously indicated. He hoped to overtake the fugitive bandit, and after an hour, at a turn in the arroyo, did meet him, face to face. Both were equally astounded. Rodrigo was retracing his steps, having been blocked by a dried waterfall. Either man drew and covered the other. The Mexican did not fire. Seeing Ney, he supposed the Contrás at no great distance, and a shot would bring them on his heels. But after a time the thing commenced to grow ridiculous, and Ney laughed.

"Monsieur Rodrigue," he said, "I hope you will come along quietly."

Fra Diavolo mistook the Gallic humor for an assurance of armed backing near at hand. "Where to?" he asked.

"The devil take me if *I* know! Where would you suggest?"

It dawned then on the puzzled brigand that the other knew nothing of the country, and accordingly they struck up an armistice; which, for the rest, the alert revolver of each made imperative. Their protocol's chief clause required the prisoner to conduct his captor to some neutral point.

Rodrigo suggested Anastasio Murguía's ranch, and Ney agreed. But as to what might happen on arriving, they left in blank. Michel had a duel in mind, if honest seconds were to be had. The craftier Rodrigo hoped to find some of his own men lurking about the hacienda. 160

A cessation of hostile moves was further stipulated, though treachery of course warranted the instant drawing of weapons. Should the prisoner try to betray the captor to guerrillas, this was to constitute treachery. Ney for his part insisted on his rights as captor. That is, he could call for help if he got the chance. Rodrigo assented willingly. He knew the neighborhood. He would avoid the Cossacks, and the Frenchman might shout to his heart's ease. To do him justice, the outlaw had no desire to kill Ney, even if Ney gave him leave. A duke and prince in one was too valuable. A pretty ransom loomed brightly. Ney suspected as much, but not being ingenuous enough to obviate the risks, took a huge delight in them.

Conforming to the terms of the truce, each man, simultaneously, put his gun in his holster. Then, good company enough one for the other, though with eyes ever on the watch, they proceeded along tortuous bridle paths until twilight, meeting no one. They camped in the same forest which that same moment held Murguía, Driscoll, and the two girls. They tethered their horses together and made a bed of leaves for themselves. Each laid his pistol a comfortable distance away, so that if either tried to arm himself while the other slept, there would be much snapping of twigs under his feet. Again simultaneously, they sat down and talked, and smoked cigarettes in lieu of supper. Ney progressed in his Spanish that evening. Fra Diavolo wished to impress on the companionable Frenchman that he, Rodrigo Galán, was a more terrible person than Colonel Dupin. He seemed envious, even of the compliment implied in the Tiger's nickname.

During a pause the brigand said, "Now don't jump, caballero, because I'm only getting out my flask."

"The beautiful idea!" returned Ney. "I'll do the same."

But each stopped with the liquor at his mouth. It was consolation for lack of food, but if one refrained and the other partook—well, there would be a light sleeper and a heavy sleeper. With the tempting fumes in their nostrils, they waited, each for the other, to quaff first. And neither did. Finally Rodrigo proposed that they equalize the perils of indulgence. 161

Accordingly each lowered the contents of his flask by three swallows, after which they compared the extent of the ebb tide in either bottle.

“But, voyons,” Ney objected, “you haven’t taken as much as I have!”

Rodrigo admitted the impeachment, and amiably took another draught. But the swallow proved too large, and Ney in his turn tried to balance that one, only to fail likewise. This entailed another effort from Rodrigo, which resulted in still another exaggeration.

“Now you’ve had *more* than I have,” Michel complained, growing vague on the real point at issue.

“Bien, señor, suppose you try a little of this. It’s catalan, genuine, too, smuggled at Tampico.”

“Mine’s cognac,” said Ney. “Have some?”

They exchanged flasks, and that night in the forest their snores were discordant and loud. Ney half awoke once, and remembered that he seemed to have heard the tramp of many horses. Toward morning, when it was not yet light, he was aroused for good by a savage tightening around his waist and a tremendous pull. He sat up, and heard his prisoner scuffling and swearing near him.

“You’ve tied me, you sneaking animal without shame!”

“It’s you that’s tied me, tête de voleur!”

But as Rodrigo wrested in the dark, Ney found that the brigand’s stumblings corresponded with the tightening about himself. He clutched at his waist, and discovered a rope.

Both men groped vengefully forward with the line, and lurched into one another’s arms. Each had thought to come on a tree, only to discover himself tied to the other. In the first start of suspicion, and in no good humor from splitting headaches, one reached for his knife, the other for his sabre. But the knife was gone, the sabre was gone. Forthwith they grappled and strained and breathed by jerks and tumbled and rolled and wound themselves in the lariat, until at last they lay exhausted on their backs and blinked up at the beautiful innocent morn peeping through the trees.

“Now don’t you untie yourself till I get untied,” ordered Ney.

“Or you yourself,” retorted the other.

“Let us both untie at the same time.”

“But one might finish first,” objected Rodrigo. The brigand had grown amiable again. He saw advantages in the rope. It was well to have his

prospective ransom never more than a few feet away.

They discussed the problem at length, but were not equal to it. So the *modus vivendi* was stretched a rope's length, and the treachery clause expanded to include any untying or attempted untying before their arrival at Murguía's. Scrupulously simultaneous, they arose, found their pistols, and mounted their horses. To guard against any sudden varying in rapidity of travel and its consequences, each wrapped the lariat once about his saddle-horn. Where necessary, the brigand rode in front, since Ney insisted that the other way would reverse their rôles of prisoner and captor. Rodrigo got some tortillas from a charcoal burner, and they lunched and rested within the forest's edge till dark. But they traveled all that night in the open country, and approached Murguía's before noon of the next day. Hoping to find friends about the hacienda's stables, Rodrigo suggested that they race up the highway into the pasture. He was thinking that then the Frenchmen might be overpowered the more easily. Ney fell into the trap. He accepted the challenge and was keen for the sport. Thus it happened that they all but ran down the Emperor of Mexico himself, and instead of guerrillas, Rodrigo saw Cossacks and Dragoons. But the mystery of the rope, added to that of the unloaded pistols, rested unexplained.

Jacqueline was delighted. "If it were just conventional heroism," she exclaimed, "one might talk of lieutenancies. But sire, this—"

"Never fear," replied Maximilian. "I cannot make him captain, but he shall have his reward.—Monsieur le Prince, I will leave you a half company of my Austrians, if, though a Chasseur, you will deign to command them. In a word, I desire you to have the honor of escorting mademoiselle to the City."

"And I thank you, sire. Parbleu, the sergeant is happier with such an order than—than the captain without it."

"Michel," cried Jacqueline, "and where in the world now did you get that?"

"Why—out of my own head. Really, mademoiselle."

CHAPTER XX

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IN THE WAKE OF PRINCELY CAVALCADES

“... Now swell out, and with stiff necks
Pass on, ye sons of Eve! vale not your looks,
Lest they descry the evil of your path.”

—Dante.

The Grand Equerry was again the Dignitary of the hour. He held the Emperor's stirrup, while the Emperor, fittingly attired, swung gracefully astride a curvetting charger. Behind was his coach, ready for him when he should tire of the saddle. It was already late in the afternoon, and he meant to travel all night. Flatterers begged him to consider the importance of his health, which but made him unyielding. Some slight martyrdom for his country appealed to Maximilian. No, he said, grave affairs might be afoot since the Confederacy's surrender. The capital needed his presence, and he reminded them that the State came first, as always.

The retinue climbed into carriages. The escort, Dragoons, Austrians and Contra Guerrillas, formed in hollow square about their prince. Colonel Dupin scowled because he was going. Colonel Lopez, when unobserved, scowled because he was left behind. And Monsieur Éloin, at the Emperor's side, thought well of himself in substituting for a rival favorite one so distant from favoritism as the Tiger. The Dragoons and Austrians who were to remain presented arms on the hacienda porch, and Lopez gave them the cue for a parting viva. The emancipated peons, still wet from spiritual grace, swelled the din gratefully and stridently, lured to it by their thoughtful pastor, the hacienda curate.

But Maximilian still lingered. He looked from window to window under the colonnade, and seemed expectant. But Lopez signaled to the buglers, and the trumpet call and the redoubled huzzas of a people thrilled him out of his melancholy. With a sigh he gave over his private loves and poesy. He breathed deep and his eyes flashed. And as the grand monarch and good, he departed with the acclaim of posterity in his ears,

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conscious that the superb figure he made was for History's contemplation.

At this time the Marquise d'Aumerle was half way up a ladder in the garden. She was picking the fragrant china blossoms, tossing them down to Berthe's apron, and humming "Mironton, mironton, mirontaine" in blissful indifference to many things, to princes among them.

Nor was the other girl behind the hacienda shutters. Yet she, at least, saw him ride away. High up in the chapel tower, between the bell and the masonry, crouched a sobbing little figure. She gazed and gazed, with straining eyes. Over there below, in front of her father's house, were glittering swords and dazzling helmets, and the sheen of gilded escutcheons on coach doors. And as the beautiful pageant wound its way along the highroad, she watched in fawn-like curiosity. The sobs were only involuntary. She was not thinking, then, that this was matter for grief. Her dark eyes, that had been weeping, and were now so dry, held to a certain one among the cavaliers, to the very tall and splendid one with the slender waist, and they kept him jealously fixed among the others, and were ever more impatient of the blurring distance. But when finally he was lost for an instant in the general bright haze of the company, and she could not be quite sure after that which was he, then indeed the eyelids fluttered in a kind of despair. Yet only after the last carriage had vanished under the giant banana leaves of the hill beyond, did the tears come and tremble upon her lashes.

"He is married, the Emperor," she told herself, as though the fact were that second written across the burning sky. At last, full, grim comprehension was hers.

The stones of the tower glowed like a brazier in the sun, but the girl, with her head on her arm against the parapet, shivered as with cold; and a numbness at her heart grew heavier and heavier, like weighted ice.

Below her the barren knoll, where an hour before swarthy stolid hundreds had crowded awaiting baptism, was lonely as the grave. The peons were dispersing to their village down by the river junction, or to their huts near the hacienda store, and on the air floated the falsetto nasal of their holiday songs, breaking ludicrously above the mumbling bass of loosely strung harps. Nearer by, the only life was an old man with a fife and a boy with a drum, who marched round and round the chapel, playing monotonously, while a second urchin every five minutes touched off a

small cannon at the door. They did these things with solemn earnestness. It was to achieve an end, for San Felipe's day would come soon, and meantime each and every lurking devil had to be driven off the sacred precincts. But there was one hideous fiend who grinned, and pinched, and shrieked. His abode was the girl's heart, and he shrieked to her gleefully, that she could never, never in life, wed the man she loved. The fife and drum and the stupid little cannon simply made him the merrier.

The imps were left in peace for the night, and all about the chapel was dark and silent and desolate. But a man was working stealthily at one of the rear windows. It was a square, barred window, near the ground. The man chipped away at the granite sill with short, quick blows. The butt of his chisel was padded in flannel, so that even a chuckling that escaped him now and again made more sound than the steel. Soon he dropped his tools, and wrapping either hand around a window bar, he braced both feet together against the wall, and pulled. The two bars scraped slowly toward him across the stone. Then, with a sharp, downward jerk he tore them out. Quickly he climbed inside and cut the ropes of a man who lay bound on the floor. Both men emerged noiselessly through the window.

"Have a care how you step," whispered the rescuer. "Your faithful guards are busy sleeping and don't want any disturbance."

"That candle-stinking sacristy!" grumbled the rescued.

"But it's the only stone calaboose on the ranch. In fact, *I* suggested it, since Don Rodrigo should be kept tight and safe. That's why Dupin left me behind." The rescuer chuckled as before. "Careful, hombre, there's a guard there, lying right in front of you!"

Rodrigo made out the prostrate form, and lifted a boot heel over the upturned face. But his liberator jerked him aside.

"Fool, you'll wake the fat padre, and he doesn't like my jests, says they're inspired of the Evil One."

"Thinking of the Bishop of Sonora's waiting maid, was he?"

"Well, what of it? Didn't he elope here with her?"

"And you, Don Tiburcio?"

"Of course; she naturally wanted to correct her first bad taste."

"By running away with you? If you call that good taste—"

"I call that a good joke on the padrecito."

Having by this time come safely to the front of the church, Rodrigo was for making certain his escape at once. But Tiburcio interposed. "There's some talk still due between you and me," he said. "Sit down, here in the doorway."

"Well?" said the brigand uneasily.

"Well?" repeated his jocular friend.

"Well, there isn't even a moon and we can't deal monte, as if that weren't the same as giving you what you want, anyway."

"I risk my hide saving you for money, then?" Don Tiburcio's tone was aggrieved.

"Oh no, for friendship," the sardonic Rodrigo corrected himself, "and I think as much of you in my turn, amigo mio. Not half an hour ago I was wrapped in anxiety, imagining you trying to collect blackmail, and I not near to keep my patriots from your throat. Oh, the sorrow of it!"

"God be praised that a dear friend came and eased your worries! But you are not an ingrate. Since the Confederate Gringo took all my money the other morning—"

"Tiburcio, on oath, I haven't had money either, not since our last game at cards. There was Murguía, I know, but I let him off for bringing me that French girl. She was good for a big ransom, only your same Gringo—curse the intruder! If ever the Imperialists catch him, and Murguía is there to testify against him—"

Tiburcio moved nearer on the church step. "And then?"

"That's our secret, Murguía's and mine."

"But Rodrigo, he *is* caught. They are trying him and Murguía both this very minute. And do you know what for? For being your accomplices."

The outlaw started exultantly. "Then, if you want him shot—"

"Well?—Oh don't be afraid, maybe I can help."

"Were you with Captain Maurel when we ambushed them near Tampico?"

"I can't remember," said Tiburcio tentatively.

"If you will hurry down to this court martial, perhaps you will remember better. Go, and I'll leave you."

"Not quite so fast, Rodrigo. You forget that your devoted rescuer is penniless."

"So am I, I tell you. We'll both have to go to work, Don Tiburcio."

"What's the lay? Tell me." The humorist's tone was unmistakable.

Rodrigo looked about him in the dark. "Listen," he whispered, "there's a bullion convoy out of San Luis before long, but—you shall hear no more unless it is agreed that I am to meet them first."

"Of course, hombre! How else could I threaten to expose them for contributing to the rebels?"

"Bien, it's next week. You will meet them this side of Valles, some time Thursday or Friday.—Now I'm off. Adios."

"Stay. You'll find your horse down by the river. The administrator is waiting with it. And Rodrigo, don't you want your pistol? Be more careful another time, and keep it loaded."

Something in his tone nettled the brigand. "What do you mean? Give me my pistol."

Tiburcio pointed it at him instead. "When you cool a little, yes. But it takes a good marksman to hit a Frenchman with an empty pistol—especially when one wakes up and finds himself tied."

Rodrigo stiffened. This was menacing to his dignity.

"Both lassoed," Tiburcio went on, "and no telling which was heifer and which vaquero, stampeding down on poor Max.—Ai de mi, I never thought it could be so funny!"

"Give me my pistol!"

"Slumbering like two babes in the wood, and your sweet innocent breaths perfuming the woody forest. I'd have covered you with leaves, like the little robins, only—"

"Was it you tied us, you—"

"Just like two babes, but," and Tiburcio pointed his thumb to his mouth and shook his head sorrowfully, "that's bad, very bad. Why didn't you leave me some? Of the cognac, especially?"

"If you don't explain—"

"Softly there, amigo. Yes, I tied you."

"Another of your jokes—"

"Inspired of the Evil One? Oh no, it was—precaution. Yes, that was it, come to think; just precaution. You see, I and Dupin had scattered your guerrillas, and I was scouting ahead, to stir up any ambush waiting for us—which I did later, when we chased them, and burned Culebra. But going along, I heard snoring, and found you two, like two—Now sit still!"

“Why didn’t you wake me? Then we could have roped the Frenchman.”

“And have him identify me after we’d gotten the ransom? Oh, no, I’m a loyal Imperialist. Now listen a minute, will you?—Our Contras were following me not a half mile behind. That meant I had to work quick. You see, I wanted to find you both there when I could come back alone. And meantime, I didn’t want you to hurt each other. If either got killed, there’d be no ransom. So I took your knife and his sabre. Then I tied you both with my lariat. I was going to get your lariat too, and tether the pair of you to a tree, hoping you’d hold each other there till I got back. *You* would do it, for I meant to pin a note on your sleeve, explaining. But just that minute the Frenchman stirred, for the Cossacks were getting into his ears, so I had to run back and turn them into another path.”

“So long as it wasn’t any of your infernal farces?”

“Well, it *was* worth a ransom, the way it turned out.—Sit still, will you? You *know* I take you too seriously ever to think of any joke with *you*! Here’s your artillery and cutlery. Quick now, clear out!”

Both rose to go, each to his respective deviltry, but not six steps ahead⁷¹ in the black night Tiburcio stumbled over a soft, inert mass. He recovered himself, half cursing, half laughing.

“One of your guards, Rodrigo,” he muttered. “He must have got this far before the drug worked into his vitals.”

“Your mescal probably killed him,” said Rodrigo indifferently. “But a little knife slit will look more plausible in the morning, for you it will.”

Getting to his knees on the stone walk the outlaw groped over the body for a place to strike, holding his knife ready. But all at once he stopped and got up hastily, without a word. He only rubbed his left hand mechanically on his jacket.

“Well, what ails you?” asked Tiburcio.

Rodrigo gave a short, apologetic laugh. “It—it’s a woman!” He quit rubbing his hand, seeming to realize. “There’s blood,” he added.

“Here,” said Tiburcio, “you keep back, and run if anybody comes. I’m going to strike a match.”

By the flare they saw that it was a girl and that her head was crushed. Kneeling on either side, they peered questioningly, horrified, at each other. Their great sombreros almost touched. Their hard faces were yellow in the flickering light between, and the face looking up with its

quiet eyes and dark purplish cleft in the brow was white, white like milk. With one accord the two men turned and gazed upward at the tower, whose black outline lost itself far above in the blacker shadows of the universe. They understood.

Tiburcio shrugged his shoulders, a silent comment on the tragedy from its beginning to this, its end. He threw the match away and arose, but Rodrigo still knelt, leaning over her, holding the poor battered head in his hands, half lifting it, and trying to look again into those eyes through the darkness. He would touch the matted hair, as if to caress, not knowing what he did, and each time he would jerk back his hand at the uncanny, sticky feeling. Roving thus, his fingers touched an ivory cross, and closed over it. With no present consciousness of his act, he placed the symbol in his jacket, over his breast.

Tiburcio touched him on the shoulder. "I'll go now, and bring her father," he said.

"Yes," returned the other vaguely, stumbling to his feet.

"It's going to kill the old man," murmured Tiburcio, "or—God, if it should *not* kill him! He is a coward, but once he slapped you, Rodrigo, for so much as looking at her. And now, the Virgin help—may the Virgin help whoever's concerned in this!—But here, you must go, do you hear?"

"Yes."

"Then go, go!"

"Yes," said Rodrigo again, moving slowly away.

"By the river, remember. You'll find your horse there."

"Captain Maurel's, the fine black one?"

"Yes, I slipped it out of the stables for you."

"The fine black one?"

"Yes, yes, hombre!"

"And—and she never—she never saw—how magnifico I look on—on that fine black horse."

He was still muttering as he reeled and staggered down the hill.

When he was gone, and no alarm of sentinels rang out, Tiburcio took off his serape and laid it over the dark blot on the stones. Then he too stole away, to tell her father.

CHAPTER XXI

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THE RED MONGREL

“Be this the whetstone of your sword; let grief
Convert to anger; blunt not the heart, enrage it.”
—*Macbeth*.

“Where,” inquired Din Driscoll, with a benevolent interest in their doing the thing right, “is the judge advocate?”

Colonel Miguel Lopez resented what he took for a patronizing concern. It festered his complacency, for his was the code of the bowed neck to those above and the boot-tip for those below. Luckily for him, he did not strike the helpless prisoner. He turned to his judge’s bench instead, which was none other than the frayed and stately sofa of honor from the hacienda sala, deemed requisite to his dignity. The satin upholstery contrasted grotesquely with the adobe walls. Pungent tallow dips lighted the granary to a dull yellow, and mid the sluggish tobacco clouds were a shrinking prisoner in clerical black, and the mildly interested prisoner in gray, and red uniforms surrounding.

Lopez flung his sword across the empty box that was to serve as desk, and filled the crimson seat with pompous menace. Lopez was a Mexican, but did not look it. He had red hair and a florid skin, and he was large, with great feet and coarse hands. Yet the high cheek bones of an Indian were his. The contrast of coloring and features unpleasantly suggested a mongrel breed. The eyes had red lids, out of which the lashes struck like rusted needles, and the eyes themselves, of a faded blue, seemed to fawn an excuse for Nature’s maladjusting. But he had a goodly frame on which¹⁷⁴ to hang the livery of a king’s guardsman. And as the cross of the Legion of Honor ticketed his breast, he must have been a goodly man too, and his Maker’s insignia only a libel. Once Maximilian had said, “What, Bebello, and art thou a better judge of men than I, thy master and the master of men?” For it seemed that Bebello, the simple hound, had read Nature’s voucher instead of Napoleon’s, and being thus deceived, would ever snarl at the Colonel of Dragoons. Maximilian of course knew better. What

looked like toadying was only profound deference for himself. The royal favorite could discriminate. He could also be the thick-headed, intolerable martinet. The sandy lashes bristled as the American inquired a second time if he were to have counsel.

“Being president of this court,” Lopez announced, “I am judge advocate.”

In the tone of congratulation Driscoll blandly said, “Well, then, I challenge the president.”

“Challenge?”

“Certainly, Your Honor. It’s my right, either on the ground of inexperience, malice, or—but I reckon the first two will do.”

“This is insolence!” cried the president, and glaring angrily, he maintained that it was a regular court martial for the field, and that as he was the ranking officer at hand, there could be no appeal beyond himself.

“A regular drum-head,” Driscoll observed. “Well, let it go at that. I’m in a hurry.”

Lopez called a lieutenant of Austrian cavalry to his right upon the sofa, and the Dragoon color sergeant to his left, and the three of them sat thenceforth in judgment. The charges were read, and next a deposition, gathered that day from Michel Ney. Therein appeared the American, reinforcing Rodrigo Galán at Tampico, and in so far aiding the abduction of Mademoiselle d’Aumerle.

“The complicity is evident,” stated Lopez, and his colleagues, blinking at the candles on the box, nodded wisely.

“It’s straight so far,” Driscoll agreed, “but the story goes a little further. Does the ma’am’selle herself happen to have left any deposition?”

She had, admitted the president, but it merely corroborated the foregoing. Driscoll, in sole charge of his own defence, insisted that her deposition be read, but Lopez would permit no such waste of time. He was brooding on Monsieur Éloin usurping his own place near the Emperor, and he wanted to finish the present business so as to overtake them both.

Dupin’s written evidence provided the rest of the abduction story, seemingly, and there remained only the other charge, that of assisting at the ambush of the murdered Captain Maurel. For this there was no evidence, and the accused himself was examined.

“Your name?” asked the court.

“Driscoll.”

“Your full name, hombre?”

“John Dinwiddie Driscoll, Your Honor.”

“Din—whatever it is—that’s not a Christian name?”

“It was, when I got it. Maybe I’ve paganized it since.”

“Devil take you, this is solemn!”

“Yes, this is solemn.”

Lopez cracked his long nails irritably against each other.

“You came here via Tampico,” he began anew. “What days were you in Tampico?”

“From about the twenty-third or twenty-fourth, till we left a few days ago.”

All three judges bent over a memorandum which the president pointed out among his notes. Captain Maurel was killed about April 26th.

“How did you occupy yourself while in Tampico?”

“Mostly trying to persuade Murgie here that it was his move.”

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“But your horse needed exercise. Did you at any time ride across the river?”

“I didn’t notice. Have you anyone who saw me cross?”

“Goot!” blurted out the Austrian who was one of the judges, so suddenly that everybody half jumped. “Ya, das iss die cosa, sabe! Who has him seen cross?”

The court floundered. The witness demanded by the accused was lacking. Murguía, a restless, huddled form on a straw-bottomed chair, was watching hungrily every step in the examination. Now he shifted excitedly, and his sharp jaws worked with a grinding motion. Then his voice came, a raucous outburst.

“Search him, Your Mercy!”

Lopez browbeat the meddler, and—took his advice. Driscoll submitted tolerantly to their fumbling over him, and all the while Murguía looked on as a famished dog, especially when they pulled out the whiskey flask. But when they tossed the thing aside, he sank deep into his black coat and gave vent to mumblings.

“Of course we find nothing,” Lopez complained, “since his accomplice recommended the search.”

It seemed, too, that the state’s case must fall.

“The Captain Maurel charge cannot hold,” announced the court.

“Ya, goot—much a bueno!” exclaimed the Austrian with enthusiasm, while the color sergeant, who had a red nose, wet his lips hopefully. He believed that an acquitted outlaw, if a gentleman, would stand a bottle.

“And as to the first charge,” continued the president, “here is the deposition of the Señorita d’Aumerle, which I have held till now for this purpose. Read it, and you will note that though the marquesa bears out the Señor Ney, she further testifies to the prisoner having later saved her from this very Rodrigo Galán at peril to himself. Bien, señores, have you any further questions?”

The Austrian crinkled his brow, and after a momentous pause, shook his head till his cheeks rattled. The Dragoon promptly replied, “No, mi coronel.” Then the three withdrew, and when they came back, the Dragoon wiping his lips, they informed the accused that he was not guilty.

“Which isn’t news,” said Driscoll as he thanked them.

Murguía’s turn came next. The proof of the old man’s guilt blossomed almost of itself. Jacqueline, to clear her protector, had been forced to depose how Murguía had willingly betrayed her into Rodrigo’s hands. But she described the old man’s reluctance. He would have saved her, except for his terror of the outlaw. The sole case for the defence was Murguía’s character for stinginess; such a miser could not be accused of aiding the guerrillas. But this very point seemed to heighten Lopez’s prejudice against him. Driscoll, being held to testify, only talked sociably, and told nothing, and when under the quizzing he finally lost patience, he said, “Oh, let him go! What’s the use?”

But they were so far from any such thing that they condemned him to be shot.

Then a voice was heard at the door. The sentinel there stumbled back, and Don Tiburcio brushed by him into the room.

“Old man,” he called, “come with me! Your daughter—”

Murguía started up, weakly swaying. The senile eyeballs, so lately parched by fear, swam in a moisture not of avarice. Someone was speaking to him of his daughter. He had not seen her yet. They would not let him. And now he must think of her in this new connection, which was his death. And her misery to learn it, and her misery, afterward! On the morrow they would be taking him to the capital, his sentence would be

confirmed, he would be shot. Nothing of this he doubted. And he would never see her again.

Murguía stretched out his arms toward the president of the court, “You will let me go to her, señor? Your Mercy will let me go to her?” He murmured her name over and over, “María de la Luz! María–Luzitania!” until the words became a kind of crooning. Then he would break forth again, entreating, commanding, “Your Mercy will let me see her? Señor, you *will* let me see her!”

At the first note of intrusion Lopez had brought the pommel of his sword down upon the box in front of him. But the syllables of the girl’s name seemed to get into his memory, and he began to stare with a puzzled frown at the half-crazed old man. Lifting his eyes, he met Tiburcio’s, and Tiburcio himself nodded in some deep hidden significance. Lopez straightened abruptly, as at an astounding revelation.

“Tell me, Señor Murguía,” he said, “your daughter—Yes, yes, man, you shall see her!—But listen, what is she like? Has she large black eyes? Does she wear red sometimes? Come, señor, answer!”

The father gazed, wonderingly, jealously. How should an elegant officer from the City and the Court know aught of María de la Luz?

Tiburcio crept behind the sofa, and bending to Lopez’s ear, he whispered, “Si, si, mi coronel, she is the one you have in mind, and she is his daughter.”

Lopez swung round and searched the blackmailer’s face. “And now—”

“You will let him come,” said Tiburcio. “But bring two guards. And have four others with—well, with a stretcher.”

Again Lopez searched the dark crescent that was Tiburcio’s eye, and again Tiburcio nodded with deep significance. “Bring him,” he repeated, “but tell him nothing. Seeing will be enough.”

Murguía went, unknowing. He would see her, thanks to some freakish kindness in Don Tiburcio. He was torn between the joy of the meeting and the sharp grief of the parting that must follow. At the time he never noticed that they led him up the chapel walk instead of toward the hacienda house. Tiburcio was ahead with a lantern, but when near the top of the hill he turned back to them, yet not before the expectant Lopez had seen a black something on the pavement under the swinging light.

“You first, mi coronel,” said Tiburcio.

“I, you mean!” cried Murguía, “I, señor!”

“But we wish to see first if she is here,” said Lopez. “Don Tiburcio thought she might be at vespers.”

“Vespers? There are no vespers to-night. Yet we come here! Why? Why do we come here?”

Tiburcio motioned to the guards. “Hold him until we return,” he ordered.

A Dragoon reached out a hand indifferently to Murguía’s collar, and that second the old man’s ten fingers were at his throat. They overpowered him at last, but they would have fared better with a wildcat.

Tiburcio and Lopez went alone. They stopped before the covered thing near the church door.

“So,” mused the colonel, “she ended it *this* way.”

“From the tower,” Tiburcio grimly added.

“His—”

“Well, say it. You mean His Majesty?”

“His Majesty need know nothing of the—of the finale.”

“Who is there to tell him, por Dios? I won’t. You won’t.”

“But you forget a third, Don Tiburcio. I mean the man who was with you several evenings ago, when you—”

“When I was carrying off the padre’s sweetheart?”

“When somehow you two happened in this desolate neighborhood. Since you took his name out of my mouth just now, you must have recognized that it was His Majesty whom you saw talking to her almost where she now lies. I was near by, guarding his privacy, but you both escaped before I could stop you. Now then, who was that other intruder?”

The other was Rodrigo Galán, but Tiburcio replied, “The other will not have much to say. Poor Captain Maurel!”

“Bueno, bueno!”

“Not yet, mi coronel. Only we two know of Maximilian’s part in this, but we must keep it from her father above all others. I am a loyal Imperialist, Don Miguel.”

“What difference does that make?”

“The Empire faces a crisis.”

The royal favorite started guiltily. Since the news of the Confederacy’s surrender, Lopez’s ambitions were clouded by a growing fear of the fugitive Mexican republic. The Republic would have a good memory for

royal favorites, and he had been thinking on it. "Will Lee's surrender make such—such a difference?" he faltered.

"So much," retorted Tiburcio, "that to-morrow we will have more rebels yet. So much, that what with freeing peons and confiscating nationalized church lands and giving them back to the church—well, a very little more might decide between Empire and Republic."

"A little more? What do you mean?"

"I mean money for the rebels. Luz's father is rich. If he knew that Maximilian—"

"Hombre, hombre, he's a miser!"

"Just the same, I'm a loyal Imperialist, and if you are, too, you will take good care to tell nothing to Don Anastasio."

"You forget, señor, that I am the one to say that to you."

"Then don't forget, Colonel Lopez. Do not forget that she fell, that it was a simple accident."

"Yes, a simple accident. Wait here, I am going to bring her father."

On returning Lopez sent the guards away, and he and Murguía were alone together. The old man stood dazed, unresisting.

"One minute more," said Lopez. "First, I must tell you something. And afterward, you will remember. Yes, you will remember—afterward. You know who I am, that I command the Dragoons of the Empress.—Are you listening? But do you know that, in a way, I am Maximilian's confidant? Whenever he walks or rides, incognito, dressed as a ranchero, I alone go with him, as I did during the past ten days while we stopped at Las Palmas, three leagues from here. The very first evening there, we two rode out, with our cloaks about us. He likes to commune with nature, and gather curious flowers which he pastes in a book and labels with Latin names. But this time he was interested in peons, yet as he had a delicacy about prying into his host's business, we rode until we left Las Palmas behind us. His Majesty would gaze on the hills and look at the sunset, and he talked to me of a poetic calm about them which made him long for he knew not what. And Murguía—"

Here the speaker paused abruptly, and his faded eyes shifted and hardened.

"And Murguía, we came here, and—he met your child. He met her here, at this chapel, where she had been to pray for her aunt. Old man, do you hear me, the Emperor met your daughter! Then, next day, instead of

going on with his journey, he complained of a cough, and stayed at Las Palmas. But every evening he rode here, he and I. Once I found a chance to ask her her name, but she would only tell her given name.—There, you will remember? Yes, you will—after you have seen her. Come, she is not far away.”

CHAPTER XXII

“EQUIDAD EN LA JUSTICIA”

“... and I think I shall begin to take pleasure in being at home and minding my business. I pray God I may, for I finde a great need thereof.”

—

Pepys's Diary.

An hour later the candles were still guttering in the court room, and here Colonel Lopez assembled his minions of justice a second time. In his manner now there was nothing of the uncertainty, nor the feigning of penetration, which had before marked his handling of the trials. He pounded the box with his sword.

“In the light of new evidence,” he announced shortly, “the two cases of a while ago are reopened.”

Din Driscoll strolled in. “I’ve come for my belt and pistols. Dupin took them,” he said.

Lopez signed to the Dragoons to close round him. Then he gave vent. Did the Señor Gringo laugh so much at Mexican justice, since instead of escaping while he had the chance, he came back, coolly demanding his property? It was insolence!

“*Gra*-cious,” exclaimed Driscoll in his counterfeit of a startled old lady, “what’s the matter?”

But Lopez put on a mien of dark cunning, and replied that he would find out later.

Murguía’s case came first. The stricken father was there, dragged from his dead by the petty concerns of this world which cannot bide for grief. He was as a sleep-walker. He had come into another universe. The hacienda sala, where his child lay mid tapers, where mumbled prayers arose, or this adobe, where uniformed men fouled the air with cigarettes and looked after the Empire’s business—the one or the other, both places were of that other universe, dark and silent, in which his dazed being groped alone.

The new element in the court martial was Tiburcio, and Tiburcio had in mind one golden goose to save and one meddling Gringo to lose. He riddled the foregoing evidence with refreshing originality. He testified to the brigand attack for possession of the marquise. Had he not found Don Anastasio stretched upon the ground? Had not the dauntless anciano, the self-same Don Anastasio, fallen in defence of the two French señoritas? And yet, did he not keep Rodrigo at bay? Si, señores, he had indeed, until Colonel Dupin and the Contras arrived. He, the witness, was with them. He had seen these things. Now, let anyone say that the loyal Señor Murguía was an accomplice of that cut-throat without shame, Rodrigo Galán; whom he, the witness, loathed from the innermost recesses of his being; whom he, the witness, should be greatly pleased to strike dead. But let anyone again besmirch the character of Don Anastasio!

“No, no,” vociferously growled the Austrian.

Lopez opposed nothing. He had a clear notion this time as to what he wanted. Driscoll marveled, and enjoyed it. Pigheadedness had made Don Anastasio guilty, why shouldn't perjury make him innocent? And it did. The mountain of suspicion and some few pebbles of evidence melted away as lard in a skillet. The verdict was acquittal.

Driscoll knew well enough that the presence of the loyal Imperialist with the baleful eye meant a reversal in his own case too. But the recent and very definite animus of Lopez against him he could in no way fathom. The blackmailer testified again. The prisoner, this Americano, had waylaid him in the wood two days before, and had robbed him of his last cent.

“Which you stole from Murgie,” suggested the prisoner.

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“I? I steal from Murguía?” cried Tiburcio indignantly. “Ask him! Ask him!”

Murguía was asked. Had the witness ever, on any occasion, robbed him? They repeated the question several times, and at last the rusty black wig, which was bowed over a chair, slowly shook in the negative. Perhaps he had settled a debt with the witness? The wig changed to an affirmative.

Tiburcio gleamed triumphantly. “An audacious defence!” he exclaimed. “But luckily for me, Don Anastasio is here.”

“Oh, hurry up!” protested Driscoll.

Asked if he knew anything more of the prisoner, witness could not swear for certain, except that he recognized in the American one of the guerrillas who had ambushed and slain Captain Maurel near Tampico. Yes, witness was scouting for the murdered captain at the time. Naturally, witness was present.

“You wanted proof, Señor Americano, that you crossed the river?” said Lopez. “Well, are you content now?”

“Go on,” Driscoll returned. He was bored. “Some people on earth are alive yet, but while Tibby is on the stand maybe I killed them too. I wouldn’t swear I didn’t.”

Murguía was called next, but he did not seem to hear. His body was bent over his knees, silently trembling. A Dragoon pressed a hand on his shoulder, but a sobbing groan racked his frame, as of a very sick man who will not be awakened to his pain. The pause that followed was uncanny—a syncope in the affairs of men like a gaping grave under midnight clouds. Lopez spoke again. He regretted that they must intrude on a fresh and poignant sorrow, but the case in hand was a matter of state, before which the individual had to give way. It was very logical and convincing. But the feeble old shoulders made no sign.

Tiburcio leaned over and shook him gently, and whispered in his ear.⁴⁸⁵ Still Murguía did not move. Tiburcio gripped his arm. “You and Rodrigo,” he said, so low that none could hear, “there was something arranged between you. What was it? Tell me! Tell me, I say, if you want the Gringo shot!”

He bent nearer, and against his ear came a muffled sound of lips. When he straightened, it was to address the court.

If he might ask a question, had they searched the prisoner? They had. But thoroughly? Thoroughly. But not enough to find anything? No. Then he would suggest that they had not searched thoroughly. The court seemed impressed, and Driscoll was fumbled over again. Still they found nothing.

“Whose flask is that?” Tiburcio demanded, pointing to where it had been tossed and forgotten. The prisoner’s. “Look that over again,” Tiburcio insisted. A guard handed it to Lopez, who squinted inside. “There is nothing,” he said. It was only an old canteen whose leather covering was dropping apart from rot.

Murguía's head raised, and his eyes fixed themselves on the judge, and in their intense fixity glittered a quick, keen lust. It was hideous, loathsome, fascinating. The eyes were swimming in tears, but their hungered, metal-like sheen made the sorrow monstrous, and was the more foul and ghastly because it distorted so pure a thing as sorrow. Driscoll felt queerly that he must, must remove from the world this decrepit old man who bemoaned a dead child. The itch for murder terrified him, and he turned away angrily from the horrid face that aroused it. But Murguía's stare never relaxed while Lopez toyed with the canteen. And when Lopez, as though accidentally, thrust a finger under the torn leather and brought out a folded paper, the bright points of Murguía's eyes leaped to flame. But the head went down again, as once more his grief swept over him, and another sob caught at the heartstrings of every man there.

Lopez spread out the paper, and as he read, he started violently. He passed it on to the Austrian and the color sergeant, and they also started. But the most amazed was Driscoll, when he too had a chance to read.

"Ha, you recognize it?" exclaimed the president.

"Sure I do. It's an order from Colonel Dupin to Captain Maurel. Rodrigo had it in Tampico, making people think that *he* was Captain Maurel."

But the court was not so simple. "How came you by it?" demanded Lopez. "Have occasion to be Maurel yourself sometime, eh?"

With wrath, with admiration, Driscoll faced round on Don Anastasio. "Oh you pesky, shriveled-up gorilla!" he breathed. He was no longer amazed. This accounted for Murguía's borrowing his flask the night they were in the forest. It accounted for Murguía and Rodrigo plotting together in Tampico. But why tell such things to the court? The Missourian was not a fool like King Canute, who ordered back the waves. "Hurry up," he said wearily to the waves instead. Since he could not hold the tide, anticipation chilled more than the drowning bath itself.

The tide assuredly did not wait. It rolled right on, nearer and nearer. Murguía was lifted to his feet. He was remembering already what Lopez had told him, about his daughter and Maximilian, as Lopez had said he would. The American's easy, stalwart form in gray filled his blurred eyes. Here was a Confederate emissary come with an offer of aid for that same Maximilian. Such had been Murguía's suspicion from the first, and now it

moved him with venomous hate. Yes, he would testify. Yes, yes, the prisoner had ridden out alone at Tampico. Yes, yes, yes, the prisoner was with Rodrigo there.

“But why, Don Anastasio,” asked Tiburcio purely in fantastic mischief, “did you bring such a disturbing man to our happy country?”

“That will do,” Lopez interposed. “The Señor Murguía could not know¹⁸⁷ at the time that this fellow was Rodrigo’s agent.”

“And,” Murguía added eagerly, “I was helpless, there at Mobile. The Confederates could have sunk my boat, and he held an order from Jefferson Davis.”

“What’s that?” cried Tiburcio, his humor suddenly vanished. “What’s that, an order from Jefferson Davis?”

Tiburcio’s was a new interest, now. He possessed a mind as crooked as his vision, and being crooked, it followed unerringly the devious paths of other minds. So, they had made a tool of him! Rodrigo and Murguía wanted the Gringo shot to help the rebel cause. And he, Tiburcio of the cunning wits, had just sworn away, not only the Gringo’s life, but the possible salvation of the Empire. Coming from Jefferson Davis, the Gringo with his mission could mean nothing else. Then there was Lopez. Tiburcio did not love this changeling Mexican who had red hair. But what could be the mongrel’s game? Why had he freed Murguía, if not to unleash a small terrier at Maximilian’s heel? Why was he trying the American over again, if not to poison a friendly mastiff? And why either, if Don Miguel Lopez were not seeking to make friends with the Republic? Or perhaps he was at heart a Republican. Thus Don Tiburcio, a loyal Imperialist, read the finger posts as he ambled down the crooked path.

Yes, and here was Lopez putting on the final touch. Here he was, the traitor, pronouncing the death sentence, and poor impotent Don Tiburcio gnawing his baffled rage, as one would say of a villain. The execution was to take place the very next morning. His Majesty the Emperor would be asked to approve, afterward.

CHAPTER XXIII

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A CURIOUS PAGAN RITE

“È un peccato che se ne va con l’acqua benedetta.”

—Machiavelli.

The Storm Centre looked round, about and above. He was as a fly in a bottle. A massive rough-hewn door, jammed tight, sealed him within adobe walls two feet thick. There was one window, cross-barred, as high as his chin, and only large enough to frame his head. They had brought him to the carcel, or dungeon, of the hacienda, where peons were constrained to docility. A wide masonry bench against the wall approximated a couch, but it was as blocked ice. By the flickering of a lone tallow dip, Din Driscoll noted these things with every sense delicately attuned to strategy. But his verdict was unpromising.

“Tough luck!” he observed.

The adobe was built among the stables that bordered on the pasture, and when not needed as a calabozo, it served snugly for the administrador’s best horse. From the one stall came a tentative whinny. Driscoll jumped with delight. “Demijohn! W’y, you good old scoundrel, you!” The night before, he remembered, he had seen the horse bedded here. “Say howdy as loud as you want,” he cried, slapping him fondly on the flank, “you’ll not betray us. *That’s* been done already.”

Driscoll was cavalryman to the bone, and it heartened him unaccountably to find his horse. If, only, he could have his pistols too! Ever since the Federals had cut him off from his furloughs home, those black ugly navies were next to the nearest in his affections. The nearest was the buckskin charger. And now, only the buckskin was left, which simply made the dilemma more poignant. The condemned man gazed critically at the walls, the rafters, the ground, and shook his head. Supposing a chance for escape, could he bring himself to leave Demijohn behind? He got his pipe to going, sat down, and frowned ruefully at the candle.

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“I don’t want to be shot!” he burst out suddenly, with a plaintive twang. Then he grinned. The boy still in him had prompted the absurdity. And the rough warrior had laughed at it. Boy and warrior faced each other, either surprised that the other existed. The boy flushed resentfully at the veteran’s contemptuous grunt. His eyes still had the boy’s naïvely inquisitive greeting to the world before him. Next, quite abruptly, the warrior knew a bitterness against himself. If he could, but once, whimper as the lad about to be soundly strapped! He took no pride in his irony, nor in his hardened indifference to the visage of death. How far, how very far, had the few past years of strife carried him from the youngster who used to gaze so eagerly, so expectantly, out on life!

First, he was home from the University, from the pretty, shady little Missouri town of Columbia. But the vacation following he spent in bloodily helping to drive the Jayhawkers back across the Kansas line. And soon after, when the fighting opened up officially, and his State, at the start, had more of it than any other battle ground, how many hundreds of times did his life bide by the next throw of Fate? During one cruel winter month he had lain with other wounded in a hospital dug-out in the river’s cliff, and there, wanting both quinine and food, he would peep through the reeds, only to see the merciless Red Legs prying about in search of his hiding place.

And then there was the wild, busily dangerous life with Old Joe’s Brigade, with that brigade of Missouri’s young firebrands. Once, ¹⁹⁰ stretched on the prairie, where he had dropped from exhaustion and hunger and loss of blood, the Storm Centre awoke to find a Pin Indian stooping over him for his scalp. On that occasion, the deft turning of the wrist from the waist outward, with the stripping of the pistol’s hammer simultaneously, had enabled him later to restore to relatives certain other scalps already dangling from the savage’s girdle.

And now here he was in an adobe with walls two feet thick, and numerous saddle-colored Greasers proposing to shoot him first thing in the morning!

“I’ll be blessedly damned,” he drawled querulously, “I object!”

It was the warrior who spoke now, and with him the boy joined hands. They became as one and the same person. The common foe was without. They would see this through together, with grim stoicism, with young-blooded daredeviltry.

The door opened, and one of the common foe, bearing a tray, came within.

“Well, Don Erastus, how goes it?” With a pang of homesickness the Missourian thought of darkies who carried trays.

“Juan Bautista, at Y’r Mercy’s orders,” the Dragoon corrected him.

“Don John the Baptist then, como le whack?”

“Bien, señor, bien.”

“Any theory as to what you’ve got there?”

“Y’r Mercy’s supper. The Señor Coronel Lopez does not desire that Y’r Mercy should have any complaint.”

“Oh, none whatever, Johnny, except what I’m to die of. Set it down, here on the feather bed.”

There were a few native dishes, with a botellon of water and a jar of wine. Driscoll tipped the botellon to his lips. His whiskey flask had contained poison, though the poison of ink, and as he drank, he pondered on why water should not be an antidote for the poisons that lurk in whiskey flasks. Then he wondered why such foolish conceits at such times persist in shouldering death itself out of a man’s thoughts. And meanwhile, there stood the precursor of his end, in the emblematic person of a very brown John the Baptist. The fellow’s gorgeous red jacket was unbuttoned, revealing a sordid dirty shirt. He was officer of the guard, and had a curiosity as to how a Gringo about to be shot would act. He waited clumsily, lantern in hand. But he was disappointed. There seemed to be nothing out of the commonplace. Some condemned Mexican, though a monotonously familiar spectacle, would yet have been more entertaining.

Driscoll looked at him over the botellon. That earthen bottle had not left the prisoner’s lips. It had stopped there, poised aloft by an idea.

“See here,” Driscoll complained, “where’s the rest of the water I’m to have?”

“Of what water, señor?”

“For my bath, of course. Don’t I die to-morrow?”

“Yes, but—”

“Here, this wine is too new for me. Drink it yourself, if you want.”

“Many thanks, señor, with pleasure. But a bath? I don’t understand.”

“No? Don’t you Mexicans ever bathe before you die?”

“We send for the padre.”

“Oh, that’s it! And he spiritually washes your sins away? But suppose you couldn’t get your padre?”

The Indian shuddered. “Ai, María purísima, one’s soul would go to everlasting torment!”

“There! Now you can understand why I count so much on ablution. It’s absolution.”

The native readily believed. Like others of his class, he thought all Protestants pagans, and none Catholic but a Mexican. “Must be something like John the Baptist’s day, verdad, señor?” he said. “On that holy day, once a year, we must all take a bath.”

“Quite right too,” Driscoll returned soberly. “A man should go through most anything for his religion.—Haven’t noticed my horse there, have you, Johnny?” The guard pricked up his ears. “Of course not,” Driscoll went on, “you’re worrying about my soul instead. Well, so am I. We Americans, you know, save our yearly baths for one big solemn final one, just before we die. And if I don’t get mine to-night, I’ll be associating with you unshrived Mexicans hereafter, and that would be pretty bad, wouldn’t it? It’s what made me think of my horse there. That horse, Johnny, is heavy on my soul. He’s most too heavy to wash away. Now, I’m not going to tell you that I actually stole him; but just the same, if a good man like you would take him, after I’m gone—why, I’d feel that he was washed off pretty well.”

The Mexican’s sympathy grew more keen.

“But the other sins,” Driscoll added, “they’ll need water, and a great plenty, too.”

Juan Bautista was feeling the buckskin’s knees. Driscoll longed to choke him, but instead, he drove again at the wedge. “Another thing, I’ll have to leave my money behind.” He mentioned it casually, but his breath stopped while he waited for the effect. The guard straightened. Demijohn’s knees seemed to be all right. He took up the tray, and opened the door, yet without a word. Driscoll’s fist doubled, to strike and run for it. Then the fellow spoke.

“Does Y’r Mercy want soap too?”

The fist unclenched. “No,” came the reply, almost in a joyful gasp, “this is for, for godliness only.”

“One jar, señor?”

“Bless me, no! Two big ones, bigger’n a barrel.”

With a parting glance at Demijohn, the guard stole forth to gratify the heathen's whim.

"I'll give him enough to *buy* a horse," Driscoll resolved.

CHAPTER XXIV

THE MAN WHO DID NOT WANT TO BE SHOT

“A horse and a man
Is more than one,
And yet not many.”
—*Taming of the Shrew.*

“Now Berthe—why, what in the world—” Jacqueline began.

It was her second morning to awake in the hacienda house, and the little Bretonne tripped into her room under a starched mountain heaped high. “Clothes, madame,” she replied.

“Hé mais—”

“They were made yesterday by some of the ranchero women. Madame will look?”

“Calico! Grands dieux!”

There were two dresses, one for each girl. The native seamstresses had slyly taken stock of mademoiselle the day before, only to discover that a “simple” frock from Paris was a formidable thing to duplicate. The marchioness smiled, and the maid also.

“But, for example, Berthe, who inspired this?”

“He did.”

“He?”

“The American monsieur, of course.”

“Oh, the American monsieur, of course! So, monsieur permits himself to observe that I need a wardrobe? But you, Berthe, you surely did not—”

“Oh, no, madame! I knew nothing, till just now, when the woman brought them. The monsieur ordered them yesterday, she said. And naturally, madame, if he could have found better material, I do not doubt—”

“There, child, I’ll not be reproached by you even thinking it necessary to defend—”

“And madame will see, too, that they will do nicely.” She spread the frocks on the bed, and began snipping here and there with the scissors

and taking stitches everywhere. “By letting it out this way—voilà, if madame will kindly slip it on?”

“Berthe, you can’t mean—Oh nonsense!”

None the less the skirt passed over her head, and the maid’s deft fingers kept on busily. “And why not?” she talked as she worked, “unless one likes rags better. And who will see? Only men. Poof, those citizens do not know percale from a Parisian toilette.”

Jacqueline began to wax angry with the quiet tyranny of it. She looked at the horror and shuddered, then with both hands pushed the calico to the floor, gathering up her own lawn skirt instead. It was rather a woebegone lawn skirt. She gazed ruefully at the garment, then down at the blue flowering heaped about her ankles. Berthe, kneeling over the dress, raised her eyes. The puckered brow of her mistress spelled fury, and the maid tried not to laugh, at which Jacqueline stamped her foot. “Berthe,” she cried, “shall I slap you?”

“Mais oui, madame. And madame, I was thinking, what will he say if you do not wear it?”

Jacqueline gave her a keen look. “Child, child,” she exclaimed, “you seem to imagine that whatever *he* wants—”

“Oui, madame.—I think you can try it on again now.”

And madame submitted petulantly. But to herself she had to confess the magic in Berthe’s fingers. Though she pouted over the fresh, rustic effect, yet on her slender figure there was witchery in it.

An orderly knocked. He was one of her Austrian escorts come to say that everything was ready for departure. She gladly hailed the chance to escape this house of mourning. All night long old women in the death chamber had mumbled incantations, and the droning was in her ears as she slept. It was not nice. Because she could not blot out the inartistic shock of ugly mortality, in very self-hate she yearned to get away. The evening before, even while she loaned common sense to the crazed household, even while she pressed down the icy eyelids, she wondered—obstinately wondered, despite herself, what the dead girl could have thought, what she could have felt, during that one horrid, thrilling second of flight downward, and what, in anticipation of the second after. It was gruesome, this being always and always the spectator. Yet Jacqueline knew that, had it been she herself plunging from the tower, she still would have been that spectator. Too well she knew that she would have

analyzed what she thought and felt. She would have rated even the second before eternity in its degree as a frisson; and, no doubt, would have been aware of a voluptuous satiety, while anticipating the second after. She hated herself, and she hated too the smart, ultra-refined life that had brought her to it. How many of those past years, or of the years to come would she not give to shed a few tears without interrogating them!

Ney met the two girls under the colonnade. At the steps was the coach and eight mules left by Maximilian for their use, and drawn up in stately line were Messieurs the Feathers and Furs, as Jacqueline called His Majesty's Austrian Imperial Guards. When she appeared, out flashed their curved blades. The queenly little lady in blue-flowered calico and a rakish Leghorn hat returned the salute with a smile.

"Where are the Dragoons, Michel?" she asked.

Ney did not know. But a Mexican with a crossed eye approached, doffing a silver-lettered sombrero. He had been waiting for her, he said. There was time. Otherwise he would have forced his way to wherever she was.

"Indeed, Seigneur Farceur?" said Jacqueline.

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She recognized that most sinister of jokers, Don Tiburcio. He was eyeing her narrowly, and there was a vigilance in the baleful gleam, as though of late he might have been deceived by his fellowmen.

"But," he coolly proceeded, "only a few minutes are left now."

"My good man, whatever are you talking about?"

"And after the few minutes, we'll have the shooting. I came to invite Your Mercy."

"Shoot whom?"

"There is but one prisoner."

"You mean Señor Murguía? The American was acquitted, I believe."

"It's the other way, señorita. They were both tried over again, and then, the American was condemned."

"Mademoiselle," ejaculated Ney, "you are deathly—"

"I am not!" Jacqueline protested furiously. "It's the powder."

But Berthe knew better. Her mistress used it not, for all the roguish freckle on her nose-tip. Tiburcio, too, was satisfied as to her sudden pallor. She would save him the American, he decided. "Your Mercy had best hasten," he urged her frankly.

Jacqueline ran to the end of the portico, from where she could see the pasture. Within, a platoon of red jackets were filing toward the carcel.

“That scoundrel Lopez!” exclaimed Tiburcio, “he has advanced the time on us!”

Only for an instant did Jacqueline wring her hands.

“Michel, your horse!” she cried. “Quick, quick! Now hold the stirrup!”

But Tiburcio was the quicker. He bent his knee, on it she stepped, and up she jumped, and kicked her heel as a spur. The charger leaped, and down the road clattered girl and horse, she swaying perilously.

It was a hundred yards to the pasture gate, and as much again to the adobe inside. When her horse rose in his gallop, she caught glimpses over the wall. The Dragoons were drawing up before the carcel. Sentinels tugged at the huge wooden door, and Lopez goaded them on. He saw her coming, and would have it over with before she could interfere. He bellowed an order, and the shooting squad threw up their guns at aim. They would not wait. They would fire on their victim the second the door opened. The heavy oak began to give. But that moment swinging in through the gate, Jacqueline could see only the carcel’s blank adobe wall. Yet she pictured the man just behind. She pictured the door opening. And—too late! Dieu, the muskets had volleyed already!

But—what made the shots scatter so? Scattered and flurried, they sounded. And no wonder! She saw a miracle in the doing. It was the most astounding sight of all her life long. Straight through the blank adobe wall, for all its two feet of thickness, she beheld a man on a great-boned yellow horse, both man and horse plunge mid a sudden cloud of dust, plunge squarely into the light of day.

The dumfounded shooting squad had blazed crazily against the half-open door; and for the critical quarter minute following, their weapons were harmless. Other Dragoons ran wildly out into the pasture, and as wildly fired at the horseman. Only one of the sentinels had happened to be on the side of the magic exit, but as the solid wall dissolved into a powdered cloud and the apparition hurtled past him, down upon his head crashed a gigantic water jar filled with earth. He who had sympathized with pagan ablutions the night before stood now with mouth agape. Some heathen god was having a hand in this, he knew.

Jacqueline wheeled to Driscoll’s side as he dashed toward her. He was coatless. His woolen shirt was open at the neck, the sleeves were rolled to

the elbows. His slouch hat sat upon the back of his head. The short cropped curls, gray with dust, fluttered against the brim. She had never seen a face so buoyantly happy.

“Morning, Miss Jack-leen! Race you to the river?”

They galloped through the gate together. He was for turning down the road, but she blocked his horse with her own. During a second the flight was stopped.

“I’m in a hurry just now,” he panted, but made no effort to get by her.

“Up that way!” she cried. “Up that way, past the House!”

“But those pretty boys—”

“The Austrians? They’ll not stop you, I promise.”

“Then it’s our move. Careful, little girl, don’t fall!”

Jacqueline, waving her arm, signaled the Feathers and Furs to make room, and Tiburcio and Ney saw to it that they did. Man and girl raced through them.

“Wait here, Michel!” called Jacqueline, leaving Ney still with thumb to cap at salute. Tiburcio gazed after them.

Lopez ran across the pasture to the colonnade. His red face was redder than ever before. Tiburcio sardonically regarded him. Lopez glared at Ney.

“Why aren’t you in pursuit?” he demanded hotly.

“And you, monsieur?”

“And I, and I! Who are you to question me, señor? Every girth has been cut!”

“Caramba, mi coronel,” cried Tiburcio in dismay, “you don’t say so!”

“And it will take ten minutes to tie up the cords, while you, you, Señor Frenchman, you stand there, your men mounted and ready! Obey me, I tell you!”

“Can’t,” said Ney doggedly. “Against orders.”

“Orders? Whose orders?”

“Of Mademoiselle la Marquise, monsieur.”

“Who runs away with a convict. A fit commander, por Dios!”

Off came the Frenchman’s gauntlet, but he paused in the gesture of striking. Too quick at this, and not enough at wits, he might ruin her plans.

“As fit,” he retorted instead, “as another who lets prisoners escape. I advise Monsieur the Colonel to look to his girths.”

CHAPTER XXV

THE PERSON ON THE OTHER HORSE

“Yet am I sure of one pleasure,
And shortly, it is this:
That, where ye be, me seemeth,
pardè,
I could not fare amiss.”

—*Ballad of the Nut Brown Maid.*

Din Driscoll had never remotely imagined that there could be such intoxication in a horseback ride. The person on the other horse made for the difference. How the joy of her filled him that instant of his bursting through the black prison wall into the bright morning of the world! She, the splendid first thing to gladden his eyes! Could liberty be really so glorious? Ravishing horsewoman, she was coming to save him. He had supposed her on her way to Mexico, and 'twas she whom he saw first of all.

And now, she rode beside him. They two, they were riding together, alone. The smell of the wild free air of the universe thrilled them both with an exquisite recklessness. Vague, limitless, subtle in mystery, the seduction of it was ineffable. Out of the corner of his eye he peeped at her. But wasn't she perched entrancingly on that dragoon saddle, wasn't she, though? The richly heavy coils of burnished copper had loosened, and they were very disconcerting in their suggestion of flowing wealth. If they *would* but fall about her shoulders! And the lace from the slanting hat brim, and the velvet patch near the dimple—the velvet patch called an assassin. And—what dress was that? Flowered calico? Yes, and light blue. His cheeks burned as of one surprised in crime, but the self-possessed young woman herself was oblivious. So was it this, a blue flowered gown, that made her so suddenly tangible, so tangible and maddening? The haughty Parisienne of imperial courts was gone. In fact, she had become so distractingly tangible that—well, he didn't know. But a lump got into his throat. She might be a Missouri girl, this moment. And there came to him the vision of one, of a Missouri girl molding biscuits, patting

them, and her arms were bared, in a simple piquancy just like Jacqueline's now. He even saw the pickaninnies in the shade of the porch outside, worshiping the real Missouri girl from the very whites of their eyes. How he had loved to tease her! He could not help it; she was so daintily prim. That he should thus think of his sister, the while gazing on the one-time gilded butterfly—to say the least, it was a pertinent comment on the transmuting magic that lurks in blue flowered percale.

They slowed to a trot.

"Monsieur is my prisoner, yes," said she in her wonderful English.

He took the other meaning. "I don't know—yet," he returned soberly.

She laughed, and he realized that he had spoken aloud.

He turned on himself in dismay. "What's the matter with me?" he muttered.

"I think, monsieur," said Jacqueline demurely, "that I have the guess."

"You haven't—you can't guess either! I don't know myself."

"Just the same, I wish I knew so well my chances for heaven."

"But you're mistaken, I tell you. I'm not!"

"Not what, monsieur?"

"In, in—w'y, in love."

Jacqueline's laughter was the merriest peal. In the end he half grinned.¹⁰² Little use trying to convince the little witch! He had much to do convincing himself.

On the farther slope of a hill where coffee grew and the giant sheltering banana hid the road, they paused at a trail that crossed the highway and wound on down toward the Pánuco river, where tropical stuff for Tampico was transferred from burros to dugout barges. Jacqueline listened. There were no sounds of pursuit as yet, nor was there any one in sight. Making up her mind, she changed to the path. Driscoll followed, with a delight in this new leadership over him.

When they gained the river, she stopped again, and he did too.

"But you must go, on, on!" she protested. "They may not be deceived, no. They may have you to overtake here." She held out her hand. "There, this path, you follow it to Tampico. Good bye. Yes, yes, you have not one minute!"

Driscoll took the little gauntleted hand readily enough. He saw that the lines of her face were drawn, but her manner was inexorable.

"How do you like your dress?" he inquired.

Had she been on her feet, she would have stamped one of them. “Monsieur,” she cried, “here is no time to observe the replenishment of a lady’s wardrobe. Do you go? I insist. I wish you bon voyage to your own country, monsieur.”

“But it’s so far away. I reckon I’d better rest a spell first. A month or so, prob’bly.”

She watched him clamber down and tie Demijohn to the low branch of a live oak on the river’s bank.

“There you are, getting stubborn again,” she said. But the lines in her face had vanished.

“Of course I mean to see you back to your friends,” he explained.

“Merci bien. But you will not. You will have this river straight to Tampico. I say yes!”

She turned her horse as she spoke, whereat he started to remount his own.

“I think, sir—” she began haughtily.

“The road is free.”

“Oh, why have you to be so, so quarrelsome?”

“The temptation, I reckon.”

“You really will go back with me?”

“I might be going back along about the same time. It’s a public trail.”

“Then *I* will stay, and you *must*! I will not permit you to go back there now. I will see that you do wait here so long until Lopez has the time to start to Mexico after you. Then you will be behind him. Have the goodness to hold my bridle. I think I shall take me a rest a little also.”

Together they sat on a huge live-oak root and watched the sluggish Pánuco flow by.

“No hurry now,” Driscoll observed comfortably. “Our scarlet upholstered colonel won’t get away for years yet.”

Years, at least, were in his wishes, years in which to provoke her quaintly inflected English, and its quaint little slips. She had learned it in London long before, playing with wee Honorable toddlers while her father played France’s diplomacy with grown-ups. That accent of hers, then, was as broad as Mayfair, and to the Missourian doubly foreign, and doubly alluring.

“I cannot understand,” she said, “why it is the Dragoons have not followed you immediately?”

“Tibby’s the reason, I reckon. That Tibby is a deep one.”

She made him explain, and he told her. The blackmailing humorist, Tiburcio, had paid him a visit at his dungeon window during the night. Being chief witness for the prosecution, Tiburcio could pass the sentry unchallenged.

“Come for your money?” Driscoll had inquired, and Tiburcio seemed hurt. T04

“What is the matter,” Tiburcio demanded, “with pointing a revolver at the Señor Americano right now, and making him deliver?”

Driscoll had not figured out what the objections might be, but he reckoned some would materialize.

“But,” said Tiburcio, “I’m not doing it, and why? Simply because I want to know if you care to escape?”

“W’y,” returned Driscoll, “I’ll think it over, and let you know in the morning,” at which lack of confidence Tiburcio was more hurt than ever.

“What’s the use,” Driscoll objected, “they’d catch me again?”

“Not if I fixed their horses, and if I do, will you promise to get out?”

And thus the bargain had stood, and thus it was fulfilled, though at the last the anxious Tiburcio had called in Jacqueline to help.

“Now,” said the marchioness, settling herself for a treat, “I *must* know. Tame for me the miracle, explain it. I cannot longer hold my curiosity. But it was fine—exquis—however you have done it!”

“Weren’t they a surprised lot, though?”

“But the miracle, monsieur! The miracle!”

“Well, it was this way. Being on the yawning brink—as old Meagre Shanks, friend of mine, would say—I figured it out that lacking in godliness, I’d try to get the next best thing.”

“Please, monsieur!”

“That I’d try to get a bath.”

“Of dust and mud, for example?”

At that Driscoll ceased all miracle taming and brushed himself off. But, putting him back into his dungeon, one will recall how he plotted to obtain two jars of water. This water he used simply to soften the hard, sun-baked adobes. First he hung his coat over the window. A suspicious guard naturally wanted to know why, and Driscoll appeared at the bars stripped to the waist. To keep out the cold air while he bathed, he said, and his teeth chattered. Then he went back to work. He handled his T05

precious water with desperate economy. He began at the exposed end of one adobe brick, soaking it as needed and digging it out with a chip of earthenware knocked off one of the jars. The wall was two adobe lengths in thickness, but after he had gotten out his first brick, it was easy, by tugging and kicking, to tear out the others of the inside tier, since luckily they did not dovetail in with the outer ones. Soon he had an arch-shaped niche in the wall almost as high as his head when mounted on Demijohn. The really tedious part remained, and it was an all night job.

To deepen the niche without breaking through, he had to scrape it out piecemeal, wetting the dried mud as he toiled. He measured carefully just how much of the thickness to leave, because the weed stalks in the adobe could not be trusted to hold too thin a crust, and also he had to take care that the water did not soak entirely through and make a tell-tale blot on the outside when daylight should come. It was an infinitely laborious task, and even with completion at last, there was yet the question—which would break first, bone or masonry?

But he would learn when he should dash his horse's skull and his own against the shell that remained. He saddled Demijohn, filled an empty jar with the soft earth of his excavations, and waited. His dramatic appearance at the instant of the door's opening was not a coincidence. It was minute calculation. Already mounted, he faced the wall, with the heavy jar poised over his head in both hands, his spurs drawn back to strike. He waited until sentinels and shooting squad had gathered at the door. He waited to draw their fire, to empty their muskets. But he did not wait until the door should open enough to give them unimpeded aim. In the second of its opening he drove back the spurs, hurled the jar against the wall, and—crashed through his dungeon as easily as breaking a sucked egg.

"But," demanded Jacqueline eagerly, "how is it you did feel?" She was disappointed that the personal equation had had so little prominence.

"I don't recollect," said Driscoll, puzzled, "there was nothing hurting especially."

"No, no! Your sensations facing death, then escaping?"

He brightened. "W'y yes," he replied, happy to catch her meaning. "I felt toler'ble busy."

She sighed despairingly. Yet there was plenty left her for wonderment, and in it she revelled.

“Ingenuity!” she mused. “I declare, I believe the first human being to stand up on his hind legs must have been an American. It simply occurred to him one day that he didn’t need all fours for walking, and that he might as well use his before-feet for something else.”

“And a Frenchman, Miss Jack-leen?”

She flung up her hands.

“*He!*” she exclaimed. “If ever a compatriot of mine had gotten that idea into his—how you say?—pate, would he not carry it out to the idiotic limit, yes? He? *He* would try to walk without any feet whatever, and use *all* of them for other things. Already you have seen him doing the, the pugilat—the box—with every one of his fours. Voilà!”

But time was passing. Lopez had certainly repaired his girths by this time. Driscoll arose. “There’s a shorter way back,” he announced. “The river junction can’t be far down stream, and I’ll wait for you there, Miss Jack-leen, while you scout on ahead to the hacienda house. If all’s clear, you signal and I will advance with the heavy cavalry.”

“C’est bien, mon colonel.”

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“Whatever that means, I hope it ain’t mutiny.”

At best it was only mock compliance. Jacqueline also knew that time was passing, but she had not mentioned the fact. Now the reason transpired. She harked back on their separation, with a grave earnestness and a saddened air of finality. He was to leave her here, she said. He was to go back to his own country. How badly had his reception fared so far? Why not, then, leave Mexico to ingratitude, and have done? The romantic land of roses was notoriously a blight to hopes. Why should he seek to thrive despite the mysterious curse that seemed to hover over all things like a deadly miasma?

Driscoll shook his head. “You know I have come to see Maximilian.”

“But you are under sentence. You will lose your life.”

“Miss Jack-leen, you said a while back that I was your prisoner. You have the Austrian escort. All right. You will deliver me to the Emperor,” and he waved his hand as though the matter was arranged.

“But monsieur,” she cried, “may not others have plans as vital as yours? And, perhaps—yes, you interfere.”

He did interfere, in grimmest truth. Leaving the Sphinx of the Tuileries, she had come with her mission, and with an idea, too, of the obstacles that must be vanquished. But here, almost at landing, she

encountered a barrier left out of her calculations, and which alone, unaided, she had to surmount. It was the surrender of the Confederacy, and what this upsetting complication meant against her own errand was embodied in the man before her. For in him lay the results of the Surrender as affecting the Mexican empire. In a word, he brought aid for Maximilian at the moment when Maximilian might be discouraged enough to give way to France; when the forgetful prince might gladly leave all to the generous nation which had placed him on his throne and which by him was cheated of the reward of its costly empire building.²⁰⁸ Should the French threaten to withdraw, should they in reality withdraw, still he would not abdicate, not with Confederate veterans to replace the pantalons rouges. Like the dog of the fable, Maximilian would cling to the manger.

“Oui, oui, monsieur,” she repeated sharply, “you interfere!”

“In that case,” said Driscoll quietly, “I will leave you at the river junction. When I see that you are safely at the hacienda—”

“You will go back to America?”

“That need not worry you.”

“Then you are *not* going back, back to your own country?” He would keep on to the City alone. She would have no chance to intercept him. After all Fate had been good to her—no, cruel!—to cast him in her path. “You might find the Austrian escort safer than going alone,” she said enticingly.

He hesitated. What all this was about, he could not imagine. He knew nothing, naturally, of the dark intrigues of an enigmatical adventurer far away in the Tuileries, nor how they could affect him. And so he put away as absurd the fancy that she in her turn might interfere with him. Besides, he was tempted.

“It’s a go!” he said.

She for her part was thinking, hoping, rather, that perhaps she was mistaken. Perhaps he only bore the offer of a paltry few hundred, a handful of homeseekers from his regiment. She hoped so. She would have prayed for it, had praying occurred to her.

CHAPTER XXVI

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THE STRANGEST AVOWAL OF LOVE

“Nae living man I’ll love again,
Since that my lovely knight is slain.”
—*Lament of the Border Widow.*

Back once more at the hacienda, Driscoll recovered his coat still hanging over the dungeon window. Lopez would have called it insolence, had he been there instead of scouring the country toward Mexico. Jacqueline and Berthe settled themselves in the traveling coach left for their comfort by Maximilian. Driscoll’s effects, including his gray cape-coat and the bundle he had carried behind his saddle, were found in his room at the House. Jacqueline took them into the carriage with her, along with that absurd little valise that she had brought from the ship for an hour’s jaunt on shore. Driscoll rode with Ney and the Austrians, and was once again headed toward the capital, still sixty fair Mexican leagues southward.

For six days it was an uneventful journey, seemingly. By day there were sierras, and valleys, and wayside crosses marking violent deaths. By night they accepted either ranchero hospitality or put up at some village mesón. But within himself, adventures were continuous and varying for the Storm Centre. He could not account for the strange, curious elation that possessed him, especially when Jacqueline would take Ney’s horse and ride at his side, perhaps for an hour, when the sun was not too hot. Driscoll never knew how long these occasions lasted. He did not know that they were long at all. As a matter of fact, he had ceased using ordinary standards of measurement. The universe, and sordid accessories such as time, radiated entirely about one little velvet patch near a dimple satellite.

There came to be long silences between them as they rode, either boy or girl content to have it so, and neither the least bit lonesome. And they talked too, naturally, though this was not so significant. She would slyly provoke him. To her mind, there was never anyone quite so satisfying at a quarrel. She would pause in delighted expectancy to see his eyes grow

big when she thrust, and then to see his mouth twitch at the corners as he caught her blade on his own keen wit. She had forgotten that he was rustic, except for the added zest it gave. Nor was there a false note in him, so happily and totally unconscious was he of self. And as for a certain *gaucherie*, that was the spice to his whole manner.

They talked of many things; rather, she made him talk. She learned that his name was John, as hers was Jeanne, and she wanted to know why the horse was Demijohn.

"Because, Miss Jack-leen," he answered, "he's my other half, and sometimes the better one, too." He remembered that once, when he had drooped limp over the saddle, the buckskin had carried him out of the fighting to the rear. "You see," he added, "we were both colts when our little shindy up there broke loose."

"And you both went? Ah, Monsieur the Patriot, you did go, you did affront the tyrant? Yes!" She had the explorer's eagerness. Perhaps she might discover in him her own especial demon of self-introspection.

"N-o," he replied, "I reckon we went mostly for the fun of the thing."

"*Fi donc!*" she cried. "But wait till you are old. Oh yes, we have them too, those blessed, over-petted veterans of the *Grande Armée*. They are in the *Hôtel des Invalides*, with medals to diagnose their glory. Oh, là, là,²¹¹ but there's a pleasant fashion! The people, the politicians, they forget the hot blood that fought simply because there were pretty blows to strike. They see only the gray hairs. '*Honneur aux patriotes!*' You wait, monsieur. You, too, will be made into the hero, *ex post facto*, and you will believe it yourself. Yes, with the wolves, one learns to howl."

"N-o," said the young Confederate, "we—we got licked."

They talked—he rather—of Missouri. He was not reluctant to have stirred the memories of his home, not with one who could listen as she did. In his heart settled a warmth that was good, and the glow of it shone on his face. He became aware that the gray eyes were upon him, taking conscious note of his hair, his mouth, his chin, as though she were really seeing him for the first time. What made a girl do that way? He felt queerly, it being thus brought to him that he had awakened interest in a woman, but the tribute she paid him was ennobling, and a deep thankfulness, though to whom or for what he had not the least idea, made more kindly and good the cheery warmth around his heart. The gray eyes had never sparkled on him in coquetry as they sometimes did on other

men, and now they were grave and sweet. It was a phase of Jacqueline that only her maid had known.

The marquise gathered that Missouri-i, as she called it, was an exceedingly strange and fascinating region. She learned that it was a state, like a department in France, like her own Bourbonnais for instance. But there the comparison ended. The rest was all startling versatility. For the inhabitants had not only taken both sides during the Civil War, but through their governor had proclaimed themselves an independent republic into the bargain. They must be unusual citizens, those Missourians.

But they were strangest because they did not seem to be actors. They did not refine living into a cult, with every pleasure and pain classified and weighed out and valued. No, they actually lived. It was hard to realize this, but in the end she did, and with ever increasing wonder, with also a beginning of envy and hunger. But there was still another thing even more indefinable. It centered in the word "home," which she knew neither in French nor Spanish, but which she came to know now, as its meaning grew upon her. It was more than a "maison" or a "casa," or a "chez nous." It was a manner of temple. And the high priest there was a grim lord. How very grim, indeed! There was no compromise, no blinking, no midway gilded dais between the marriage altar and the basest filth. As grim, this was, as that original Puritanism which has become a synonym of American backbone. Grim, yes; but the woman there, where the high priest blinked not, was a divinity. She was a divinity in the tenderest and most devoted sense of the word. And the Puritanism was purity enshrined, as a simple matter of course. The longing, if only to know more of this odd country, rose in her mysteriously, and stronger and stronger.

When on one occasion she went back to the coach, she found that Berthe also was enjoying the change to horseback. Jacqueline was glad of it. Now she could be alone, and she believed that she wanted to think. But she could not pin down what she wanted to think about; because, no doubt, there was so very much. Instead, she looked vacantly at the Storm Centre's cartridge belt and pistols on the seat in front of her. They were grim, too, these playthings of a boy.

Dupin had left the weapons with Ney, back at the hacienda, and Ney had turned them over to Jacqueline as to the real strategic chief of the

expedition. And Jacqueline had kept them, perhaps to look at, perhaps because of a whim that a prisoner should not be armed. She liked to hear Driscoll mourn for them, not knowing where they were, and she held back the surprise as one lingers before an anticipated pleasure. She picked up the great, black revolvers with a woman's fascinated respect for the harsh, eternal male of her species, who is primeval and barbaric yet, and ever will be, to hold his mate his very own. Her touch was gingerly, but there was a caress in her fingers on the ugly things.

She lifted the belt. How heavy of metal it was! Idly, she thought she would count the leaden missiles. When finally she laid the belt aside, a bullet remained in her lap. It had fallen there out of its shell. Starting to fit the bullet in again, she suddenly dropped both bullet and cartridge. Her hands trembled. This particular shell contained no powder. But it contained a tightly rolled slip of oiled paper. The cartridge was a dummy, a wee strong box for some vital document.

It was not for scruples against looking that she paused. On the contrary, it was that she must look, absolutely, in sacred, patriotic duty bound, that finally decided—nay, compelled her to look. Still she hesitated before drawing out the paper. She dreaded what it might tell her. Concealed thus, and revealed only by a hazard, the paper held, she felt certain, the secret and the significance of the American's errand to Mexico. And she did not want to know. She reviled bitterly the cruel chance that had thrust it on her.

She read. The paper was a communication addressed to the Emperor Maximilian by the Confederate generals of the Trans-Mississippi department. Foreseeing Lee's surrender, they had gathered from Louisiana, Arkansas, and Texas, at a place in the latter state named Marshall, and there they had decided that they would not surrender. They would seek homes and a country elsewhere, swords in hand. At this meeting, which had been inspired by Gen. Joe Shelby, they had deposed the cautious general commanding, Kirby Smith, and they had put in his stead Simon Bolivar Buckner. The Trans-Mississippi department numbered fifty thousand men. There would also be fugitives from Lee's and Johnson's corps, besides Jefferson Davis in person, should he contrive to pass the Federal lines. Many thousands of veterans would shortly be marching across the Rio Grande. In Texas, at the Confederate arsenals and depositories, they would seize what they needed: guns,

ammunition, horses, provisions, money. In Mexico they would become citizens, and they would defend their new homes against outlawry, rebellion, or invasion. The signatory generals prayed the Emperor Maximilian to consider this, and “to do it quick.”

Jacqueline put the letter back in the cartridge, and everything looked as before. But no genie, once out, can ever quite be bottled up again. That stray bullet had wounded her to the heart.

“As bad as fifty thousand!” she cried half aloud. “And they will become citizens, too—Mon Dieu, *that* is a nation!”

With them Maximilian would have a people behind him, and his throne would be as a rock. He could, and most certainly would, disdain the French army of occupation with its thirty thousand bayonets. The French might go back home. He would speed them cheerfully, and henceforth be Emperor in fact.

“But our treasure and our dead,” sighed Jacqueline bitterly, “we cannot take *them* back. No, nor our hopes, though they weigh little enough now, for that matter. Oh dear, and *I* am one of those hopes!—Help me Heaven, else I shall hate my own country. Oh, I must be true!—Now, *why* couldn’t those Missourians have sent—someone else?”

That evening she held a pen, but it would not move, not while her thoughts were upon it. So, by sheer will, she nerved herself not to think, and wrote mechanically. She wrote a message to Lopez, and another to Dupin, and yet a third. The third brought the tears long before it was finished. An Austrian took the first two, and rode all that night. She kept the other one herself.

This was the fifth day of their journey since leaving Murguía’s²¹⁵ hacienda. They had taken pains to keep behind Lopez. Their pursuer, ahead of them, had not made twenty miles the first day, for he had delayed in order to search here and there. But the second day, he had evidently accepted failure, and hastened on to overtake the Emperor. The Emperor himself, after traveling constantly for a night and a day, had rested a night and half a day to reflect on his late energy, and thereafter he was proceeding as roadside ovations would permit. Accordingly on this, the fifth night, Lopez was close behind the Emperor, and both were within a day of the capital, and less than a day ahead of Driscoll, Jacqueline and Ney.

All the next day Jacqueline kept to her coach. She was cross or nervously excited or melancholy, and by erratic turns in every mood that was hopelessly downcast, until her maid became well nigh frantic. At first Ney would hover near in helpless concern, but she ordered him away angrily. However, the storm broke at last when Driscoll reined in and waited at the roadside. She could see him through the little front pane of glass as the carriage drew nearer, and she watched with a fierce hunger in her eyes. All the time she stirred in greater agitation, and her breath came more and more quickly. At the very last moment, when a second later he might have seen her, she sprang to the window, looked once again, then in a fury snatched at the shade and jerked it down. Driscoll paused uncertain, but wheeled and galloped back to the head of the column. Berthe turned to her mistress. She was lying weakly against the cushions, staring at nothing and panting for air.

Toward dusk they reached Tuxtla, a little pueblo on the highroad set mid maguey farms that made the rolling hill slopes of Anahuac look like a giant's cabbage patch. In the distance, under two snow-capped peaks beyond, the mosaic domes and sandstone towers and painted walls of the capital glittered in the setting sun like some picture of an Arabian city vaguely known to memory. The travelers were not a dozen miles from their destination, but Berthe announced that madame her mistress would rest at Tuxtla for the night.

The Austrians were quartered in the village, and Ney and Driscoll found accommodations for the two girls and themselves farther down the road, at the house of a maguey grower whom they persuaded to vacate. While it was still light Driscoll amused himself strolling alone between the rows of the great century plants. Under their leaves, curving high above his head, he watched peons with gourds suck out the honey water from the onion-like bulbs into goatskin bags. After a time he wandered through the hacendado's primitive distillery and on back to the house, with a feeling for supper.

As he entered, he heard the clanking of a sabre in the dark room. He thought nothing of it, but almost at once something cut through the air and a noose fell over him. He swung round, but the rope jerked tight about his knees, and he lurched and swayed as an oak before the axe. He struck with his fist and had a groan for reward, but a second lariat circled his shoulders and bound his arms to his body. As he went down under the

weight of men, the shutters were thrown open, and he looked up into the red-lidded eyes of Colonel Lopez. A troop of cavalry was passing on the road outside, and he caught the sound of wheels departing.

“You hear?” said Lopez. “The marquesa is going to the City, having decided not to wait for you. But she leaves a note, pour prendre congé, eh? You will perhaps have time to read it before the shooting.”

Once more Driscoll found himself in an adobe with a sputtering candle for company. But he also had her note. It was the third of the messages which she had written the night before.

“Monsieur,” it began, “I cannot let you die without telling you that it was I who betrayed—”

He jumped to his feet. “Oh—the pythoness!” he breathed fervently.

“—who betrayed you,” the letter read. “That you know this, monsieur, that your last thought shall be a curse at me, such will be my punishment. It is a self inflicted one, because you need not have known what I have done. The telling of this to you is my scourge, but it is not penitence. Worse and more unbearable is my sorrow that the penitence will never come, that I can feel no remorse, no more than if some inevitable thing, like the fever, had taken you. I would always do again what I have just done; as pitiless as I must be for you, Fate is for me. Your life, monsieur, is but added to the hundreds already snuffed out in this country for France’s sake. Those hundreds are my countrymen, and you, if you lived till to-morrow, would make *their* offering useless. I have tried to save you, monsieur, but you would not permit. You would not return to your own country, and—there was no other way. But do not think there will come emissaries in your place. Do not believe that I would so send you to death needlessly. There will be no emissaries after you. Your Confederates shall know that Maximilian’s court martial executed you, and is it that your compatriotes will then desire to help Maximilian? Believe—only believe, monsieur—that it is a cruel duty not permitting that I shall listen to my heart. If you but knew, if you but knew—and you shall know. Monsieur Driscoll—oh, mon chevalier, it is that I love you. There, know then, dear heart cheri, the enormity of my sacrifice. Know the necessity of it. Know that I envy you, for you are going, and I must stay, all alone, without you. Mon bien aimé, *without you*, through all my long life!”

She had signed it simply, “Jacqueline.”

Again Driscoll was on his feet. He paced up and down the room.²¹⁸
“There’s one thing,” he muttered, “and that is, there’s nothing between her and Maximilian, not when she’s keeping help from him.” And on he paced, his fists opening and clenching. Suddenly he came to a dead halt.

“By God,” he cried, “I’m not going to be shot, no sir, not now, not after—not after this letter!”

Here was neither boy nor warrior. It was very much in the way of a lover.

CHAPTER XXVII

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BERTHE

“Il y a deux êtres en nous: l’acteur et le spectateur.”

—Sienkiewicz.

The same evening, though two hours later, a public hack entered an outlying quarter of the City of Mexico called San Cosme, and drew up before a white mansion with beautiful gardens. A young girl with soft brown hair and gentle eyes got out, ran to the door, and brought down the ponderous knocker so terrifically that it abashed her, for all her present agitation. To the flunkey, who noted the public hack and was reproachful, she said, “I must see His Excellency. Here, I have written my name on Mademoiselle d’Aumerle’s card. I am her maid. Say to Monsieur le Maréchal that he will regret it, if I do not see him at once. Quick now, you!”

If possessed of guile, Berthe could not have done better. With Jacqueline’s card, used only because it had a blank side, her admittance was certain and immediate.

She passed the lackey into a luxurious apartment, Marshal Bazaine’s private cabinet. At one end there was a Japanese screen with a lamp behind, and at intervals came the sound of someone turning the leaves of a book. But Berthe thought solely of her errand. The marshal, thick necked, heavy cheeked and stocky, was standing, waiting for her.

“So,” he exclaimed, “milady is arrived, eh, and you bring me her commands?”

“No, Your Excellency, my mistress does not know that I am here. When she learns, she will dismiss me. I—”

The marshal of France grew cold. “It was a decoy then, the card you used?” he interrupted. “And was that one also, young woman, when you threatened that I should regret—”

“You will indeed regret, monsieur, if you do not let me speak. There’s a mistake to correct if—if it’s not too late.”

The chief of the Army of Occupation shrugged his shoulders until the back of his neck folded over itself. He had been correcting mistakes ever since Maximilian’s landing. But he was a child of the people himself, and the distress in her eyes made him patient. “Well, what is it?” he asked.

“It is an American. They will shoot him, monsieur!”

“Ah, one who interests the young person now before me, eh?”

“And I want you to stop them, monsieur! I want—”

“Child, child, whom am I to stop?”

“Colonel Lopez, monsieur. The American escaped once, but mademoiselle gave him up again. He’d saved mademoiselle’s life, too. And mine.”

The veteran soldier rubbed his finger tips on his bald, bullet-like head. “He saves her, and she gives him to Lopez. He must be an important species of American!”

“Yes, yes, monsieur.”

“There, don’t worry. His Majesty will pardon your friend to-morrow—if,” he added to himself, “only from habit.”

“But Lopez will shoot him before the Emperor knows.”

The marshal had shrewd eyes, and now they opened wide. “Getting more important, our American!” he grumbled uneasily. “Berthe, did your mistress know that Lopez would shoot him before he could be pardoned?”

“Oh yes, monsieur.”



“BERTHE”

“... Brought down the ponderous knocker so terrifically that it abashed her, for all her present agitation”

“Name of a name, what does she want him killed for? Why is this drôle of a Lopez in such a hurry?—See here, child, you know something more. What did you mean by my regretting—”

“Because, because everybody seemed to think that the poor brave American had come with an offer of aid for Maximilian, and as you need more troops, I thought—”

“Who, in all mercy, is this American?”

“A Confederate officer, monsieur.”

Not one man, but two, paced the floor because of Jacqueline that evening. The second was the marshal of France, and he went at it now, on hearing of the first man. “A Confederate officer?” There were twin

creases over his straight nose, furrows of vexed and intense thinking. The lone Southerner was linked intimately in his reflections with the parliament of a great nation. The people of France had never warmed to the Mexican dream, and the Chambers already were clamoring for the return of the troops. And now, for every Confederate enlisted, a pantalon rouge could be sent back home. But why—name of a name—should Jacqueline try to prevent?

“Did she,” he asked, but not very hopefully, “did she have any cause to dislike this American?”

“Oh, monsieur!” The cry was pained surprise. That her mistress could or would pay a grudge! “On the contrary,” she protested vehemently, “I have never seen her so moved, never, and if *you* had seen her, monsieur, as we left Tuxtla! I thought she must surely lose her mind. One cannot imagine her terror. She cried to the driver, to the outriders, to lash the mules, harder, faster, till it’s a miracle we did not crash over a cliff. And all the time she would look back, and at every sound she would clap her hands over her ears and cry out to know if that was shooting. And then she would pound at the window to them to go faster. She wanted to get out of hearing, monsieur. It was only when we were really here in the City that she quieted, but that was worse. She lay and moaned. I cried, I could not help it, hearing her. She would mutter things, too. ‘France, France!’ she said once, and it made me shudder. One almost thought she had a dagger in her hand—”

“Never mind, what else did she say?”

“She said, ‘Oh, I hate thee, my country!’ but she wasn’t in her mind, oh no, monsieur. Then she grew very still, and that frightened me more yet. Once I even thought she was dead, and I put my arm about her. But her heart was beating, and her eyes were open, wide open and dry. I could see, for we were passing between the Paseo lights. I laid her head on my breast, and after a while I heard her lips move. ‘God bless him! God—Oh, I hope there is a God, just for this, to bless him, and keep him!’”

“H’m’m,” said the marshal, and went back and forth again, more perplexed than ever.

Berthe watched him anxiously, jealous of each moment lost. Once she started to speak, but his gesture for silence was such that she did not dare a second time. There was no other sound in the room except the tramp, tramp on the soft carpet. Even the occasional turning of a leaf behind the

screen had ceased. Bazaine was groping cautiously in the mystery. A state reason, and no personal one, had compelled Jacqueline; that much was certain. Direct from the Tuileries, she was weighted under some grievous responsibility, and this night, back there at Tuxtla, she had been true to it. And whatever it was, it exacted imperatively that no Confederate aid should reach Maximilian. Such was Napoleon's wish, however contradictory to official instructions. But the marshal was sufficiently a disciple of the little Napoleonic statecraft to beware of meddling. He fretted under methods whereby the whisper of the Sphinx reached him through private and unofficial agents, but it was a great deal to catch the Sphinx's whisper at all. Besides, he owed his elevation to this enigma of Europe, and he meant to be loyal.

"Berthe," he said at last, "there's just one man who can interfere where ²²³Mademoiselle d'Aumerle disposes, but he is rather far away. I mean the Emperor of France."

The little Bretonne looked, comprehended, and burst into tears. "My dear mistress!" she sobbed.

There was the sound of a book dropped on a table, and the screen was brushed aside.

"Perhaps," came a softly ironical voice, "a woman might so much as veto our mighty Jacqueline. At any rate, suppose we try it, Don Pancho."

Bazaine had forgotten his wife, his bride, who, to be near him, often retired behind the screen when he was busy with others. Hers was the loving ambition of a Lady Macbeth, in that a husband's secret was never one for her.

"Step into this little room," she said to Berthe, opening a door. "It will not take long," she added, an assured light in her dark Spanish eyes.

"You will save him, madame? You—"

"Against all the marshals of France, child. Go, wait in there."

The marshal of France present smiled on his bride indulgently, admiringly, as she closed the door and faced him.

She was less than half his age, the girl wife of a gray-haired veteran, and as his wife she was second lady of the land. A Mexican aristocrat, small and slender, of a subtle, winsome beauty, with the prettiest mouth and the most pyramidal of crinolines, she had reminded Bazaine of his first wife, and he had courted her. At the wedding Maximilian had stood padrino for the groom, and Charlotte madrina for the bride. The imperial

gift to groom and bride was Buena Vista, as the white mansion and gardens in San Cosme were called. Naturally, then, Madame la Maréchale approved of Napoleon's *official* instructions, which directed that Monsieur le Maréchal was to establish the Mexican empire solidly and for all time.

Now her manner of calling the marshal Pancho was considerable of an ³²⁴argument, especially when, archly formal, she made it Don Pancho. What if this Confederate aid were to go to the Mexican rebels, as it surely would if the emissary at Tuxtla were shot? And, without either French or Confederates, the Empire would fall, the rebels would win; and then, she wanted to know, what would become of their beautiful home, of their high position? Moreover, the United States was threatening to drive the French from Mexico, and Madame la Maréchale believed it a very good thing for the French to have at their side some of the very men who had held those Yankees back for four long years.

Bazaine wavered. Then he smiled. This Mexican bride of his was Mexican all the time; and French, sometimes not at all. She had not the big trust in the pantalons rouges when it came to those Yankees.

"But, Pancho mio," she went on softly, "now for the real reason, the one that holds you back. It is your Emperor Napoleon, verdad? You think that he does not want this offer to reach Maximilian. Bien, have you had any intimation of what he wants? Any orders? Of course you haven't. Then save this American. Look at me—Don Pancho, I say-if—"

"Sapristi, call the girl in! No, first I must have—"

When madame could free herself from what he must have, she opened the door and triumphantly called to Jacqueline's maid.

A half-hour later, in one of the marshal's own carriages, Berthe returned to the castle of Chapultepec. At once she hastened to her mistress's apartments, and confessed what she had done. Still in the blue flowered calico, with the dust of their frantic ride still on her, Jacqueline was seated before a little desk. Her head was buried in her arms, and her loosened hair fell like a shower of copper over her shoulders. She did not ³²⁵move as Berthe entered, nor give any sign. But when in a word the story was told, she got to her feet and stared blankly at the girl. Berthe expected dismissal, but the next instant two arms were about her, and lips were pressed to hers, and hot tears, not her own, wetted her cheek.

“Berthe, you little addle-pated goose! You—oh you little ninny, you, you—” Her phrases were broken by laughter, then by an uncontrollable peal that was near a shriek, “Little, little fool, dost thou know, thou hast this night lost to France fifteen thousand leagues of empire? Thou—thou—” Yet kisses were again the portion of the thief of fifteen thousand leagues.

“But do you think they will be in time, Berthe? Yes, yes, you’ve answered that once. And Michel leads them, you say?”

“Oui, madame, Monsieur Ney was most eager to go, above all when His Excellency gave him Frenchmen to command. They are the cuirassiers. They will surely save the American monsieur.”

“But will they be in time? Yes, yes, I think I’ve asked that already.”

Her hysteric glee, changing to anxiety, now changed as quickly to something else. Her face went deathly white, the pretty jaws set hard, and there was the glint of resolution in the gray eyes. She seized a cloak and threw it about her.

“Come,” she said to the maid.

“Madame is going—”

“Yes, to *undo* your mischief. Bazaine must send to overtake Ney, must command him *not* to interfere with the execution. Bazaine will do this, when I see him.”

“But you will not find His Excellency to-night. Madame la Maréchale ordered the carriage for them both, as I was leaving there.”

“Indeed? Then she knew you were coming here to me? Then she did not mention where they were going?”

“No, madame.”

“Of course not. Oh, she is cunning, your Madame la Maréchale!”

Alas for Jacqueline! She might conquer herself, but add to herself a second woman against her, and she was beaten. She confessed defeat by throwing off the cloak.

“Tuxtla is far, you think they will—will—”

“Oh I think they will, madame!”

“Say you *know* they will! Say it, Berthe, say it!”

“Oh, I hope so, madame. Monsieur the American is lucky.”

The American? Somehow the blood swept hotly into Jacqueline’s cheeks. “Say they will *not* save him, Berthe. Say no, no, no!” she commanded, and imperiously stamped her foot, but stamp as she would,

her furious shame was there still, flaunting its glorious color. She was thinking of her letter, of her avowal to a doomed man. After that, *any* man was under obligations to get himself shot. Only, this one was of a contrary fibre.

In such an April mood, Jacqueline was capable of yet another caprice. “Berthe,” she cried, even as the whim came, “one is tired after playing the goose, n’est-ce pas? Do you, then, rest—yes, yes, while I comb your hair.”

“Madame!” Berthe protested with what breath astonishment left her.

“Do ye call me chief?” demanded the mistress. “Then, de grace, sit still! And why shouldn’t I, parbleu? If it took our big French Revolution to throw me up an ancestor out of the common kettle, there has just now been another revolution here”—she pressed a hand against her breast—“to stir me back among the people again. Do you know, dear, that your hair is beautiful!”

And so they were two girls, girl-like, passing the evening together.

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Of a sudden Jacqueline stopped, the braiding arrested by a most startling thought.

“Grands dieux,” she told herself slowly, for it had to be believed, however improbable, “until this very moment I’ve never once stopped to think of all the emotions I have been having this day. I’ve never once examined them, and such emotions—Oh, là, là, they’re a collection, a veritable museum of creeps! And here I’ve hurried through that museum, till I’ve even forgotten my umbrella at the check stand!”

CHAPTER XXVIII

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MIKE

“Quand on est aimé d’une belle
femme, on se tire toujours d’affaire.”

—Zoroaster, *vide* Voltaire

The Storm Centre chafed under a mad desire to verify his name, which was not unusual. But it was the first time he had ever craved active danger as an antidote for his thoughts. The sound of bars lifting came as a relief, and he shook off the dark mood and was himself. Before the door opened, he thrust her letter into the candle flame. He had kept it till the last minute, but now he burned it, as she knew he would.

Instead of executioners, he beheld a tray, gripped by chocolate hands. Involuntarily he looked up to the face above the tray.

“Johnny the Baptist!” he exclaimed. “Well, well, how goes it itself to Your Mercy this evening?”

“Pues bien, señor,” returned the Baptist, grinning sheepishly. “Would, would Y’r Mercy like another bath?” The grimace was not unamiable. It betokened that this time he, and not the prisoner, might have a game to play.

“A thousand thanks,” replied Driscoll, “but I’ll try to make that other bath answer.”

“But señor, you wasted it.”

“Well, perhaps so. You see, Johnny, it was this way. I had only one bath coming, and on the other hand there were two things to save. Do you know, Johnny, I’ve been mortified ever since, to think how I squandered my one bath in saving just my life, and how I left my soul to bustle along for itself.”

The Baptist drew nearer. “But suppose, señor,” he whispered, “suppose the need of absolution was again postponed, even now?”

Driscoll’s fork stopped half way to his mouth. There was no superstition in the affair this time. The once gullible Dragoon, moreover, was playing all the leads. “Of course,” Driscoll agreed heartily, “I’d

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certainly like it right well,” and he went on eating. But his wits were in a receptive state, alert for the meaning when it should come. The opening innuendoes exasperated him, for the guard was a clumsy agent. The man must needs feign a great dread of discovery, and tremble lest his colonel, Don Miguel Lopez, should find him out. As though supper, instead of a shooting squad, did not belie it all?

“Still your move, Johnny,” Driscoll had to remind him.

In the end it was to be gathered that Don Benito Juarez, the fugitive Señor Presidente of the fugitive Republic, might welcome an offer of Confederate aid, and 'twas a pity that the condemned señor should have no chance to escape. But if he did escape, he might find his way to the Señor Presidente far off in the state of Chihuahua.

So, the cards were dealt at last. Driscoll looked over his hand. He recognized a crooked game, a game of treachery and dark dealing; but even so he perceived that a trump or two had fallen to him, perhaps unwittingly, and he decided to “sit in for a spell.”

He began, with coy hesitancy, to beat his scruples around the bush, which was not a bad lead. Supposing he turned his offer from Maximilian to President Juarez, wouldn't it, well, look as though he did so to save his hide? Brown Johnny opened his eyes as at something unfamiliar. Driscoll went on. If he were shot, how was he to go to Juarez? But if he, uh, happened to get loose, he might just possibly be influenced to think of the Juarez proposal. But actually buying his way out would look dishonorable. “Now,” he concluded abruptly, “run along, and put it that way to whoever sent you.”

The man protested, and in some genuine alarm, that he had no employers.

“Oh all right,” said Driscoll easily, “then you're bound to help me. Because if you don't, I'll sure tell Lopez what you've just been trying to hatch up here.”

The trap worked beautifully, for the guard tried hard to quake. But his fright was not spontaneous enough. Driscoll smiled. Now he knew the real player in the game.

“Cheer up, Johnny,” he spoke soothingly, “I'd not tell on you. But hadn't you better go and think it over by yourself a little?”

The Baptist would hasten straight to Lopez, and Lopez, Driscoll foresaw, would interpret his scruples into a disguised acceptance. The

crookedness of the game left the American no other trump, and he played it—against immediate death. Lopez, of course, would send him under guard to Juarez, but Driscoll thought he could trust that staunch old Roman, when once informed, to call for a new deck and an honest deal.

Juan Bautista “thought it over” outside, and directly returned with an answer. But when he again left Driscoll, he did not bar the door behind him. Within ten minutes thereafter Driscoll was creeping past a sleeping sentinel, on between rows of maguey, toward the road. Around him hovered five or six shadows. They were to be his escort and take him to Juarez. They would join him openly a safe distance away, at a place where their horses waited. But as he emerged upon the road, for the moment alone, a voice in French challenged sharply. “Halte-là!”

The shadows hesitated an instant, then showed themselves with energy. They sprang out and closed on their “escaped” prisoner. They handled him more roughly than did the Contra Guerrillas, who had first cried “Halt,” and who were now appearing as by magic. The blended anger and gratification of the shadows over the escape and recapture was vociferously sincere.

“Take them all, mes enfants,” a huge tone of command filled the darkness. It was Colonel Dupin. He had that moment arrived. Jacqueline’s message had reached him in the City not an hour before. The American had escaped, it said; he was at Tuxtla. The Tiger, knowing nothing of Lopez lying in wait for the same American at the same place, had dismounted his men, surrounded town and farms, and was closing in, when Driscoll himself fell among them.

The interview between Dupin and Lopez brewed stormy at first. The latter turned gray under his ruddy skin when Dupin walked in upon him in the front room of the farmhouse. But seeing that his own men were holding Driscoll, he nervously congratulated them upon the capture.

“How did he escape this second time?” demanded the Frenchman. “It seems to me, mon colonel, that the question would occur to you too.”

Lopez was sufficiently alive to his peril. He quickly sent two Dragoons to the temporary guard house to investigate. Dupin curtly ordered two Cossacks to accompany them. Soon they brought back the sentinel who had been conveniently asleep when Driscoll slipped past. The sentinel rubbed his eyes as he faced Lopez. So far everything had passed according to arrangement, and he looked for a severe mock examination.

But the Tiger had been left out of the calculations, and the Tiger forthwith shouldered himself into the inquisition.

“Do you understand, Colonel Lopez, that your guard here was asleep? Si, señor, asleep! What now, mon colonel, is the little custom as to guards who sleep?”

Lopez glared at the sentinel. It was a fine simulation of outraged discipline, and so life-like that when he spoke of a court martial, the culprit weakened. He opened his mouth. At that Lopez’s stern anger became real. He feared the sentinel would tell all he knew.

“Si señor,” cried Lopez, “we don’t have to be taught, we Mexicans. We shoot them. Here, six of you, out with him! Quick, before he can whine!”

“Go with them,” added Dupin quietly to six of his Cossacks.

The sentinel was dragged out. His cries, whether for mercy or not, were smothered first by a sabre belt, and then for all time by musketry. The Cossacks returned and assured their chief that the execution was bona fide. This allayed Dupin’s suspicions.

“Permit me to suggest, Colonel Lopez,” he said courteously, “that you likewise honor our friend the American. I came from the City to do it myself, but it is a pleasure to give way before your superior vigilance.”

It had already occurred to Lopez that Driscoll also might talk. “You are very amiable, Señor Dupin,” he replied. “My court martial found him guilty, and as a matter of fact, he would have paid the penalty by now had Your Mercy not arrived. Between us, Colonel Dupin, he will hardly escape a third time.”

At his command six of the crack Dragoons stood forth. They were brown, and Mexicans. Lopez bowed to Dupin, who called forth as many Contras. The Contras were of variously hued races, but they were all the Tiger’s whelps. The file of Dragoons was jaunty crimson, the other corroded red. Driscoll fell in meekly between them.

“Sacred name of a dog, you are honored, señor!” Dupin exclaimed reprovingly. It angered him when a victim quailed. The present one ought to appreciate, too, that he was answering for two besides himself, for Murguía and Rodrigo, whose escape had wrenched the old warrior’s bowels.

The Storm Centre glanced at the picked hussars, at the famously infamous Cossacks, and assented modestly. So plain in gray, he did indeed look colorless among them. The Contra at his elbow was an

American, whose brutish, swaggering scowl meant the world to know what a bad man he was. The type gives the decent citizen a mad desire to be bad himself just once, only long enough to prove the tough a contemptible sham. Driscoll's neighbor leered ferociously, that the prisoner flanked by sabres and muskets might respect him and be cowed. Driscoll kept him in mind, and in the tail of his eye.

There was one anxiety for the Storm Centre. If they should bind him! But they had not, he was so docile. And as they marched out the door, he exulted, and could hardly wait. Wouldn't it be a lovely row, though! Just one good, last good time! He did not feel hard toward them, not when they had left off the ropes. He felt that he was to have value received, and all the while he figured out his desperate campaign.

As they passed outside beyond the window's sphere of light, docility changed to whirlwind. A blow with his left, a jerk with his right, and he had the tough's carbine. He swung it between the two files, a grazing circle. He got blows in return, but not a man fired. That was because of the darkness, and a first shot would inspire a wild, general fusillade, endangering them all. As it was, the blows were impartial, except one, which came down with pointed favoritism on the tough's cranium. After that Driscoll helped one side or another, and when they were nicely mixed, he ran. He got as far as the road, but to find a troop of cavalry charging down upon him. Changing ends with the carbine, he fired from the waist at the leader of the new arrivals. This leader dropped his sabre, plunged heavily, and was dragged by the stirrup. Driscoll had not the time to change back to club musket, he used the barrel as such. But being for the instant alone, he was marked out, and Cossacks and Dragoons threw themselves upon him and brought him down.

"It was lovely," he muttered under the heap.

They brought him back to the house, swathed in a mesh of lariats. Lopez awaited them, frothing oaths. Dupin was there too, and he looked an epicure's satisfaction as they stood his victim against the wall. He did not regret the incident, since it had turned porridge into so choice a morsel.

"'Tis you, monsieur," he confessed with rugged grace, "who have honored us."

"Oh, your grandmother!" said Driscoll.

"Well, be patient. It will be all over in a minute more."

The Tiger was, in fact, ordering the shooting squad, when through the open door glittering helmets and excited French and clanking sabres flooded the room. It was still another wondrous uniform for Driscoll, this of the cuirassiers, with so much of brass, and a queue of horse's hair, and loose pantaloons that merged into gigantic black boots. In they strode, an agitated host of bristling moustaches, while outside was the restless sound of many hard breathed horses. The cuirassiers bore their wounded leader, and laid him on the iron bed in the room. But the man struggled to his feet. He called loudly for "Monsieur le Colonel," and only by force, though gentle, could they hold him quiet.

"What is it?" responded both Dupin and Lopez.

"I, I mean the American Colonel. He—he—"

"Hello, Mike!" cried Driscoll.

He could not see for the others, nor move, but he recognized the voice of Michel Ney. He knew, too, that Michel must be the cavalry leader he had just shot. "Darn it, Mike!" he exclaimed, "I'm sorry! But weren't there enough of 'em without you?"

"Monsieur Ney," the Tiger interrupted, "let your men tend you here, and we will be back at once to see what can be done for your hurt. But just now—"

He signed to Lopez, and Cossacks and Dragoons caught up the prisoner and started for the door.

"Wait!" Ney moaned feebly.

"Tonnerre, mon prince, your wound must be paid for, first. Hurry there, Messieurs les Imbeciles!"

"Wait!" Ney gasped. He half raised himself, but sank back with closing eyes. He made a gesture to his breast. All halted as in the presence of death.

"Help him, you there!" cried Driscoll. "Open his coat!"

The cuirassiers, eager, awkward nurses, fluttered round the bed, and tore away the sky-blue jacket, thinking to find the wound beneath. Instead, they drew out a paper. One of them read the address on it.

"Al Señor Coronel Don Miguel Lopez."

Lopez broke the seal, frowned, and put the message in his pocket. "Nothing—oh, nothing important," he volunteered. "Now, once for all, let us finish our work."

"Wait!" a faint whisper came from the bed.

"He says to wait," doggedly repeated a cuirassier.

"Yes, wait," Driscoll pleaded suddenly. "Just a minute, before I go, before we both go, perhaps,"—he thought in a flash that it might be a last word from Jacqueline—"perhaps, gentlemen, he, he has something to tell me."

But Ney's head, moving weakly on the pillow, was a negative.

The prisoner's voice grew firm again.

"Then hurry up!" he ordered in the old querulous drawl. "Don't you know I'm in a hurry?"

Ney opened his eyes as he heard the shuffling of feet. Men were carrying out the prisoner. With feeble anger he brushed aside the hand of a cuirassier who was trying to staunch the blood at his groin.

"I—I—" His lips barely moved.

The cuirassier sprang to his feet. He looked to his fellows, spoke to them. Puzzled, mystified, they rushed to the door and barred the way.

"We don't know why we came," stammered one, "and he can't speak. But his signs are enough for us. It's, it's—"

"It's something to do with the American," declared a second cuirassier.

Dupin pounded back his half unsheathed blade. Brusquely he wheeled and faced the colonel of Dragoons. "Lopez," he roared, "what was that message?"

"N-nothing, mi coronel, absolutely."

"If it was from Maximilian, I'd know it to be a pardon, and not blame you. But I recognized the marshal's seal, and that's different."

Lopez blanched, yet insisted again that the message was nothing. "Besides, señor," he added, "I do not take orders from His Excellency, the marshal."

"But *I* do," thundered Dupin. "And I see them obeyed too. Oh, you can protest to your Emperor afterwards, my royal guardsman, if you want to, but a marshal of France is the law when I am near."

Grunting contemptuously, Dupin turned to the bedside. The cuirassiers had gathered cobwebs from the rafters, and were dressing the wound. Michel tossed and groaned in the beginning of delirium. Dupin muttered with vexation, but he took hold of the lad's wrist, and firmly closed his hand over it.

"Listen," he said, very distinctly, putting into his tones every timbre of quiet, compelling will. "Listen, hear me!"

Slowly the feverish man grew still.

“Hear me,” said Dupin. “There are two questions—two, only two. You are to answer them.—You will shake your head, ‘Yes,’ or ‘No’—do you hear me?”

The Chasseur’s eyes opened wide, and they were calm.

“Good, that’s the brave gentleman! Now then, steady. The first question: Shall we shoot this American?”

Slowly, painfully, the head rocked on the pillow, from one side to the other.

“It’s ‘No’!” cried a score of men.

“Silence!” roared the Tiger. “Now, the second question: Does this order come from Marshal Bazaine?”

Michel’s chin sank to his breast. He groaned, he could not lift it again.

“Yes, thank—” Ney himself, his voice!

Dupin swung round. “Colonel Lopez,” he ordered savagely, “you will turn your prisoner over to Sergeant Ney, at once, sir! Open your mouth, you dog, and every Dragooning dandy of a Mexican among you—”

The Tiger’s pistols were drawn. His whelps looked hopeful. The cuirassiers bristled in sympathy.

Cracking his finger nails, fawning to the marrow, Lopez agreed.

“Unbind the prisoner,” ordered Dupin.

“Thank God!” came faintly from the bed.

CHAPTER XXIX

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THE WHISPER OF THE SPHINX

“La politique, première des sciences inexactes.”

—*Emile Augier.*

Jacqueline had divined in Bazaine another obstacle to her mission. And yet it seemed preposterous that he should not be her staunchest ally, since Napoleon had found a marshal's baton for him in his knapsack, just as he had transformed his own policeman's club into a sceptre. Nevertheless Jacqueline had her doubts, and they were homage to her sex. In other words, she returned to Mexico to find that His Excellency had married again.

The very day after her arrival she called to see her dear friend, now Madame la Maréchale. The two women were hardly more than girls, but who shall fathom the depth of their guile? They kissed each other affectionately on the cheek, and while the marshal was in the other room, reading the packet Jacqueline had brought him from Napoleon, they expressed earnestly their joy at meeting again.

When Bazaine returned, madame rose to leave them to their “stupid state affairs.” The marshal smiled, knowing how ravenous was his bride for the same stupid affairs of state, but Jacqueline agreed that indeed they were wearisome. Of course she might tell His Excellency much about Paris, but as to politics—and her little shrug bespoke a Sahara of ignorance.

In the packet delivered by Jacqueline, the Sphinx had by no means turned oracle, and Bazaine wished to know what his crafty master would have said between the lines. But the first topic of their conference was Driscoll.

“Your prisoner is incommunicado then?” said she.

“Have no fears, he is comfortable, here in this very house?”

“He has sent no word to Maximilian of his arrival?”

“Not as yet, mademoiselle.”

“And why not, pray?”

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“Because I anticipated the honor of seeing you before permitting him so much. I must know the campaign better. A plain soldier is dense at guessing, mademoiselle, while you—you have talked with Napoleon. If—”

“Oh, don’t be tedious. You alone hold the knight that means royalty triumphant or checkmated, and you know that you do.”

“But you who are inspired, tell me how I shall play.”

“You forget that I left this man to be shot?”

“Then I am to destroy him?”

Jacqueline shuddered. “That was my only way, but you, monsieur, you can lift him off the board entirely.”

Bazaine rose from his chair and stood before her. “I am no poet,” he said, “and these flowers of speech hide the trenches. My American means that I may have thousands more like him, and he is a good one to be multiplied even tenfold. Mademoiselle, *what* am I to understand?”

“Does Napoleon’s letter satisfy none of your doubts?”

Without a word he handed her the packet. It was from Napoleon’s minister of finance, and it exuded woe. The French loans were exhausted by Maximilian’s luxury and mismanagement, and therefore Bazaine was instructed not to advance a cent further. He was, moreover, to take charge of the Mexican ports, and administer the customs. Here, then, was the annihilation of Maximilian’s sway. Here was the whispering of the Sphinx. France herself would take over the Empire.

“Hardly,” returned the marshal, “but we will frighten His Majesty into bettering his finances,” and he handed her a confidential missive that had accompanied the other. Bazaine was therein authorized, when the security of the Mexican Empire absolutely demanded it, to advance ten millions of francs.

Jacqueline sank back disheartened. Not even Napoleon would help her. The Sphinx had not the courage of his own designs, and she contemptuously flung him out of her way. She would strive alone, and against him, Napoleon, among the rest. First of all, there was his captain general, the man before her.

“Monsieur le Maréchal,” she began, as impersonally as though quoting a dry paragraph of history, “there is a party among the Mexicans who fear the republicans and what the Republic would do. Yet their hope for the Empire is gone, and they want no more of it. These, monsieur, are the

moderate liberals, and strange to say, they are the clericals too; in a word, the great landowners. They are for what is good in Mexico. They demand order. But they would not take it from the United States. They look to France—to France, which is Catholic, and liberal.”

“I know,” said the marshal. “They have already hinted at annexation.”

“Annexation to France, of course. Now then, monsieur, if we stay at all, we shall have to fight the United States. But do you imagine that we would undertake such a fight for Maximilian? Parbleu, the French people would mob Napoleon over night. But, supposing we were to do it for ourselves, and not for an impecunious archduke—”

His Excellency’s eyes blazed. “Ah, it would be a fight superb!”

“And you commanding, Monsieur le Maréchal. And behind you, with our own pantalons rouges, those Confederates against their old enemies.²⁴¹ *Then* would be the moment to set your knight on the chess board. And,” she added insidiously, “France would need a viceroy over here.”

The plain soldier started as though shot.

“Mademoiselle,” he gasped, “you—you are Napoleon! The *great* Napoleon, I salute you, mademoiselle!”

“Hélas, monsieur, that I am not in a position to credit Napoleon III. with what I have said!”

“Yet you wish me to believe that you are only inspired by him? Pardon me, mademoiselle, but *he* is the inspired one, and—mon Dieu, I do not blame him!”

“But it’s very simple,” said Jacqueline, “and honorable too. Maximilian’s bad faith nullifies our treaty with him. Très bien, we are free, free to withdraw our troops. At least we may threaten as much. Then he will, he must abdicate, unless—well, unless he first sees Your Excellency’s prisoner.”

She arose, feeling that she was leaving a good Frenchman behind her. But Madame la Maréchale appeared to bid her adieu, and Madame la Maréchale looked sharply from one to another, noting especially Bazaine’s flush of enthusiasm. The good Frenchman straightway became uneasy. And Jacqueline, riding back to Chapultepec in her carriage with its coronet and arms and footmen, did not know that Driscoll had not been incommunicado against Madame la Maréchale. Who could be? And Madame la Maréchale betimes had paid her respects to a third woman,

who also was but little more than a girl. She and the Empress Charlotte had discussed both the prisoner and Jacqueline.

CHAPTER XXX

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THE AMBASSADOR

“Receive then this young hero with all becoming state;
’Twere ill advis’d to merit so fierce a champion’s hate.”
—*Nibelungenlied*.

In his bedroom at Buena Vista, the marshal’s residence, Driscoll the next day received a personage, and offered him a cigar. Declined, with bow from shoulder. Hoped he would have a nip of peach brandy? Declined, with sweep from hips. He was a personage. Driscoll noted regalia, medals, cordon; and apologized for the temerity of Missouri hospitality.

“Especially,” he said, “as you’re a Grand Divinity.”

“Dignity, señor,” the hidalgo corrected him, “Grand Dignity.”

“You’ll have to pardon me again,” said Driscoll, “but I really didn’t intend any short measure at all.”

It was the Imperial Grand Chamberlain himself. There were no *incomunicado* doors before *him*; he came from the Emperor. The Empress had spoken to His Majesty, having just had her discussion aforementioned with Madame la Maréchale, so that Monsieur le Maréchal had had to lift from his prisoner the ban of the *incomunicado*. But monsieur had been extremely reluctant about it.

The Chamberlain’s name went well with his exalted fourth degree of proximity to the throne. It was Velasquez de Leon, a very bristling of Castilian pride. He looked over the battered American in homespun gray, and wondered where the mistake was. For, as arbiter of precedence,²⁴³ appraiser of inequality between men, and supervisor over court functions generally, he had been sent in the way of business. Driscoll felt sorry for him.

“Just tell them to let me out of here,” said the prisoner, “then I’ll call in on the Emperor whenever it’s convenient for him.”

“But, señor,” the don objected testily, “with what status, pray? Has your country a representative here? You must obtain a letter from your ambassador, or have him present you.”

Driscoll shook his head. "Can't," he said, "haven't any country."

The minion of etiquette despaired.

"But," Driscoll added, "I've got as good as credentials from what used to be my country."

Velasquez de Leon grasped at the straw. "Then," he cried, "we can register you as an ambassador."

"Bringing my country with me," Driscoll suggested.

So it was all straightened out pleasantly, and quite in the orthodox manner, too. The American's status was defined. His reception would fall under the rubric: "Private Audience." There remained only one grave drawback. The protocol allowed no hints as to the un-protocol aspect of an ambassador's wardrobe. The hidalgo could only finger nervously the Imperial Crown in his Grand Uniform, and with stiff dignity take his leave.

The ambassador who was his own country rode in the marshal's landau to court, with a retinue of Lancers that was also his guard. Soon they entered the Paseo, which Maximilian was making beautiful at inordinate cost as a link between the City and his summer palace, the alcázar of Chapultepec. Turning into the wide, stately boulevard, Driscoll was that moment plunged into an eddying splendor of Europe transplanted, and he blinked his eyes, half humorously. There were mettlesome steeds, and coaches with a high polish, and silver weighted harness, and the insolence of livery, and armorial bearings, and the gilt of coronets on carriage panels. There were silk hats and peaked sombreros, lace mantillas and Parisian bonnets. A lavish use of French money was doing these things, and the Mexicans, believing in their aristocracy since the revival of titles never heard of in Gotha, believed also that such brilliancy of display made their capital the peer of Vienna, or of the Quartier St. Germain. The Mexicans were very happy and arrogant over it.

"I wonder how they can fight and yet keep their clothes so pretty," thought the Missourian.

The gallant carpet-knighthood of uniforms was bothering him again. They were dashing, militant, these paladins, a *bal masqué* of luxurious oddity and color. They twisted waxed moustaches, and their coursers cantered to and fro in the gay parade, and among them only the charro cavaliers with a glitter of spangle let one guess that this could be Mexico. There was the Austrian dragoon with his Tyrolean feather, and the Polish

uhlan, fur fringed, and the Hungarian hussar, whose pelisse dangled romantically, and there were some fellows in low boots and tights and high busbies, who were cross-braided on the chest and scroll-embroidered on the front of the leg, and looked exactly like Tzigane bandmasters or lion tamers. The Slav, the Magyar, the Czech, and yet others of the Emperor's score of native races, all were here out of the nearer Orient, with curved swords and ferocious bearing. There were the countrymen of the Empress, too; the Belgians, who were as bedecked of sleeve as a drum corps. And as to the French, there they were in green and silver, in sky blue, in cuirassier helmets, in the zouave fez, or in any of the other ways in which they bore *their* chips on the shoulder.

Shelby's ragged Missourians had tossed on straw for the lack of quinine, and yet were presuming to save this gorgeous empire of golden spurred gentlemen. The thought of his mission gave Driscoll an ironic twinge.

But there was the pantalon rouge, the little soldier boy of France who did the work, and the sight of him put the American into a friendly humor. He was everywhere, the little pantalon rouge, streaming the walks, dotting the cafés with red, and every wee piou-piou under the great big epaulettes of a great big comic opera generalissimo. His huge military coat fitted him awkwardly, and the crimson pompon cocked on his little fighting képi was more often awry, and he could not by any effort achieve a strut. He was only bon enfant, this unconquered soldier lad; so he gave over trying to be martial, and left to his officers the rôle of the Gallic rooster, taking it all as a droll joke on himself, while his vivacious eyes danced with fun.

The ambassador's coach passed under the cypresses and wound round the Aztec hill of the Grasshopper, and came at last to the castle on the summit. And as Guatemotzin had once ventured to this place to plead with Moctezuma to save his empire, and to show him how to do it, so Driscoll now entered the portals of Chapultepec on a very similar errand.

The superb Indian lord was never so hedged in with barbaric ceremony as was his Teuton successor of three centuries later. But Driscoll was patient. He advanced as the red tape gave way, humming under his breath "Green Grows the Grass," a schottische which the American invaders of '48 had sung in taking this same fortress, which also had given all Americans the name of "Gringo."

Guardias Palatinas saluted the Missourian at the entrance. Two Secretaries of Ceremony, Grand Uniform, with cordon and the Imperial eagle, bowed before him in the Gran Patio. One stepped to his right, the other to his left, with all the ceremony of which they were secretaries, and the three walked abreast the length of the Galería de Iturbide, where they were joined by the Lesser Service of Honor. Thus, swelling by cumulative degrees of impressiveness, Trooper Driscoll came at last into the Sala de Audiencias, and gazed with admiration at its beautiful Gobelin suite.

The Emperor was there, tall, white browed, refined. He bowed. Driscoll bowed, and started toward him, for they were scarcely in speaking distance. But His Imperial Highness bowed again. He was absent-minded, evidently, but Driscoll bowed also, and pretended not to notice. Then yet a third time the monarch bowed. And with true courtesy the American overlooked what was growing ridiculous, and did likewise. Thus the ritualistic three obeisances were accomplished.

Maximilian dismissed the Lesser Service, and he and his guest were alone. Now Driscoll supposed, considering the discommoding interest his mission had awakened in everybody except in the Emperor, that the Emperor himself would this time be concerned enough to “get down to business.” But not so. There were yet the formalities.

“I understand, Señor Embajador,” Maximilian began in the language of his court, “that Your Excellency—”

“Thank you, sir, but my name is Driscoll.”

“That Your Excellency comes accredited from a government that no longer exists. But We will waive that, since the said power existed at the moment of Your Excellency’s departure.”

This was to harmonize the absurdity with the Ritual. Maximilian liked to play at receiving an American representative. It grieved him sorely that the United States had never recognized his dignity, but that it had consistently rated him as merely “the Prince Maximilian.”

Driscoll’s first words cut short the make-believe.

“You’d hardly call them credentials,” he said. “Our president, it is true, helped me on my way, but I have nothing from him to you. And yet I bring more than Mr. Jefferson Davis could send. Here,” and he produced the memorandum from the Confederate generals of the Trans-Mississippi

department, which in his belt Jacqueline had had restored to him with his other effects.

Maximilian took the note handed him, but stared at the emissary. Charlotte had induced the monarch to grant the audience. She had hinted at its importance, but not until now did Maximilian recognize his guest. Driscoll was attired in the full uniform of a lieutenant colonel of cavalry, which, by the way, was what he had carried so jealously in the bundle behind his saddle. From the dignified young officer in gray back to the desperado young giant in homespun proved considerable of a reach for the Hapsburg; but at last, by virtue of much caressing of his silky beard with delicate finger tips, he arrived.

“So, it was you the marshal saved!” he exclaimed. “Yes, yes, I should have remembered sooner. Colonel Lopez told me. A capable, faithful officer, is Lopez! I could not but approve the finding of his court martial. And yet, against his urgent advice, I have decided to pardon you.”

“To apologize, you mean?”

The Emperor looked hurt. As a foil for his royal clemency, there should be humble gratitude. Maximilian often mistook fawning for such.

“Isn’t it a bit odd,” Driscoll queried whimsically, “that an ambassador should be arrested?”

“Jove, that’s a fact! I hadn’t thought.”

“Certainly. But if it don’t occur again, we’ll just let the apology go.”

“No, no,” protested the monarch. “You must have your apology. You will receive it from the Grand Chamberlain to-morrow, and it will appear in the Journal Officiel.”

“Oh, all right,” said Driscoll, “anything to clear the way.” Whereupon he plunged and stated his business.

With debonair Prince Max it was not a question of even who talked best. It was who talked last. And Driscoll, being for the moment an exhorter of both descriptions, drove home conviction as a sabre point. He spoke bluntly, earnestly; and, at the scent of opposition, he spoke fiercely. The South was defeated, he said, and the North would now make good its threat to drive out the French. And the French would go, too. Suppose they were even willing to undertake a great war for Maximilian, yet they would go just the same. And why? Because they had fought the Russians. They had fought the Austrians. And they were keeping the Italians out of Rome to help the Pope. So they had not a friend left, not one, to help

them against the enemy they must soon fight, which was Prussia. Consequently they would draw every bayonet out of Mexico, and Maximilian would be left alone to face his rebels. But Maximilian could not face the rebels alone. They had been dominant before the French came. To replace thirty thousand French, Driscoll offered fifty thousand Southerners, fifty thousand well-equipped, splendid veterans. Twenty-five thousand were already on the frontier, he meaning those under General Slaughter at Brownsville, and Shelby and the others were not far behind.

“But,” said Maximilian, smiling bitterly, “you forget that the United States would still object to my poor Empire.”

“Not when the French leave, they wouldn’t. We would become citizens. We would not be a foreign intervention. You would be backed up by Mexicans against Mexicans, and the North could not interfere. But, suppose that the French remain, wouldn’t they have to fight? And they would need our aid to do it, too. Don’t you see, sir, that in any case you should make us very welcome?”

“There is assuredly no other way to look at it!” admitted the prince uneasily.

Dreaming himself a monarch of chivalry days, Maximilian was subtly²⁴⁹ enthralled by the idea of a band of heroes flocking to his standard, their swords on high. Stouter than those warriors who had helped Siegfried to his bride, they would hold for him a treasure greater than that under the Rhine. Themselves and their children forever, they would be the real mainstay of the dynasty founded by Maximilian the Great. They were Anglo-Saxons, Germanic, his own kindred, and to him they came for new homes and a new country. They would be his landed gentry, his barons, his hidalgos. It was a prospect for an emperor; above all, for a poet emperor. As he looked now on the young Confederate officer, on him who had seemed a desperado, Maximilian thought that here stood one who was the instrument of Destiny.

“Can—can they really come?” he demanded breathlessly.

Driscoll smiled. “Of course, there’s no time to lose,” he replied. “For instance, if I’d had your answer there at Murguía’s ranch, I’d have gotten back in time to head off whole regiments who’ve probably given up their arms since then. But you can still count on an army west of the Mississippi that hasn’t surrendered yet. At least *my* general hasn’t, not

Old Joe, and he won't either. But you must say 'yes' pretty quick. We're restless, and might conclude to run the French out of here. We haven't forgotten how Napoleon forgot to help us."

It was a cunning stroke. Maximilian would have asked nothing better than independence from his "dear imperial brother," and just this was the bribe so temptingly held out by the instrument of Destiny. But the Hapsburg of the heavy, trembling underlip credited wavering as statesmanlike prudence.

"To-morrow," he said, "no, the day after, you shall have my decision."

Jacqueline witnessed the ambassador's departure. Hidden among the roses of the fortress rock, where she sat with a book, she peeped out as he came down the steps to the marshal's landau. The glacial Secretaries of Ceremony flanked him on either side, and the statuesque Palatine Guards saluted. She could not be mistaken, the corners of his mouth were twitching. It was such an inimitable commentary on the Ritual that she had much to do not to dart out and laugh with him in gleeful mischief.

Then, she noted his uniform. After the ornate regimentals of all Europe, what a relief was the simple gray! There was the long coat, the belt, the dragoon sabre, the unobtrusive insignia on the collar, and she murmured her verdict advisedly. It was beautiful! Next she noted the man—as though she had not in the first place. His easy frame still had that charm of *gaucherie*, and the rollicking daredeviltry lurked quiescent in the brown eyes, but enough to recall the rider of fury, her *chevalier de Missouri-i*, plunging through a wall and cloud of dust on a big-boned yellow charger. And though now he was in this beautiful simplicity of gray, she looked in vain for some hint of martial stride or pompous chest.

She wondered for a moment why he had worn the uniform. It signified nothing, since the Confederacy had fallen. Then she understood. *He* had not surrendered. Nor had those he represented. The gray, for him, still had its reason, and was a power yet; the power to decide an empire's fate. It was the grave dignity of a lost cause; striving, before being doffed forever, to leave behind a new cause. Or, if failing, to accept the lot of surrender. In either case, her *chevalier de Missouri-i* was wearing the dear uniform for the last time. With her keenness for intuition and sympathy, Jacqueline *knew*. She knew what it must mean. And he looked so strong, so splendid! Her eyes unexpectedly dimmed in tenderness for him.

Driscoll, being now a free man, established himself at a hotel near the diligencia office in the busy Plateros street. He drilled through the following day with tedious waiting for the day after, when he was to have the promised reply. Used to men who knew their own minds, he hoped for strength in this emperor fellow. Then, his mission successful, he would be in the saddle by the next night, perhaps by noon, and hastening toward the border with tidings of homes and more fighting for his comrades of the Old Brigade. But the next morning, even as he was mounting Demijohn to go to Chapultepec, a thin man in riding breeches entered the hotel patio and accosted him.

"I am Monsieur Éloin," the stranger announced in English that could be understood, "of Her Majesty's household. Also aide and secretary in private to the Emperor. I see, you go to horse. It is well, sir. Mine is outside."

"What's the answer?" asked Driscoll. "I'm not up on conundrums."

"It is that we go to Cuernavaca."

"You don't say! Now where's that, and what for?"

"Cuernavaca is His Majesty's country sit-down, about a douzaine of leagues from here. You have not read of this morning the Journal Officiel? Here it is. The court went there yesterday. His Majesty has to need rest."

"But he was to see me to-day! What's the matter with him?"

M. Éloin's brow contracted narrowly, and he shrugged his shoulders. "His Imperial Highness is much worked. He is worse of good health. Her Majesty sought at having him stay, to give you that same-self answer he had promised already. And the Marshal Bazaine, sensible this once, did talk yesterday night before last, after you were there, and beseeched him to accept your offer. And they all beseeched, Her Majesty and Madame la Maréchale, and I.—But, what would you?"

"I'm sure I don't know. What the devil—"

"No, not him! But her, sir, her!"

"Her, who?"

"Why, her. We all talk, argue, beseech; and she, in one little whisper, she only tell His Majesty he has to need that rest—and, poof! off they all go to Cuernavaca, and I know nothing. Her Majesty leave me a note. I bring you it here."

"But who is the 'she?' You don't mean—"

“Yes, we others call her Jacqueline. She did it, against everybody who beseech. But we—how you say?—we fool her, you and me. Come, we are there to-night, at Cuernavaca.”

“Just that little girl—” Driscoll murmured wonderingly.

CHAPTER XXXI

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CARLOTA

“Der sicherste Weg nicht sehr unglücklich zu sein ist das Glück nicht erwarten.”

—Schopenhauer.

Everybody he met seemed to twist Driscoll's business into a vital personal issue, and it did not take him long to place M. Éloin. The supercilious Belgian of the rancid brow, as Driscoll mentally described him, wanted the perpetuation of the empire, and he wanted it for the very simple reason that the favorite of a realmless prince does not amount to much. Hence he intrigued for the acceptance of Driscoll's offer and for the confusion of Jacqueline.

A small escort of Belgians joined him and Driscoll at the garita, or little customs house, on the edge of the City. Accompanying them was a burly priest with a head shaped like a pear. The padre had very small eyes for so large a man, but they were exceedingly bright and roved adventurously. They would settle with crafty calculation on Éloin time and again, though his manner toward the favorite was always a thing of humble deference.

“His Dutch Holiness from Murgie's!” Driscoll observed to himself.

But there might be an ecclesiastical college along, for all the Missourian cared. His own thoughts were battalions. “When it's over, one way or another,” he kept deciding, “I'll speak to her, yes I will! What's there to be afraid of? W'y, she's—only a girl.” It might be an unfair advantage, his not dying after the confession in her farewell letter to him, but he would have her, he would have her! The Lord be good to him, he *had* to have her!

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Late in the afternoon they arrived at the quaint old Aztec village of Cuernavaca, which had been the country seat of Cortez, and was now that of a second fair god and a second Hernando. After dismounting at the hotel near the conquistador's palace, Éloin hurried Driscoll across the plaza into the beautiful Italian gardens where Maximilian made his home.

At the villa, Charlotte's own residence in the gardens, Éloin had himself announced to Her Majesty. The American reflected that women seemed to have a great deal to do with the reigning business. In the drawing room, the Empress received them.

She was a slender young woman whose lips were thin and proud, whose eyes were dark and lustrous. Her hair was black and very heavy, coiled in the old fashioned style away from a high forehead that was beautifully white. She could not be older than twenty-five, and there was even a girlishness in her bearing. But she had a steadiness of gaze—one eye seemed the least heavy lidded—and there was a firmness to the slightly large mouth, which gave an impression of strong lines to what was really a soft, oval face. Yet the temperament could not be mistaken. She was a woman of acute nerves. She was tensely strung, inordinately sensitive.

Driscoll believed now what he had heard, that the Empire fared better when Charlotte was regent and her lord on a journey. Maximilian dreamed, while she realized. The Hapsburg cadet, gazing over the Adriatic from the marble steps of Miramar, had brooded fondly on what Destiny must hold for him. He would be king of a Poland born again among the nations. Then Louis Napoleon whispered of another throne in the building. Whereupon *she* began the study of Spanish; *she* decided her half hesitating spouse to accept, however loftily they both scorned the adventurer who helped them to it.

Carlota, for so the natives called her, amiably greeted the Missourian. She was a woman of tact, and though one Din Driscoll was for her as impersonal a thing as some opportune event, yet events must be neatly turned to account.

"His Majesty and I have discussed your presence in our country, sir," she began in English, "and feeling that he desires to see you again, I requested M. Éloin to bring you to Cuernavaca."

"Why, thank you, ma'am," said Driscoll.

She all but reproved the form of address. But, for her at least, common sense was beginning to prevail. The rigid court punctilio, largely of her own enthusiastic designing, had gone hard with her. Her husband had proved no more than consistent to the medieval revival. He was but true to that old chivalry which distinguished between the divinely fair damsel to be won and the mere woman won already. He was the monarch, she his

consort. Classifying others, the Empress found herself classified. He was her liege, and she might not even enter his presence unannounced. But how much happier was she in the blithe sailor prince who came a-wooing, who wooed for love, in accordance with that same ancient chivalry!

A princess of the Blood, of the House of Orleans, Charlotte had had that nicest poise of good breeding, the kind that is unconscious. But here among the Mexicans, she had to proclaim a superiority not taken for granted, and the nice poise was gone. In her the generations—Henry IV., the Grand Monarch, and all of that stately line—in her they stooped. And an element of sheerest vulgarity, as plebeian as a Jew's diamond, crept in perforce. Poor tarnished escutcheon of Orleans! Poor princess of the Blood, become menial with scouring it! She was weary. Over this New World there floated too much of obscuring democratic dust. So she allowed "ma'am," like a homely fleck, to settle unproved on the ancestral doorplate.

Driven to expediency for her very Empire's sake, she herself trampled on the Ritual. Waiving all formalities, they would go and seek out His Majesty. He must be somewhere in the gardens, perhaps beside the pond with its fringe of deep shadows from the trees. There they expected to find him, breathing the air of orange blossoms, gazing enraptured into the water, and on the gold fish and the swans and the fountains. He would be teasing Nature for a sonnet's inspiration.

Driscoll went ahead, since Carlota and Éloin talked earnestly in French, intent on their plot for the persuasion of the Emperor. But as the American parted a clump of oleanders and laden rosebushes that hid the little lake, he stopped, his eyes wide on something just beyond. In the instant he fell back, and confronted the other two with such a look on his face that both started in vague alarm. They saw the sickened look of one who turns from a revolting sight. A wretch stricken suddenly blind may know at once the fact of a terrible grief, yet he cannot quite at first gather to himself the fullness of the horror. He is only aware that, afterward, the meaning will slowly take shape, like a gradually darkening despair.

Driscoll gazed uncertainly at the Empress, as though she had somehow arrested his thoughts. Then, as a strong man rushing from danger, he comprehended that here was a frail woman near the same peril.

"You will not go, ma'am," he ordered in a kind of terror for her.

Éloin had already hastened on to the screen of roses. Being a fellow of the arras and closets, he scented a royal secret. The Empress lifted her shoulders and would have followed, but Driscoll did not hesitate. He took her by the elbow and gently turned her the other way.

“You must not!” he said again, with that same scared manner on him. 257

She bridled indignantly, but when she saw how white he was, and how earnest, something there awed her. In a flash she understood. Her lip curled, baring teeth of the purest pearl, and a sneer quivered on the highbred nostrils. But suddenly, in piteous tumult, her breast heaved once, and betrayed the wound. It gave him to know the knighthood which covets blows in a woman’s behalf. But she, with a will that held him in admiration and reverence for her, spoke to him, and her tone was even, was unbroken.

“I dare say you are right,” she said, and turned to retrace her steps. But, as if to drink deeper of the bitter cup, she paused, and forced herself to a last word.

“I suppose I should thank you,” she went on, and her eyes, still dry of tears, were lustrous as they lifted to his, “but a gentleman—and I have never known one more than you, sir, this minute past—will understand that I cannot—There, I am going now. And after—after this that you have just beheld, I shall never see you again, sir. Alas, it’s the more pity. Such as you are rare, even in—in my world.”

Driscoll watched her blankly as she left him, her head poised high, her step as slow as dignity itself. His own face was cruelly drawn, with the first sickened ghastliness still on him. He stumbled to a bench, and sat down. But there was nothing to think about, nothing he could think about, just then. Yet his brain was full to throbbing, and he had no consciousness of where he was, nor of the passage of time.

CHAPTER XXXII

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THE WOMAN WHO DID NOT HESITATE

“The soul of man is infinite in what it covets.”

—Ben Jonson.

Stealthily Éloin drew aside the bushes, and peered through. The tiny pond with its crystal surface sunk deep in foliage, its flowering island in the centre, looked not unlike a mirror on a dining table luxuriantly wreathed by garlands. The Belgian stared greedily. He did not see quite what Driscoll had seen, yet he saw enough to draw his brow to a narrowing fold of keenest interest. Jacqueline was seated on the raised edge of the basin, pensively dipping a hand into the water. Her plump wrist showed rosy, like coral, and glancing sideways now and again at a poor agitated prince striding up and down, she looked as she did that day in the small boat, while tempting a shark. As she leaned over, the line of her waist and neck was stately and beautiful; and there were the maddening baby tendrils of soft, glowing copper. Maximilian had evidently found her there, in a reverie perhaps, and was at sight of her lured to some act bold and desirous; for just as evidently, if his flushed face and the way he bit his lip were tokens, he had that moment been repelled. Éloin watched them avidly, the tall archduke pacing up and down, the demure lady seated on the basin's edge.

“It was but the lowly homage of a prince,” Maximilian cried out peevishly. Such was his apology.

“Homage of a play-king,” she corrected him with exasperating sweetness.

He turned on her angrily. “Why do you say that—a play-king?”

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“Whose embassies,” she proceeded calmly, “cringe for recognition. Like beggars they prowl about that White House at Washington, yet never cross the threshold.”

Maximilian was too amazed for denial. “How do you know?” he exclaimed.

“While at the same time,” she went on, “the same neighbor receives the minister of the Mexican republic, and sends one in turn. But no matter. The marionettes of empire can dance, so long as Napoleon holds the strings. Was the princely homage a make-believe, too?”

“But—but, if I should convince you, mademoiselle, that the majesty which only asks to kneel is genuine?”

Her eyelids narrowed, and she looked at him with the oddest smile.

“You know—sire—that I only ask to be convinced. Where will Your Imperial Highness begin?”

“Know then that the American peasant named Lincoln, who would not recognize a Hapsburg, is dead. He has been assassinated. He will no longer encourage our rebels in Mexico.”

“That poor gentleman whom you call a peasant,” she returned with galling frankness, “was greater than any Hapsburg. He was fifty million people, and one million are still under arms. Your rebels know it. They still cry, ‘Viva la Intervención del Norte!’ But go on, *sire*.”

He chafed under her mockery in the title. But sitting there, goading an imaginary shark, she was no less inciting than when he had ventured his caress.

“They are of no consequence,” he burst forth, “neither the Americans, nor the dissidents. Your own countrymen, mademoiselle, will, and must, assure my empire.”

“H’m’n,” she ejaculated, with a quick shrug. “Even the marshal, ²⁶⁰ greatly against his will, has had to inform Your Majesty that we will shortly withdraw.”

“Then I shall depend on my subjects alone!”

She contented herself with repeating, “Viva la Intervención del Norte!” That too, was ample comment as to the loyalty of his subjects. The Emperor paused in his walk. “Alas,” he sighed wearily, “a Hapsburg sacrifices himself to regenerate a people, and—they do not appreciate it.”

Jacqueline bent her head to hide a smile. She dreamily made rings in the water, and seemed to fall into his mood of poetic melancholy. “A comedietta of an empire,” she mused sympathetically, “a harlequinade, nothing more. Grands dieux, I do not wonder that Your Highness finds it unworthy!”

There is no such incense to a man as when he imagines himself understood by a pretty woman.

Yet the temptress now found herself the harder to master. It was the thought of what she must yet do. But she gave her head an impatient toss, and the tears that had come were gone. The lines of her mouth tightened, and the dangerous glint shone in her eyes. "So," she added, almost in a whisper, "you did not mean it, sire, when you offered only a play-empire—to me."

She knew that he started violently, and was looking down at her. But she kept her gaze averted, that he might not see the hard expression there that was merciless for them both. He did see, though, the long lashes, and the warm pink of her forearm, so tantalizing for shark or man.

"These imperial gardens, they are beautiful," she went on softly, "but, hélas, they are not the Schönbrunn. Nor is Chapultepec more than a feeble miniature of the Hofburg. Oh, the wretched farce! The wretched farce, sire, in your pretension to—to honor me! A wooer from the throne, indeed? A straw throne—no, no, I do not like it!"

Then she let him see her eyes. Half raised, half veiled; they held the daring suggestion hidden in her words.

"And if," he cried, "and if we *were* in the Schönbrunn—"

"Yes, yes," and she clapped her hands with delight, "yes, where the heroic figures on the crest of the hill are silhouetted against the sky, where—"

"Never mind the heroic figures! But where I shall be really an emperor, *the* Emperor over Austria, over Hungary. Then, what then? Jeanne-Jacqueline, tell me!"

She had brought him to it. Yet her face clouded pitifully, as that day in the small boat, when she told Ney that a woman might only give. Such a woman too, would be lost for the reason that she would *not* hesitate. Here was the errand of the Sphinx, and achievement at her hand. Dainty flower of France, yes! But in truth, what was she?

"And then?" she repeated, and the maddening promise in her voice thrilled him. "Why, sire, I suppose that I could not help but listen to you. Yet first," she hastened to add with subtle emphasis, "first, you would have to give up your play kingdom here."

His blue eyes flashed. "I will!" he cried. "It shall be mine, the Roman empire of Charles V. They are tired of my brother Franz. Already they cry out for me. Our mother made an uncle abdicate for him, I will do as much for myself. I will, Jeanne, I will!"

Éloin behind his screen moved uneasily.

"The devil go with her!" the eavesdropper muttered. "She'll have him abdicating himself in another minute. She must be stopped, she must!"

He tiptoed back, and once out of hearing, he ran. He found Driscoll on a bench, slowly passing his fingers through his hair, and staring fixedly at the ground.

"Coom," said Éloin, "coom quick! He is alone. You find your chance. He is that happy, he say yes to anything."

Driscoll got heavily to his feet. There was his mission. For the sake of that, for the sake of comrades depending on him, he would go and once more offer succor to this libertine princelet.

"No, not that way," the Belgian directed. "The path here, it leads the more direct at the pond, so. Quick!" He knew that foliage would hide the couple until Driscoll should turn the corner of the hedge and burst on them squarely. The American hastened down the walk. "A nice surprise, mutual." Éloin chuckled to himself.

Jacqueline did not falter before her victory. She knew that Maximilian rated the Mexican throne as a stepping-stone to another in Europe. She knew of a certain family pact among the Hapsburgs and how it rankled in Maximilian's breast. Therein he had, on accepting the Mexican throne, solemnly renounced all right of inheritance to that of Austro-Hungary. But she knew also that he considered his oath as void, since Franz Josef had forced it on him. Craftily she pictured the Mexican enterprise, how instead of enhancing his prestige at home, it but turned him into a sorry and ridiculous figure. And so she won the child of Destiny. Yet, when in a sudden fervent outburst he came and sat beside her, and would have taken her hand, she still did not falter. Napoleon would have the glory, and she a shame unexplained, but for all that her country would have Mexico. Her country would have Mexico! Would have a vast expanse of empire, greater and more enduring than any won for her by Bonaparte himself.

Nevertheless, she brushed away the gallant's arm with more vigor than her coy rôle demanded. "No, no," she moaned faintly, "not yet!"

"But, *cruelle*—"

"Not yet, not until I know that you will try to win in Austria, not until—you abdicate here!"

"But, I shall sail this very month, I—"

"And never return, never to Mexico?"

“Never!”

Frankly, then, she placed her hands in his.

That moment Driscoll turned the corner of the hedge, and was before them. He fell back, and reddened as though himself caught in wrongdoing. It was strange how he noted, at such a time, that she was clothed in light blue, in the very dress he had given her. But no, he perceived at once that it was of some delicate silk from Japan. Yet the pattern was so nearly the same. She must have selected it—she had selected it!—with him in mind. And now, against a girl’s love so quaintly, shyly revealed, to behold this contrast, her hands there, wantonly surrendered!

Instantly she tore herself free and confronted him.

“Oh, why, *why*,” she cried fiercely, “did you not let them kill you?”

Suddenly her hands flew up to her hot face. “Then,” she moaned, “then you would not have lived to see!”

The Emperor stepped between them. Tall, severe, he was cold in anger.

“It’s the intrusion of a rowdy, mademoiselle.” To Driscoll he said, “Now, go!”

Utterly confused, the trooper turned to obey. But at the first step he swung round, looking as he had never looked in the bloodiest of cavalry charges.

“I am here for your answer, sir,” he said.

“Answer? What answer, fellow?”

Driscoll breathed once, he breathed twice, and yet again. It may be he counted them. Then he spoke.

“You understand, of course, that I might call you a puppy? Or break you over my knee? But I’ve got something harder on hand. It’s to make you honor your promise. I’ve ridden forty miles for what you were to give me six hours ago at Chapultepec. Now then, shall I bring the men to save your empire? Think well. You need not take the question from me. Take it from them, from an army of fifty thousand men. Now, answer! And remember, you can save your empire.”

“Save my empire?” Maximilian repeated the words.

There was a reluctant note in the query. Jacqueline heard. And the bravest act of her life was when she raised her head and faced her shame, with *him* to see. She must begin her fight all over again.

“Yes, your play empire, sire,” she said, wielding two weapons, the mockery in her voice, the seduction of her eyes.

Driscoll saw his cause forlorn against eyes like those.

“It’s unfair!” he protested involuntarily.

She turned on him in defiance. “It is *not* unfair! And you, monsieur, of all men, know that it is not. You, and you alone, know what I, what I would give—what I tried to give—that I might win in this!”

He could not help a thrill of admiration. She was battling against all men and women to change the destinies of two continents.

“W’y, I take it back then,” he said.

She stared at him in wonder, and drew farther away. It was his tone, altered as she could never have thought possible, nor had she known that aught on earth might hurt her so. She heard a decent man addressing some unavoidable word to a strumpet. All vestige of respect was gone, gone unconsciously, except that respect for himself which would not allow that the word be coarse or an insult. She looked in vain, too, for a trace of anger. Once she had sought to kill him, but that had not changed his big heart. While now! How much—oh, how much easier—was that other sacrifice of hers than this!

“Perhaps, sir,” she found the strength to say, “perhaps I have even, in my humble opinion, favored the acceptance of your offer. But His Majesty knows far better than I under what conditions he might accept.”

Driscoll turned to Maximilian direct. “Name them.”

“There is but one. We cannot give refuge to the enemies of the United States—”

“The conditions?”

“Therefore, to avoid complications, your men must lay down their arms on entering Mexico. Then we would deliver the arms to the United States on their recognizing Our Empire—”

“Trade us off, you mean?”

“Or, in case the United States still held aloof, then, as citizens of Mexico, you could take up your arms again.”

Driscoll looked at Jacqueline. She, the inspiration of such a condition, knew quite well beforehand that he would not submit.

“This is final, is it?” he demanded.

“It is, because We cannot provoke war with the United States, but,” Maximilian urged querulously, “you have only to surrender your swords.”

“After refusing them to the Federals, to the men who *fought* for them? And now we are to give them up to a pack of—” Driscoll stopped short and took another breath. “By God, sir, no sir!” he cried.

CHAPTER XXXIII

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A SPONSOR FOR THE FAT PADRE

“Every man is as heaven made him,
and sometimes a great deal worse.”

—Cervantes.

When Driscoll had gone, Jacqueline would not linger. Maximilian sought to detain her, but something had happened that he could not fathom. She was no more the same person.

“Not even a token to bid me be brave so far away in Austria?” he pleaded.

“There have been tokens enough,” she returned shortly. “I ask Your Majesty’s leave. Good-night.”

She gained her room, and worked till late on a cipher dispatch to Napoleon. Its purport was, that now, if ever, Maximilian must be discouraged absolutely. Following on what she herself had done, such would bring his abdication. She implored, above all things, that Bazaine be kept from meddling, from extending false hopes. Poor girl, after what it had cost, she was passionately bent on success. A courier took her packet to the City the next day, whence the message was to be sped to Paris.

“That foolish Prince Max,” she thought, “if he does give it up and go, I am really saving him from terrible sorrow. But, who will save me from mine, I wonder? Mine, that is come already! God in Heaven cannot.”

Maximilian had watched her as she left him, till her stately girlish figure was lost in the dusk under the trees. Then with a sigh he turned away. At the villa he found his wife. She was seated apart from her maids, and Éloin was talking to her, in tones low and swift. Charlotte only half listened. Her agitation was nearly hysterical. Her eyes gleamed wildly, and sometimes they would close, as though they ached for the soothing that tears might bring.

“Who,” demanded Maximilian, “has had the presumption to introduce a spy on these grounds?”

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Éloin glanced quickly at the Empress. "A spy, sire?" he said uneasily.

"I mean that American, sir. But shall I ask the sentinels at the gate?"

"That, Ferdinand," Charlotte interposed icily, "is not necessary. Monsieur Éloin, at my command, brought the American here. You should know why."

"To save my play-empire, I suppose?"

"An empire," she cried, catching up the word the more hotly because she knew it to be Jacqueline's own gage of battle, "an empire, August Sire, to be gained by fighting, as your forefathers, as mine, won theirs. And that is nobler, *I* suppose, than puny inheritance. I do not know what the Hapsburg may be fallen to, but a daughter of Orleans still has the right to expect a crown from her husband. If not, she is unworthily mated."

Maximilian thought of that other empire, which that other temptress exacted of him. It seemed that he had many realms to conquer. But the grimmest humor of all was that he blithely imagined himself capable of satisfying the whims, not of one woman, but of two. Deluded Prince Max!

But the Emperor was not there to discuss empire building, much less to face the tigerish light in his lady's eyes.

"Monsieur Éloin," he said, "this is my first personal complaint against you, but there have been others, long, insistent ones, from French and Mexicans alike. You lose me my friends, sir, however I assure them that you have not the slightest influence over my policy. So, after the awkward intrusion of to-day, I am resolved that you had best leave us."

"Your Majesty desires—"

"That you leave the country at once, Monsieur Éloin."

"But," protested Charlotte, "that is open disgrace. At least cover it with the pretext of some mission."

The downcast courtier took heart. Watching his master with narrowed sycophant eyes, he said, "But it need not be a pretext, sire. Since I must leave Your Highness, permit me, then, to find my mission, and one in which I can still serve my sovereign, though in spite of himself."

Imperceptibly Maximilian fell under the spell of the old fawning.

"And what mission could that be, my good friend?"

"To feel the Austrian pulse, sire. To know when the time is ripe, to hasten the time—"

“The time for what?”

“For Your Majesty’s return. Even now the unpopularity of His Imperial Highness, Franz—”

“Éloin!” Maximilian stopped him sharply. But he could not hide the flash of his own blue eyes.

“What would Your Majesty? In Vienna, in Budapest, in your own Venetia, sire, they long for you; at least as regent till the crown prince shall come of age. Would you rebuke them also, as you do me?”

Charlotte stared at the Belgian in amazement and distrust. He had only just warned her how Jacqueline had kindled Maximilian’s Austrian hopes in order to get him out of Mexico, and here he was borrowing that woman’s guile. And here was Maximilian, too, softening under the enervating blandishment, softening behind his frowns for the officious meddler.

“There, there, Éloin,” he said, “you know that I must be inexorable. But in the *Journal Officiel* it will appear that you are gone on a secret mission, though you have no mission at all. None at all, do you understand, sir?”

Éloin protested that he understood.

“None,” repeated the Emperor, “except to win back my confidence. When you have taken leave of Her Majesty, you may come to my cabinet to bid me farewell.”

As Maximilian left them, Charlotte turned on the favorite. “Indeed, Monsieur Éloin?” she said in utter scorn.

“But, Your Majesty—”

“Is Napoleon, then, so liberal a paymaster?”

“Your Majesty!” and in genuine distress the courtier hurried on. “If you would listen, Madame! ’Tis true that Jeanne d’Aumerle has found the surest lever to pry His Highness out of Mexico—”

“So good a lever, that you would use it too, to topple over my throne.”

“Not so, Madame. It’s a cunning lever, yes; but *I* shall use another fulcrum.”

“Really, monsieur, if I were in the mood for riddles and such pretty trifles, I’d ask you to favor Us with a *chansonnette*.”

“But this is as plain as day. First, our little intrigante knows that if His Majesty tries for the Austrian throne, he must leave Mexico. *That* is her lever to move him. But suppose we shift it to my fulcrum. Then,

whatever encourages his hopes for Austria, will make him but the more determined to cling to Mexico. For to succeed in Austria, he must triumph first in Mexico. He must prove to Europe that he can reign brilliantly. But if he abandons Mexico, as Jacqueline would persuade him, what of his prestige then? What of his glory to dazzle the Austrians? If Your Majesty would suggest to him this phase—”

“And you, meanwhile in Europe?”

“Oh, I shall find his chances good over there, but conditional on his success here.”

“Monsieur Éloin, I find that I must congratulate you. More, I even regret that you are going, for I dread that some other will replace you in favor with the Emperor who—”

“Who may not be in accord with our views, Your Majesty would say? But if you will permit, Madame, I believe I know quite a different man. Moreover, he has already made an impression on His Highness, during our brief stay at an hacienda in the Huasteca. Now he is here. I brought him to commend as a future loyal follower.”

“Pray, who is the paragon?”

“A priest, Madame, a German priest, who perhaps would not refuse the Bishopric of Durango. The hope of that rich see would insure his devotion. His name is Fischer. He is a clerical, he is an imperialist, he is resourceful. Our Jacqueline will have much to do to outwit him. This corpulent padre, Madame, would wheedle the sulky pope himself into a good humor with us. If I might venture so far as to present him before—”

“Oh, I suppose so,” said Charlotte wearily.

PART SECOND

THE ROSE THAT WAS A THORN

IN THE LAND OF ROSES

“The rugged battle of fate, where strength is
born.”

—Emerson.

CHAPTER I

273

MEAGRE SHANKS

“... and should a man full of talk be justified?”
—*Book of Job.*

At the hotel in the City of Mexico where Driscoll stopped, the entrance was big enough for a stage coach to drive through. But as to height, it did not seem any too great for the attenuation of Mr. Daniel Boone, who therein had propped himself at his ease, delightfully suggesting a tropical gentleman lounging on a veranda under the live oaks. One shoulder was impinged on the casing of the archway, from which contact his spare frame drifted out and downward, to the supporting base of one boot sole. The other boot crossed it over, and the edge of the toe rested on the pavement of the Calle de los Plateros, familiarly so-called.

Mr. Boone hailed from Boonville, but in Missouri, with Kentucky for ancestral State, such was not a strained coincidence by any means. An individual there of the name of Boone, and a bit of geography likewise distinguished, are bound to fall together occasionally. For instance, a flea's hop over the map, and Mr. Boone and Boonville both might have claimed the county of Boone. Under the circumstances, Daniel's Christian name was the most obviously Christian thing his parents could do, and followed (to precede thereafter) as a matter of course.

Now, Missouri, in the beginning of the Civil War, was a very Flanders for battles, and this sort of thing had ended by disturbing Mr. Boone considerably in the manipulation of an old hand-press, dubbed his Gutenberg, which worked with a lever and required some dozen processes for each impression of the *Boonville Semi-Weekly Javelin*.²⁷⁴ Finally, when Joe Shelby and his pack of fire-eaters were raiding Missouri for the second time, Daniel plaintively laid down his stick in the middle of an editorial on Black Republicans, and what should be done to them. The shooting outside had gotten on his nerves at last. That blazing away of Missourians back home made him homesick. He was like the repressed boy called out by the gang to go coasting. And he went. An

editorial by example, he went to do unto the Black Republicans somewhat personally. The Javelinier was a young man yet.

“There’s been rumors hitherto about the pen and the sword,” he mused, “but type, now—that’s *hot!*” Wherewith he emptied his cases into a sack, took down a squirrel rifle, chased off his devil, locked in the Gutenberg, and joined the raiders. Flinging his burden of metal at General Shelby’s feet, he said, “There sir, is *The Javelin* in embryo for months to come. Now it’s pi, which we’ll sho’ly feed out by the bullet weight, sir.”

From then on the newspaper man followed his proclivities and turned scout, and it was a vigilant foe that could scoop him on the least of their movements, whether in the field or in their very stronghold, St. Louis itself.

At the present moment Mr. Boone was retrieving a lost familiarity with good cigars. There was a black one of the Valle Nacional in his mouth, and also in his mouth there was a wisp of straw. The steel-blue smoke floated out lazily, which his steel-blue eyes regarded with appreciation. It was an Elysium of indolence. The cigar, the not having to kill anybody for a few minutes, and a place to lean against, these were content. Troubadour phrases droned soothingly in his brain. Of course he had to apostrophize the snow-clads:

“Popo, out there, grand, towering, whose frosty nose sniffs the vault of heaven, whose mantle of fleecy cloud wraps him as the hoary locks of a giant, whose—Sho’, if I had some copy paper now, I’d get you fixed *right*, you slippery old codger!”

The wisp of straw hardly tallied with poesy of soul, nor did the lank figure and lean face, nor the cavalry uniform, badly worn, though lately new, nor yet the sagging belt with dragoon pistols. But the eyes did. Those eyes held the eloquence of the youth of a race. They were gentle, or they flashed, according to what passed within. It did not matter necessarily what might be going on without. They would as likely dart sparks during prayer meeting, or soften as a lover’s mid the charge on a battery. Shaggy moustached Daniel, not yet thirty, was a scholar too, of the true old school, where dead languages lived to consort familiarly with men, and neither had to be buried out of the world because of the comradeship. Once, in Pompeii, Daniel blundered suddenly on that mosaic doormat which bears the warning, “Cave canem”; and before he thought, he glanced anxiously around, half expecting a dog that could

have barked at Saint Peter himself. From which it appears that the editor had traveled, and it would not be long in also appearing that he had gathered enough of polite and variegated learning to fill a warehouse, in which junk-shop he was constantly rummaging, and bringing forth queer specimens of speech wherewith to flower his inspirations.

Streaming back and forth before the shops in lively Plateros street were elegance and fashion and display, the languishing beauty of Spain, the brilliancy of the Second Empire, the Teuton's martial strutting, the Mexican's elation that Europe had come to him and with the money to pay for it. The toughened Boone gazed on the bright morning parade of ravishing shoppers and ogling cavaliers with the unterrified innocence of a child, or of an American. He had the air of doing nothing, such as only ²⁷⁶ a newspaper man can have when really at work. He did not look as though he were waiting for some one. But only a half-hour before he had gotten from the saddle. He had just ridden four hundred and fifty miles for the express purpose of waiting for someone now.

Finally the keen, lazy eyes singled out an immense yellow horse and rider from among the luxurious turnouts. "Jack!" he exclaimed gladly. "The Storm Centre," he improvised, as the new comer approached, "straight as Tecumseh, a great bronzed Ajax, mighty thewed, as strong of hand as of digestion—w'y, bless my soul, the boy looks pow'ful dejected, knocked plum' galley-west! I never saw him look like that before."

Man and horse had come all night from Cuernavaca. But Din Driscoll never tired, wherefore Boone knew that *something* was the matter. At the doorway Driscoll flung himself from the saddle, gave the bridle to a porter of the hotel, and was following, his face the picture of gloom, when he heard the words, "How' yuh, Jack?" His brow cleared in the instant. "Shanks!" he cried, gripping the other's hand.

Mr. Boone untwined his boots and for the first time during a half-hour stood in them. As he shook Driscoll's hand, he shook his own head, and at last observed, in the way of continuing a conversation, "It was the almightiest soaking rain, Din, for the land's sake!" And he shook his head again, quite mournfully.

Driscoll had not seen Mr. Boone since leaving Shelby's camp back in Arkansas. He naturally wished to know what was being talked about. But his woeful friend only kept on, "It wet all Texas, heavier'n a sponge, and," he added, "they ain't coming."

“Shanks! You don’t mean—”

“Don’t I? But I do. They’re a surrendered army. The whole Trans-²⁷⁷Mississippi Department of ’em, pretty near. But not quite, bear that in—”

“But the rain? What in—”

“What did you come down here for, I’d like to know? To say how the Trans-Mississippi wouldn’t surrender, didn’t you? Well?”

“Oh, go on!”

“Well, it rained, I tell you. Didn’t it rain before Waterloo? Didn’t it now?”

Mr. Boone believed in trouble as an antidote for trouble. When he had stirred Driscoll out of his dejection enough to make him want to fight, he deigned to clear the atmosphere of that befogging downpour in Texas.

“You rec’lect, Din, that there war god we put up in Kirby Smith’s place, who so dashing would lead us on to Mexico?”

“Buckner, yes.”

“Him, Simon Bolivar B., whose gold lace glittered as though washed by the dew and wiped with the sunshine—”

“Now, Shanks, drop it!” Driscoll was referring to the editorial pen which Mr. Boone would clutch and get firmly in hand with the least rise of emotion. Against his other conversation, the clutching always became at once apparent.

“Anyhow,” said Daniel meekly, “he wilted, did our Simon of B. B. calibre, and he gave back the command to Smith. And Smith’s first order, his very first order, sir, was that the Department, the whole fifty thousand, should march into Shrevepoht and—and *surrender*, by thunder!”

“Dan, you’re not going to tell me—”

“That we surrendered, we, the Missourians, the flower of ’em all? Now s’pose you just wait till Joe Shelby gets back to us in Arkansas, after that conference with the other generals? Then you’ll see what *he* does. He proclaims things, on wall paper. The Missouri Cavalry Division will march to Shrevepoht, will depose Smith for good, will head off the surrender, will lead the other divisions on to Mexico. And we started to do it too. And then, and then—it rained. Rained, sir, till our trains and guns were mired, and we couldn’t budge! And all the time we knew that regiment after regiment was stacking arms off there at Shrevepoht. Did Little Joe rave? Opened Job his mouth? He did. His fluency gave the rain pointers. I sho’ly absorbed some myself, me, that have language tanks of ²⁷⁸

my own. Well, I reckon all our hearts pretty near broke. But we had our Missouri general and our Missouri governor, and the Old Brigade just decided to come along anyhow. And we're a coming, Din, we're a coming!"

Driscoll's face went blank. He thought of the scant welcome his homeless comrades would get. But Mr. Boone did not notice. He had only stretched his canvas, a big one, and there was a picture to paint. His long body began to straighten out, and his eyes glowed. From Xenophon to Irving's Astoria, from Hannibal crossing the Alps to Marching Through Georgia, he ransacked both romance and the classics for adequate tints, but in vain. The colors would have to be of his own mixing.

"Din Driscoll," he began solemnly, "*you* know that devil breed? Of coh'se, you're one of 'em. You're a chunk of brimstone, yourself. And you'll maybe rec'lect they did some fighting off and on. There was that raw company, f'r instance—boys, hardly a one broke in his yoke of oxen yet—and they hadn't even gotten their firearms, but they took a battery with their naked hands, and got themselves all tangled up in the fiery woof of death. But you'll not be rec'lecting that that there Brigade ever *lost* a gun. And those raids, Din, back into Missouri, a handful back into the Federal country, when men dozed and dropped from their saddles and still did not wake up, and some went clean daft for want of sleep, and fighting steady all around the clock too, fair and square over into Kansas!⁷⁹ And there was the night they buried eight hundred!"

In all this Daniel might have said "We," but reportorial modesty forbade.

"And," he went on, gaining momentum, "I don't reckon you'll be forgetting Arkansas, and the ague and rattlesnakes? And how the small-pox swooped down on that camp of cane shacks? And how the quinine gave out, and—and the *tobacco*? Lawd!—And how those boys forgot how to sew patches, their rags being so far gone! And how they made bridles out of bark, and coffee out of corn! And how they kneaded dough in old rubber blankets and cooked it on rocks! Well, Jack, there they were, in Arkansas like that, and the War was over at last, and Missouri was just a waiting for 'em. And then, to think that they had to face square around another way entirely! Din, you'll just try to imagine that there devil breed facing any other way except to'ds home!"

"Don't, Shanks, you—"

“Devils? They were the wildest things that are. It’s a mighty good thing they didn’t go back. Think of their neighbors across the Kansas line, getting ready for ’em with every sort of legal persecution under the sun, and carpet-bag judges to help! Outlaw decrees? Well, I reckon those decrees will make a few outlaws, all right, and there’ll be unsundered Johnny Rebs ten years from now. Shelby’s boys had the look of it. Your own Jackson county regiment would have flared into desperadoes at sight of a United States marshal. They were all in just that sort o’ mood, as they turned their backs on Missouri. And after four years, too! But there, it’s a stiff wind that has no turning, so cheer up! *They* did, as soon as that deluge got done with and they were headed for Mexico, one thousand of ’em. Soldiers mus’n’t repine, you know. For them, Fate arrays herself in April’s capricious sunshine.”

Driscoll had to smile. “Careful, there, Dan, don’t stampede.”

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“I ain’t, but if now ‘I hold my tongue I shall give up the ghost,’ and I want to tell you first that Texas is a handsome state. We—they—were considerable interested all the way through it.”

“But, Meagre Shanks, where’d you leave ’em?”

“Back in Monterey, drinking champagne with Fat Jenny. Alas, ‘who can stay the bottles of heaven?’”

“Fat—who’s she?”

“Now you wait. They’ve got heaps to do in Texas yet, before they get to Fat Jenny. First, they helped themselves out of their own commissary departments, horses, provisions trains, cannon, everything. Decently uniformed for the first time, and the War over! You should of seen ’em, a forest of Sharpe’s carbines, a regular circulating library of Beecher Bibles. There were four Colts and a dragoon sabre and thousands of rounds of ammunition to each man. They had fighting tools to spare, and they cached a lot of the stuff up in the state of Coahuila. And they fed, and got sleek. This ain’t editorial, my boy. It’s God’s own truth. Adventures every step of the way only did ’em good. They saved whole towns from renegade looters by just mentioning Shelby’s name. They fought all day and danced all night. San Antone was the best. There they gathered in generals, governors, senators, and even Kirby Smith, all yearning to join Old Joe—our Old Joe, who ain’t thirty-four yet.”

The speaker paused, and when he began again, there was a light ominous of inspiration in his eyes.

“At the Rio Grande,” he said, solemnly, “they crossed out of the Confederacy forever, so it was meet and right that there, in midstream, they should consign their old battle-flag to the past. They had not surrendered it, but as a standard it existed for those gallant hearts no more. Woman’s loyal hand had bestowed it. Coy victory had caressed its folds mid the powder pall and horror of ten score desperate fields. And now it floated over the last of its followers, ere the waves should close over it forevermore. With bowed heads, they gathered sadly about—”

“Lay it down, Shanks, lay it down,” Driscoll pleaded. He was referring again to the pen in hand.

“All right, Din,” Boone answered hastily. “Yes, I know, we all got kind of weepy too. No wonder Colonel Slayback wrote some verses. Reckon you can stand just one? This one?”

‘And that group of Missouri’s valiant throng,
Who had fought for the weak against the strong—
Who had charged and bled
Where Shelby led,
Were the last who held above the wave
The glorious flag of the vanquished brave,
No more to rise from its watery grave!’

“And,” he added savagely, “just let any parlor critic smile at the sacred feet of those same lines!”

“Let him once!” said Driscoll. His eyes were moist.

Mr. Boone faithfully traversed the rest of the way with the “Iron Brigade,” and no company of errant knights, perhaps, ever had such a junketing as those same lusty troopers. No sooner did they set foot in the enchanted land of roses than a damsel in distress, the República Mexicana herself, came to them for succor. Or more literally, a dissident governor, backed by the authority of President Juarez, offered Shelby military control of the three northern states and grants in the fabulously rich Sonora mines, if he would hang high his shield and recruit his countrymen in the republican cause. There is little doubt that General Shelby could have raised an army and become henceforth a power in Mexico, for Washington would have smiled on the undertaking and all Texas would have afforded a base of supplies. But the Missourian’s Round Table voted it down. They awaited Maximilian’s reply which

Driscoll was to bring. Perhaps, too, they would have a chance to wage war against the United States again, and that was better than being smiled on.

Henceforth they fought the forlorn damsel herself, fought every foot of the way through desert mesquite thick enough to daunt a tarantula. There were guerrillas, robbers, spies, deserters, and Indian tribes. It was one eternal ambush, incessantly a skirmish, often a pitched battle. They saved a French garrison. They rescued a real maiden by a night attack on an hacienda stronghold, and did it with strictly *de rigueur* dash and chivalry. Once or twice they were even stung, by some “langourous dusky-eyed scorpion of a saynorita” to fight among themselves, cavalryman’s code. Daniel was never one to spoil a romance by mentioning that a tropical maid was faced like a waffle-iron, though more than likely she was. Finally, as a last stroke, Fat Jenny promised to shoot Shelby and hang the rest.

“You’ve been derogatory about this lady before,” Driscoll interposed, “and I want to know who she is.”

“She is the English for Jeanningros, the French general at Monterey, who’d heard about those negotiations with the República. But Shelby formed in battle line, to storm his old city, and at the same time sent word explaining that he hadn’t accepted any offer from the República. So, instead of shooting and hanging, Jenny asked us around for supper. That’s where I left ’em.”

“What for?”

“W’y,” said Boone in surprise, “to see if you’d gotten here, and to take back Maximilian’s answer.”

“But what’s the use? The Trans-Mississippi went and surrendered.”

“Gra-cious, but you’re in a vicious humor! Now, here’s the use. Instead of fifty thousand, we’re only one thousand, I know. But there are hundreds and hundreds of Americans down here like us, and all of ’em wanting service. There’s that colony just starting at Córdova near Vera Cruz. But they’d fight, if there was an American to lead them, and more yet ’ud come from the States. Quicker’n that, Old Joe will have a division.”

Driscoll ruefully shook his head. “Maximilian wants us,” he said, “if we’ll give up our arms first.”

“If we—”

“If we will surrender, Dan.”

Mr. Boone’s jaw fell. The phrase that would measure the depth of the proposed ignominy would not come. Finally, he dug from his pocket a bright new gold coin, twenty pesos, and contemplated reflectively the side that bore Maximilian’s effigy.

“I’ve got the cub repohter’s superstition,” he said at last. “You get your cards printed,” here he tapped the coin significantly, “and you’re sure to lose your job—still we might of helped him.”

There was nothing, though, for Daniel but to turn back and meet the Brigade. Learning Maximilian’s decision, the Missourians would probably join the Córdoba colony. Boone reckoned that *he* would. He discovered that he was tired of fighting. Perhaps the new citizens at Córdoba would want an organ, a weekly at least; and already his nostrils were sniffing the pungent, fascinating aroma of printer’s ink. Then he asked Driscoll what he thought of doing, now that he was free.

“Don’t know,” came the reply lonesomely. “Stir around, I guess. There’s a flying column leaving this week to capture Juarez. Maybe that’ll do me.”

CHAPTER II

THE BLACK DECREE

“So may heaven’s grace clear whatso’er of foam
Floats turbid on the conscience.”

—Dante.

That unleashed hawk which was the flying column failed to clutch its prey. From the City of Mexico across the far northwestern desert the Chasseurs and cuirassiers rode their swift Arabian steeds, and into the town of Chihuahua at last. But the old Indian for whom they came was not there. Benito Juarez had fled. He must have known. Yet how, no one might conjecture. It was as though some watchful Republican fairy had marked the sturdy, squat patriot as the one hope of the Empire’s overthrow, and did not propose to have him taken. Scouts, spies, the entire French secret service, delved, gestured, and sweated. But they laid bare next to nothing. At the Palacio Municipal a number of functionaries told of a peon in breech clout, a wretch coated with alkali dust till the muscles of his legs looked like grayish ropes, who had emerged from the cacti plain ten days before and come running into Chihuahua. The peon had made direct for the Palacio, where, in some way, he had contrived a secret word with Don Benito; and that very day Don Benito with his one minister, Lerdo, had set out toward the north.

Afterward the functionaries had questioned the messenger, but he knew next to nothing. A señor chaparro had sent him, was all he said. It was a ridiculous anti-climax. A señor chaparro, “El Chaparrito,” “Shorty,” such a one to be the omniscient guardian of the Republic! But for all that “El Chaparrito” was to be heard of again and many times, and always as an enigma to both sides alike, until the absurd word became freighted on the lips of men with superstitious awe. There was an inscrutable, long-fingered providence at work in the blood-strife of the nation. The warning to Juarez at Chihuahua was its first manifestation.

Their quarry had escaped, but Driscoll was not sorry. More than once he had felt a vague shame for the unsportsmanlike chase after one lone,

indomitable old man. Driscoll held a commission, which Michel Ney, happily recovering, had procured for him from the marshal. But as the American's healthy spirits, like cleansing by vigorous blood, swept the gloom from his mind, he began to wonder at the craving for bustle and forgetfulness which had made him snatch at such an offer. The corners of his mouth twisted in whimsical self-scorn. He, one of your drooping, unrequited lovers! "Shucks!" that is what he thought. And he persuaded himself that it was all over. Quite, quite persuaded himself. But as a matter of fact, he hoped that he might never have to see her again.

It was not until October of the same year that Driscoll saw actual battle in his new service. With the Fifth Lancers under Colonel Mendez, the best of the few native regiments in the field, he had been assisting at a manner of pacification. That is, they marched from town to town, and received allegiance. Guerrillas of course punished the towns later, but Maximilian would not be induced to organize a native army, and thirty thousand French could not garrison fifteen thousand leagues. They could only promenade, through sand storms, through cacti. Then the battle took place. It was the last vestige of Liberal resistance to the Empire. A few hundred men near Uruapan in Michoacan flaunted their defiance. Driscoll noticed an expectant and wolfish look in his colonel's eyes. Mendez was a strikingly handsome and gallant Indian, but his expectancy now was not for battle. It was for the battle's sequel. Michel Ney and a squad of Chasseurs had just brought him an Imperial packet from the City, and the packet contained general orders very much to his Indian taste.

The fight was a rousing one, and Driscoll enjoyed himself for the first time in many days. His Mexicans behaved as he could have wished, better than he had hoped. At the start in the familiar uproarious hell, he missed the hard set, exultant faces of his old Jackson county troop, and seeing only tawny visages through the smoke and hearing only foreign yells, he felt a queer twinge of homesickness. But he was at once ashamed, for the humble little chocolate centaurs whom he had been set to train were dying about him with lethargic cynicism, just as they were bidden. Wearing a charm, either the Virgin's picture in a tin frame, or the cross, they might have worn the crescent. They were as effective as Moslems. They were ruthless fatalists.

Michel Ney also spent a diverting half-hour. He had lingered for the fray. Waving a broken sabre snapped off at the hilt, he charged with

Gallic verve and got himself knocked under his kicking and wounded horse, and pummeled by Liberal muskets on every side. Driscoll saw, and straightened out matters. Handing the Frenchman a whole sabre, he reproved him soberly, as a carpenter might an apprentice caught using a plane for a rip saw.

After it was over, the living of the enemy were prisoners. The victors marched them to Uruapan near by, because it was charged that at this place two of the captured Liberals, Generals Arteaga and Salazar, had lately shot two Imperialists. Here, in their turn, they were promptly executed.

Driscoll heard the volleys, ran to the spot, and saw the last horrid spasms.

“What—what—”

Ney turned on him a sickened look.

“Don’t you know, it’s the new decree.”

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“What new decree? These dead men were prisoners of war. If murderers, they weren’t tried.”

“It’s the decree I brought from Maximilian, the decree of general amnesty.”

Driscoll glared fiercely at such a jest, but to his utter amazement Ney was quite in earnest.

He who had commanded the shooting squad stooped over the corpses, a smoking pistol in his hand. Now he glanced up at Driscoll. “Pues, si señores,” he said, “of amnesty, yes,” and chuckling, he indicated the bodies with his pistol. “But wait—” He thought he saw a form quiver, one he had overlooked. Remedying this with a belated coup de grace through the brain, he shoved back his white gold-bordered sombrero and mopped his forehead as a laborer whose labor is done.

“Under which general amnesty, caballeros,” he went on merrily, “you have just witnessed the first act. My loyalty to the Emperor grows. His Majesty has a sense of humor.”

It was Don Tiburcio. He had deserted the Contrás to waylay the rich bullion convoy of which Rodrigo Galán had told him. But the convoy never came. Rodrigo, the “sin vergüenza,” had not levied toll at all. He had swallowed it whole, a luscious morsel of several millions in silver and gold. The coup was of a humor the less appreciated by Don Tiburcio because he had figured on doing the very same thing himself. At present

he was chief of scouts under Mendez, and commanded the Exploradores, audacious barbarians who were invaluable for their knowledge of the country.

From Tiburcio and Ney Driscoll finally gathered the meaning of the decree. It was the keynote to the Imperialist hopes. Its cause was the flight of Juarez across the border. Maximilian was surcharged anew with enthusiasm. Even the United States must now recognize his empire, he believed. And confounding flurry with activity, as usual, he fervently²⁸⁸ proclaimed the courage and constancy of Don Benito Juarez, but added that the Republican hegira finally and definitely stamped all further resistance to the Empire as useless. Then, august and Cæsar-like, he allowed amnesty for those who submitted immediately; he prescribed death for all others. Rebels taken in battle were not even to have trial. Maximilian believed that ink, thus sagaciously besmeared by a statesman's fingers, would blot out further revolution. But it was so fatuous, so stupidly unnecessary! The court martials, or French gardens of acclimatization, as the dissidents called them, were already doing the work of the decree. The poet prince merely lifted the odium of it to his own shoulders. His amnesty became infamy, and was called the Bando Negro, a nefast Decree to blacken his gentleness and well-meaning for all time.

Driscoll left his informants, and walked up and down, up and down, alone. It did not occur to him to fill the cob pipe between his teeth. A scowl settled between his eyes, and it deepened and grew ugly. The desperado was forming in the man—desperado, as contrast to polite conventions. Desperado, as primitive man, who hews straight, cutting whom or what he might, cutting first of all through the veneered bark of civilization. For this reason, in this sense, he might be termed outlaw. And walking up and down, up and down, he hewed till he had laid bare the core of the matter. And he saw it naked, without the polish. Thereupon he knew what he was going to do.

He saddled Demijohn, and Demijohn followed at his shoulder to the jefetura. Here, at the entrance, under the brick-red portales, Driscoll left the horse, untied, and opened the door and passed within.

The jefetura, or prefecture, was at present the headquarters of the command, and in the long front room were assembled a number of²⁸⁹ officers, including Ney and Tiburcio, besides the jefe of the place and

several town magistrates, all chatting with Colonel Mendez about the recent victory. They greeted the American cordially, and poured out tequila for him. He had done as much as any to win the fight. Michel laid a hand on his shoulder.

“Monsieur,” he said with mock formality, “to-day, when you permitted yourself to save my skin, you called me a fool. But I would have you observe, monsieur, that only my patron divinity, the god of fools, is permitted to know so much.”

Driscoll loosed himself from the affectionate grip, and turned to Mendez.

“Colonel,” he said, “I’m going to get out of this.”

“*What?* Oh come, mi capitan, find a better one!”

“It’s not a joke, sir. Profiting by a commission that does not bind me, I am here to tell you good-bye.”

“Jean, mon ami!” Ney cried in protest.

Don Tiburcio waited with keen appreciation, as he always did when the unexpectedness of this Gringo was unfolding. The others stared agape at the man between them and the door. Mendez saw too that he was in earnest, and he began to argue, almost to entreat. The Mexican leader had lost the quality of mercy in civil wars that had touched him cruelly, that had exacted many near to him, but there was sincerity in the man, and men were won by the stirring sound of his voice.

“You would retire now,” he exclaimed, “now, when every soul here may look for promotion, and none of them more than you, Señor Dreescol?”

But he did not stop there. He conjured up a tempting vista of long and honored life under an empire that was now supreme. Even the scum of rebellion yet left on the calm surface was that day swept away, and naught remained but to enjoy the favors of his grateful Majesty.

“Which only makes it,” said Driscoll, “a good time to quit. I should mention, too, that I intend to join the Republic, that is,” he added, “if there’s any of the Republic left.”

Don Tiburcio was not disappointed.

Mendez sprang to his feet and his voice was stentorian, as when he rallied his men by the magnet of fury and hatred.

“It’s desertion!” he roared.

“Or simple honesty,” Driscoll corrected him. “But it doesn’t matter. The penalty is no worse for a deserter, if you catch him.”

Mendez curbed his rage. He did not wish to lose this man. That is, he would regret deeply having to kill him.

“*Why* do you mean to change?” he demanded.

“Because I can’t feel *right*! It’s like—somehow it’s like being an accomplice of murderers.”

“Dios mio, I suppose Your Mercy and his tender heart refers to the Decree?”

“Partly. That thing is a blanket warrant of death. Just because your enemy can’t fight any longer—”

“But you forget, señor, the mines that exploded in the highways. You forget the poisoned springs, the ambushades, the massacres. Would they not shoot prisoners too, your new friends?”

“Si señor, as you and others may some day experience personally.”

“Then, mighty judge, condemn them also.”

“Don’t I? But I can’t blame them. They are punishing crime.”

“But not of murder, as we did to-day.”

“That too, for that was murder to-day. But I was thinking of a worse crime. I was thinking of theft, sir.”

“Theft? How can that be worse?”

“Theft of their country, I mean, and as your accomplice I owe restitution. Leaving after a victory ain’t so bad, but if I’d known that I was fighting for that Black Decree, I’d of dropped out before the fight. But look at it anyway you please. *How* it looks be damned!”

“Señor, lay down your pistols and sabre, there, on that table, because, by Heaven, I shall stop you! But if you are armed, I—I shall have to shoot you, too.”

“Hang it, Mendez, you’re a good fellow! But—I can’t help it.”

“Lay them down, you renegade!”

Driscoll removed his sabre and gravely placed it on the table.

“The guns are my own,” he said. “Dupin had them returned to me. *He* took them. Suppose *you* take them, Colonel Mendez!”

He was in the doorway, and from there he faced them. The day was hot, and Mendez had taken off his belt with his weapons. But the others were armed. Yet they hesitated. They were brave enough for death, but before the certainty of death for at least one among them and the

uncertainty of which one, they paused. Driscoll had not touched the black six-shooters under his ribs. That would have snapped the psychological fetter. As he expected, Mendez sprang first. This put an unarmed man between himself and the others. In the instant he wheeled, was in the saddle, and clattering down the street.

Back in the room Mendez saw his blunder and made way. Ney passed him first, reached the door, aimed and fired. But someone behind him touched his arm, and the ball sped high. Ney turned, and saw Tiburcio filling the door against the others, and regarding him with evil challenge in his eye.

“Oh, don’t think that I hold it against you,” Ney cried gratefully.

Tiburcio half laughed.

“A man who don’t want prisoners shot is better with the enemy than dead,” he said.

Tiburcio’s chuckle was prophetic. The enemy invariably executed Exploradores, and would certainly do as much for Don Tiburcio if they caught him.

Ney heard the hoof beats, already far away.

“May the god of fools look after him too,” he murmured heavily.

The fugitive swept round the first corner of the street and on through the town. None thought to stop him. Soldiers and townsmen supposed him on the Empire’s urgent business, and when they knew better, there was no longer hope for their ponies against the great Missouri buckskin, now a diminishing dusty speck mid cacti and maguey.

“The devil of it is,” Driscoll muttered ruefully, “I don’t know where there’s anybody to desert *to*!”

However, he was feeling much better.

CHAPTER III

AS BETWEEN WOMEN

“A laugh is worth a hundred groans in any market.”

—*Lamb.*

Jacqueline had wrought close to success during that May twilight on the edge of the Cuernavaca pond. She had won a promise of abdication. Yet in the end it was not the Emperor that left Mexico, but the Empress. And Jacqueline was to accompany her, to leave despite herself the scene of her labors. Such was the case precisely, and it all came to pass in this wise.

Maddened by the distance which his temptress kept, also goaded to it by the sorry state of his empire, Maximilian thought only of abdication. Napoleon responded to Jacqueline's cipher dispatch with orders to Bazaine. But Bazaine, urged thereto by Empress and *maréchale*, ignored the orders, and advanced Maximilian more money. And Maximilian, having no longer his excuse to quit, stayed on to spend the money. Jacqueline sighed, and—began all over again. Consequently Bazaine, hearing once more from Napoleon, found himself a defaulter, and virtually recalled. Consequently, Napoleon set dates for evacuation. Consequently the rebellion sprang into new life, and the Empire lost armies and cities, and thousands of men by desertion. But the darkest cloud was formed by one hundred thousand Yankees massed along the Rio Grande. Napoleon took heed. He ordered that the French troops should leave at once, unless half the Mexican customs were turned over to the French administrator. This was during the summer of 1866, only ²⁹⁴ six months after the bright hopes embodied in the Black Decree of general amnesty. Utterly appalled, Maximilian took up his pen again to sign his abdication.

But there was Charlotte. Even yet she pettishly clung to her crown. The Mexican agents in Paris had availed nothing with Napoleon. Bien, she would herself go to Paris. She would get the ultimatum recalled, and Bazaine as well, because Bazaine no longer advanced money. The

imperial favorites, among them the sleek-jowled padre recommended by Éloin, seconded her intention. And as they all talked so well, Maximilian quaffed of hope. With a spite hardly noble though entirely royal, he predicted that soon the marshal would find himself in a sadder fix than himself, the Emperor.

Suddenly, secretly, a little after midnight, Charlotte left the capital. Maximilian bade her good-bye with a solemn promise to rejoin her in Europe if she failed. Three days later Dupin and his Contra Guerrillas met her in the Tierra Caliente, and offered to join her French cavalry escort. The Empress took his presence as an affront. Of late small things excited her to a feverish agitation which she was unable to control. The Tiger bowed over his saddle, and kept his gray hair bared to a torrential downpour while her carriage passed on. It was the tropical rainy season. The clouds hung low around the mountain base and truncated the more distant peaks, while the valley below was a bright contrast in wet, tender green. The wheels sank deep, and mired in the black, soggy earth. Men tugged constantly at the spokes, and the steaming mules reared and plunged under the angry crack of whips.

The Tiger of the Tropics waited as carriage after carriage toiled past him and creaked and was forced on its way. Behind the dripping windowpane of the very last he saw a face he knew, a beautiful, saddened face, puckered just now by some immediate ill-humor. She frowned on recognizing the French barbarian, but unlike Charlotte, she did not jerk down the shutter. Instead, she lowered the glass by the length of her pretty nose.

“Is it dotage already, monsieur? Then put on your hat!”

“Name of a name, yet another petulant grande dame!” But the Frenchman turned his horse and rode beside her coach.

“Did Her Majesty pout, then?” inquired the lady within.

“Almost as superbly as Mademoiselle la Marquise.”

“Thank you well, but I have a superb reason for it.”

“Because you return to Paris, surely not? Yet, if that is the reason, you need not quite despair.”

“Why, what—what do you mean?”

“Only brigands, mademoiselle. When everyone is looking for abdication, a cortège mysteriously leaving the City must be the Emperor who goes back to Austria. The news travels like wildfire. The Indito

runners go as fast as when they brought Moctezuma fresh fish from the Gulf. I rather think they have carried the news to an old friend of ours. It's my chance to catch him."

"Not my Fra Diavolo—Rodrigo Galán?"

"None other. But Rodrigo is stirred by more than patriotism these days. Upon it he has grafted a deep wrong, and he swears lofty vengeance by a little ivory cross such as these Mexican girls wear. The conceited cut-throat imagines there is a blood feud between himself and His Majesty. So if he hears that Prince Max comes this way—"

"He will find Charlotte instead? But he must not detain her."

"Tonnerre!" exclaimed the Cossack chief. "Why not? She goes to Europe to sustain the Empire, while we French—"

"All the same, let her go. She will gain nothing there. Listen to me, monsieur. She leaves that he may *not* abdicate, while if I stay, she fears that—"

"He *will* abdicate?"

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"Your wits, mon colonel, are entirely satisfactory. And so she invited me to go with her, and as first lady of her household, I could not refuse. I wonder, now, if Fra Diavolo would deign to capture just me, alone!"

The sharp look which Dupin gave her from behind the streams tumbling off his sombrero was the sixth of a half-dozen. But it was this last one that seemed to satisfy him.

"Put up the window, mademoiselle," he said, "you're getting wet."

Ten minutes later Jacqueline felt the coach lurch heavily and sink to the hub on one side.

"Go on with your nap, Berthe," she said to her one companion. "They'll pull us out, as usual."

The customary yelling and straining began, and men grunted as they heaved against an axle. After a long séance of such effort there came a sharp exclamation, like an oath, and the confusion fell to a murmur of dismay. Someone jerked open the door, and Dupin's grizzled head appeared.

"Mademoiselle, I regret to have to announce that a wheel is dished in."

Jacqueline's gray eyes regarded him quizzically. The sardonic old face spread to a grin, but deftly readjusted itself to the requisite despair.

Not a carriage except the wrecked one was in sight. Only the Tiger's whelps, by the hundred, surrounded her.

“And the others? Her Majesty?”

“The others did the sensible thing. They know that you will catch up with them when they themselves are mired. Her Majesty, being ahead, is probably still in ignorance of your accident.”

“But the wheel?”

“If mademoiselle wishes it mended?”

“Is it so bad?”

Dupin caught her expression. “It will take six hours,” he said mercilessly.

“Oh dear!” said Jacqueline.

“There’s a settler’s cabin a mile from here. If you will accept my horse, and Mademoiselle Berthe can mount behind—”

“Poor Berthe,” sighed Jacqueline. But she nodded eagerly.

CHAPTER IV

THE LACKING COINCIDENCE

“Achilles absent was Achilles still.”

—*The Iliad*.

Colonel Dupin helped first one and then the other of his charges upon the same horse and wrapped them about in the same gaudy serape till only two pair of pretty eyes peeped forth at the rain. The Vera Cruz highway clung to the mountain side, but the Contra Guerrillas took a venturesome little bridle path which dropped abruptly down into the rich valley of a thousand or more feet below. Emerging from the dense tropical growth of the highland, they beheld a vast emerald checkerboard of cultivation, field after field of sugar cane, and set in each bright square a little house of bamboo with a roof of red piping. After the dreary black gorges behind them, the light of the sun seemed boxed in here under a leaden cover of cloud. Coming suddenly out of the chill and mist, the two girls felt the very rain gratefully warm and the fragrant smells of the wet earth a thing of comfort. As the beauty and the cheer of it subtly gladdened her mood, Jacqueline thought that here at any rate was an adequate *mise-en-scène* for whatever tremors might befall.

There was one circumstance that already seemed a portent, and got on a person's nerves like the stillness of nature just before a Kansas cyclone. This was the curious absence of all human life. Except for the grimly expectant troop around her, and the clanking of metal as the Contras rode, she had no token of a fellow creature. The first of the plantations was deserted, and likewise the next. But the house doors were open. Nothing showed preparation for departure. The riddle was uncanny. At the third Jacqueline stated that she would go no farther. She hated to tramp down a man's field when the man himself was not about to express an opinion, and the ruthless swath made by her escort through the cane gave her shame. Besides, it was too much like wading, the way her skirts brushed the long leaves and knocked off glistening drops by myriads.

The third cabin was abandoned too, but there were inducements within for any houseless creature. A hammock was hanging from corner to corner in the front room, probably to thwart the fauna of tropical stingers, and there was that comfort unfamiliar to French women, a rocking chair, before a most inviting fireplace, itself a luxury rare in Mexico. The two girls removed their cloaks, and settled themselves to dry their shoes before a roaring fire which the men lighted for them. Then the Cossacks,

including their colonel, left on some stealthy business without, and Jacqueline and Berthe were alone.

Jacqueline tried the rocker, found it good, and smoothed her skirts over her knees to the warmth of the blaze. "We've only to yawn at the flies, eh, *ma chérie*?" said she.

"Not a thing else, *madame*," came a cheery voice from the hammock.

Jacqueline was at once suspicious. "You absurd little mouse," she cried, "don't I understand that gaiety of yours! And all the while you are really trembling in fear of terrible bandits. For months now you grieve because you imagine that I—well, that I am sad. But you'll not make me hilarious, you won't, Berthe, as long as it's '*madame*.' Child, child, will you not let me have my friend in you, I who have none, nor a mother or sister! There now, if I'm not to be—ah—pensive—remember there's no '*madame*' between thee and me, dear!"

The Bretonne's gentle eyes filled suddenly. Jacqueline had before sought to change their relations, ever since Berthe's part in Driscoll's rescue from execution, but she had always tried to bring it about by playful bantering. Now, however, Berthe was given to see the utter loneliness of an orphaned girl in one who for all the rest of the world was the disdainfully independent little aristocrat, who had met the proffered intimacy of the French empress with a sneer, who was the cold princess when among princesses of the Blood. The loyal child of simple Breton folk sprang impulsively to the arm of the rocker, and was herself clasped no less impulsively.

"But there," said Jacqueline, laughing rather brokenly, "we're forgetting the flies."

A belt over the fireplace caught her eye, and she unexpectedly discovered that her breath had quickened. She stared fascinated at the letters on the buckle. "C. S. A.," she murmured. Then her startled gaze roved hurriedly over the walls. It became even frightened before a faded gray cape-coat of the Confederate cavalry and a battered white gauntlet sticking from the pocket. Involuntarily, trembling foolishly, she looked to see if there might not be an old cob pipe also. There was not, but the other familiar objects made her imagination leap fearfully to what might be. Both hope and dread will always override common sense, and convoy imagination perforce. If *he* did live here—if they should meet! Could such

a coincidence happen, could it, outside the neat ordering of a book or play?

She sprang to her feet and began investigating. She went awesomely as one would tiptoe over a haunted house. In the next room she came upon what was an odd treasure trove for an isolated bamboo cabin tucked far away under the Tropic of Cancer. It was a printer's shop, after a fashion. The case was a block of stone, in whose surface the little compartments²⁰¹ had been chiseled. They were sparsely accoutred with type and plentifully with cigar ashes. As for a press, there was none. But a form had been made up on a slab of marble, and near by were a tiny hillock of ink, a roller and a mallet. The mysterious printer could at least take proofs. There was one now on a file. Jacqueline pulled it off, and contemplated a miniature American newspaper, of one sheet, printed on one side only, and no larger than a magazine cover. At the top she read the legend, in German caps: "*The Córdova Colonist–Weekly Independent.*"

"Is that a pun?" she wondered.

But now at least she could identify the ghostly company of the valley, though not its scribe. That word "Córdova" gave the clue. A year ago one thousand hardy men had ridden into the capital from the north. Their leader was a fiery, black-whiskered little man with a plume in his hat and the buff sash of a brigadier general around his waist. They were the Missourians, defamed as "Shelby's horse thieves and judges of whiskey," honored as "The Old Brigade," and so feared and respected under any name that the City fairly buzzed and stared goggle-eyed. But Maximilian again refused their offers to enlist under his standard, and they could only disband. Some took ship to hunt for Kidd's treasure in the Pacific, others went to Japan and the Sandwich Islands, and a number joined a congenial regiment of veterans, the Zouaves. But the majority, she remembered now, had been settlers, persuaded thereto by their countryman, Commodore Maury, who was Imperial Commissioner of Immigration. Maury had secured a grant of land near the town of Córdova, within a hundred miles of Vera Cruz. There were one-half million acres of rich land, suitable for the three Big C's of southern countries, cotton, cane and coffee. But until now the strip had not been cultivated. The Church had held it fallow. Then the Republic had nationalized it; and the Empire was²⁰² selling it to the Americans at \$1.25 an acre. The hopeful settlement bore the name of Carlota.

So the cape-coat and those other things were explained. She was denied her coincidence. But as there was so much of a plot forward anyway, she ought to have been satisfied—as an artist, she ought. She craved an ecstasy of peril or of terror, not as the former dilettante of emotions, but as the lotus eater who exacts forgetfulness.

Meantime she read editorials, and got interested. The *Colonist* never advanced beyond the proof-sheet stage, but as such it circulated with avidity over the valley. Eloquence flowed serene under mashed type and variegated fonts. The editor persisted in viewing the Empire and Republic as political parties, and the horrors of civil warfare as incidents of an electoral campaign. He had congenial scope for his unpartisan and independent pen, advising with owl-like sagacity or abusing with peppery virulence, and either, for either side, with blithe impartiality. At times, though, the strained analogy between ballots and bullets evidently cracked, and rather floored the editor. For instance, in a pot-pourri of long primer and pica with a dash of Old English lower-case was the following:

As we went to press last week we paused to entertain a torchlight procession of the Young Imperialists' Flambeau Club, which was collecting a campaign contribution in the semblance of our alfalfa stack. The spectacle of citizens taking an active part in the issues before their country ne'er fails to rouse in us a spirit of collaboration, so what could we do but join heartily in the celebration, so that a most excellent time was had. Later our editorial staff, a score who in our canefields teach the tender sprouts how to shoot, knowing the same so well themselves, gently laid to rest a score and one Cossacks, past members of the Flambeau Club, who had lingered behind for the reason that they were past. But, we ask, *ad quod damnum?*—i.e., isn't it as futile as cauterizing a wooden leg? How much longer, O Jove, must we let our public-opinion moulds cool off while we chase enthusiastic young patriots away from our alfalfa!!!... In conclusion, with a cool brow, we are constrained to say that if the party in power cannot discourage the depredations above cited, we shall have to fortify ourselves to the contemplation of a change of administration.

“Why,” cried Jacqueline, “what an *animal disputans* it is!” She perceived²⁰³ an ink bottle, and exclaimed, “Ah, more milk from the black cow!” Taking up a wad of copy paper, on which a future editorial was already begun, she read, and quickly her amusement changed to a livelier interest.

“Rumor goes,” she read under the caption, *Ardentia Verba*, “that Father Augustine, political manager for the administration, vice Éloin, is soon to leave for Europe. He goes to have a pourparler with the Pope. He will concede everything, since the Empire no longer hopes to win over the moderate Mexicans. But the obstinate though Holy Father will negotiate a concordat on one basis only, and that is the return to the Mexican church of all nationalized church lands.

“Men of the colony, attention now! We each own something like three hundred acres apiece of these lands. And we are paying for them, we are cultivating them, and we have to defend them against both guerrillas and contra-guerrillas. And now they are to be confiscated! Our new homes are to be taken from us!! Alas, we who are peaceful settlers, to think that we were Trojans on a time!!! Fellow citizens, with us it’s a severe case of *e pluribus unum*. Oh, for a leader! But our incomparable chief of yore will not stir. Yet there *was* one, gallant cavalier of the South, peerless captain, just the dauntless heart for any forlorn hope under the starry vault of heaven, if he were only here! If he, John D. Driscoll, were only—”

The matter stopped abruptly. More than that, by force of habit the scribe had ringed the figures “30” underneath. They meant “finis.” The editor had known, then, that he would not return to end his harangue.

“A flea bite,” mused Jacqueline, “would interrupt the penning of an Alexandrian line. Now, I wonder who or what the flea could have been, and what—”

But there, she would ask herself no question concerning the editorially²⁰⁴ mentioned “John D. Driscoll.”

It was mid afternoon when Colonel Dupin, like a shaggy, dripping bear, returned to the house and begged leave to dry himself. Standing before the fire, he reloaded his holster pistols. They were tremendous, elegant utensils of French make, with a nine-chambered cylinder, and a second barrel underneath that carried a rifle ball. Where no prisoners were taken on either side, the owner of such a weapon usually reserved the murderous slug for himself, and the loading of that lower barrel

became a sort of ghastly rite. Jacqueline shuddered as she watched him fix on the cap.

“How do you explain your desertion of Her Majesty?” she asked. “Our Fra Diavolo should thank me for drawing you off.”

The Tiger adjusted the double hammer so that it would play on the cylinder first. A rumbling chuckle came from the depths of his throat.

“I should be honored with mademoiselle’s approval,” he said, “for at court mademoiselle is a guileful warrior. The casualties there may not be so sanguinary, but the strategic principle is the same. Know, then, that Rodrigo Galán employs a spy whom I own, body and soul. By now Rodrigo has learned from this spy that the Imperial coach broke down, and that to-night Her Majesty rests—here. So you see that she is not likely to be attacked—”

“But I see that *we* are, parbleu!”

“Of course,” and the Tiger unctuously rubbed his hands in the blaze. “It’s my chance to trap him. He has only three hundred men.”

“And you, monsieur?”

“Our mutual spy has told him that I have less than two hundred men. The brigand knows that I was forced to leave a garrison at Tampico.”

“But how many have you, really?”

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Dupin motioned her to the window. But she saw not a man, not a musket. She saw only the wet fields of cane, and the black mist-shrouded mountains beyond.

“Just the same,” the Frenchman assured her pleasantly, “they are there, full five hundred of my little tribe. Does mademoiselle approve?”

“It looks like the curtain on ‘Fra Diavolo,’” she replied, shuddering.

CHAPTER V

306

THE MISSOURIANS

“Men sententious of speech and
quick of pistol practice.”

—Major John N. Edwards.

An hour before nightfall the guerrillas attacked. Jacqueline was standing at the window, when she heard a jubilant din and saw a tawny troop charging through the fields toward the house. They yelled as they came, waving machetes and carbines. It was the usual theatrical dash of Mexicans. Like savages, they thought first to frighten their adversaries.

“Won’t you come and see, Berthe? It’s like a hippodrome.”

She felt sorry for them. The dulcet cane grew thorns. Under the leaves the black soil was become clay red with leather jackets. The Cossacks had fixed sword-bayonets to their muskets, and were waiting on their knees.

Stung by the hidden barbs, the first horses reared in air, pawing and screeching frantically. Many sank down again, and they were limp as the life ebbed. Others crashed backward, their riders underneath, and those behind plunged over them, unable to stop. Soon it was a fearful jumble; men and beasts, hoofs and steel, curses and shrill neighing. Then the firing began, a woof of fine red threads through the warp of pale-green reeds. The guerrillas yet fought. The myth of their own heavier numbers kept them from panic. Ragged fellows with feet bare in the stirrups leaned over to slash at heads between the tasselled stalks. They squirmed like snakes from under kicking horses, and fainting, got a carbine to the shoulder at aim, and somehow, pulled the trigger. Then they were taken in the rear. One-half of the Contra forces, mounted, had waited under the sapling growth of the nearest foothill. Now they sprang from cover, bloodthirsty whelps trailing the Tiger. The guerrillas could not turn back. To retreat they must cleave the way in front, and they did, by sheer desperation. Falling in the mesh at every step, they at last gained the large open space around the cabin.

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Then it was that Jacqueline got a near view of Don Rodrigo. He was superbly mounted, and his long body made a heroic figure on the curveting charger. He frowned, and his mustachios bristled fiercely, and his shouts of command were heavily ominous. The wind turned the folds of his black cloak. It was faced with scarlet silk; and the charro elegance beneath was black and resplendent. All told, he was a very outburst of glitter; breeches, jacket, sombrero, saddle, stirrups, and bridle; not of silver, but of gold. Good carbines for his vagabond Inditos, magnificence for himself, these had come from that fabulous theft of the bullion convoy. And he had arrayed himself this rainy day to dazzle a princess of the Blood. So now he wielded his sword with a conscious flourish, glancing toward the window to see if he were seen.

"The poseur, never out of his rôle," murmured his audience there. "How will he enjoy running, I wonder?"

But to her astonishment he did not run, though Dupin was cutting closer and closer through tangled bodies, eager to grapple with his old-time slippery foe. Don Rodrigo raised in his saddle, and looked anxiously in all directions. Suddenly his dark face lighted, and wheeling round, he called to his men, and in his turn strove as furiously to reach the Tiger as the Tiger had striven to reach him. Jacqueline could not now tell which side to feel sorry for. But she exulted in the thrill of it, even as she wrung her hands at sight of the red agony.

Then something happened, which even the Tiger, who knew his warfare so well, had never known; which got into even his dried and toughened marrow. It was the Rebel yell. It rose over a sudden thunderous rush of hoof beats. And next, as a puff of air, a herd of horsemen, a wild mud-spattering streak, surged past the house. On across the open, and straight upon the fray, they merged everywhere, and made bigger and livelier the blotch of mad swarming. Some wore slouch hats, others straw sombreros, and all were ruddily burned. They fought with revolvers, and often one would pause between shots to spit tobacco. They brought to the battle one thing above all else, and that was vim, vim unbounded, vim that simply had to have vent.

Jacqueline caught her breath. What race of men were these? Exalted, quivering, she watched them doing as workmen what fell to their hands, yet ever with that whirlwind of vim.

"The Missourians—of course!" she cried.

Through powder smoke and misty rain the figure of one horseman slowly grew familiar. She caught fleeting glimpses of him, as he darted into a *mêlée*, as he spurred round to find a hotter field. Suddenly her eyes widened, and she pressed a hand hard against her breast.

"The coincidence!" she gasped, trembling from head to foot. "It is the coincidence!"

Her nose flattened against the wet pane. She remembered how that general of the Missourians had told Charlotte about this man, for the Empress had asked. And the general had related how the troop had dubbed him the Storm Centre.

"And no wonder!" she breathed. "Mon Dieu, how he *enjoys* it!—But, oh—he will be killed—oh!"

Yet nothing of the kind happened. When she uncovered her eyes, his assailants were in flight. Every Cossack survivor was in flight. The Storm Centre wheeled and confronted Don Rodrigo, who raised his sombrero effusively.

"Rebellion makes strange comrades," thought Jacqueline. "But no, my—the-chevalier—does not take his hand." 309

Indeed Driscoll was looking the guerrilla over with little favor. "So," he exclaimed, "it was you I was to help here!"

"And what better patriot, señor—"

"Never mind that. Why didn't you wait till dark to attack? Weren't those the orders, or—that is, the suggestion?"

"But whose suggestion? Perhaps, señor, *you* know who El Chaparrito is?"

"Haven't the least idea, nor anyone else. But it's certain, Rod, that this is your first experience of Shorty. Another time, and you'll have sense enough to take his hints. Now then, where's the emperor we were to catch?"

Fra Diavolo's smile was Satanic. "Your Chaparrito was either mistaken about the Emperor, or," and he glanced toward the window, "or he deceived you into helping me capture a beautiful young woman."

"How? What—"

"I mean that His Cautious Majesty did not come, however much El Chaparrito seems to want him. But—" and Rodrigo's tone lowered heavily, "but his August Spouse came instead. She is in that cabin now. It is well,

señor, for vengeance in kind is just. It is righteous, it is biblical. Since fate has thrown—”

“E-a-s-y! Eas-y, boy. Of course, if we’ve gone and netted an empress, we’ll ask ’em to please take her back. This ain’t a woman’s game.”

“Give up a queen’s ransom?”

Driscoll nodded cheerfully.

“I believe, caballero,” said the brigand with awful dignity, “that I command here.”

Driscoll looked at his Missourians returning from the chase. “Well,” he laughed, “you might try it on, and see how they take it.”

Behind Jacqueline the door opened. She almost jumped. Of the hundreds likely to enter there, her startled fancy pictured only one. But the new comer was a stranger.

“Oh-ho, come a-visiting, eh?”

The voice was cordial, robust, Western.

“Missour-i!” she exclaimed involuntarily.

“Yes’m, Cooper county.”

She turned, won to friendliness, and beheld a man who, to use her mental ejaculation, was “of a leanness!”

“Monsieur—” and she paused.

“Boone, ma’am. Daniel, your most obedient servant. If I’d known—Sho’, we might of had things spruced up a bit. Are you the queen, maybe?”

The lady’s laugh rang as clear as a bell. Taken aback, Boone sought to correct his mistake. He saw that Berthe was seated in the hammock. She, then, must be the Empress.

“I’m downright sorry we went and captured Your Majesty,” he began.

“Her Imperial Highness does not understand English,” Jacqueline explained.

Then to her surprise the man proceeded in French. He was evidently greatly disturbed because Missouri hospitality did not harmonize with war. “It was a blunder,” he apologized earnestly, “come of our deciding just this morning to make you Europeans vacate our continent. But don’t let that worry Your Majesty. Here, under my roof, the decision doesn’t hold, *at all!*”

Berthe lifted her head quickly. It was her second promotion in the social scale that day. She had trembled when the door opened, for she

knew that Rodrigo's side had triumphed. But this tall stranger brought relief to one's nerves, and somehow she had watched him trustingly. He was of the same race as Monsieur Driscoll, to whom also she had once turned instinctively for help. But when the tremendous young fellow³¹¹ addressed her with reverence due a queen, she felt only the respectful admiration due a pretty young woman. It unexpectedly awakened in her the knowledge that she was a pretty young woman; and with a winsomeness that amazed and delighted Jacqueline, to say nothing of its effect on Daniel, she gently put him right as to her identity.

"It doesn't matter," Boone protested stoutly, "you ought to be one!"

The door opened again. It struck the wall with an insolent bang, and in strode Don Rodrigo. Jacqueline noted who it was and indifferently seated herself in the rocking chair, with her back toward him. The Mexican advanced to the centre of the room. The brief twilight had fallen, and the place was in half light except for the blazing logs. He stopped rigid and flung his scarlet-lined cloak back over his shoulder.

"Where," he demanded in the huge tones of a victorious general, "is the tyrant's empress?"

No one volunteered as to where the tyrant's empress might be. The toe of Jacqueline's boot was indolently busy with the embers on the hearth. The heads of both girls were in shadow.

Rodrigo's furrowed brow creased more deeply. "Which of you is she?" The heavy syllables dropped one by one. He stepped tentatively toward Berthe. So did Boone.

"Stand aside, señor!"

"Can't, dear brigand," said Daniel.

Then Berthe spoke. "Please, messieurs," she began, "Her Majesty is not—"

"It's only a maidservant," Rodrigo exclaimed in chagrin.

"Don't make any difference," said Boone, "she's come a-visiting."

"If, Seigneur Brigand," spoke a clear voice, "you had not interrupted Mademoiselle Berthe, you would stand informed by now that Her Majesty is not here. Will you deign to close the door?"

Rodrigo knew well those bell-like tones. Forgetting the question of an³¹² empress, he drew nearer to the lady of the rocker. She gave him no heed, but her profile against the red glow was very soft and beautiful. His chagrin vanished. Here was a more ravishing triumph.

“A vengeance in kind,” he muttered, wetting his lips. “Ha, he took nobody’s wife, as to that; and his wife may go. But in the matter of sweethearts—ah!”

Bending, he laid a hand caressingly on her neck, against the tendrils.

At the touch she sprang to her feet, and Boone leaped forward with fist drawn back. But both stopped. Her face changed from fury to pallor. Boone’s expressed approval.

The room had filled through the open door with men and torches, but the first man among them had come as far as Rodrigo’s shoulder even as the insult occurred. From behind, the man’s arm had straightened under Rodrigo’s chin, and twisting to a lever, was gradually forcing back his head. Rodrigo groped for a knife, but half way to his waist the fingers clutched vainly in a sharp spasm, and all involuntarily flew up and gripped at the vise under his chin. Yet another ounce of pressure, and it seemed his neck must snap like a dry twig. Suddenly his spine bent limp. Muscles relaxed. The whole body capitulated. Then the man behind stooped a little, and Rodrigo began to rise. Slowly at first, and next, as from a catapult, the brigand shot backward over the man’s shoulder and struck his length on the floor.

“No, not that, boys,” said the man. “Don’t kick him. Laugh at him, it hurts more.”

He spoke more particularly to one “Tall Mose” Bledsoe of Pike county who was purple with indignation that a “saddle-colored Greaser should dare lay hands on a white woman.”

But there were also “Rube” Marmaduke of Platte, “Mac” Crittenden of Nodaway, the “Doc” of Benton, “Cal” Grinders from the Ozarks, Clay of Carroll, and Carroll of Clay, besides a ruddy sprinkling from the county of Jackson. Among the latter was “Old Brothers and Sisters,” a plump little young man with cherubic eyes behind round brass spectacles. Clem Douglas had been ordained in the M. E. Church (South), and became thereupon the Rev. Mr. Douglas. “Old Brothers and Sisters” was a theological degree of later acquirement, lovingly bestowed by the Iron Brigade. But in his more recent gospel of pistol practice, Clem Douglas was not a backslider. He was simply all things Southern to all men. Like the others in the cabin, his hat was off, his muddy boots scraped; and like the others, he was not unaware of the two girls.

“Rather showery out,” he observed genially, wiping the mist off his glasses, and imagining weather a livelier topic than battle.

Jacqueline did not hear. Her eyes were still on the man who had disdained to strike Rodrigo from behind, who had flung him away instead, as one would a dog. She stood motionless, and her face was very white. She saw that he wore loose leather “chaps,” a woolen shirt, and an old coat, with only stained shoulder straps, green braid on dark blue, to indicate a uniform. His wet black hair was curly. His brown eyes flashed whimsical contempt on the resplendent guerrilla at his feet. He was the Coincidence; he was the Storm Centre. He turned, expecting to see the Empress, and he met her eyes. His own darkened with a new anger, and involuntarily, he swung round, himself to kick the Mexican who had insulted her. But a flood of memory swept over him, the memory of what he had seen at Cuernavaca. Not for her could he touch a fallen man.

“Take him into the back room, two of you.”

Red, red to the neck, he was turning to follow, when he saw Berthe.

“Miss Burt!” he exclaimed.

Heartily he shook hands with her. “It’s my first chance, you know, to mention what you did for me over a year ago. But I sure appreciate having my life saved, you know that. There now, you’re not to worry over this present mess. We’ll have it straightened out, just in no time.”

He stammered as he spoke, and when he turned and left the room, his bearing was constrained. Jacqueline’s eyes followed him until the inner door closed behind him. Then, with a half shrug, she sat down and pensively resumed the building of fiery mounds on the hearth.

CHAPTER VI

315

IF A KISS WERE ALL

“A man, a woman, a passion—what else matters?”

—Sardou.

“Tall Mose” Bledsoe and the Rev. Mr. Douglas conveyed Don Rodrigo to the back room, and here Driscoll and Boone joined them. They did not disarm the Mexican. It did not occur to them that any man would risk drawing a weapon in such company. And as to Fra Diavolo they surmised correctly. He sulked a little at first, for there were sore tendons that ached. But in the end he grew reasonable, and his white teeth gleamed acquiescence to all that the señores were pleased to say. He agreed to bivouac his men apart from the Missourians and go his own way at daybreak. The Contrás were routed. The Tiger had barely escaped. There was no further need of combined forces. Indeed, Don Rodrigo feared a night attack so little that he meant to reward his men with many copitas of aguardiente. Might he send a barrel over to his esteemed allies?

Mose Bledsoe turned a pleading look on the parson, and to his surprise the Rev. Mr. Douglas beamed tolerant benevolence. “Why yes, my friend,” he himself said to Don Rodrigo, “good liquor is always acceptable, especially when soldiers must sleep on the wet ground.”

The brigand was then allowed to depart, and Old Brothers and Sisters explained. It was best to let Rodrigo send the brandy, for then one knew what to expect. Otherwise the Christian brother and rascal would hatch up some other plot, and any other plot might take them off their guard.

When an hour later, Rodrigo did in fact attack the presumably ³¹⁶somnolent Americans, more happened than either he or they expected. A third was also waiting to strike for the sake of a woman. He was Dupin, who wanted nothing better than the allies at each other’s throat. Crouching warily near, the Tiger sprang at both of them. In the rain and the black night, the three-cornered fight raged like firecrackers under a tin bucket. The guerrillas, repulsed by the Americans, fled upon the Contrás,

whereat the Americans swept them both back indiscriminately. Instead of a lady, the Tiger carried off Don Rodrigo, and was quite glad to carry himself off. But Boone, scouting near, reported that Rodrigo was held a prisoner instead of being executed at once. This meant something. It meant beyond any doubt that the Mexican and the Frenchman would combine, Rodrigo for his life, Dupin to rescue Jacqueline.

The Missourians held council in Daniel's sanctum. To restore the captives to Dupin had been Driscoll's intention from the first. But now it was a question of trading them against Rodrigo. Dupin must know the American offer before he and Rodrigo should attack. Driscoll proposed for himself alone the errand to the Tiger's camp. Rising to his feet, he left his protesting friends without a word further. But he had to pass through the front room first, to get the cape coat hanging there. It was, in fact, his own. The two girls were seated before the fire, Jacqueline still in revery, Berthe nervously agitated from the late racket of battle. Daniel Boone had laid before them a ranchman's supper with tropical garnishing, but it was untouched. Driscoll nodded, crossed the room, took the coat from its nail, and started for the outer door as he drew it on.

"Snubbing—an acquaintance," spoke an impersonal little voice, "is cheap."

He stopped, waited.

"Of a gentleman, I reckon you'd say," he interrupted uneasily. "Maybe not, but a ruffian's got his instincts too. When he's afraid of hurting someone, he hides himself."

"I was mistaken," she said gravely, with that quaintest inflection of the English he had ever heard, "yes, mistaken. Hé mais—but it is just that the complaint. You hurt more by *not* speaking."

"But there's nothing to say," he faltered. "I'm just going to Old Tige's—to Dupin's camp, and get him to come here for you."

"Monsieur, monsieur, you fight for your captives only—only to give them up?"

"That's not the question. You can overtake the Empress yet. Dupin will—"

"But it is not that I want to overtake empresses at all. I—Berthe, would you mind carrying back these supper things?—I," she continued, when they were alone, "have no wish to go back to Paris. I shall return to the City."

Again the liaison with Maximilian, he thought bitterly. And Charlotte away! It was infamous. However, he had no right to be concerned.

“Very well,” he said, “then Dupin can take you to the City, or wherever you wish.”

“Ma foi, what trouble to be rid of your prisoners, monsieur, and after two battles too!”

“That’s got nothing to do with it.”

She meant, though, to have him confess that she had had a great deal to do with it. She was taken with the self-cruel fancy to lay bare and contemplate his love for her, that she might feel more poignantly the happiness she had lost. But he abruptly turned again to leave, and all else was forgotten in terror.

“You go to that Tiger!” she cried. “Do you not know that—” She darted between him and the door—“that he recognizes no rules of war? He will shoot you, he will, he will!”

Driscoll laughed.

“Oh, I’ll be safe enough all right, thank you. Dupin holds Rodrigo, we hold you. So it’s simply an exchange of prisoners. And he’ll not do anything to me, for fear of what might happen to you here. You’re not a hostage, sure not, but as long as he thinks so, I’ll profit by it.”

“You are right,” she admitted, yet not heeding his anxiety to pass. “Dupin will not even detain you. He will judge you Missou-riens by himself. So, voilà, he frees Diavolo. He comes for me. And—and you, monsieur?”

“Me? W’y, I’ll wait for the boys at Dupin’s camp, after he takes charge here. Then we’ll march.”

“And—you do not come back?”

“No need to. Now will you please get away from that door?”

“Not coming back!” she repeated. Could the Coincidence be for naught after all? Could not real life be for once as complacent as art? He was going, and when, where, in the wide world, in all time, might they ever meet again? And he was going, like that! Except for her, he would not even have spoken.

But—if he were the man to hold her, despite herself? If he were primal man of primal nature, the demigod raptor who seizes his mate? Yes, she would forgive him—if only he were that man. If, as such, he would but hold her from her duty, from her sacrifice, despite herself, if—if—if—And

so her daring fancy raced, raced as desire and hope to outrun sorrow. And why not? She could look him in the eye with that honesty which pertains to woman, for she knew that the shame he thought of her was only in the evidence of what he had seen, of what he had heard the world say, and not—no, not in fact. And for the kindness of that fact she thanked Providence. Then, daring to the end, her insane hope for happiness gave her to remember that there was a clergyman among these Americans, and to see in that the ordering of fate.

But Reality was still there, grim and greater than either Providence or Art. The man was waiting for her to step aside, and when she did, he would pass through the door and out of her life. She gazed, as for the last time, on his stalwart shoulders, on his splendid head, the head of a young Greek, on his flushed face, his mouth, and those obstinate little waves of his hair. How good he was to look upon—for her, that is! No, no, she could not let him go.

And she tempted him. With all her woman's beauty she tempted him. If beauty were aught, it must win her now what she held dear. Afterward, when she should tell him why, he would forgive her the unmaidenly strategy. She had noted with a passionate joy that the lines of his face were tightly drawn, were even haggard, that his breath came short; in a word, that he suffered. It told her that his gruff manner was not indifference, but the rugged front of self-control. What a will the man had! Knowing that strength, she must have been an odd young woman indeed not to try to break it.

"I suppose," she said, lowering her head and shaking it in demure resignation, "no, I suppose a captive has not the littlest thing to say of her disposal? But if the poor child has curiosity, monsieur? If, for the instant, she wonders why a monsieur fights for her, and then why he hazards his life to be rid of her?" With which she raised her eyes inquiringly. It was disconcerting.

"We'll not talk of that any more," he grumbled. "Are you going to let me pass?"

Frail creature between him and the door, how easy to remove her! But he feared the warmth of her hand, should he but touch it, or the faint odor from her hair, should a stray lock no more than brush his cheek.

"Even a captive will wonder why she is so little prized," observed the perverse maid.

She considered with glee that the window was too small, and with yet keener delight that his wits for strategy had left him. He did not once think of exit by the inner door.

“Why do you keep me?” he demanded.

His tone was harsh command, and for the moment it frightened her. She all but gave way, when she perceived that the menacing growl was really a plea. The poor fellow was at bay. She very nearly laughed. Then, too, he would not meet her eye again.

“Oh, am *I* keeping you?” she exclaimed in innocent dismay.

It provoked him to what she wanted. He came toward her angrily, while she stepped back against the door and spread her arms across it. Her pose was a dare; and the trouble was, he had to look. He had to see the girlish, the wonderful line of head and shoulder, the color flooding cheek and neck, and most dangerous of all, the challenging gray eyes. His teeth snapped to, and his hand closed over her wrist. He pulled, she yielded. He felt her other hand laid on his. The touch seemed to sear his flesh.

“You must not go,” she whispered, “must not!”

He drew her farther from the door, toward himself.

“Must not!” she repeated. He could feel the breath of her whisper.

“Don’t—Jack-leen!”

She barely heard the words, but she knew the agony there. And he, as he gripped her wrist, sensed the throbbing that passed through her whole body. For pity, he was powerless to thrust aside a lass who pitied him.

“It is that common, yes. It is not the instinct of—”

Yet, all the while, like another Brunhilde, she was praying in her heart that she had not taunted him in vain. A very eerie Valkyrie, she had taunted him to be the stronger, stronger than his will, stronger than herself, to strive with her, to master her. And now she saw a fury of love and hate aroused in him, a fury against herself for making him love her more than his great will could bear. In her lust for seeing this anger of his, she forgot her mission absolutely, forgot why she had come to Mexico, forgot all but the prayer in her heart.

Nothing was left her but to learn the answer, and this she did, by tugging firmly, coyly, to free her wrist. The answer was rapture; his grip had tightened. She pulled harder, and felt herself being drawn toward

him. Yes, yes, her triumph was a fact. Slowly an arm of iron, a tremulous, masterful vandal, circled her waist.

She pushed at him with her fists, and panting, tried to fight him off, however the blood stung in her veins and coursed hot as in his. The matter had gone far enough. It was time for explanations, for an adjustment. But he did not seem to think so. He was relentless. Barbarian Siegfried with the warrior virgin was not more so. The tendons in that arm of his suddenly went rigid, and crushed her body against him. It was then that a sudden horror took her, and she struggled like a tigress. She gasped out a cry for help, but the scream had no volume. Before she could try again, his hand covered her mouth.

And then, and then—oh, the words he was whispering! Even as he smothered her shriek, she heard them.

“Well—we’ll just have in Clem Douglas. You’ve seen Clem, little girl? He’s our parson.”

His life long, Driscoll had never dreamed of heaven as he saw it then in her eyes. Never, his whole life long, as she raised those eyes to his. And the sweet relaxing of herself, the trustful pillowing of her head on his breast, the soulful content as she softly breathed there, instead of that wild panting of a moment before! Blinded to the world, he fervently thanked God that he had been made.

He touched her white brow lovingly, and gently tilted back her chin. Again her eyes lifted, confidingly. His head bent. She waited. His lips drew nearer to hers, very slowly. He was held in a deep reverence, in an awe of something sacred. It was a rite of adoration before a shrine. And she, seeing that look in his eyes, wanted him to know that the shrine was truly as pure as in his oblivion to the world he for the moment believed. For later memory would come to him, and that she could not bear. He must know now, before their lips met. Yet a good woman may not brazenly avow that rumor and evidence speak what is false. But for all that he still must know, in some way. With a playful gesture she intercepted his lips against the soft palm of her hand, her eyes the while holding his in their communion of soul. And thus she spoke, prettily, saucily, and blushing the while,

“And are you so sure, sir, that you are the first?”

She had looked for protestation, and she would have answered. And he would have believed. He must have believed. But instead the spell of

faith broke sharply. Poisoned memory rushed in before it could be belied. She could see the tragedy of it in his changed look, in his ashen face, cold and gray. He thought her question a gloating over his weakness, and it revolted him. He was, then, but a caprice for her. He remembered that after all he had only happened by, and that she was returning to Maximilian. But still she was hardly less tempting. He had a moment of cruel conflict with himself, which left him with a sullen rage against the princelet in Mexico, against the order of princelets, that thus fell a deathly pall between an honest man and a true love kiss. Yet, she was there in his arms, dear and fearfully clinging and—no less tempting.

“Take this woman to my mother?” the question rose.

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As one might close the eyes of his dead wife, he loosed the arms about his neck, and let them fall at her side. Once free, he leaped to the door, flung it open, and was gone.

CHAPTER VII

A CROP OF COLONELS

“And thus they led a quiet life
During their princely raine.”

—*Ballad of King Cophetua and the Beggar-
Maid.*

Some years after the events recorded here, there appeared in the Boonville Javelin (post-bellum and revived) a serial of reminiscences, which, behind an opalescent gossamer of romance, pictured the Missourians and the chivalrous rôle they played around that forlornly chastened and be-chased damsel, la República Mexicana.

Quite aside from the prodigious deeds set forth therein, the journalistic epic is of itself naïvely prodigious, as anyone knowing Mr. Boone with pen in hand will at once suspect. All the little Trojan band—call them Gascons if you will, but own that if they boasted they were ever keen to substantiate the bluff—all of them, then, strove and blazed away invariably as heroes and were just as peerless as could be. You wouldn’t look for anything else from Mr. Boone. He must, however, be credited with one peculiarity, that he never hinted at himself as one of the glorious company. Daniel knew his newspaper ethics. He knew that the newspaper man is *not* the story, however they may regard it in France, for instance, where the reporter is ever the bright particular cynosure of any interview that bears his signature.

A few strokes of the Meagre Shanks brush in the way of excerpts from his narrative, with plenty of extenuating dots in between, should make an impression, even though impressionistic, and serve perhaps as a sketch of what befell after Din Driscoll had bearded the Tiger, freed Don Rodrigo, and surrendered his own two captives. To begin:

A retreat was had [Daniel always got under way slowly, as though fore-resolved not to stampede.] Echo demands, “Retreat?—The Iron Brigade in retreat?” ’Twas true. Rallied once again, but under another flag than the Bars, the Missourians rode all that dank, wet night lest they

meet and have to fight their new friends, the guerrillas under Rodrigo Galán. It was a weird predicament. Two days before, they were peaceful settlers in the land—*omne solum forti patria*—their blood-flecked swords as ploughshares fleshed in earth's warm bosom.... But tyrannical confiscation of the soil they tilled loomed foreboding.... Pestered nigh unto forceful phrases with shooing robbers of both sides out of their melon patches, and fired at last by the sentiment that it behooved them to sally forth and regulate things themselves.... They only lacked a Cincinnatus. Their old general would not lead them. Wearing his bright chaplet of renown, Joe Shelby now drove mules, a captain over long wagon trains....

Then gallant Din Driscoll appeared among them, the dry-humored, reckless Jack Driscoll of other days, attired now in the brave, dashing regimentals of the Republic[!] From out the wilds of distant Michoacan he came with the long gallop that never would tire, and pausing at cabin after cabin in the Colony's broad acres, summoned his old comrades to arms ... to arms against the invader.... Who, now, will argue bucolic content? Those lusty young planters smelled the battle from afar. What now were waving tassels to the glory of deeds?—*a cuspidate corona*—to a wreath of powder-burned laurel? That very day the Iron Brigade rallied again, gathered once again at the oft remembered bugle's full, resonant blare.

Fighting came sooner than the Missourians hoped. Even as they started for Michoacan, a ragged Indito, whose village had been razed by the Cossacks, met the command and asked for the Señor Coronel Gringo. Driscoll heard what he had to tell, and was greatly concerned, though the others laughed at first and scoffed. For it seemed that the Indito did not know who sent him, except that it was a señor chaparrito, a short little señor. "Then you must be a Shorter Yet?" said Driscoll. "Well, what do you bring?" The Indito produced from his ragged shirt a bit of parchment, whereon Colonel Driscoll was urged to join with his new recruits in an attack on Maximilian's escort, for Maximilian was on his way to Vera Cruz. The parchment was signed, "El Chaparrito."

"Shorty! That word means 'Shorty'," the troopers guffawed. But Driscoll showed them another handwriting at the bottom. The parchment had been countersigned in blank, thus: "Benito Juarez, Libertad y Reforma." The Missourians were respectful after that. Many thought that

the mysterious guardian angel of the Republic's battles must be the Presidente himself, though the Presidente was thousands of miles away.

After the victory won against Dupin's Contra Guerrillas [so the chronicle goes on], the Missourians found their ally to be none other than that picturesque buccaneer of the Sierras, Don Rodrigo, wild as a prairie wolf, handsome as Lucifer; and their captives to be not the Emperor and suite but two beautiful women....

When the prisoners had been exchanged—i. e., the two fair girls restored to Dupin, and Rodrigo freed—and Rodrigo had hurried away to gather his scattered vagabonds from among the foothills, the Missourians realized their predicament. That day they had fought the Empire. Then they had turned and fought the Republic in the person of the guerrilla chief, Rodrigo Galán. They had rebelled against the rebels, so were doubly rebel, doubly outlawed. Ye gods, it was bizarre! And as morning dawned on them trailing along a dreary inferno gorge of the Sierra Gorda, they blinked at each other ruefully. Poor waifs, they had lost their native country. And now, one rainy morning, they found they had lost an adopted one. But each man looked into a face likewise so rueful that his own broke into a grin.

“We'll just start a *new* country,” cried Driscoll abruptly.

His voice sounded strange and very unlike him, but the inspiration was characteristic of the man, and true to the old irrepressible Storm Centre they had known. Hunted outlaws, they too were in the mood for any desperate venture. Spontaneous as wildfire, they seconded this one ere they had asked a question. They never did ask “How?”

“A new country,” roared Tall Mose, “but where?”

“And when?” Old Brothers and Sisters inquired gently.

“We'll start right after breakfast,” their intrepid leader replied. “And right here in Mexico. It's anybody's country yet, and we might as well slice off a little private republic for ourselves.”

“And won't we fight, by Jiminy!” drawled Cal Grinders, with Ozarkian deliberation.

“And it don't matter whom we fight,” Marmaduke added. “Let 'em show themselves, Slim Max or Don Benito. We'll meet all comers.”

That was the mood they were in, and they were in it to the chin. Submit a wholesale fighting order, and they bid for it like neither bulls

nor bears, but like wolves.

“About taxation?” asked Clay of Carroll dubiously.

But as a good general, or as another Romulus, Driscoll had figured it all out. His answer brought comfort.

“We’ll not have any. We will levy on commerce, as republics have the right to do.”

“Then,” said Carroll of Clay, “we’ll need a seaport?”

“Of course. Ain’t Tampico simply waiting for us? The French aren’t there now. They are concentrating in Mexico City for evacuation. There’s²³⁸ no more of a garrison than what Old Tige left, a few hundred Cossacks. If we get there before the Liberals—” ...

... And why not? They were nearly five hundred and greater than Romulus. They were Missourians, sir. They were from that State which gave the best fighters to both sides; which, population considered, gave more to the North than any other Northern state, more to the South than any other Southern state, and yet as a state would be a Republic unto herself. What, then, might not be possible to these her sons on a foreign shore? Intrepid youngsters, they were of royal State lineage, Missourians from Kentucky, Kentuckians from Virginia, which was in the beginning. Dauntless cavaliers of the Blood, if they chose to carve themselves a kingdom, why not?

But they themselves answered the questions, questions that had men’s lives in them thicker than hard words in the Blue-back speller. The business was as already done, and Mose Bledsoe could go back to his chant with an easy mind. And once more Missouri’s revered saga echoed among the crags:

“I come from old Missouri,
Yes, all the way from Pike.
I’ll tell you why I left there,
And why I came to roam
And leave my poor old mammy,
So far away from home.”

Then, the bard leading in a fashion vociferous, the whole command helped out:

“Says she to me, ‘Joe Bowers,
You are the man to win;

Here's a kiss to bind the bargain,'
And she hove a dozen in...."

... Bivouacked under the black-lipped howitzers of Tampico's sullen heights.... Dismal fens ... where fever exhaled its dread gray breath thick over swamp and lagoon ... above, the vast ægis of the firmament,⁸²⁹ wrought in a diamond dust of stars ... a sickly, jaundiced, moon tilted drunkenly.... Through ooze and fetid slime the Americans crept stealthily out of the reeds; and on, over cypress roots, silently in the silent night; on, up the hill under the low walls of Fort Iturbide. Gently and fleeting as a dark beauty's sigh in old Castile, they were come in canister range.

"Steady, men," their leader whispered.

"Unto death," came the low-breathed response.

[No such words were uttered, as Daniel knew perfectly well, but he knew that they should be—in the telling.].... A sharp cry ... fearful alarms from the crest of the hill ... next a belching fury of grape.... But Tall Mose was happier for it. The seal was off his lips at last, and out thundered his stentorian war-song:

"O Sally! dearest Sally!
O Sally! for your sake...."

... still upward, until the cannon fumes broke as a dun-colored wave over pennant and plume ... and grimy troops fell as spring blossoms in a balmy south breeze.... Dying as they loved to die, game to the last ... they stumbled back to the river, which swept over the gallant stranger slain....

"... It's enough to make me swear!—
That Sally had a baby,
And the baby had red hair...."

... Then piercing and wildly plaintive, the clarions rang out, clamoring for victory and *væ victis*... and Din Driscoll's hoarse voice.... "We are the last of the race, let us be the best as well."... "Back at 'em, fellows!" Bledsoe bellows.... And the parson murmurs, "He prays best who fights best, both great and small" ... his soft voice tremulous enough for Glory, his superb⁸³⁰ trigger finger disturbing enough for Chaos.... At last, the supreme command "like volley'd lightning"—"Give 'em the revolver. *Charge!*"...

Not until the story is told shall ... for over the battered masonry, in through the splintered doors, felling shadowy foes on every hand.... When

well within-side ... the prowess of each unto himself ... tempest of pistol cracking ... bleeding deathfully ... ah, the killing is fast and desperate ... and not a candle over the pitiless fray.... Huddled together for a brief last stand, the Cossacks ... panic, flight.... *The fort is taken!*

When the incarnadine embers of sunrise glowed in the east, the Missourians stood on the battlements and surveyed their domain. “You are the man to win, Joe Bowers,” Mose hummed with an I-told-you-so air, but softly, for many of his comrades were wounded, though he was not, as usual, for all his seven feet of perpendicular target. But “the Doc,” of Benton, was, of course. Getting wounded was the greatest trouble with Doc. If he attacked a hornet’s nest, he would contrive some way to get a leg shot off. But with him such things had become to be a matter of course, so now he crated himself together enough to move around and attend to the others. Driscoll was most innumerably barked, with a perforated humerus as climax. [The modest Boone might have catalogued similarly his own casualties.] Old Brothers and Sisters, that cool Christian, had lost a lens out of his spectacles, and was now replacing it from a supply he always carried. What, though, were fractured arms and busted specs to becoming a republic over night?

But eternal vigilance is ever ... and menace was not long in coming. Three French gunboats, like sluggish water beetles, crossed the bar and steamed up the river.... Promptly the howitzers on the ramparts were trained.... But there was no need ... a white flag ... a naval lieutenant at the fortress gate.... The gunboats had not come to fight. Bazaine had sent them to carry off the endangered garrison, it being expected that a Liberal army under a General Pavon would shortly besiege the place. The Frenchman was astounded to find that the Liberals, as he imagined the Missourians, had already arrived. Driscoll allowed him to embark the dislodged garrison, as well as the defenders of the other fort, Casa Mata; that is, all except those who might want to change sides. And nearly every Mexican among the Cossacks did change. It was a sign of the panic that had spread throughout the Empire. Driscoll also insisted on the burial of certain guerrilla corpses which Dupin had left hanging to the town’s lamp posts. After which the gunboats took themselves out of republican waters.

Yet they left behind expectancy. So, a Liberal army two thousand strong was approaching? The Missourians provisioned themselves from

the town and rested on their arms. The Liberal host appeared, variegated of costume, piratical of aspect.... Again a flag of truce.... “If the señores Imperialistas desired to surrender?”... “We are not Imperialists,” came the reply from the fort, “and we’re blessedly d-n-d if we desire to surrender.”... “Then, the saints bless us, *who* are you?”... “The Republic of Tampico, de facto and determined.”

The dumfounded Liberals scratched their heads. They were Republicans, and here was a republic, and naturally it bothered them. But when they had gotten it tangled unmistakably enough, they decided that they wanted surrender anyhow, if the señores Tampicoistas would have the kindness ... and on refusal from the fort, they withdrew to load their siege guns.

They had sent a shot or two and received a dozen, when an Indito, emaciated and loathsome from scales of dirt, dashed from nowhere²³² through the cross-fire and pounded at the fortress door. Driscoll ordered him admitted. The first President of the Tampico Republic seemed extraordinarily anxious about this ragged vagabond, especially as he had perceived a second one, likewise from nowhere, dash into the Liberal camp. Ten minutes later the enemy ceased firing. “Now come, all of you,” Driscoll then said to his little army, “and hear what he’s got to tell. I reckon he’s a Shorter Yet.”... “From Shorty, then!” exclaimed his men. And so it proved, for the Indito produced the usual bit of parchment, signed El Chaparrito and countersigned Benito Juarez, Libertad y Reforma. The message thereon demanded why the Coronel Driscoll and his new recruits for the cause had turned against it.... “‘Cause we don’t hanker after hanging,” Cal Grinders interposed.... Was it, Driscoll continued to read, because they thought they had lost favor by fighting Rodrigo Galán? If so, there was naught against them, nothing, because President Juarez had outlawed Galán for robbing a bullion convoy. It was true that the writer of the parchment had used the said Rodrigo, in the hope of capturing Maximilian, but the bandit was not for that reason a Republican officer.... “In other words,” lisped Crittenden of Nodaway, “we’re in-lawed because the good patriot Don Rodrigo is away outlawed.”... “Therefore,” the parchment went on, “His Excellency the Presidente through the writer has herewith sent a message to General Pavon of the besieging camp to comply with whatever Their Mercies the Americans may deem fit to require. Further, knowing the temper of Their

Mercies, General Pavon is ordered to at once cease operations and leave Their Mercies in possession.”

The Missourians looked at one another and were reluctant. They hated to forego a battle. But it takes two sides to make one. Not outlawed, not even threatened, they had no excuse to hold against the Liberals.

“But,” said Crittenden, “as an ally of this sister Republic, we’ll still²³³ have our fighting.”

“Well,” demanded Driscoll, “what will you ask for?”

“Our Córdoba lands back, after we’ve won them from the Empire.”

“And,” put in Grinders, “equality. We want republican equality.”

“Then we’ll all be privates?”

“No sir-ee, by cracken! Equality high up, that’s what! We’ll be colonels, breveted colonels, every last one of us—Colonel Driscoll, Colonel Grinders, Colonel Brothers and Sisters, Colonel—”

“That’s easy,” said Driscoll smiling. “Now I’ll go and fix it up with General Pavon, before he gets away.”

... To conclude this chapter on the Missourians’ Republic, there is yet a word, which perhaps is also explanation of the saddened change that had come over Din Driscoll since that night after the battle with Don Rodrigo. It must be remembered that the peerless lad had just won his old comrades to the Mexican Republican cause. While yet rejoicing that here he more than made good the three hundred Liberals he had helped to capture when a captain under the Empire, he found that he had only cast his recruits out of the pale of law, first against the Empire, and then against the Republic.... Then he proposed their own republic, and for themselves they took Tampico from the French. But why? What was the real object in Driscoll’s innermost thought? The suspicion arises: Was it to win a peace-offering wherewith to make friends again with the Liberals? Such an explanation of his otherwise wild scheme is but a theory, but the theory fits, for John D. Driscoll, though as reckless as any and quick for any forlorn hope, was, when a leader, scrupulously practical.

The above suggestion, moreover, is apropos in these later days, when²³⁴ the Tampico Republic has become to be folklore throughout Missouri, and when our cousins, the Kentuckians, even those proud colonels by acclamation, cannot rank beside these five hundred colonels scattered over the sister state; so that, when a stranger questions, a Missourian

answers: “He a colonel? W’y yes, of course, sir. And, by God sir, a Tampico colonel, too! Yes, one of the five hundred!” and the stranger’s eyes bulge as he takes off his hat.

[The deposition of Meagre Shanks ends here.]

CHAPTER VIII

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ROYAL RESOLUTION

“... O restless fate of pride,
That strives to learn what Heaven
resolves to hide.”

—*The Iliad.*

On returning to the capital, Jacqueline did not once set foot in any Imperial palace, but she established her own salon of a grande dame, and there installed herself mid a simple elegance. What was left of the mortgaged château in the Bourbonnais went to pay for it. Jacqueline would accept not a louis out of Napoleon's Black Chest. A French gentlewoman, she impoverished herself to work for France. And when, a little later, Napoleon dishonored his own name and that of France in his dealings with Maximilian, she thanked the instinct that had kept her free. Puddles muddied one's skirt so! The valiant maid broke her sword. She would serve no longer. At least, she was quite certain that she would not.

Napoleon's shame lay in this. Maximilian had accepted his harsh ultimatum regarding the Mexican customs, and in return for such humiliation he depended on the presence of the French troops for yet another year. But the United States threatened war, and Napoleon cringed. He would withdraw the troops immediately. He would abandon Maximilian, treaty or no treaty. Thus the quiet forces in the American Legation at Paris battled against the proud House of Orleans. The princess of that House failed. She could not save her husband's throne, and her own. Her mind gave way. She became a raving maniac. So much for Charlotte's mission.

With the news Maximilian was a broken man. He seemed to remember his promise to rejoin her in Europe, for he set out coastward and left the marshal a letter that was virtually his abdication. Yet in the Hot Country he stopped for his health. An Austrian frigate waited for him. But behind him was his capital. Would he return? History will never know, perhaps, the soul-despairing network of intrigue and counter-intrigue that wound

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and tightened about the young sapling roots that would strike deep in an unnourishing soil and become a dynastic oak. The rabid clericals, who were Maximilian's ministers at the time, thought their puppet gone, and in terror of an avenging Republic they resigned. But Bazaine, urged to it by Padre Fischer, prevailed upon them to remain, and Fischer gave his word that the puppet would not escape. So France lost another chance to take back the Mexican Empire, and thereby pave a way out of her shame. For while Maximilian recuperated, he reconsidered. Clerical generals assured him of armies, the ministers talked eloquently of treasure from the Church coffers. The fat padre manipulated generals and ministers and Emperor, He was supreme. None might come near the royal ear except at his pleasure.

It was at this time, about the first of the year, some six months after Charlotte had sailed to Europe, and only a few weeks before the French would do the same, that one evening Jacqueline's footman brought her a plainly sealed envelope, without crest, without writing. She tore it open, and started as she looked at a simple autograph on the card inside.

"His—this gentleman, Tobie, you admitted him?"

The well-trained servant stood impassive. "What would madame have?" he replied. "The man walked in like a lord, keeping his face hid in a cloak. But if madame—"

"Was there a carriage?"

"No, madame, but I noticed a saddle horse at a little distance, held by a mounted soldier with a carbine. But if madame—"

"He is in the drawing-room, then?"

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"Oui, madame, and without removing his Mexican sombrero. But if madame desires that this citizen find himself—h'm—pressed to go—"

"Tobie! No, on the contrary, you will permit him to wait undisturbed, until I come."

A few minutes later Jacqueline beheld a tall figure in elegant charro garb striding the length of her salon. As she entered, her guest threw off sombrero and Spanish cloak, and revealed the drawn and troubled features of the Emperor of Mexico.

"Your Majesty has returned to His capital!" she exclaimed. "Then it is true—"

"That I shall cling to my play-empire? But I do not know yet, mademoiselle, I do not know yet. If I did, I should not be here, here in

your house for the first time, and against your wishes—”

“Will Your Highness be seated?”

Maximilian flung himself wearily into an armchair. The fire of the enthusiast had died out of his eyes, and the fire of fever had left them faded. They reminded one of the blue of old-fashioned china.

“But why—” she began.

“Why come to you, you mean? I don’t know; instinct, I suppose.”

“Isn’t that rather vague? Your Imperial Highness returns to the City, to his palace—”

“Not to his palace, mademoiselle, not while it would seem a mockery of my poor imperial state, but to an hacienda in the suburbs. If I enter my Mexican palace again, it will be because I have decided to remain an emperor.”

“And for the reason that you have *not* so decided, you do me the honor—”

“I do myself the service, mademoiselle. I can bear this torment of indecision no longer, and you can help me, for you, dear lady, see clearly²²⁸ where the vision of others is distorted. The enthusiasm of the others is unsafe. Yes,” he sighed, with a little superior air of resignation to all human foibles, “those on whose loyalty I can depend are indeed few, but I am thankful that among them are my ministers, and my faithful secretary, Father Augustin Fischer—”

“Then why, in heaven’s name, does Your Highness come to me?”

“Instinct, or—perhaps it’s mania. Something has forced me to learn what *you* would say.”

Jacqueline’s foot—a small digression, at most—was slipped in blue, and this she pillowed on a cushion of red. And on another cushion she settled her elbow; and the sleeve of the chemisette, or blouse, or whatever the high-necked filmy white garment was, fell away, revealing a rounded forearm clasped in a band of gold. And resting her chin on her thumb, she regarded the young prince thoughtfully. In her look there may have been a sedate twinkle of amusement, but all was gently, pityingly sympathetic.

“Let me know,” she said, “more of the doubts that trouble Your Highness.”

Unerringly she touched the right chord. Doubts, yes, doubts of a broken dreamer. Illusions shattered as bubbles. A dweller in an ideal shadow, believing that subjects needed only lofty phrases, Maximilian

was finding himself tragically maladjusted to the modern day in which he lived. But as the words tumbled from his lips in the passionate relief of unburdening, it quickly appeared that his misgivings arose only because he had fallen short of Dark Age standards. He recalled bitterly how, unlike the illustrious among his ancestors, he had not stirred until others had won his crown for him. But destiny was kind. He had the chance for redemption. To hold his empire now depended on him alone. He would mount his horse, give to the light a true Hapsburg blade, and valiantly³³⁹ ride forth to conquer or perish, and in any hazard be worthy of his House.

Then, without abrupt change, he talked of Austria's late woes. Had he but commanded his country's ships at Lissa! Could he but have risked his life at Sadowa! And moreover, he was still needed over there. But in some quick recollection a moisture dimmed the blue eyes. He drew from his vaquero jacket a dispatch. It was from Franz Josef. If Maximilian returned to Austria, the message ran, then he must leave behind the title of Emperor—leave behind even the title!

"And will that hurt so much?" asked Jacqueline.

The Ritual again! For it a man withheld asylum from his brother.

"Is there no mother," cried the exasperated girl, "to spank both your Majesties?"

"'Tis of Her Serene Highness—" Maximilian began with dignity.

"Highness? Yes, I forgot, but not high enough to chide majesty, though she be a mother."

"Yet she has only just warned me of her deep displeasure if—No, her message shall wait. I wish to hear first what you think. Tell me, shall I go, or shall I stay? Tell me, tell me, and why!"

Feverishly the man craved one frank word. There was in his look the prayer of a desperate gambler who watches a card poised between the dealer's fingers. Jacqueline had one answer only. But exactly how to express it, lest she be wrongly taken, made her pause.

"In the first place," she began slowly, "there is only a single consideration involved, and in that lies the solution of Your Majesty's doubts. I mean the consideration of honor. Now if Your Highness is—*whipped* off his throne—that is ignominy—But wait, wait, I am not through. I—"

"Almost my mother's words!" he cried triumphantly. And with a hand³⁴⁰ that trembled, he got out the letter from that Archduchess Sophia who had

given one son a crown and loved this other as her darling.

“Rather than suffer humiliation by a French policy” he read from her letter, “stay, stay, though you be buried under the walls of Mexico!”

“But—” Jacqueline interposed. She had been taken amiss after all.

“You too bid me stay,” he insisted. “But I might have known. I might have known. One who never errs said that this would be your counsel. The Padre is wonderful—wonderful!”

Father Fischer, of course! What else? How consummate was the snake in his cunning! He counted on honesty and nobility in another, though having none himself. He knew Jacqueline. He thought that, both good and frank, she must advise the Emperor as his mother had done. Accordingly, when Maximilian became afflicted with doubts, the priest allowed him to go to Jacqueline. She would be an accomplice despite herself. Only his judgment did not go quite far enough. Jacqueline had not spoken *all* her mind.

Imperiously she compelled Maximilian’s attention. “I said ignominy, yes,” she persisted, “but I would have added that honor—the modern and the decent—and the only courage, lies in facing this same ignominy. Listen. If the least of impure ambition enters in your decision to remain, then for each death in the civil war that must result, Your Highness may hold himself to account, and so be held by history. Now,” she went on, unmoved by the fact that he had winced, “the question remains with Your Highness—does aught besides honor hold you to stay?”

To himself he answered as she spoke, and guilt confessed mounted his brow.

“But there,” she said, “Father Fischer will interpret the will of the Almighty. Before Your Imperial Highness retires to-night, my words will be forgotten.”

The lash fell on flesh already raw and smarting. To predict that he would change yet again, when to change he branded himself a wilful murderer—no! That was more than he could endure. She must not think that of him. He held out his hand. “Jeanne!” he murmured imploringly.

“Don’t!” she cried, “Don’t call me that!”

Then she bit her lip, and her fury turned against herself. “Jeanne” was feminine and French for “John,” which was masculine and—American. This important discovery she had made months ago when riding beside a man whose horse was “Demijohn.” As a girl in love, she had found a

cozy joy in their names being the same. But for that very reason any recollection of it, since then, was the less to be borne.

Blushing indignantly, she saw that Maximilian was regarding her with a puzzled expression. Manlike, he referred it to himself, and suddenly, he too started. Only once before had he addressed her thus familiarly, which was during that memorable afternoon beside the artificial lake at Cuernavaca. Here, therefore, must lie the association that caused her agitation. Yet, since that afternoon, she had permitted no reference to their interview, unless to raise her brows quizzically at his continued presence in Mexico. But now, what of the self-betrayal into which he had just surprised her? It could not but be connected with that other time when he had murmured her name. There was, however, no conscious vanity in the remarkable explanation. It was remorse. He thought of Charlotte, his wife. And this other woman, had he wronged her also? For during the past weeks of trouble he had forgotten that he had loved her, and she had not forgotten. In two such facts, falling together, was the wrong, and one that a woman scarcely ever forgives, as he had had reason to know.

“I could not help supposing, mademoiselle,” he ventured diffidently, “that what you said at Cuernavaca was inspired by—by no feeling toward myself. I could suppose nothing else in the light of your utter indifference since then, and—and your aversion for my very presence.”

Jacqueline laughed pleasantly. “In that Your Highness deceives himself. I did then, as I do now, feel for Your Highness enough to wish him safely out of Mexico.”

“Charity, then?”

She did not protest.

“As I thought,” he said. “There was no feeling in—in—”

Jacqueline raised her eyes and met his frankly.

“When a woman feels in the sense you mean, sire,” she said, “then she does not make an empire, even the Austrian Empire, a condition. If the man in question has no more than his horse, his pistols, even his pipe, then the woman—” But she stopped abruptly.

“With you,” he granted honestly, “it was not a matter of personal ambition either. But if neither of these, then what—Now I see!” he cried. “A state reason! A decoy, to tempt me out of Mexico! Yes, yes, now I see!”

“It is good to know,” said Jacqueline, not ungratefully, “that Your Majesty at least, if no other, can see a high motive in my self abasement.”

“Now what can she mean by that?” he demanded of himself. “What other, in particular, thinks hard of her that she should care?”

Éloin was the only other man who could have seen them, there at Cuernavaca. No, little it mattered to her what Éloin thought. But—yes, there was another. There was the American who had intruded and wanted to save his empire. Maximilian recalled now her change to bitterness after the American had left them, and a moment ago he had seen the identical pain of self-contempt tug at her lips. And yet, once she had left the American to die. But Maximilian answered even that objection. Leaving him to die was a necessity for her country. And the sacrifice had gone farther. It had not faltered before the self-degradation of which she had just spoken.

The admiration in his eyes grew. The chivalry in his race awoke within him, and exalted him. He felt himself become the true knight, in the purity of devotion to a woman—a gentleman, as real chivalry would have the term. Poor man and poet, he felt even the impulse to bend the knee and crave as a boon some risk of life in her service, without thought of boon thereafter—a knightly impulse nearly obsolete in chivalry, if ever customary. But he knew now that the impulse was really possible, and the proof was this: that the constraint between them had vanished, that soon he was talking with her easily and naturally.

For Jacqueline also the air had become blessedly pure, and deeply, gratefully, she breathed of it. Because now she talked with one whose respect was a fact, who *knew* her for what she was, and during a moment’s space she was happy, with the happiness of delusion. It seemed that other men, that one other man, might one day know her too, and give her his esteem. But the phantasy passed. The knowledge must forever be restricted to the man before her, and for him she did not care.

Maximilian, very strangely, was thinking of the very self-same thing. Here was a service in her behalf already offering. If he could cause that other man to know? But it was out of the question. Men may convince one another of a woman’s guilt, and only too easily. But of her innocence? No, it was absurdly out of the question. Besides, next day the true knight would be starting back for Europe. Had he not just decided?

CHAPTER IX

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INTERPRETER TO THE ALMIGHTY

“... and could make the worse appear
The better reason.”

—*Paradise Lost*.

After half an hour's sharp canter, Maximilian dismounted at La Teja, his suburban hacienda. He had come quickly from Jacqueline's, for his heart was light. The stress and storm of wavering were ended at last. Soon now he would be at Miramar, at beautiful Miramar, overlooking the sea, where Charlotte awaited him, but knew it not. And by love and tender care he would coax her back to sanity. Ah, no, the pure joy of living was not done for them yet!

“Desire Father Augustin to attend me in my private cabinet,” he said to the first lackey.

The huge priest came on the instant. He bore a candle in one fat, freckled hand, and above its light the dull flesh of his face shone yellow. His head was as ever pear-shaped with its heavy, flabby jowls, and in the apex the two little beads of eyes leaped adventurously at sight of the prince.

“I am here, sire,” he said purringly. “Your Majesty, then, wishes me to prepare for his return to the imperial palace to-morrow?”

“No, father,” His Majesty answered stoutly, though not without an uneasy glance. “To-morrow I set out for the coast. The *Dandolo* is still there at anchor. You will give the necessary orders to my Hungarians, who will be my escort.”

Fischer opened his lips, to close them. The involuntary creasing of his brow smoothed at once. Maximilian, who had dreaded argument from this man, breathed easier. But of course any man would give way when a Hapsburg had irrevocably made up his mind. The padre laid down the candle, and interlaced his bloated fingers over his paunch in an attitude of sleek calmness. He was smiling and fawned meek anxiety to second his patron's least wish.

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“Your Imperial Majesty’s wisdom, I see, is not a thing to be turned by the fräulein?”

“On the contrary, Mademoiselle la Marquise d’Aumerle counseled my departure, not my remaining.”

The fingers tightened slightly over the bulge of the suture. “She then presumed to differ from Her Serene Highness, Your Majesty’s mother?”

“My mother would counsel the same, were she in Mexico. I thank you, padre, that I went to see the only one who could so take my mother’s place, because now, at last, I know what I must do.”

The priest took a long breath, and drew back, mentally, to some vantage point whence he could survey the field and plan his campaign anew. He nodded humble acquiescence, but the small bright eyes seemed to gorge themselves on the prince. Maximilian stirred restively. One has seen a lion watch the trainer’s whip, as though he wondered that a creature with only a whip should yet, in some way, compel him to do this or that. Before an obscure adventurer the monarch hastened to justify his abdication. But it did not make him easier because the padre listened so obsequiously, with never a quiver before the horror and misery pictured. He only listened, this man of God, noting it all deferentially, item by item, with a smiling gesture that he heard and understood, and was quite ready for the next. Maximilian became aware at last of his own low stooping. And that moment he stopped abruptly.

“The Lord reward Your Majesty’s tender heart,” now spoke the priest,²⁴⁶ “and may the reward be such as a ruler should expect from his God!”

“What do you mean?” demanded Maximilian in impatient anger. “Have all the barbarities of civil war no power to move you? Do I not know that the savagery has already begun?”

The curate crossed himself. In humility he would bear the charge of hardness of heart. “Power to stir me?” he repeated. “If Your Majesty would think on his power to bring this same savagery to an end! That is his reward offered by Heaven, the reward of bringing holy peace to a stricken land.”

“Did I not come for that? You only remind me how I have failed.”

“And why, sire? Because your instruments were not blessed. The French oppressed the Church as well as the people. But now the French are leaving. It is the hand of Providence.”

“She *said* he would interpret the will of Heaven!” Maximilian exclaimed.

The priest heard, stammered, and went to wreck miserably, as a hypocrite unmasked knows that his next word must sound like hypocrisy. How slyly she had checkmated him! Forseeing his thrust, she had countered his every shift of cunning through this feeble fencer before him. And the mistake he had made, in sending Maximilian to her! For a moment the expression of the apostate Lutheran was very ugly in its baffled rage. But he was too wise a trainer to lose patience utterly. He realized instead that the struggle was harder than any he had yet had with his royal dupe, since now his real antagonist was the young Frenchwoman.

“I? I interpret the word of God?” He said it very humbly, with bowed head. “Alas, Your Majesty knows I am the last to presume to that. But there are those who can. There is the Holy Father in Rome, who is ²⁴⁷ infallible. I only know that *he* told Your Majesty’s servant, myself, that a ruler blessed by the Church is an instrument of God. But if the ruler turns his back ere his work is done—”

Maximilian’s nostrils were dilating strangely, and the consummate tempter hurried on. He exalted the grandeur of the Emperor’s task, yet craftily made success appear simple and easy. The forces of “the arch-rebel Benito Juarez” were concentrated in “a horde of impious thieves calling themselves the Army of the North.” But Miramon, His Majesty’s own general, was hastening to meet them. One decisive battle, and there would be no more rebels. The nation must then recognize that the Empire had sustained itself without French aid.

“Of course a few lives will be lost,” he quietly sneered, “and we who do not understand may grieve for them, but the ways of Heaven, for its own ends, are inscrutable. Your Majesty knows that others before him, his ancestors, have had to wade through the blood of God’s enemies. But Your Majesty’s glorious ancestors were fulfilling their destiny. And why should not you, also, sire, you who are the child of destiny?”

It was a magic word. Fischer knew his man devilishly well.

“But how can I tell,” Maximilian demanded petulantly, “that my destiny really lies in Mexico?”

“Then your destiny, sire, must lie in Europe, in Austria,” was the priest’s astounding concession. “After all, a prince’s intuitions, being

given him by divine revelation, can alone be his guide.”

Maximilian’s eyes flashed.

“Then I abdicate—herewith!”

Fischer meekly assented.

“There are rumors, nay, more than rumors,” he mused aloud, “that a strong hand is needed in Austria. I repeat only what all Europe says boldly, that Franz Josef cannot long hold his throne. Yes, yes, sire, but do not stare so!—Yet the crown prince is a child. Who then shall be regent? Who but—”

“Enough, enough, I say! Now look to my orders. We start to-morrow.”

The secretary beamed unctuous joy that his master had so decided, and was bowing himself out, when abruptly he paused, “Oh, I forgot, a packet for Your Majesty.”

Maximilian took the missive. It was not heavy. It did not seem as heavy as Fate, not as heavy as a coffin.

“This is an old date,” he said in a puzzled way. “See, the postmark, ‘Brussels, Sept. 17.’”

“It just came by courier from Vera Cruz, being sent via New York no doubt accounts for the delay.”

Maximilian sighed. Even the post no longer considered royalty. Packets had taken on leisurely habits since the Empire’s crumbling—or since the secretary’s ascendancy. He broke the seal with tremulous fingers. The thing must tell him of Charlotte.

“From Monsieur Éloin,” he said.

“But he—he does not send bad news, nothing, sire, of Her Imperial Highness?”

Well enough did that soul of mud know the letter’s contents. Well enough he knew that Éloin and himself could waste no time on an insane woman. Their chances of future position were in too critical a state. And the packet was designed for just such a crisis as the present.

Maximilian frowned, read excitedly. He was swept along as by a torrent. Fixed on him were the small bead eyes of the priest, darting a light, like a flame on oil. And when the Emperor gasped quickly and sprang to his feet with hands clenched in the manner of a strong man, the priest was ready.

“Good news, then?” he cried. “What fortune! Now Your Majesty will hurry the faster to Vienna?”

Maximilian gave him a glance, as though he were dense to think so.

“Here, read, read it!”

M. Éloin, sycophant, courtier, had never sung for his royal patron a roundelay more pleasing than his prose of the moment. It caused to vibrate the very heart chords of the susceptible prince. There were subtle appeals to spite ungratified, to wounded pride, to ambition, to honor. The letter ran:

... Nevertheless, I am convinced that to abandon the throne now, before the return of the French army, would be interpreted as an act of weakness....

If this appeal (to the Mexican people) is not heard, then Your Majesty, having accomplished his noble mission to the end, will return to Europe with all the prestige that accompanied his departure; and mid important events that are certain to happen, he will be able to play the rôle that belongs to him in every way....

And then the supreme refrain:

In passing through Austria, I was able to bear witness to the general discontent that reigns there. Yet nothing is done yet. The Emperor is discouraged; the people fret and publicly demand his abdication; the sympathies for Your Majesty are spreading visibly throughout the entire Empire; in Venetia a whole population wishes to acclaim its former governor....

Thus it was that Éloin pilfered Jacqueline’s lever, and thus he used another fulcrum, as he had promised Charlotte he would. By pandering to Maximilian’s Austrian ambitions, he showed the weak prince how they could yet never be realized if prestige were lost in Mexico. To keep this prestige, to increase it, Maximilian must prove to Austria that he could hold the empire he already had, and that without foreign bayonets. He had only to stay a short time after the French should evacuate. And then, within a few months, a few weeks, he might lay down the sceptre voluntarily, to take up the one awaiting him across the ocean.

“We will leave here in the morning,” cried Maximilian—“no, to-night, at once!”

“For Vera Cruz, sire?” queried the padre.

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“No, for my capital, for my palace! And father, allow no one to mention abdication to me again. My decision to stay is irrevocable.”

The padre promised faithfully that he should not be disturbed, and this was one promise that the good padre kept.

CHAPTER X

ALONE AMONG HIS LOVING SUBJECTS

“And Jove himself shall guard a monarch’s
right.”

—*The Iliad.*

Early one morning a month later, a solemn little group of uniformed men climbed to the roof of Buena Vista, the imperial wedding gift to Marshal Bazaine, and nerving themselves, pulled down the Tricolor. France, a Napoleon, were again leaving the New World. It was Evacuation.

The Army of the Expedition came tramping down the Paseo. There were heavy Dragoons and Cuirassiers, on majestic chargers. There were light Chasseurs and Lancers, on fleet Arabians that had often proved themselves against the Mexican pony. There was the clanking of steel, and the flash of helmets through the dust. The imperial eagles, gilded anew, were poised for flight back to their native aeries. Lower in the earthly cloud bobbed the tasseled fez of the bronzed Zouave, and the perky red pompon on the fighting cap of the little piou-piou. With the steady beat of the march, the pantalons rouges crossed, spread, crossed, spread, like regiments of bright, bloody shears. The bands played. And yet it was not a martial scene. Feet, not hearts, lifted to the fife’s thrilling note. Nor was the multitude that thronged the wide avenue a fiesta populace. It looked on stolidly, without a huzza, yet without a hiss. Enthusiasm in either sense would have been relief, but the Mexicans assisting at the bag and baggage of an invader were as unmoved as those other spectators, the colossal figures in the glorietas; as the two Aztec giants, leaning on their war clubs; as Guatemotzin, with high feathered crest and spear aloft, foreboding as in life to the European conqueror; as Columbus, who, having himself suffered, gave now no sign of remorse for the blows which this new hemisphere gave the old; as Charles IV. on his iron horse, who had bargained with a former Napoleon to be called Emperor of America, and who, unlike Maximilian, had wisely surrendered such a crown.

Cavalry, infantry, cannon, wagons, on they came through the city and past the Zócalo, under the Cathedral towers, under the lifeless, shuttered windows of the Palacio. Here in the Zócalo, in the central plaza, the sometime first lady of Her Imperial Majesty's household sat in her barouche, and opposite her a pretty girl, and she was talking with an officer of Chasseurs d'Afrique whose horse was restive, and all the while there was the rumbling of wheels, the tread of feet, and the ring of hoofs.

The sometime first lady was saying good-bye to the officer, as she had already to many another gallant chevalier pausing beside her carriage. But for her it was farewell to all her countrymen there, to the little pious most of all, and her gray eyes were frankly moist.

"And now they are going," she mused aloud, "really going, because, parbleu, a monsieur in Washington says they must."

"I wish to heaven," swore the young officer gloomily, "some monsieur would say as much to you! See here, we'd give you and Mademoiselle Berthe enough room on the ship for a barracks, if you'd only come. There's a many less welcome," and he jerked his head toward a stream of vehicles straggling among the troops. They were filled with Mexican aristocrats whose doubtful titles had been revived by the Empire, all eagerly accepting French transport out of their native land.

Jacqueline laughed. "They're so afraid of the Liberals, they will forget their escutcheons. So of course they've forgotten the bouquets. You should have seen the garlands, Michel, that heralded our grand entry here. Oh, lá-lá! We paid for them ourselves. Thus arrived the Drapeau Civilisateur de la France. And now behold the departure. Not the cost of a violet to spare from Napoleon's strong chest! Hé mais, hear that tune! It's 'Leaving for Syria,' the thing decreed into our national hymn. For once I'm glad, glad it's not the 'Marseillaise.'"

"Mademoiselle—dear friend," spoke the slow-thinking Michel, "you do not wish to answer my question. Why do you stay behind, alone? Why? Nothing good ever happens to anyone in this country, and who can tell what might happen to you when the army is gone? Come now," he went on, forcing some bluff cheer into his words, "Jeanne d'Aumerle, your friends want you out of it. Fall in with us, here, now. Let me give the order, 'Cocher, à Paris!—Voilà, what more's to be done?'"

Indeed, what more simple? Or more to be desired? Yet there was nothing she desired less. She thought of what she had found in Mexico,

and must leave behind. It was a dead thing, true, and already buried. But—the grave was too fresh as yet. However, the real reason for her staying involved something else.

She made no reply, for at the moment a strange voice, with a jagged Mexican accent and a thin insidious inflection, broke in upon them, and startled them all three.

“Nay, Monsieur le Duc,” it began, rolling the title as a morsel on the tongue. “Your Grace would deprive us of too much honor. Why, indeed, should mademoiselle not remain among us?”

Turning quickly, Jacqueline beheld the stranger’s black eyes upon herself. He, too, wished to know why she stayed in Mexico, but in his sharp, shifting look there was a penetration quite different from that of the guileless Michel. He bestrode a magnificent horse that seemed made for armor, whereas he himself would surely have been crushed under so much as a Crusader’s buckler. Being so very small, and perched so very high, he cut a ludicrously martial figure with his plumed hat and epaulettes and gold buttons and braid and medals and exquisitely mounted sabre. It was not a French uniform that he wore, but Mexican Imperial, and stupendously ornate. And within the brave array, he was such a little, little man!—insignificance glorified into caricature.

But the pigmy was not altogether on parade. He had that morning been receiving arsenals and fortresses from the French; in short, the keys of the Empire. For he was Commander in Chief of the Imperial armies, was this species of manikin. And ugly? He was a man of lifted upper lip under a bristling moustache, a man of fangs, a wee, snarling, strutting, odious creature of a man. A deep livid scar split his cheek and would not heal. Instead of arousing sympathy, it proclaimed him rather for the scratches he gave to others. For he was that Mexican of infamous name, the Leopard. Once he had looted the British Legation. Another time he massacred young medical students attending the wounded of both sides. There were stories of children speared and tossed in ditches. Yet certain priests blessed his ardor as defender of the Church. Maximilian had sent him on a mission to Palestine, since he was abhorrent to the moderates. But now he was back again, to lead the clerical armies. The valley of Mexico shrank from his brutal proclamation demanding submission. “Mexicans, you know me!” so ended the snarl. He gathered forced loans. He drafted peons, though they were exempt. He emptied the prisons, and

convicts he sent in chains as recruits for the Imperial garrisons. In such a fashion Leonardo Marquez began his duties as generalísimo of the Empire.

“Your Excellency is most kind,” said Jacqueline, for no other reason than to annoy him by changing from French into his own language.

“On the contrary,” returned Marquez, “I am flattered that you will be here to observe how we, alone, shall crush the rebels. Your countrymen, señorita, happily leave plenty of them. But I cannot believe that this is why you remain.”

“Make her tell you, then,” interposed the helpless Ney. He was utterly at sea. There was a trial of strength on between these two, but how or for what was quite beyond him.

Jacqueline pushed back the Persian shawl she wore—this fifth day of February was the Mexican springtime—and settled herself to the contest in earnest. “I fear,” she began slowly, “that my motive in staying can hardly be intelligible, unless, perhaps, Your Excellency knows why I came to Mexico in the first place. No señor, that blank smile of yours will not serve. Your Excellency cannot feign ignorance of public gossip.”

“Of course, I have heard that—”

“To be sure you have,” she returned dryly, “and you might add that I failed, since Maximilian has not yet abdicated. But Your Excellency is not one to imagine that the end can be long delayed.”

She, too, was searching for a motive, his motive in the interview.

“The Mexicans alone will sustain our patriotic ruler,” stoutly declared the generalísimo. “But let us suppose, merely for pastime, that His Majesty does abdicate. What then? What profit to France, since at this moment, before our eyes, her army is leaving?”

Jacqueline smoothed the ruffled pleats on her full gray skirt. They looked like an exaggerated railroad on a map, and doubtless needed smoothing.

“And remotely supposing,” she said, “that our army *might* come back again?”

Then, in a flash, she raised her eyes, and surprised the start he gave. But she laughed at once, and at him, for taking her nonsense as serious.

“No,” she exclaimed, “Your Excellency can more easily recall Santa Anna from his island exile.”

This, too, was nonsense, or so he was forced to consider it. But knowing that the Empire could not endure, he was believed even then to be negotiating with the rich former dictator. In his scowl Jacqueline discovered what she sought. He wanted, in brief, to negotiate with Napoleon also, and he wanted to negotiate through her. Napoleon could bid higher than Santa Anna. She saw, moreover, what was worrying the traitor. If Napoleon did not mean to bid, why then was she staying in Mexico?

Marquez glanced fretfully at Ney and Berthe. If he might be honored in the privilege of calling to pay his respects?—

But Jacqueline regretted that she was to be too much occupied in preparations for her own early departure. And that very evening she sent a note to Maximilian, frankly warning him against the Leopard. But she warned His Majesty farther, that if he did not heed, that when it should be too late to save him in any case, and Marquez still had something to sell, that then she would advise her own emperor, should her own emperor wish to buy. Hoping, though, for the best, she sent by Ney a message to Bazaine at the head of the column, suggesting that he delay embarkation as long as possible. She had in mind Maximilian awakened to the faithlessness of his chief support and wishing to overtake the French troops.

For which it appears that Jacqueline still wielded a free lance, belonging to her own country alone and owning no master other than her own conscience.

As Bazaine at the army's head rode through the Zócalo, he looked up to find the palatial shutters closed. The Mexican Empire was sulking like a spiteful child. The marshal wearily shrugged his shoulders, and thought on the ingratitude of princes. But the silence of the Palace was only a pose, mean and despicable. Maximilian himself was peeping through the shutters down upon the gallant, moving sea of color. It was a stream of gleaming bayonets, of champing horses, of lumbering artillery. His eyes would single out and cling to this or that figure till it was lost in the street beyond, and then he would try to realize that it was lost to him forever. For the street beyond lay toward the coast, where many ships awaited. The archducal petulance gave way to vague melancholy.

Finally he looked upon the last swinging foot, then at the dust settling. Below, in the Zócalo, what had been a fringe of mourning around the

troops, became a scurrying of human creatures. They were his subjects. Not a French uniform remained, but the prince sighed heavily as he turned from his ignoble peep-hole. Courtiers and counselors glanced at each other significantly. By tacit consent one among them spoke.

“Free at last, sire, free at last! Ah, see them, there below. They know their shackles are broken, they know that the foreign invader who chilled their allegiance is gone. Nay more, their loyalty has already borne fruit. In the north, sire—”

“How, father? You do not mean—”

“Yes, sire, yes, the mother of God be praised! I mean victory, and death to many traitors. The news has just come. Miramon has won a decisive battle and taken Zacatecas.”

“Zacatecas! But Juarez was there?”

“Yes, sire, and Miramon entered so suddenly the arch rebel surely could not have escaped.”

“Juarez taken, that man taken!”

“Even so, sire, And”—Fischer’s interlaced fingers tightened until the veins grew large—“and, it only remains for Your Majesty to dispose of him, according to the law.”

Maximilian trembled with joy. He was master of the situation. His people had made him master. Here was divine right vindicated. It was—Destiny! He had but to follow whither the heavenly finger pointed. And in rapture, he seized his pen.

PALACE OF MEXICO, Feb. 5th, 1867.

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My dear General Miramon:

I charge you particularly, in case you do capture Don Benito Juarez, Don Sebastian Lerdo de Tejado, and others of his suite, to have them tried and condemned by a council of war ... but the sentence is not to be executed before receiving Our approbation....

Your affectionate MAXIMILIANO.

Bazaine and the French camped the first night, the next day, and yet another night outside the City, waiting. They did not reach Puebla until the tenth. The rear guard fell farther and farther behind, keeping the road open. At last there was news. Juarez had escaped Miramon at Zacatecas, warned in time through some mysterious agency. And farther, Miramon

had encountered another Republican army, by whom he was not only defeated, but routed completely. In panic he was fleeing to Querétaro.

“Maximilian must surely abdicate now,” thought Bazaine, and he sent back a message. “I can,” he wrote, “yet extend a hand to His Majesty to help him retire.”

In Vera Cruz the marshal waited for an answer. Day after day passed, and then the answer came. Too late, was its refrain. Maximilian had left his capital with what troops he could spare. He had left for Querétaro, to join Miramon there.

Bazaine, the last to quit the shore, climbed aboard his ship, and taking one final look for a chance horseman with word to wait yet longer, and seeing none, gave the order to weigh anchor.

CHAPTER XI

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FATALITY AND THE MISSOURIAN

“Si debbe ai colpi della sua fortuna
Voltar il viso di lagrime asciutto.”

—*Machiavelli.*

The mountain villages were arming. Bronzed men, savagely joyful, poured from under roofs of thatch, strapping on great black lead-weighted belts. In the corrals others lassoed horses. It looked like a sudden changing from peaceful highland domesticity, as the clans of Scotland or the cantons of Helvetia might gather. But these men were not rising to defend their homes. The hamlets clustered among the crags were their barracks, nothing more. The wildest cañons of the Sierra Madre del Sur, far away in the rocky southwestern corner of the continent, were only their camping grounds, their refuge. To be armed was their natural state. They were fighters by occupation. They were an army. Unceasing hardship and constant peril had seasoned them, and their discipline was perfect, unconscious, because it came from the herding instinct of wolves. During years they had waged war against a ruthless foe, and they, too, were relentless. The penalty of defeat was massacre.

The foe of this army was a greater army, and between the two it was a duel of chieftains, of General Régules in the Sierra, of General Mendez on the plain. Deadlier antagonists might not be imagined. Mendez, he who had shot two Republican generals under the Black Decree, was above all men the likeliest to hold stubborn Michoacan for the Empire. But even he failed, because the man against him was not less a man than he, because also the spark of resistance to sceptre and crosier never dies out in Michoacan.

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The man as good as he was Régules. A Spaniard, Régules had fought with the Catholic Don Carlos. And now, he was suffering for Mexican Liberals the most that any general can suffer, defeat after defeat, and sometimes annihilation. But he was a Marion, a Fabius. He knew the mountain recesses as no one else, even better than Mendez, who was born

among them, and here he would gather fugitives, draft every straggler, until in time he sallied forth again to badger his arch enemy. He hoped only to exist till that day when the French should leave Empire and Republic face to face, on equal terms. It had taken tenacious faith and gloomy years, but the day came at last. The news sifted through defile and gorge. The invader had embarked for Toulon. Nearer at hand Mendez had evacuated Morelia, and was marching to Querétaro. And at Querétaro was Miramon, driven there from the north by Escobedo. At Querétaro was the Emperor—was the Empire, desperate, ferocious, an animal at bay. Out boldly upon the plain, then! But no longer as a slinking guerrilla horde! As an army rather, with thrilling bugles and the Mexican eagle aloft, and regiment numbers in gold on pennons of brightest red! For the Empire was the hunted mad-dog now, and the dignified host was the Republic. The barracks of the Sierra were arming.

In one of the corrals an officer of cavalry was quelling insubordination with soft words. But the mutineers, not knowing their man, did not fathom the dangerous sweetness of his tone. They were deserters from Mendez, come that morning, and as they had horses, were foisted on the officer's splendid troop. But like the native infantry, they insisted that their women, the soldaderas, should go with them on what was to be a swift march to Querétaro. Having brought useful information concerning Mendez, they were insolent in their demands.

"Now, muchachos," said the officer of cavalry, "you see how absurd it is, so quiet down. The women can follow later."

"A Gringo to dictate to us, bless me the saints! Us, free Mexicans, and Republicans!" And the ringleader drew his machete and rushed on the officer.

The Gringo smiled, in a way that a man rarely smiles. His eyes opened in mild surprise, and as the mutineers looked to see his head roll from his shoulders, he was still smiling in that poisonously sweet way. Perhaps there passed across his face just the shadow of pity or of revulsion, but none might say for certain, because of a pistol's flash that came so quickly after. With the report the assailant plunged headlong, and on the ground seemed to shrivel in his rags. Behind the smoke the officer was carelessly holding a large black revolver, no higher than his hip.

"Because," he added, "it's not a woman's game."

Then he thrust the weapon back under his ribs and sauntered away. The mutineers gaped in trembling at his back. When they picked up the ringleader, they saw that his fingers had been neatly clipped at the hilt of the machete.

The cavalry officer was Driscoll—but changed! He was changed as bland Mephisto would change a man, if the material were adaptable and Mephisto an artist. Such exquisite gentleness in peril and in slaying could be no other than the devil's own, and in the most devilishly artistic mood of that suave dilettante.

It was natural that any man should color somewhat into a desperado, considering such an existence among those Sierras, but Driscoll was a desperado refined by cynicism. And yet there was still naught of self-consciousness in it all. The change had not been abrupt, but gradual, as a growing into maturity. The roughened native instincts of a gentleman had sobered from Quixotic impulses into a diabolic calm. His bravery was turned to cool and almost supernatural self possession, mocked withal by gentleness. And yet he was not a villain. To the mutineers, to those who beheld his smile, he seemed a fiend. But his horse knew no change in him, which was significant. Something had gone wrong, that was all. The young man who had looked out on the world, half challenging, half expectant, must have seen too suddenly that part of life which is unlovely. However, the thing may not be thus easily explained. The soul of a man, when bent or distorted under stress, is a weird and fearful growth. One may contemplate it in awe; but understand it, never.

More than a year before, when Driscoll changed sides, he was embarrassed to find a side to change to, so thoroughly had the Empire swept away all vestiges of the Liberal strength. But on achieving that farewell of his to Mendez, he rode happily southward, with some vague notion of tracking the Republic into Michoacan. The first night he slept under the stars mid tunas and Spanish daggers, and when he awoke it was to find a strange Indito squatting patiently at his feet. He sat up and rubbed his eyes at what might have been a Hindoo image, except that it doffed a straw sombrero.

"Y'r Mercy is awake?" queried the idol.

"N-o, but it will probably not be long now. Who in thunder are you?"

The Indito explained, and Driscoll covered his knees with his hands, and stared and grew more astounded. The ragged fellow said that he had

escaped from Mendez's camp by squirming on his belly through the cacti, and he had followed the American señor, on foot. He was, he added, a Republican spy.

Driscoll mechanically drew his pistol, but recalled that now he also was Republican.

"But why follow me?" he demanded.

"I was sent to watch only Y'r Mercy, Y'r Mercy's thousand pardons."

"The devil!"

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"And with Y'r Mercy's permission, I was to kill Y'r Mercy at the first chance. But since Y'r Mercy has changed sides—"

"Now look here, who—who put you up to this business, I want to know?"

The man shrugged his shoulders. He only knew that a señor chaparro had sent him.

"A short señor?" Driscoll repeated. "Then we might call you a Shorter Yet, and maybe you know where this República is hiding out?"

The Indito brightened. "That's why I'm here, señor. I'll take Y'r Mercy to the Citizen General Régules."

At the name Driscoll frowned involuntarily, but laughed as he again remembered that he no longer shared the Imperialist hates.

"Régules?" he repeated. "But we all thought he was dead, since the last time we scoured his mountains."

"That the Virgin would have let me kill Y'r Mercy before then!" said the Indito regretfully. "But no matter, Y'r Mercy will discover that the citizen general is still alive."

And so he was. They found him in the wildest of the wild region of the Sierra Madre del Sur, far away beyond the Rio de las Balsas, beyond Michoacan, in the impassable tierra caliente of the Pacific slope. The Indians here were the Pintos, who knew naught of the world outside, and owned allegiance to none but a grizzly old dictator, royally described as the Panther of the South. One thing was certain, the Empire could never follow Régules to the fever and ambush of the Panther's marshy realm, and Régules was hard pressed indeed when he sought such protection. But he was there now, in that last refuge of Liberalism, alone, wounded, fever stricken, emaciated, but undaunted. Driscoll found him so, and became his first recruit.

For the moment Régules had no army, but armies were only weapons²⁶⁴ brandished by the real principals in the duel. Over battle and rout and slaughter the two chiefs would glare each at the other, blade in hand and panting, but either ever ready for the stroke that should thrust through the army to the heart of its general. Such a struggle needed only antiquity and a bard to be Homeric. No Greek could equal either champion in cunning, nor Trojan in prowess, nor both in grim persistence and rugged hate. It was truly a fight to have a hand in, and with big, lusty zest, the Storm Centre bounded into the lists. He leaped backward into the age of colossal, naked emotions, which strove as great veined giants with a rude splendor that was barbaric. It was the grandeur of primeval man, of majesty resting on him who fought best. After a thousand years of roof and tableware a man may be no longer primeval, but he is no longer quite a man either if his primeval state does not sometimes appeal to him. As for the young Missourian, he was enthralled.

During that winter, the Spaniard and the American were a recruiting squad of two, picking up the seeds of rebellion among the fertile rocks. The vago, or poor Indito, was drafted wherever caught. Guerrilla fugitives rejoined their leader. The little band grew slowly, but in appearance merited Mendez's contemptuous epithet of brigand thieves. Fluttering yellow rags revealed only leathery-hided bones. Sandals sloughed away. There were a few machetes, and one or two venerable musketoons. But the commoner weapon was a heavy wooden staff, used for trudging up the steep paths. Imagine a Mexican abandoning his horse! But pursuers often tracked "the brigand thieves" by their mounts dying here and there—a pitiful blazed trail. And their exhausted riders often lay down as well, and would not rise, though Régules lashed them, though the terrible Mendez followed close behind. If at this time the Republic compared its conditions with the tapestried court in Mexico, then hope of success must have seemed lugubrious irony. Yet there was the watchword²⁶⁵ still, "Viva la Intervención del Norte!" Régules looked to the United States to drive away the French. Driscoll's face would twist to a grimace. It was a peculiar position for an ex-Confederate.

The Republicans in Michoacan were cut off from all outside help, while those along the Rio Grande drew from the friendly Americans in Texas much aid and comfort. Driscoll pondered on this, until in June he got leave to go to the Córdova colony and there enlist, if possible, his old

comrades of Shelby's brigade. The result is known. After the affair at Tampico, he came back with a troop of colonels. They were the nucleus of a cavalry which he loved more than Demijohn, more than his ugly pistols, more than his pipe.

It was a grim affection that Driscoll bore his regiment of horse. He was no longer the same man as when he left. He returned from Córdoba with a mood on him, which settled more and more heavily as he nursed his troops into a splendid fighting machine. There was a dangerously quiet exultation in the patience with which he built the regiment up to full strength and trained it into the power of a brigade. He did wonders through the idea, pleasantly instilled, that much of the fun of fighting lies in the winning, and he demolished, as an absurd fetich, the idea that the hunted men of Régules were doomed never to win.

Thus he labored with the Inditos, his terrible little fatalists in combat. There were enough to choose from, since by now the tide of desertion was changing toward the Republic. The problem of mounts in time solved itself. The French began selling their horses rather than transport them back to Europe, and these being declared contraband of war by the Liberal government, were complacently taken away from their owners without even Juarez script in payment. The question of arms proved more troublesome, but the answer at last was even more satisfactory. For the besieged at Querétaro, Driscoll's troop later became some unfamiliar dragon hissing an incessant flame of poisonous breath. This was due to a strange and mystical weapon which not only carried a ball farther than any rifle known before, but sixteen of them, one after the other. The strange and mystical weapon multiplied a lone man into a very genii of death, until the Missourian's twelve hundred were more to be dreaded than many battalions.

The repeating rifles, it may be explained, formed a part of the cache which General Shelby had made on crossing into Mexico. He had taken them, among other things, from the Confederate depositories in Texas. Driscoll knew of the cache through Boone, and by infinite patience had it brought into Michoacan. A solitary Indito journeyed eight hundred miles unnoticed with some seeming fragments of scrap iron. Other vagos were in front of him. Others followed. And these passed yet others, empty handed, trudging in the opposite direction. So an arsenal came to the Sierra Madre del Sur all the way from the Rio Grande, and each and

every cavalier, whether miserable ranchero or veteran Missourian, became an engine of destruction, good for a fusillade of forty shots without the biting of a cartridge, for sixteen from his rifle, for six from each of his revolvers, and after these, good for terrific in-fighting with his dragoon sabre. It was no marvel that Driscoll loved such a troop, but the wonder lay in his smile, soft and purring and far-away, as he stroked his murderous darling.

Colonel Daniel Boone, chief of scouts, was harassed nearly to insomnia over the change in his friend. At the bottom of the mystery there must be inspiration for a glowing line, and with pen ready poised over the violet fluid of romance, it was disheartening to have the solution elude him. He proposed clues as a poet tests rhymes. There was vendetta. There was blighted passion. But he ruefully discarded both. Either would be marked by violent growth, while this thing that touched the Storm Centre formed as slowly as the gravity of wisdom. But what baffled most was that Driscoll himself was completely oblivious. If *he* knew nothing of the effect, how then could one ask him about the cause?

Daniel, however, overlooked the fact that a malady may break out variously, according to temperament. As an instance Daniel's patient would lose himself in reverie, long and deep and mellowing. Now he was riding with a girl whose gray eyes were upon him in that pensive way she had; or rather, in the pensive way of a girl who finds herself in love, and wondering at it, seeks to learn the reason through a grave scrutiny of the object. It seemed very good to be riding with her again like that, for there was a soothing sense of companionship, of dear camaraderie that needed no words, but only that expression of her mouth and a pair of gray eyes. The day dream, while it lasted, had nothing of bitterness, but lulled his soul instead, and when it passed, he would be left with thankfulness for his moment of fleeting bliss and ineffable comfort. Or again, he awoke to reality with a longing that fiercely would not be denied. "Oh, I want—Jack'leen!" Often and often the imperious smothered cry all but passed his lips. And then he would shake himself, as out of physical slumber, and he would take up his life again. But he would be a shade deeper in the devil's own mood, of gentleness and a smile.

After Cuernavaca Driscoll had brooded somewhat, yet rather as a boy whose melancholy is callow and easily fades. But during that evening in Boone's cabin, he had changed to a man, for it was then he came to know

the meaning of possession, and in the same moment he learned the meaning of loss. A dull and indefinable resentment thereafter grew on him. But against whom? Against no one, perhaps. Yet he had had a vision of his life's dearest happiness, and it was gone, that vision, beyond recall.

Ignorant as he was of Jacqueline's mission, Driscoll had but one explanation. A man had been born a prince, and a prince dazzles a woman. Yet the rankling in him was neither because of the prince, nor because of the woman. It was much more hopeless than that. It was because a man could be born a prince at all. Something was out of harmony in the world. The irony of it made him grim, and to his sense of humor that such things could be came the smile. A prince in the New World and in the Nineteenth Century!—Now here was as incongruous a juxtaposition as a bull in a crockery shop. And the result?—A people robbed of their dignity as men; a spike among the cogs, and the machinery everywhere grinding discordantly. For the pilfered people, however, the matter could be righted, and Driscoll felt his vague wrath as one with theirs. Together they would drive the bull from the shop. The Mexicans could later repair *their* crockery. But as to his own precious little bit of bric-à-brac, that was shattered beyond hope. His only balm was to help the other sufferers. His only resentment was against fatality. But to pout at fatality is such a foolish business that he smiled, in a gentlemanly, sardonic way. Lucifer himself would be obsequious before fatality. And as for presuming to chastise it, that does indeed require the devil's own mood.

CHAPTER XII

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THE RENDEZVOUS OF THE REPUBLIC

"It may be short, it may be long,
'Tis reckoning-day!' sneers unpaid Wrong."
—Lowell.

It was a long column that undulated over the cacti plain with the turnings of the national highway. Men and horses bent like whitened spectres under a cloud of saltpetre dust. They burned with thirst, and had burned during fifteen days of forced marching over bad roads. They kept their ranks after the manner of soldiers, else they would have seemed a hurrying mob, for there was scant boast of uniforms. The officers wore shoulder straps of green or yellow, and some of the men had old military caps, high and black, with manta flaps protecting the neck.

Except for an occasional pair of guaraches, or sandals, the infantry trudged barefoot, little leather-heeled Mercuries who cared nothing for thorns. Their olive faces, running with sweat, were for the most part typically humble, patient under fatigue, lethargic before peril. Here and there one held the hand of his soldadera, like him a stoic brown creature, who shared his hardships that she might be near to grind his ration of corn into tortillas. Veterans were there who had fought the French at Puebla, and on coarse frayed shirts displayed their heroes' medals. Some among them had meantime served the Empire, and had lately deserted back again—but no matter. In the cavalry there were those who on a time had ridden against the Americans in Santa Anna's famous guard. Now they rode with Driscoll, among the Missourians. And the Missourians sang:

"My name it is Joe Bowers,
And I've got a brother Ike;
I come from old Missouri,
Yes, all the way from Pike."

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Their mouths opened wide to the salty dust, and they roared with great-lunged humor, the stentor note of Tall Mose Bledsoe—Colonel Bledsoe of the State of Pike—far and away in the van of the chorus. Even the Mexicans, who comprised over half the regiment, chanted forth the tune. They had heard it often enough, and thought it a species of appropriate national hymn. Only the colonel of the troop rode in silence, but not gloomily. This playfulness of his pet before a snarl was music that he liked. The other Missouri colonels (brevet) were as boys ever, were still only Joe Shelby’s “young men for war.” There was Colonel Marmaduke of Platte. There was Colonel Crittenden of Nodaway. There was Colonel Grinders from the Ozarks. There was Colonel Clay of Carroll, and Colonel Carroll of Clay. These were captains. Colonel Bledsoe was a major, and so was Colonel Boone, also chief of scouts. Colonel Clayburn, otherwise the “Doc” of Benton, was ranking surgeon; while the chaplain, lovingly known as “Old Brothers and Sisters,” and the choicest fighter among them, was lieutenant-colonel.

Of course some of the four or five hundred colonels had to be privates. But they did not mind, they were colonels just the same. Which provoked complications, especially with a Kansan who had wandered among them some time since. The Kansan, whose name was Collins, was an ex-Federal, even one of their ancient and warmest enemies, of the Sixth Kansas Cavalry. And being a mettlesome young man into the bargain, he rose by unanimous consent to command a native company of the troop. But Captain Collins found it hard to address a Missouri private as colonel, and to be addressed by the Missouri private as an inferior in rank. A sporadic outburst of jayhawker warfare generally ensued. But according to the merger treaty between the Republic of Colonels and the República Mexicana, the Missourian was strictly in his rights. Besides, both needed the exercise, and after the business of fists, formality dropped of itself. Captain Collins thereupon became “Harry;” and the private “Ben” or “Jim,” or whatever else.

Driscoll’s troop wanted for nothing. Regimentals, luckily, were not considered a want. But in replacing worn-out slouch hats and cape-coats, the Americans set an approximate standard, which was observed also by their fellow troopers among the Mexicans. They were able to procure sombreros, wide-brimmed and high-peaked, of mouse-colored beaver with a rope of silver. The officers and many of the men had long Spanish

capas, or cloaks, which were black and faced in gray velvet. Their coats were short charro jackets. As armor against cacti, they either had “chaps” or trousers “foxed” over in leather, with sometimes a Wild Western fringe. They came to be known as the Gray Troop, or the Gringo Grays. The natives themselves were proudest of the latter title.

The brigade marched as victors, but they remembered how they had formerly skulked as hunted guerrillas, and also, how Mendez had scourged the dissident villages. They found bodies hanging to trees. At Morelia a citizen who cried “Viva la Libertad!” had been brained with a sabre. It was the hour for reprisals. And Régules exacted suffering of the *mocho*, or clerical, towns that had sheltered the “traitors.” Requisitions for arms, horses, and provisions marked his path. Deserters swelled his ranks. He had enough left-overs from the evacuation to organize what in irony he called his Foreign Legion. At Acámbaro a second Republican army, under General Corona—“welcomer than a stack of blues,” as Boone said—more than doubled their force, and together they hastened on to Querétaro.

But at Celaya, when men were thinking of rest in the cool monasteries there, they learned that they must not pause. The word came from El Chaparrito, who ever watched the Empire as a hawk poised in mid-air. General Escobedo of the Army of the North had pursued Miramon south into Querétaro, but only to find him reinforced there by Mendez and the troops from the capital. This superior array meant to attack Escobedo, then turn and destroy Corona and Régules. The Republicans, therefore, must be united at once.

The message was no sooner heard than the two weary brigades of Corona and Régules set forth again. They covered the remaining thirty miles that night, expecting a victorious Imperialist army at each bend in the road. But they met instead, toward morning, a lone Imperialist horseman galloping toward them. Régules’s sharp eyes caught the glint of the stranger’s white gold-bordered sombrero, and with a large Castilian oath he plucked out his revolver. Driscoll touched his arm soothingly.

“But, María purísima,” cried Régules, “he’s an Explorador!”

The Exploradores were Mendez’s scouts, his bloodhounds for a Republican trail, and the most hated of all that breed.

“Aye, Señor General,” the stranger now spoke, “I was even the capitan of Exploradores, who kisses Your Mercy’s hand.”

There was a familiar quality in the man's half chuckle, and Driscoll hastily struck a match. In its light a face grew before him, and a pair of malevolent eyes, one of them crossed and beaming recognition, met his.

"Well, Tibby?" said Driscoll quietly.

"First your pistols, then what you know," commanded Régules. "Here, in between us. Talk as we ride, or—"

Don Tiburcio complied. Such had been his intention.

"I am no more a loyal Imperialist," he announced, with a gruesome contortion of the mouth.

"Nor a live deserter for long," said Régules. "Quick, what's the news at Querétero?"

"Carrai, my news and more will jolt out if I open my mouth. Eh, mi coronel," he added to Driscoll, "you've taught this barbarous gait to the Republic too, I see?"

"Better obey orders," Driscoll warned him gently.

"But there's no need of hurry, señores. Not now, there isn't."

"You mean the Imperialists have whipped Escobedo, that—"

"Not so fast, mi general. If they had, wouldn't I want you to hurry, for then there'd be a conquering Empire waiting for you?"

"Colonel Driscoll," said Régules, "fall back a step. I'm going to kill this fellow now."

"As you wish, general. But he's got something to tell."

"Then por Dios, why doesn't he?"

"Yes, Tibby, why don't you?"

Don Tiburcio cocked a puzzled head toward the American. He had not known such softness of voice in Mendez's former captain of Lancers. But he saw that Driscoll had drawn his pistol, which accorded so grimly with the mildness of his tone that the scout chuckled in delight and admiration.

"You know that I'll tell—now," he said reproachfully. "In a word, there's been no battle at all, curse him, curse both—"

"No battle! Escobedo kept away then?"

"No, not even that. The Imperialists would not fight, and the Empire has lost its last chance. Curse them both, curse—"

"Well, curse away, but who, what?"

"I curse, señores mios," and the scout's words grated in rage and chagrin, "I curse His Excellency the general-of-division-in-chief of the

army of operations, Don Leonardo Marquez. I curse, señores, the Reverend Señor Abbot, Padre Augustin Fischer—”

“Good, that’s finished. Now tell us why there was no battle.”

“I curse His Ex—”

“You have already, but now—”

Tiburcio flung up his hand in a gesture of assent, and his ugly features relaxed. Though going at a brisk trot, he rolled a cigarette and lighted it. Then he told his story. Querétero? Ha, Querétero was now the Court, the Army, the Empire! Pious townsmen shouted “Viva el Señor Emperador!” all day long. The cafés were alive with uniforms and oaths and high play. Padres and friars shrived with ardor. There was the theatre. Fashion promenaded under the beautiful Alameda trees, and whispered the latest rumors of the Empress Carlota. Maximilian decorated the brave, and bestowed gold fringed standards. Then came Escobedo and his Legion del Norte, but they kept behind the hills. Bueno, the Empire would go forth and smite them, and the pious townspeople climbed to the housetops to see it done. And yesterday morning the Empire, with banners flying and clarion blasts, did march out and form in glittering battle array.

“And then, hombre?”

“And then the Empire marched back again, señores.”

Régules and Driscoll were stupefied. What gross idiocy—or treachery—had thrown away the Empire’s one magnificent chance?

Tiburcio sucked in his breath. “I curse—”

“Marquez?” cried Régules.

“Si señor, Marquez! Marquez cried out against the attack, and His Majesty ordered the troops back into town again.”

“But Miramon, hombre? Miramon, the best among you, where was he?”

“General Miramon fairly begged to fight, but he has been defeated once, and now Marquez warns the Emperor against Miramon’s ‘imprudence.’ Marquez is chief of staff, and crows over Miramon, who was once his president. He personally ordered Miramon off the field, yet it was Miramon who first made the insolent little whelp into a general.”

“This,” said Driscoll, “does not explain why you desert to us?”

For an instant the old malignant humor gleamed in the baleful crescent. “It’s the fault of the fat padrecito,” he replied. “Your Mercy perhaps does

not know about the pretty servant he eloped with from the Bishop of Durango's to Murguía's hacienda? Well, but trouble started when I saw her, or rather, when she saw me, even me, señor, for then she perceived that the padrecito was not a handsome man. Presto, there was another eloping, and the holy Father Fischer felt bad, so very bad that when he got into favor with Maximilian, he had me condemned for certain toll-taking matters he knew of. But I vanished in time, and I've been serving under Mendez as a loyal and undiscouraged Imperialist until yesterday. But yesterday the padre recognized me at a review of the troops. Your Mercy figures to himself how long I waited after that? Your Mercy observed how fast I was riding?"

The fellow's audacity saved him. The news he brought proved correct. Escobedo had not been attacked. Besides, Régules perhaps hoped to trap Mendez through the former Imperialist scout, though Driscoll derided the idea and even counseled the worthy deserter's execution.

Don Tiburcio's lank jaw dropped. Driscoll's advice was too heavy a recoil on his own wits, for had he not once saved the Gringo's life, feeling that one day he might be a beneficiary of the Gringo's singular aversion to shooting people? And now here was the Gringo in quite another of his unexpected humors. But what bothered Don Tiburcio most was the acumen that tempered the American's mercy. The facts indeed stood as Driscoll casually laid them before General Régules. Tibby, for instance, had neglected to call himself a "loyal" Republican. Asked for a description of the new earthworks on the Cerro de las Campanas, he only told how peons and criminals were forced to carry adobes there though exposed to Escobedo's sharpshooters, which had in it for Tibby the subtle element of a jest. Or asked about the new powder mills, he described how Maximilian slept patriotically wrapped in a native serape, woven with the eagle and colors, or related how the Emperor won the hearts of soldiers and citizens by his princely and ever amiable bearing.

"Now sing us the national hymn," said Driscoll, "and the betrayal of your former friends will be complete."

But though Don Tiburcio had deserted for convenience and perhaps meant to be a spy in the dissident camp, yet Régules saved him, while Driscoll lifted his shoulders indifferently and at heart was not sorry.

The Celaya road, crossing a flat country, first touches Querétaro on its southwestern corner, and from here the two Republican brigades beheld

the ancient romantic town in the dawn as they approached. Many beautiful Castilian towers, stately and tapering to needles of stone, rose from among flat roofs and verdure tufts, and pointed upward to a sky as soft and warm as over the Tuscan hills. Other spires were Gothic, and others truncated, but the temples that gave character to the whole were those of Byzantine domes. Lighted by the sun's level rays of early morning, their mosaic colors glittered as in some bright glare of Algeria, but were relieved by the town's cooling fringe of green and the palms of many plazas within. It might have been a Moorish city, in Happy Arabia²⁷⁷ called paradise, a city of fountains, and wooded glens, like haunts of mythical fauns. Querétero once boasted a coat of arms, granted by a condescending Spanish monarch, and for loyalty to the hoary order of king and church she in those old days described herself as Very Noble and Royal. Stern cuirassed conquistadores held her as a key to the nation's heart, as a buckler for the capital, and lately the French did also. And now the Hapsburg had come to a welcome of garlands, and called her his "querida."

But however excellently Querétero served as a base of military operations, as a besieged place pocketed among hills her aspect altered woefully. She was like an egg clutched in the talons of an eagle. On north and east and south the hills swept perilously near, a low, convenient range, with only a grass plain a few miles wide separating them from the town below. On north and east the heights were already sprinkled with Escobedo's tents and cannon. They commanded the only two strongholds of the besieged, as well as the town itself, which lay between. One stronghold was the Cerro de las Campanas, a wedge-shaped hill on the northwestern edge of the town, which held nothing but trenches. On the northwestern edge was the other stronghold, the mound of Sangremal, which fell away as a steep bluff to the grassy plain below. From the bluff, across the plain, to the hills opposite, stretched a magnificent aqueduct. On the mound's commodious summit of tableland there was the Plaza de la Cruz, also the Church de la Cruz, and an old Franciscan hive, called the monastery de la Cruz. Here Maximilian established himself in a friar's lonely cell. On the north a small river skirted the town, on the south, where nothing intervened between the grassy plain and the wooded Alameda, the besiegers found the most vulnerable flank.

On this side investment began with the arrival of Corona and Régules, and soon after, of General Riva Palacio. The Republicans numbered fifteen thousand already, and more were coming daily, but as yet there were ragged strands in the noose being woven around the beleaguered place. Curiously enough, the most feverish to see the cordon perfected was none other than Don Tiburcio.

“Marquez will escape! Marquez will fly the net!” he kept bewailing. “Si señor, and the padrecito with him, curse them both!”

Two weeks passed, filled with skirmishes and ominous tests of strength. At night fiery parabolas blazed their course against the sky, up from the outer hills, sweeping down on Las Campanas or La Cruz. Imperialist chiefs urged a general attack, but again Marquez foiled their hopes. Then, at two o'clock one morning, there came to pass what Tiburcio had feared. A body of horse stole out upon the plain, and gained the unguarded Sierra road to Mexico. Four thousand cavalry pursued over the hills, but in vain. The fugitives were Marquez and the Fifth Lancers, his escort. He was gone to the capital to raise funds, and to bring back with him, at once, the Imperialist garrison there of five thousand men. Doting Maximilian had even named him lieutenant of the Empire, and Mexico City would shortly have the Leopard for regent. Querétero, moreover, was seriously weakened by the loss of the Fifth Lancers, and there were those who remembered how, when Guadalajara was besieged by Liberals seven years before, Marquez had likewise set out for aid, and had returned—too late.

To his wrathful disgust, Don Tiburcio learned that Father Fischer was also gone with Marquez. The priest had disguised himself in an officer's cloak, and for the moment none in the town knew of his flight. The fat padre, it appeared, no longer hoped for the luscious bishopric of Durango. His was the rat's instinct, as regards a sinking ship.

The Leopard and the Rat got away only in time. The very next day ten thousand ragged Inditos, largely conscripts, arrived from the Valley of Mexico and filled the gap in the besiegers' line. Investment was now complete, against a paltry nine thousand within the town.

CHAPTER XIII

A BUCCANEER AND A BATTLE

“The inclination to goodness is imprinted deeply
in the nature of man.”

—Bacon.

But the paltry nine thousand were the best army of Mexicans ever yet gathered together. For weeks they kept more than thirty thousand Republicans out of an unwallled, almost an unfortified town. But while the Republicans were largely *chinacos*, or raw soldiery, they inside were trained men. There were the Cazadores, a Mexican edition of the Chasseurs, organized by Bazaine under French drill masters. There was Mendez's seasoned brigade. There was Arellano's artillery, though numbering only fifty pieces. There were the crack Dragoons of the Empress, the Austro-Mexican Hussars, and a squadron of the Municipal Guards. There were veterans who had fought at Cerro Gordo, and steadily ever since in the civil wars. There was the ancient Battalion de Celaya, mainstay of the Spanish viceroys, and later of the Emperor Iturbide, its colonel. There were the Battalion del Emperador, the Tiradores de la Frontera, a company of engineers, and several well-disciplined regiments of the line.

But the day came when they began to starve, and being hungry took the heart out of many things. It took the heart out of bombarding Escobedo in his hillside adobe; out of taunting “uncouth rebels.” The rebels were in trenches often not a street's width distant, and for reply they pointed to certain dangling acorns who had been “traitors” caught slipping through the lines. Being hungry took the heart out of the quick-time diana, played after a brilliant sortie. Out of the embrace Maximilian gave Miramon. Out of Miramon's call for vivas for His Majesty the Emperor. Out of standard decorating and promotions and thrilling words of praise. Out of the anniversary of Maximilian's acceptance of the throne. Out of a medal presentation for military merit, which the generals bestowed on their Emperor in the name of the army. Out of being made a caballero of the Order of Guadalupe, especially as the monarch could give only a ribbon, since the cross must wait until his return to the capital. And being hungry certainly made pathetic his prediction that some among those present would one day wear the medal for twenty-five years of faithful service to the Empire. Being hungry took the poet-hero's glow out of his wan cheek as he declared again that he, a Hapsburg, would never desert, for even then he heard Imperialist platoons shooting

recaptured deserters. Or he thought of the wounded left to die on the grassy plain and lying there unburied. No, all the heart was being taken out of these things, for Marquez still did not come with the help he had gone to bring, and the noose was tightening day by day. Attempts were made to send some one through to depose Marquez, but each one failed. Splendid sallies resulted in prisoners taken, which were only so many more mouths to feed. The Roman aqueduct had long since been cut off, and now the wells were giving out. Mules and horses drank at the river, while sharpshooters picked them off. The feebler animals were butchered and distributed as rations. And still the sorry Marquez gave no sign. Even hope failed the empty stomachs.

But for those who waited outside as Vengeance enthroned, expectation began to take on a creepy quality. The besiegers were preparing against themselves a host, not of men, but of frightful spectres, of famished maniacs, of unearthly ghouls, who would clutch and tear with claws any man that stood between them and a morsel of food. And the fury of desperation sharpened with each succeeding irony of a dinner hour.

The siege had endured six weeks. Marquez had been gone a month. But the Republicans held ready for whatever force he might bring. Their key to the situation was the Cimatario, the highest hill on the south. Between it and the wooded Alameda stretched the grassy plain. Republican trenches from base to shoulder of the peak opposed Imperialist trenches under the Alameda trees. Republican troops flanked the Cimatario on either side, lying in wait for Marquez. On one side Driscoll's Grays guarded the Celaya road.

So here they were sleeping encamped on the morning of April 27, when the bugle of a patrol cracked their slumbers. They lay booted and spurred. A moment later they were horsed as well, blinking across the plain in the pearly mist of dawn. They had heard hoofbeats, sharp and dry on the high tableland. Now they saw a wild, shadowy troop, which was hotly pursuing a spectral coach of gossamer wheels, with six plunging mules frantically lashed by outriders. At once, almost, the coach was lost among the dim strangers, who snatched at flying ends of harness, and with their prize raced on again.

The Grays stared. It was like some pictured hold-up, not real. But they knew better when from among themselves a colossal yellow horse and rider dashed toward the road. Then they awoke for certain, and tore after

their colonel to solve this ashen mystery so early in the morning. Was it Marquez, perhaps? But the coach white with dust, and white curtains flapping, what was that?

Striking their flank at an angle, Driscoll drove hard into the fleeing horde. The Grays saw his hand raise as a signal, whereat they did not close in, but swerved and galloped parallel, some fifty paces distant. Driscoll struggled alone against the heaving sea about him. But no cut-throat of that pirate mass so much as drew a knife. By force of brawn, he wedged his way toward the coach, reached it, leaned forward, and caught up the curtain. And what he saw was a poke bonnet. The bonnet was a bower of lace and roses, held by a filmy saucy knot under a lady's chin. He saw a face framed within, of a skin creamy white, of lips blood-red, of hair like copper, and he saw a pair of eyes. They were gray eyes, and as they opened suddenly and wider upon him whom she thought must be her captor, the lady started violently, her cheeks aflame. But at once the eyes snapped as in mockery, and her lips moved.

"Monsieur permits himself—" she began, but no one heard except her terrified companion within the coach. Driscoll had already dropped the curtain as a thing that burned, and was raging on again with the turbulent stream. He got to the leader of the band, and jerked the fellow's bridle. He raised his voice, and louder than the pounding of hoofs he cursed in wrathful disgust.

"Dam' you Rod, this here's getting monotonous!"

The man swung in his saddle. His eyes were black-browed and savage. He was Rodrigo Galán, the terrible Don Rodrigo. But shabby, how very shabby he looked for the thief of million dollar convoys! Yet that bonanza coup of the bullion train had happened two years ago. Since then the outlaw had visited the capital. Boldly, audaciously, he had gone as a rich hacendado, and after the manner of rich hacendados he had "seen the City." Mozos with gorged canvas bags on their shoulders had followed his stately stride into the gambling casinos. He had played with regal nerve, and on the last occasion, had flung the emptied sacks away as nonchalantly as on the first. Only, the last time, he had felt remorse that the "bank" had profited instead of Tiburcio. In that matter of the bullion convoy he had not treated Don Tiburcio as one caballero should another.

Their horses—Rodrigo's and Driscoll's—were racing by bounds shoulder to shoulder. This endured for possibly the space of a second. Then

Demijohn felt his rein tighten, and he took more time. Next his bit suddenly pinched, and down the old fellow came upon his front feet together, firmly planted, and sank to his haunches. Driscoll still held Rodrigo's bridle, and Rodrigo and horse, being in air, lunged backward.

"We stop here," Driscoll announced.

Don Rodrigo plumped down heavily in his saddle. His bristling moustache lifted over his cruel white teeth. Two hundred swarthy little demons reining in around them looked expectantly for a signal. But their chief frowned at the twelve hundred Gringo Grays hovering on his flank. They too wanted only a sign, and they outnumbered the Brigand's six to one. But Rodrigo believed he held the advantage. First he obediently halted himself and his minions.

"Now then señor," said he in pompous and heavy syllables, "I am at your disposition. Will your people commence the battle, or shall we?"

Driscoll appreciated the dilemma. The carriage would be in the line of fire. He had had an intuition of its occupants, and for that reason had kept back his men.

"Where was she going?" he demanded.

Rodrigo feigned surprise. "And where," he asked, "or rather, to whom, should Your Mercy imagine?"

To Querétero! To Maximilian, of course! This, too, Driscoll had divined already.

"No matter," he retorted shortly, "but how did you run across her this time?"

The outlaw filled his chest, "You Americans, señor, do not understand the feelings of a man bowed under a heavy wrong. You—"

"We'll let it go at that," said Driscoll, with a little wave of the hand, ⁸⁸⁵
"but—how in—"

"You scoff already, señor? But will you, at these stains of blood? Then let me say to you, señor mio, they make me remember one shameless deed for which the tyrant Maximilian must pay."

The stains Rodrigo meant were on a little ivory cross which he had taken from his jacket. The emblem served him to lash his emotions, to goad his precious sense of wrong. He studied the cross intently; then, by a vast and excruciating effort, thrust it into Driscoll's hand.

"Yes, yes," he cried, "you must take it! He said so."

"He?"

“Si, señor, he who shares my wrong, Don Anastasio Murguía.”

“Murgie!” exclaimed the bewildered American. “But—why, hombre, I haven’t seen the old skinflint since—since he and I both were court-martialled by Lopez!”

“Still I promised him to send the cross to you, because you will have a chance to give it to him. He said so.”

“Oh, he did?” But Driscoll put the trinket in his pocket, not unwilling to see more of this foolish drama in Latin-American sentiment. “Now then, Rod,” he went on impatiently, “you haven’t explained yet how you happen to find her again.”

“That,” replied the outlaw, “was *his* part of the bargain.”

“Whose?”

“Anastasio Murguía’s.”

“Rod, you talk like a—”

“But no, señor, it’s because you Americans cannot understand. Murguía also believes in vengeance. I haven’t seen him either, not since he sold his hacienda over a year ago. But I do know that he or some spy of his is in the capital, for a messenger from him came to me in the mountains. The messenger said that the Marquesa d’Aumerle was leaving for Querétaro. If I captured her, it would be vengeance in kind. But Murguía wanted pay for his information. He wanted that cross—it was his daughter’s—and I was to send it to him through you. Dios mio, but I had to hurry! A little more, and the Marquesa would have been inside your lines.”

“She is already,” Driscoll corrected him, “and so are you. Will you fight it out, or surrender?”

He pointed to the Grays as he spoke. They had dismounted, and each man had a rifle at aim across his saddle. It was a reminiscence out of Driscoll’s boyhood of Indians and the Santa Fé trail. But Don Rodrigo only smiled.

“You want the coach first?” he said.

“No!” Driscoll retorted. “You’re the one that’s wanted, and you can either wait for your trial, or be shot now, fighting. The coach will have to take its chances. But see here, if the firing once starts, not a thief among you will be left standing—”

It was a perilous “bluff,” and none might say if it would have broken the deadlock. But the outlaw interrupted.

“Listen! What’s that?”

“Oh, nothing. We’re only throwing a few bombs into Querétaro.”

“Only!” The brigand’s eyes flashed, and his voice was filled with envy. Throwing bombs among the traitors?—and magnificence like that had grown common! Yet he, whose patriotism was a passion that fed and thrived upon itself, must be barred from such exquisite satiety.

Driscoll understood, and thought it droll. First there was that loyal Imperialist, Don Tiburcio, frothing chagrin because he had had to desert. And now here was this rabid Republican, heart broken over being outlawed from the ranks of his country’s avengers.

Again Rodrigo interrupted, more excitedly yet. “Señor, señor, you don’t shoot them that way every day? What does it mean?”

Both gazed across the plain to the city of domes under the green hills. Driscoll’s chin raised, and he listened intently. What had commenced like indolent target practice against a beleaguered town had suddenly burst into a terrific cannonading chorus. More, there was musketry, vicious and sustained. There were troops deploying over the plain. Something critical was happening. If it were the supreme rally of the famishing Empire!

Driscoll stirred uneasily. He glanced at his outlaw. He thought of the coach. To leave her with these ruffians? To miss a fight? Here was a quandary!

“You are not going?” Rodrigo cried at him furiously. “Now, now,” he raged, “is the hour of triumph for the incarnation of popular sovereignty. Go, I say, go, the Republic needs you!”

Until those words Rodrigo had held the situation. With them he lost it, and Driscoll was master. And Driscoll grew serene, and very sweet of manner. He began filling a cob pipe. A nod of his head indicated the coach as a condition of his going.

“Look, look!” Rodrigo shouted. “Oh, que viva—they’re running! We’ve smoked them out! We’ve smoked them out!”

Driscoll swept the country with his glasses. Thousands of men were running like frightened rabbits down the Cimatarío slope, and spreading as a fan over the grassy plain. Mountain pieces boomed farewell behind them, until in abject panic they cast away carbines and scrambled the faster. But other troops were pushing up the slope opposite the town, and these were ordered ranks of infantry. Up and up they climbed, to trench after trench, and the howitzers one by one stopped short their roar. When

Driscoll laid down the glasses, his face was white. Rodrigo's glee turned to uncertainty.

"What—what—"

"Smoked out, you fool? We're the ones smoked out!"

"But those runaways?"

"Are our own men, ten thousand of 'em, raw conscripts to support our batteries on the Cimitario."

"But the Cimitario?" Rodrigo knew by instinct the crucial importance of the black cone.

"The Cimitario is taken by the Imperialists!"

Driscoll did not forget, however, the nearer contest, and as the Mexican grew frantic, he was the more coolly indifferent.

"Max has everything his own way now," he added soothingly. "He can either evacuate, or go around on the north side and thrash Escobedo."

But the Grays were clamoring for action. "By cracken, Din, hurry up there!" yelled Cal Grinders.

Driscoll raised his palm, waving the fingers for patience. He scanned the plain again. The Imperialist ranks were breaking. Hungry men rushed on the besiegers' camps, snatching untouched breakfasts. The townsmen poured out among the uniforms, and darted greedily in every direction. The llano was alive with scurrying human beings. Driscoll could well wait for the psychology of Republican defeat on Don Rodrigo, since at the same time he awaited the effects of victory on a starving army. The Grays fretted, but they knew their colonel was never more to be depended upon than when his blood grew cold like this.

"If," Driscoll observed pleasantly to the Mexican, "Escobedo isn't already making tracks for San Luis—"

It was the last straw. The patriot brigand jerked off his sombrero and flung it to the ground. He gestured wildly over the plain, and he gestured in the American's face. He choked on words that boiled up too fast.

"You—you—traitor!" he spluttered. There was actually froth on his lips. 389

"We haven't," Driscoll reminded him with exceeding gentleness, "settled this other yet," and again he nodded to the coach.

"That—that is why you wait?" Rodrigo had forgotten his prize entirely. "Take her, then, take her! Only go, go, kill all the traitors!"

"After you, caballero," Driscoll returned with Mexican politeness. He wanted to be sure of the outlaw's departure, since holding him prisoner

was now out of the question. But Rodrigo chafed only to be gone. With a reed whistle he signaled his little demon centaurs, then at a touch of the spurs his horse leaped forward and all the band clattered close on his heels.

“Sure anxious to escape,” thought Driscoll. But he stared after them in wonder. Instead of turning to the safety of the mountains, they charged straight ahead on the town, straight against the Empire, and in any case, straight into the maw of justice. Behind, the coach and mules stood high and dry in the road. Driscoll was at once all action.

“Shanks,” he called.

Mr. Boone hurried to him from the Grays.

“Shanks, will you stay here with six men—”

“Jack Driscoll!”

“To watch that coach, Dan. There’s two girls in it.”

“Jack! Miss that there fight!”

“But Dan, *these* girls are friends of yours, you met them once.”

Mr. Boone started violently.

“Never mind, I’ll ask Rube Marmaduke or the Parson.”

A pitiful struggle racked Mr. Boone.

“You, you’re not fooling me, Din?” he pleaded.

“Sure not. It’s your empress all right. It’s Miss Burt all right.”

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“Then, Lawd help me, I’ll stay!—But you’d best be hustling and get to work.”

“Just a minute, Shanks, there’s the other one in the coach. She wants to go to Querétero. If she gives her word of honor—never mind, she knows honor from a man’s standpoint—if she gives her word that she brings nothing that will help ’em inside, then you can escort the coach into the town after things quiet down some. All right? Good. Then we’re off!”

Demijohn’s hoofs pelted dust balls with each impact. The Grays were ready. They surged behind. The sound of them was a swishing roar. In the apex of the blinding tempest, Driscoll sat his saddle as unmoved as an engineer in his cab. He looked ahead placidly. Empire and a prince had just triumphed. So he was going to readjust fatality. The smile touched his lips as it never had before, and hovered there in the midst of battle.

CHAPTER XIV

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BLOOD AND NOISE—WHAT ELSE?

“On stubborn foes he vengeance wreak’d,
And laid about him like a Tartar,
But if for mercy once they squeak’d,
He was the first to grant them quarter.”

—Orlando Furioso.

Only for the moment of a cooling breath is Nature gray in Mexico. The sun’s barbed shafts had already ripped away the cloak of dawn when Driscoll and his cavaliers swept over the glaring road. But there was no longer any battle. The plain swarmed confusion only. Panic cringed before hunger. The defeated besiegers panted, stumbled, ran on again, or lay still in trembling. The victorious besieged were gorging from fingers crammed full. It was the hour for trophies. A prosperous townsman bore a stack of tortillas, and gloated leeringly as he hurried to put his treasure safely away. A dashing Hungarian with fur pelisse shouted gallant oaths at a yoke of oxen and prodded them with his curved sword, as though a creaking cart filled with corn were the precious loot of an Attila. Pueblo and soldiery tore ravenously at fortifications that had so long kept them from one savory broth. With nails alone they would demolish walls and trenches. Some lurched over fugitives in the grass, and then pinned them there with bayonets, the lust for food turning fiendishly to a lust for blood.

But what most inflamed the Grays were the captured cannon. They counted as many as twenty being dragged into the Imperialist lines. The Missourians were aggrieved. Never, never had Joe Shelby’s brigade ever lost a gun. And as they galloped, they looked anxiously about for chances of more battle. Just then Rodrigo’s outlaw band caught their eye. These had swerved from the road out upon the field, hot to engage anything, everything. A long provision train offered first. Many carts had been loaded with Republican stores, and were being convoyed to the town by a squadron of Imperialist cavalry. It was the clash between this escort and

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the brigands that attracted the Grays coming on behind. But the escort wheeled and fled and the brigands pursued, slashing with machetes, and so charged full tilt into the Dragoons of the Empress who were sent to retake the abandoned prize. Red tunics mixed with ragged yellow shirts, and war-chargers and mustangs swirled together as a maelstrom. Then the Grays pounded among them, in each hand of each man a six-shooter. The red spots began to fall out of the peppered caldron. The red tunics that were left broke, retreated, ran. It became a rout. Only a few of the Empire's best survived those ten minutes of blood-letting. Fatality? Driscoll's lip curled. Fatality? The Dragoons, now no more, had twice held him for their bullets.

Grays and brigands chased them back toward Querétero. The fleeing remnant began yelling for help. Driscoll rose in his stirrups, and saw just ahead a large force of the enemy. It was gathered around the Casa Blanca, a little house on the plain. The large Imperialist force there was an army, nothing less, though still disordered from the late action and victory. Surrounded by a brilliant staff was a tall, golden bearded chieftain, sumptuously arrayed as a general of division, regally mounted on a cream-coated horse of Spain. He was Maximilian, viewing from there the winning of his empire. The army behind him filled his ears—"Viva Su Majestad!"

But he who had given the cue for that thrilling music now saw the convoy's fate. He rode up and down anxiously, striving for order in the confused ranks. He wore the green sash of a general. He had a moustache and imperial, searching black eyes, and an open brow. His fine features showed in the blend of French and Castilian blood. He was the real chieftain. He was Miramon. Impetuously he made ready to avenge the Dragoons.

These things that he saw ahead brought Driscoll to his senses. With reluctance, but instantly, he made up his mind. He held high his sabre and halted his own men, turning at the same time to collide obliquely, and purposely, against Rodrigo.

"Not that way, Rod, not that way!"

"But it's the tyrant! It's the tyrant!"

Driscoll got the brigand's bridle and swung him around fiercely. "Let the poor tyrant be!" he yelled. "We've got to take that there Cimatarío hill."

A moment later Grays and brigands wheeled to the right and were off. Back at the Casa Blanca Maximilian lowered his glasses. "They surely, they surely are not--yes," he cried, "they *are* going to attack the Cimatario!"

Miramón smiled. "Then they are lunatics," he said. "Why, Your Highness knows that we have five thousand of our best men on the Cimatario."

"Yes," Maximilian agreed uneasily, "but I thought I recognized the man who leads those lunatics. Do you happen to know, general, how Tampico fell?"

"Do not worry, sire," Miramón replied, willing to humor the prince, "I will take our infantry to the Alameda and strengthen our reserve there, should anything really happen."

Across the grassy plain raced the twelve hundred cavalry and the two hundred outlaws. They raced to attack five thousand brave men who had that morning dislodged ten thousand. Five thousand in the trenches above, fourteen hundred in the open below, such were the odds of Empire against Republic.

Grays and brigands drew rein under the Cimatario's west slope, and the bugle sounded to dismount. 294

"But señor," Rodrigo protested, "don't we charge straight up?"

"And not have a man left when we do get up? Here Clem," Driscoll added to Old Brothers and Sisters, the lieutenant colonel of the Grays, "you circle round and up the other side with eight companies. Take all the horses, but leave 'em back of the hill as you go. Don't that look like the best scheme?"

The parson's cherubic features beamed. "Good-bye, Din," he said. "But pshaw, I reckon—I reckon we'll be meeting up above." He referred, however, to the top of the Cimatario.

Four companies and Rodrigo's band remained. These Driscoll spread out in a skirmish line that made a long beaded chain around their side of the hill. It was evidently an unfamiliar method, for the Imperialist tiradores fired down on them contemptuously. But each time, while the enemy above were reloading, the Grays and outlaws below were climbing a few yards, each man of them individually, up from behind his own particular rock. The Imperialists, it now appeared, had blundered incomprehensibly, since they had actually taken away nearly all the

cannon captured on the Cimatario. But six-pound affairs from batteries in the Alameda soon began to splinter and furrow around the climbing men. One loosened boulder rolled and struck Doc Clayburn on the tip of the shoulder, bringing him down like a bag of meal. He arose, feeling himself. "Now, by the Great and Unterrified Continental—" he began, as he always did at the monotony of being hit. Then his disgust changed to wonder. "W'y," he cried, "I'm not either, I only thought I was!"

They mounted higher, and the business grew hotter. Each man had to look to himself more and more sharply, lest he forget that economy of the individual was now the hope of the regiment. But for all that, when a 295 Missourian craved tobacco—it is a craving not to be denied, in no matter what danger, as most any fireman knows—he would leave cover to beg his nearest neighbor for a chew, and obtaining it, would feel the heart put back into him.

As they drew close under the first of the trenches, they concentrated for a bit of sharp in-fighting, and so suffered more. But once they provoked the next volley, they meant to rush the works. The Imperialists though were loath to squander the one ball to a carbine when Indian-like fighters like these were so near. They had one mountain piece, a brass howitzer, and the gunner stood ready, the lanyard in his hand. But he hesitated, bewildered. His targets were not twenty paces below, yet nowhere crouching behind the rocks were the foe massed together. His pride forbade that he waste twelve pounds of death on a single man.

But suddenly that happened which the gunner never in this life explained. Poised expectant in the lull of the fray, he was trembling under the tense silence, when he saw the impetuous Don Rodrigo dart up the slope, full against the muzzle. At the same instant he heard shouts of warning behind him, and he heard the tiradores there above firing at someone almost at his feet. But the figure that had scaled up the back of the hill, crawling around the trench, was already on him. He drew back his arm to drive the heavy shot through Don Rodrigo in front, but only to feel the cord in his hand part before a knife's keen edge. With a cry of dismay he sprang to grasp the rope's end, but as in a vision a head of curly black and an odd smile rose between, and a swinging fist of a great bared arm crashed back his chin, and he sank as a brained ox.

"Lambaste 'em, Din Driscoll!"

It was a rapturous shout, and Cal Grinders, passing Rodrigo, tumbled over the earth-heap and joined his colonel against five hundred. Behind swarmed others into the newly awakened hell, coatless men of Saxon necks tanned a dark ruby, and in the hot Imperialist fire they settled to their work.

“By cracken, lambaste ’em! Why in all hell *don’t* ye lambaste ’em?”

This fury boiled through oaths, unable to spend itself in blows. The tigerish rage seized on them every one. Teeth grated vengefully as men struck.

“Lambaste ’em, Din Driscoll!”

“Lambaste ’em—*good*—Din Driscoll!”

The yell swelled to a murderous chorus. These men did not know that they were raving. A war cry is just the natural vent. It is simply the whole pack in full cry.

But never before—for now around him there was the contrast of hate and panting and passions in ferment—had Driscoll seemed so distant a thing from flesh and the human sphere. In grime, in dust, in smoke, among faces changing demoniac wrath for the sharp, self-wondering agony of mortality, his face was cool, serene, with just the hint of a smile tugging at his lips. His own men would try to look another way, try uneasily to break the fascination of this strange warrior who led them.

The battle was short, but of the hottest. Its central point was the little brass howitzer. Driscoll, Grinders, Bledsoe, the Doc, all four pushed at the carriage or pulled at the trunnion rings, while around them, hindering them, swaying back and forth over rocks and in the ditches, the two forces battled for possession, hand to hand, with six-shooters and clubbed muskets. Grinders fell, cursing angrily. Bledsoe fell, toppling heavily his great length. The Doc fell. “By the—” he began, but got no further. He was not mistaken this time. But the gun was turned at last, and a vicious hand jerked the rope. Powder grains pierced the eyes of the nearest Imperialists. The shot tore through the mass of them. Yet Driscoll remembered most how wan, how *hungry*, they looked.

“Death to the traitors! *Á muerte! Á mu-erte!*”

It was a heavy nasal, hurled from the lungs with that force and venom peculiar to the Spanish tongue. It came from Don Rodrigo, who had pulled the lanyard, and who now pulled it again and again, crazed first with joy, then with rage because the emptied gun would not respond.

While the combatants were so confused together, the tiradores in the upper trenches had to hold their fire, but when the defenders gave way at last, those above could wait no longer. Four thousand and more, they leaped their earthworks, and came charging down the slope on what was left of Driscoll's six hundred.

Grays and brigands faced about, but most of all they looked beyond the enemy's right flank, to the line of the hill's crest there. For just beyond that jagged line and somewhere below Old Brothers and Sisters and the eight other companies must be toiling up. But they would have to appear in the interval of the Imperialists' downward rush. Driscoll turned to his bugler. "Blow, Hanks! Blow like the *very* devil!"

The blast sounded long and shrill, like a plaintive wail. The six hundred pumped lead up the hill mechanically, but their hearts were echoing the clarion's cry for help, and rather than on the foe sweeping down over the rocks to crush them, their eyes were strained on the sun-emblazoned line against the sky. But the parson was a man. At last, just over the slope's crest, a head appeared, a cherubic head with spectacles, and two arms waved for haste to others behind. And instantly more heads bobbed up, and more yet, until the jagged line was fairly encrusted with mouse-colored sombreros, like barnacles on a stranded keel.

From where they were the new comers began their work, lying flat on their stomachs. Once over the ridge, down each man fell and joined the chorus of musketry. Their fusilade thickened to a blanket of flame, closely woven. The host rushing down the slope forgot the tales that were told of the marvelous sixteen-shot rifles. They thought instead that an ²⁹⁸ army of Republicans, and not a man less, were upon their flank. For how else could volleys be so well sustained, how else so deadly? And how fast they themselves were dropping! The thing was not like bullets, but as the earth caving under them. The charge turned to panic. They plunged on downward, indeed, and even sheer into the cross fire of Driscoll's six-shooters and the one howitzer. But it was headlong flight. At the trench they did not stop to grapple, but fought their way through and fled on down the hill, on across the grassy plain, nor paused until they had crowded pell-mell into the main Imperialist army drawn up before the Alameda.

Maximilian and his resplendent staff were there at the Alameda. The Emperor was perhaps less astounded than they.

“Ai, general, if you *had* known how Tampico fell!” he said to Miramon.

Yet neither was actually dismayed. The Cimatario and five thousand men had succumbed to a thousand or fifteen hundred daredevils. It was hard enough to believe, in all conscience. But the daredevils could be dislodged, and they must be, at once. Miramon’s orders rose sharply and quick, and the Empire sprang to obey. The Alameda batteries were trained on the hill, and a few moments later the guns on the roof of the La Cruz monastery were also. At the same time, the army, the entire Imperialist reserve, battalion after battalion in close, hurried ranks, set out across the grassy plain, straight toward the Cimatario’s front slope. Foot, horse, artillery, the concentrated might of the Austrian’s sceptre, was being hurled against a handful of jaded warriors. Maximilian flushed with something like shame at the thought.

Back on the slope Driscoll cried, “No, no, keep to the trenches, you fellows! This ain’t *our* promenade.”

And soon, when screaming comets began to fill the air and burst around them, they were glad of the ditches. There they waited, smoking, spitting tobacco against the torrid rocks, but with sullen eyes on the army moving nearer and nearer. Where, all this morning, was Escobedo, who, with his thousands of Republicans on the north of the town had taken no thought of the Republican stress on the south? He had not fired a shot. Yet surely he must know by this time. But no matter. Over a hundred outlaws were left, and nearly a thousand Grays. Missourians, brigands, and guerrillas of Michoacan, they were a dangerous blend.

“Got a match, Harry?” asked Driscoll of the Kansan, as he filled his cob pipe.

They *had* to wait, you see. Yet haste was all they would have begged of the advancing Imperialist host.

The red jackets of the Dragoons—the few that were left—brightly dotted the van of the attacking thousands. On either side rode the Second and Fourth Lancers. Behind tramped the battalions of Iturbide, of Celaya, and regiments of the line. They gained the foot of the hill and the cavalry were dismounting before they drew fire. The baptism had a sharpshooter deadliness, even at that distance, but the Imperialists waited tentatively. No, there was but one volley. When the second came, it was only after an interval long enough for reloading. Officers and men glanced at one

another more hopefully. The terrified fugitives were of course mistaken, they thought. For the force above could not be large, nor yet possess the mysterious sixteen-shot rifles. The assurance gave the buoyancy of relief. To charge against carbines that made each man as sixteen were uncanny, too much like challenging the Unknown. But a thousand men who fired only every two or three minutes—an antagonist like that was quite well known to their philosophy. So breathing hard, they valiantly marched up the hill. They suffered cruelly under the scattered fusillades, yet were not materially resisted. At last they were near enough, and the bugles sounded for the final rush.

Now what was odd, the Republicans stopped firing altogether. But they were waiting for shorter range, and a moment later, at a hundred paces, their reopening volley had all the clockwork dispatch of platoon drill. Yet the Imperialists took the dose as a thing expected, and sprang over their wounded to gain the trenches. They required only the lull of reloading. But instantly a second volley prolonged the first. The column staggered, and faces blanched. In a sudden despair they realized the enemy's tactics, for the enemy did have those terrible rifles, after all. From the trenches a low sheet of flame had spread, searing the breasts of rank after rank that pressed against its edge. Scarlet-coated Dragoons, the last of them, flecked the rocks, and over them fell green uniformed troopers, as grass will cover a bloody field, and the Municipal Guards, swaying up from behind, paid out a sprinkling of blue—a ghastly *pousse-café*, as one grim jester described it afterward. The long massed lines wavered.

"They've stopped, they've stopped!" cried Rodrigo. "Now we'll close with them, eh, señor—por Dios, *now!*"

"All you fellows," shouted Driscoll, "just fill your rifles while they wait. Stopped nothing, Rod! And anyhow, who'd hold the hill if we left it? Who?"

The answer came at once, and in dramatic form. One of the pickets stationed on the flank ran among them.

"There's another big slew of 'em a-coming!" he yelled excitedly. "Yonder, over yonder!"

Driscoll rose and followed the man to the east slope. From there he beheld an overpowering force, advancing diagonally across the llano below. It came by the Carretas road, which skirted Querétaro on that side,

and it was hurrying toward the Cimatario. The colonel of Grays watched them anxiously through his glasses.

“Shucks,” he said at last, “the fight’s over. It’s Escobedo. He’s sent his reserve. Don’t you see those black shakos, Jim, and those gray coats? They’re the Cazadores de Galeana, and the best yet. Now we’ll have someone to hold the hill!”

But getting back to the trenches, Driscoll saw that the help might not come soon enough. For however the Imperialists squandered their lives, they would yet overcrowd death. Some had already gained the first trench, and were there engaged hand to hand, with sabre and pistol. In the trenches above the Grays steadily fed the molten flame. But Driscoll chose the in-fighting, and naturally became himself the centre of the hottest patch.

“Help’s here! in five minutes, just five minutes!” he spoke right and left to his men, as a carpenter will converse and hammer at the same time. For the outnumbered Grays it was the help arrived already.

The Imperialist cannon had of necessity ceased firing, so what should be the consternation of the attacking column to have a shell fall among them from the rear! All eyes turned, and a murmur of panic rose. It was not that their own batteries had made a mistake, but that there had not been any mistake. The reserve sent by Escobedo, hearing the battle, had wheeled and rushed straight down the centre of the plain on the chance of giving quicker assistance. Once in sight of the trenches, though still considerably to the right of the hill, they had unlimbered a gun, while cavalry and infantry pushed on to the rescue. Not to be caught between trenches and plain, the Imperialists acted with soldiery decision. Their clarions sounded retreat.

“Now it’s *our* turn!” shouted Driscoll, and with the parson and the Kansan and the outlaw chief, and guerrillas and Missourians pouring out of their ditches, he chased down hill the concentrated might of an Empire. So closely was that chasing performed that pistol flashes burned into standards and uniforms.

Maximilian and Miramon and the high officers of the realm were still at their post of observation in front of the Alameda. For the third time that morning they faced Imperial cohorts hurled back upon them by a man named Driscoll. Miramon reproached himself bitterly. His plans to intercept Escobedo’s reserve on the north had failed. The Emperor’s

pallid features were drawn with the tensility of a big loser. Yet in the soft blue eyes there flashed a chivalrous wonder at an enemy's valiant deed.

On the llano fugitives and pursuers mingled as one in the human wave of confusion. Escobedo's cavalry had overtaken the *mêlée*, and blended with the rear of the fleeing column, until it seemed likely that both must enter the town together. But a charge of grape, fired obliquely from the Alameda, mowed a path between them—a Spartan business, for it reaped Imperialists among Republicans. However, a second and third blast were better gauged, and these carpeted the new alley-way with Republican bodies. Also, the Imperialists were re-forming, and under a withering fire the little band of victors had to draw back to the Cimatario.

As Escobedo's reserve occupied the hill, Driscoll marched his own force behind the same to get his horses there. But the mustangs of the brigands had disappeared, and far to the southwest were the brigands themselves, moving swiftly over the plain toward the mountains. They hardly numbered two-score now, and at that distance seemed a few men herding a drove of empty saddles. The late indignant patriot, Don Rodrigo, had changed back to outlaw. As another Cid, he might have looked for pardon from a grateful country, but possibly he feared the Roman justice of Juarez too much to risk it. Besides, a man will not lightly give up his career. That same night Rodrigo lay again among the sierras, quite ready for the first bullion convoy or beautiful marchioness passing by.

Shells and minie balls were yet dropping perfunctorily, and the llano⁴⁰³ between hill and town was still a dangerous place enough, but scattered here and there were a few of both sides looking for their wounded, and often themselves going down before the aim of sharpshooters. Stiffening bodies lay under the trampled grass in every varied horror of mutilation, and glassy eyes peered unseeing upward through the stalks, like the absurd and ghastly contrast of a horrible dream. But among them were the stricken living in as varied an agony, of raw wounds stung by gnats, of pain cutting deep to vitality, of thirst, of the broiling sun, of a buzzing fly, or of an intolerable loneliness there with death. Groans rose over the plain, and guided the searchers. Driscoll had already found many of his men in this way. Once he heard his own name. The voice was weak, but there was something vaguely familiar to it, and involuntarily he held his pistol against treachery as he parted the grass and revealed a wounded

man at his feet. It was a piteously famished body that raised itself a little by one hand. It was a soul-tenanted death-head that crooked gruesomely down on the shoulder and lifted its eyes to Driscoll's in greeting. They were glowing coals, those eyes, glowing with the virile fire of twenty men, however wasted the face or tightly drawn the yellow parchment skin.

"Murgie!"

Driscoll's exclamation was a shudder rather than the surprise of recognition. What could it be that had grown so—so *terrible* in the weazen, craven miser! And to find the abject little coward on a battlefield, and wounded! An occasional bomb even then screeched overhead. And he was clothed in uniform, a soldier's uniform, he, Don Anastasio!

"Gra-cious!" Driscoll muttered.

More and more stupefying, the uniform was not Republican, but Imperialist. There were the green pantaloons with red stripes, the red jacket, the white shoes, the white kepi, of the Batallon del Emperador—a ludicrous martial combination, but pathetic on an aged, withered man.¹⁰⁴ The Batallon del Emperador? Driscoll remembered. They were the troop that had surrounded Maximilian during the recent battle in front of the Alameda, and Murguía had fallen on the very spot. The venomous Republican was then become one of the Emperor's bodyguard!

As the Republican, so also was the coward gone. The gaunt little old Mexican seemed oblivious of peril, as fever blinds one to every nearest emotion. There was even a grimness in the shifting gaze. And a certain merciless capacity, born of unyielding resolve—born of an obsession, one might say—was there also. He could have been some great military leader, cruel and of iron, if those eyes were all. Little shriveled Don Anastasio, he had no sense of present danger, nor of the red blood trickling.

"That's bad, that," said Driscoll, overcoming his repugnance. "Here, I'll get you taken right along to our surgeons."

But Murguía shrank from the offer as though he feared the Republicans of all monsters.

"No, no," he protested feebly, yet with an odd ring of command. "Some one on—on my side will find me."

"But you called?" Driscoll insisted.

“Yes, you—have heard from Rodrigo Galán? He was to have sent you a—to have sent you something for me.”

More and more of mystery! Rodrigo had said that Driscoll would see Murguía to give him the ivory cross, and so it had come to pass. But the battle, the old man’s wound, surely these things were not prearranged only that a trinket might be delivered.

“How was I to see you?” Driscoll asked abruptly.

Murguía started, and there was the old slinking evasion.

“There, there,” said Driscoll hastily. “Don’t move that way, you’ll bleed to death! Here, take it, here it is.”

Murguía clutched the ivory thing in his bony fingers.

“María, María de la Luz,” he fell to murmuring, gazing upon the cross as though it were her poor crushed face. In the old days she had made him forget avarice or fear, and now, before this token of her, the hardness died out of his eyes and they swam in tears. Driscoll gazed down on him pityingly. The old man was palsied. He trembled. There passed over him the same spasm, so silent, so terrible, as on the night of her death, when he had sat at the court martial, his head buried in his arm.

“Rod said you would want it,” Driscoll spoke gently. Then he moved away. An Imperialist officer was approaching over the field who would bring the help which Murguía refused to accept of the Republicans.

Driscoll looked back once. The Imperialist officer was carrying Murguía into the town. He was a large man, and had red hair. His regimentals were gorgeous. There seemed to be something familiar about him, too. Greatly puzzled, Driscoll unslung his glasses, and through them he recognized Colonel Miguel Lopez. Lopez, the former colonel of Dragoons, now commanded the Imperialist reserve, quartered in the monastery of La Cruz around the person of their sovereign. But Lopez had once condemned Murguía to death. A strange solicitude, thought Driscoll, in such a high and mighty person for a little, insignificant, useless warrior as poor Murgie. A strange, a very strange solicitude, and Driscoll could not get it out of his head.

CHAPTER XV

OF ALL NEWS THE MOST SPITEFUL

“O poor and wretched ones!
That, feeble in the mind’s eye, lean your trust
Upon unstaid perverseness.”

—Dante.

Her gestures, her every word, were an effervescence. There was something near hysteria in the bright flashes of her wit. However gay, joyous, cynical, Jacqueline may have seemed to herself, to Berthe, terrified though the girl was, Jacqueline’s mood was a sham.

“The *frisson*, oh, those few exquisite seconds of emotion, eh Berthe?” she exclaimed. “Pursued by robbers—the chase—the rescue—and the jolting, the jolting that took our breaths! Why, Berthe, what more would you have? Hélas, to be over so quickly! And here we are, left alone in our coach, robbers gone, rescuers gone! Berthe, do you know, I believe they compared notes and decided we weren’t worth it. But I *should* have thought,” she went on in mock bitterness, “I should indeed, that at least our Fra Diavolo would have been more gallant, even if—”

“Even if?” prompted Berthe, then bit her lip.

“Even—Oh Berthe, *fi donc*, to catch me so because I was wandering!—even if one could expect no such gallantry from the Chevalier de Missour-i. There now, do you tell Tobie to drive on—”

“But mademoiselle—”

“Say ‘Jeanne’,” the marchioness commanded, stamping her foot.

“My lady,” the girl persisted, but added with affectionate earnestness,⁴⁰⁷ “and my only friend, I was simply going to say that we are not deserted after all.”

“But didn’t I see him riding away?”

“*Him*, yes, but look out of the window. See, he’s left six or eight—O—oh—”

It was a joyful cry, which got smothered at once in confusion. Turning quickly, Jacqueline beheld a little Bretonne with eyes cast down and

cheeks aflame. Yet even then Berthe gave a cosy sigh of relief. There was cannonading not far away. They had just been taken by brigands, and as suddenly left alone on the road. Thus Jacqueline's company ever cost her many a tremor. Yet somehow one of those chevaliers de *Missour-i* needed only to appear, and she felt as secure as a kitten on the hearth rug. A chevalier de *Missour-i* had but now ridden up to the coach door.

"Berthe!" whispered Jacqueline severely, so that the girl thought her dress was awry. "Quick, tuck your heart away in your pocket. It's right there on your sleeve." Whereat Berthe employed the sleeve to hide her higher mantling color.

Jacqueline turned on the chevalier at the window, and surveyed *his* sleeve. It was covered with dust, but Jacqueline's big eyes could see through dust. She felt about her a subtle atmosphere that made her an outsider.

"Ah, Monsieur le Troubadour?" came her bantering recognition.

Mr. Boone's French crowded pleasantly to his tongue tip. "Mademoiselle," he returned, "and," he added, with an odd glance toward Berthe, "Madame l'Imperatrice, uh—how goes it?"

Jacqueline's lashes raised inquiringly, until she remembered how the lank gentleman before her, with the tender heart of a Quixote, had mistaken Berthe for the Empress, months before at the Córdoba ⁴⁰⁸ plantation. She liked him somehow better now for persisting in it.

"Her Imperial Highness," she explained, very soberly, "may deign presently to observe that you are here, monsieur, though, as you see, her thoughts are far away. However, if you can possibly give your own to a humbler person, to myself, dear Troubadour, I should very much like to know what is to happen next. Use fine words, if you must; even put it into verse, only tell me—" With an impulsive shove she flung open the door and stepped into the road. She could still see Driscoll's troop, or rather the cloud of dust, speeding toward Querétaro, but her arm swept the horizon impersonally. "Only tell me," she demanded, "what's happening now, over yonder?"

"Pressing business, ma'am—mademoiselle, and," Daniel lied promptly, "Colonel Driscoll wished me to make you his excuses."

"The minstrels of old, sir," said Jacqueline, "usually accompanied their more gallant fibs with a harp."

Her vivacity was rising fast, and for some reason, Berthe darted an angry look of warning on Mr. Boone. But the poor fellow was blind to Jacqueline's jealousy of a distant conflict, and he blundered further.

"Jack Driscoll's just that way," he apologized for his friend cheerfully. "*Abundat dulcibus vitiis*—he's chuck full of pleasant faults. When there's a clash of arms around, let the most alluring Peri that ever wore sweet jessamine glide by, and—she can just glide. While with me—"

"I see. *You* have stayed. But I, too, like battles, monsieur. Tobie, get back up there with the driver. There's no admission charge, I imagine, to this battle?"

Boone gladly offered to take them for a nearer view, but he saw Berthe—his eyes were never elsewhere—shrink involuntarily.

"Stop, arretaz! Hey there!" he ordered, and the driver stopped.

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Jacqueline's pretty jaw fell in wonder. The natural order of things was prevailing over the artificial. Social status to the contrary notwithstanding, it was Berthe who commanded here, and not Mlle. la Marquise. But Jacqueline was happy in it, and perhaps a little envious too. Ah, those *Missouriens*! This one, who would rather stay than fight! And that other, who was now fighting for quite the opposite reason! They had a capacity for variety, those *Missouriens*!

It was much later, after a lunch from Jacqueline's hampers under the nearest trees, and after the distant fusillades had quieted to an occasional angry spat, that the ladies' escort of Gringo Grays, bearing a flag of truce, set out with their charge toward the town. Daniel rode beside the coach window, and the flaps of the old hacienda conveyance were drawn aside. He wondered how it happened that the hours had passed so quickly. He would not believe that his comrades had been fighting, that many of them had died, so blissfully fleeting were those hours to himself.

"It's all according," he mused profoundly.

And he could not help singing. He hummed the forlorn chanson of Joe Bowers of the State of Pike, which Bledsoe, then lying cold and stiff under a mountain howitzer, had so often bellowed forth.

"It said that Sal was false to me,
Her love for me had fled,
She's got married to a butcher—
The butcher's hair was red."

But he sung it as a plaint, yet not hopelessly, and Mademoiselle Berthe was the maid entreated of his melody.

The sharpshooters on both sides paused as the coach drove into the little sweet-scented wood that was called the Alameda, and the Missourians, with sabres at salute, transferred their charge to the Imperialists crowding around. Among the latter were some of Jacqueline's own countrymen, and those, in starvation and defeat, were as debonair as the cadets of Gascogne.

"A rose, mademoiselle," said one, bowing low. He had an arm bandaged, and his sword was broken. "An early merciful bullet plucked it for you, so that it fell unhurt, though the petals of all the others are scattered everywhere among the leaves, among the fallen branches, among the shattered statues of our classic grove here. See, like the rose I tender, you come among us poor broken soldiers of fortune. I think, dear lady, there will be those above to bless you for it."

Jacqueline smiled behind her tears. "Always a Frenchman, eh, mon lieutenant?" she said.

The fragrance of the place was smothered under gunpowder and sluggish fumes. The pleasant drives, the grass, the flowers, were trampled by gaunt soldiers bearing their wounded, but the young officer murmured on in the speech of the Alameda's one time fashionable promenade.

"Who is that?" she interrupted.

She pointed over the heads around her to a man bearing someone off the late bloody field, and that moment staggering across the trenches into the Alameda. It was an act that moved her, for the rescuer was a richly uniformed officer, and the other but a common soldier. With Berthe close behind, she alighted from the coach and hurried forward to help. The wounded soldier's face lay on the officer's breast, and she saw only his hair, matted and very white, from which a rusty brown wig had partly fallen. But more to the purpose she saw that he was bleeding, and the callous warriors there knew that the angels of the siege had come at last.

"Lay him in my carriage—but carefully, you!" she said, and was obeyed, while Berthe deftly fixed cloaks and blankets around the withered form. Someone mounted with Toby and the driver, and the coach rolled slowly away to the hospital, leaving behind the two girls staring at the richly uniformed officer, and the officer staring tenfold harder at them. He was a large man, with big hands and feet, and for a

Mexican he had a mongrel floridness of skin. His cap was in his hand, and his hair was red and thin. Amazement and a startled prying anxiety choked his utterance.

“Now then, Colonel Lopez,” Jacqueline addressed him calmly, “may I ask you the way? I have come to speak with Maximilian.”

“La Señorita d-d’Aumerle!” he stuttered.

“Faith, no other, who is awaiting your pleasure, señor.”

“You come from, from—Mexico?”

“But hardly to chat with you all the afternoon, caballero.”

“From Mexico! From the capital!” he kept repeating. The man’s finger nails cracked disagreeably, and his features worked in an extreme of agitation. He tried to fix his shifting blue eyes upon first one and then the other of the two girls, as though to ferret out what they must know. “You do bring news from there?” he said huskily. “What of Marquez? Is he coming? Shall we have the aid he went for? When—”

“Ah, the medal for military valor!” observed Jacqueline. “Indeed, mi coronel, all must acclaim your bravery, as well as—your loyalty. But take me to your beloved Prince Max, for I do assure you, señor, my news goes not without myself.”

“He visits the hospital every day,” Lopez advised reluctantly. “Perhaps if I should take Your Mercy there first—”

Passing on through the ravaged Alameda, they entered the streets of Querétaro.

“Hear!” Jacqueline exclaimed. “Such a quantity of vivas and clarins and national hymns and triumphant dianas, one would imagine, for example, that there had been a great victory?”

“Eh? Oh yes, or a hearty breakfast, señorita.”

Which was more essential. And why not? Hope’s bright hue blotted out emaciation. They had broken through to food that day. Bueno, could they not do it again? Old croons had returned to their stalls and accustomed corners in the market place, and as in days of peace were already squatted before corn or beans heaped on the stone pavement in portions for a quartilla, a media, or a real, as though the pyramids were not so pitifully little, as though the wholesale purchase were not made just that morning in heavy terms of blood.

Behind the ponderous Assyrian-like church of Santa Rosa, in the old, half ruined monastery and garden, was the hospital of the besieged. A

stifling, fetid odor, far worse than of drugs merely, sickened the two girls as a foul breath when they passed with their guide between thick walls into the large, overcrowded rooms. Military medical service was not yet become an institution in Mexico, and this place was like some horrible antechamber of the grave. Every cot had its ghastly transient, and so had the benches, brought here from the different plazas. More and more wounded were arriving constantly, and those found to be still alive were laid on the flagstones wherever space for a blanket remained. But in spite of the morning's fight, in spite of almost daily skirmishes for weeks past, the sick outnumbered all others; and those who did come with wounds, and survived them, stayed on to swell the longer list. Men tossed in fever, craving what they might not have, a cooling draught, a proper food, and effective medicine, until, with waking, they craved an easier boon, and died. But the hospital fever, the calenturas, the gangrene, were not to be all. Out of the diseased air, mid the fumes of pious tapers, the spectre of epidemic was taking hideous shape over the many, many upturned faces. The spectre was the tifo, a plague more dreaded in high altitudes than black vomit in the low.

Jacqueline found Maximilian bending over a stricken cavalry officer.⁴¹³ The Emperor was far from a well man, and his fair skin more than ever contrasted as something foreign and lonely among the swarthy faces on every side. His ostentation was now simplicity, as befitted a monarch in camp. He wore neither sword nor star. His garb was plain charro, in which he often walked among citizens and soldiers, inquiring about rations, or requesting a light for his cigar, never minding if a shell burst and kicked dust over him, and always affable, always ready to smile and praise. It was a rôle that came naturally to his gentle soul. One would like to believe—if one could, alas!—that he had in mind no kingly precedent.

Pausing unseen, Jacqueline noted tears in the blue eyes as he pinned some decoration on the officer's bloodstained shirt. A good heart, she thought, yet ever the prince. In his divine right was he even here, presuming to send a dying subject to the Sovereign in Heaven with a "character," with a recommendation for service faithfully done. His hands trembled from haste, for he would have the soldier appear before that dread Throne above as a Caballero of the Mexican Eagle. In pity for them both, Jacqueline asked herself what precedence awaited the new Caballero of the Mexican Eagle in a Court, not Imperial, but Divine.

Jacqueline had not journeyed her perilous way out of simple friendship for a desolate prince, but could she have foreseen how his eyes lighted with gladness to behold one friend who remembered, in sweet charity she would almost have come for that alone.

“When Your Highness has finished here,” she said, glancing at the inquisitive Lopez near her, “or whenever I can speak with Your Highness in private—”

There was beseeching in Maximilian’s quick scrutiny of her face, as though the helpless messenger had aught of power over her tidings. “In—in a moment, mademoiselle,” he said tremulously. “I always see the—new ones, before I go.”

The “new ones” were still being brought in, until any first aid from the distracted surgeons was of the most casual—the ripping of bandaged cloth, a knot tied, and so on to the next. Followed by Lopez, the two girls, and several officers of the hospital staff, Maximilian passed from ward to ward. But Jacqueline’s hand seemed always to be threading a needle, or holding a ligature, or lightly touching a hot forehead, and in every case the surgeon would nod quickly, gratefully, as to a fellow craftsman. Berthe the while gazed in tender wonder on her calm mistress, and nerved herself somehow to help also.

And so they came to the withered form in brave red coat, and green pantaloons whom Lopez had carried off the field. One of the nurses had placed a handkerchief over his face, because of the stinging flies, but Jacqueline recognized the thin white hair and the twisted wig as of the old man whom she had sent ahead in her coach. At first he seemed to be dead, for he lay very still on the floor, though a surgeon was probing his wound, and his blood was fast filling the bowl held by the nurse. But now and again, the straining cords in his emaciated wrist twitched with the protest of life. Maximilian stooped to raise the handkerchief. Lopez made a movement to prevent, but restrained the impulse as useless. And then Maximilian revealed the gaunt, leaden features of Anastasio Murguía, the father of María de la Luz.

Jacqueline fell back with bloodless lips. The father of that dead girl—and Maximilian! They were face to face, these two! But the Emperor’s expression was of pity only. He sank to his knees, the better to make the wounded man understand the words of comfort on his lips. For Jacqueline, the horror of it chilled her. Surely, surely, she thought, the

hidden tragedy must now unmask; because of its very awfulness, it must! That the prince should be thus oblivious of such a knowledge, and yet kneeling there, made the scene ghastly beyond words.

“I remember him,” said Maximilian softly, looking up to the others.⁴¹⁵ “One of your orderlies, Colonel Lopez, I believe? Of course I remember him, for I see him often. He is always near me. Even to-day, on the llano, during the thickest of the battle, there he was at my stirrup, and there he must have fallen, in humble, unquestioning loyalty.”

Jacqueline drew back in relief, and she imagined that Lopez did also. Maximilian had forgotten the hacendado utterly.

With a grunt of satisfaction the surgeon drew forth his forceps from the wound and dropped a bullet to the floor. Next he gently rolled the patient over on his back, and then it was that Jacqueline saw in Murguía’s hand, in the hand that had been under him, a little ivory cross. Fainting, unconscious, he still clutched it, from Driscoll’s leaving him on the battlefield until the present moment. By now the stains of his child’s blood were washed away in his own. Jacqueline’s quick eyes caught an inscription on the gold mounting, and leaning close she read the dead girl’s name, “María de la Luz.”

With the gripping of the bullet and its extraction, or possibly at the sound of a voice—Maximilian’s—the old man’s eyes opened, and held the Emperor’s in a deathly stare. Jacqueline watched the piercing beads grow smaller and smaller in their cavernous sockets, and all the while they seemed to concentrate their intense fire. The others, except Lopez, thought it delirium, but Jacqueline would have named it the very blackest hate. “This man will live!” she said to herself, and shuddered.

Maximilian, seeing consciousness returned, spoke cheerily. “Ah, doctor, you will have him well and sound within a week, I know? Look to it, sir; a heroic veteran like this cannot be spared.”

A strange distortion wrapped the visage of suffering. “Could that be a smile?” Jacqueline wondered. But the Imperial party took its leave, and the tragedy lurking beneath was not revealed, as yet.⁴¹⁶

Through the throng waiting outside the hospital to acclaim him again as a prince victorious, Maximilian led the two girls to their coach, and went with them to the convent of Santa Clara, where he asked that they be received as guests by the sisters. Here, in the comfortless *parloir* of

the retreat, he learned the reason of Jacqueline's daring journey from the capital.

"I bring Your Highness," said she, "the most spiteful news my feeble sex can ever bring."

Again the involuntary plea for fair tidings swept his face.

"And, and that is, mademoiselle?"

"I told you so."

Maximilan's cheeks paled to the marble whiteness of his brow. He had just heard the answer to the one question, to the one hope, of all Querétaro.

"You, you mean Marquez?"

"Yes." And then she told him, and seeing how stricken he was, her exasperation at his vain incapacity changed to pity for his breaking pride—which may be called his breaking heart.

"But mademoiselle, I gave my empire into his keeping," he protested, as though such trust in a man of itself proved that man's constancy. But the messenger, but Truth, would not recant.

"Then," moaned the Emperor suddenly, "Marquez is not coming back?"

"Nor ever meant to, sire. Listen, Your Highness made him lieutenant of the Empire, and sent him to the capital for aid. Bien, he turned out the ministers. He broke into homes, and pillaged even the stanchest Imperialists. He heard that Puebla was besieged by a Liberal general, Porfirio Diaz, so instead of coming here, Marquez marches all his army down there. You will observe, sire, that he wanted the road kept open to Vera Cruz."

"But why? Tell me!"

"Ma foi, to sell the capital more easily. In any case to be able to save himself."

"Sell the capital?"

"Just a little patience, sire. Now what did Diaz do, but take Puebla by assault before Marquez could arrive? Then he turned on Marquez, and Marquez turned and ran. Oui, oui, sire, he *ran*, ran like the little ugly, skulking Leopard that he is. To cross a creek, he filled it with all the ammunition, and kept on running, leaving his army defenseless behind him. Groan if you must, sire; others have died in groans. But the Leopard had done this kind of thing before, it should have been remembered. He

got back safely though, and squandered the army that might have relieved Querétaro to do it. Mon Dieu, what that panic must have been! One entire battalion surrendered to fifty guerrillas. Yet the Austrian cavalry, the Hungarians, and some others fought, fought with their sabres, and won victories too. Hélas, they only proved what might have been. They only proved how Marquez, if he had not hesitated, might perhaps have saved Puebla and destroyed the Liberals. As it was, they could only retreat, and hardly two thousand of them, ragged and bleeding and filthy, straggled back into Mexico during the next few days. Now they are besieged there. Oui, oui, *besieged*, by Diaz, by the army of the East, by twelve thousand Republicans, formerly called brigands. And inside is the Leopard, snarling as ever with his regency of terror. Oh no, he will not come to Querétaro. Bonté divine, he cannot. Nor would he. He still holds the capital—for sale.”

“No, no, mademoiselle, there you wrong him, surely. Or tell me, then, who would buy?”

“Probably no one. At least not Santa Anna. The buyer must have an 418 army.”

“My friend, this is a cruel jest.”

“Earnest enough, parbleu, to make the Leopard forget Querétaro, once he was safely away.”

“Then why doesn’t he sell out to Diaz?”

Jacqueline’s eyes snapped contemptuously. “Young Diaz,” she replied, “is not a fighter to buy what he can take. It’s only a question of a few weeks.”

“Then by all that’s mysterious, *who* would buy? I cannot.”

“Of course you cannot. That is why Marquez wants you out of the way, sire. So he left you here. The Liberals will attend to that for him.”

“Then who will buy? Who? Who?”

The blood shot into the girl’s cheeks, and one small hand clenched tightly.

“France—possibly,” she said.

The Emperor started as from an acute shock. His thoughts raced backward, then forward, gathering the whole heinous truth about the perfidy of Marquez.

“And I,” Jacqueline added calmly, though she was still flushed, “I have forwarded his offer to Napoleon.”

“You, mademoiselle? You, an accessory?”

“To Your Imperial Highness’s downfall? Ah no, sire! Your Highness is no longer a factor. Your August Majesty will be eliminated absolutely before Napoleon can reply to my despatch. As I said, the Liberals around Querétaro will attend to that. Your Highness has merely delayed the profit my country might have had from his abdication. Meantime Your Highness himself has made his own ruin inevitable. But I, sire, I would not see Marquez, nor receive a word from him, until we were actually besieged in the capital, and he beyond the hope of coming to Your Highness here. Now then, if Marquez only holds out until the army of France returns—”

A deep sigh interrupted her. “No longer a factor,” murmured the Emperor. Thus quickly, then, could the world take up its affairs again after his elimination!

“Mademoiselle,” he cried suddenly, generously, “you are—superb! Dear little Frenchwoman, you are, you are!”

“Poof!” said Jacqueline. “But don’t you see, sire,” she hurried on eagerly, “that we will have to fight the Americans? Yes, yes, then they can no longer say they *drove* us out.”

“Indeed they cannot. And I, among the first, and the most heartily, do wish you a warlike answer from that firebrand of a Napoleon. But tell me, why do you come to Querétaro? How did you come?”

“How? Easily. All the guerrilla bands—except one, which I escaped—are concentrated either here or with Diaz.”

“And Marquez let you come, you who are so important to him now?”

“As though he could help it, parbleu! My message to Napoleon was in my own cipher, and after he had sent it by a scout to Vera Cruz, I informed him that in it I had directed Napoleon to send his answer to me at Querétaro. Otherwise Marquez would have kept me in prison rather than let me go. But as it was, he assisted me through the Republican lines by a secret way he has arranged for his own escape, if need be. So—”

“But why did you wish to come at all?”

“Ma foi, as if I knew! A matter of conscience, I suppose.”

“Matters of conscience are usually riddles.”

“Like this one? Bien, I am still trying to get Your Highness to leave the country. But this time, sire, it is to save you.”

“To save me?”

“Of course, on account of France.”

“Oh, on account of France?”

“Why else? If—if anything happens to Maximilian, France will be blamed. Oh why, why did you not escape this morning, while the road was open?”

For the first time during the interview the fire of high resolve leaped into the prince’s eyes. “But could I, in honor?” he demanded sternly. “Think of the townspeople, abandoned to the Liberal fury. Their Emperor, mademoiselle, means to face the end with them, here, in Querétaro.”

The dignity of his catastrophe was already beginning to appeal to him, to exalt him, even as the vision of a Hapsburg winning his empire had so often done before.

“But,” protested the girl, “if they capture Your Highness, if they—if they hold you for trial?”

She stopped, for Maximilian was laughing, and laughing heartily. The idea of hands laid on him, an Archduke of Austria—ha, he was grateful to her. Its very absurdity had given him the first relaxation of a laugh in months.

“Nevertheless,” persisted Jacqueline, whose heritage of a revolution was an obstinate bundle of these same absurdities, “nevertheless, I had hoped to save Your Highness with my news, since it is news that leaves no hope. Why not, then, escape? Treat for terms, do anything, only save your followers and—yourself, sire?”

But she found it impossible to sway him from this, his latest conceit. His new rôle, the more desperate it looked, only ensnared him as the more worthy. He contemplated the end serenely. As a military captain he was culling laurels against theatric odds. His heroic loyalty to a lost cause, with perhaps a little martyrdom (of personal inconvenience), how these would count and be not denied when he should return to his destiny in Europe!

His was even a mood to consort with lofty traits in others, and in a kind of poetic ecstasy he thought of Jacqueline’s steadfast devotion to her country’s glory. And he was moved again by the vague, chivalrous longing to bend the knee, to do her some knightly service. But—yes, he seemed to remember, there *was* such a service to be done, yet and yet—no, he had forgotten.

Then quite curiously, yet still without remembering, he dwelt in reverie on that man named Driscoll who had so filled the morning with valiant deeds.

CHAPTER XVI

VENDETTA'S HALF SISTER, BETTER BORN

"When private men shall act with original views,
the lustre will be transferred from the actions of
kings to those of gentlemen."

—Emerson.

Just outside Driscoll's tent, under the stars, a fragrant steak was broiling. The colonel's mozo had learned the magic of the forked stick, and he manipulated his wand with a conscious pride, so that the low sizzling of flesh and flame was as the mystic voice in some witch's brew. There were many other tents on the plain, a blurred city of whitish shadows against the night, and there were many other glowing coals to mark where the earth lay under the stars, and the witching murmur, the tantalizing charm of each was—supper. In this wise, and thinking themselves very patient, men were waiting for other men to starve to death. The besieged had tried, but they had not again cut through to food.

In Driscoll's tent there was a galaxy of woolen-shirted warriors, a constellation of quiescent Berserkers. For they were Missouri colonels, except one, who being a Kansan, required no title. They were tobacco-chewing giants, famous for expectoration. Except Meagre Shanks, who tilted his inevitable black cigar now toward one eye, now toward the other. Except the Storm Centre, who fondly closed his palm over his cob meerscham and felt its warmth and seemed far away, a dangerous poet. Except Old Brothers and Sisters, most austere of Wesleyans, who had neither pipe nor quid. He was cleaning his pistols. They were men hewn for mighty deeds, but—cringe must we all before the irony that neither life nor romance may dodge—it was not a mighty deed which that night was to exact of them, which yet they were brave enough to do, though sorry the figures they thought they made.

Politics was their theme, since men, though busy with war and death, must yet relieve their statesmen, especially after supper, and neatly arrange the Tariff, Resumption, or whatever else. Like oracles the ex-

Confederates held forth that the Yankees had only driven out the French to march in themselves, and so tutor the Mexicans in self-government. To which the Kansan ventured a minority opinion, though being thus a judge of the bench, as it were, he had no need of the oaths he took.

“Why God help me and to thunder with you, the United States ain’t aiming at any protectorate. You unreconstructed Rebs simply cain’t and won’t see good faith in the Federal government!”

“Carpet bags?” Driscoll murmured sweetly. It was the majority opinion.

“Yes sir’ee,” and Daniel took the cue as a bit in the mouth, “there’s blood on the face of the moon up there, *acerrima proximorum odia*, by God sir! Look at the troops at our elections! Look at the Drake Test Oath! Look at—” Mr. Boone was fast getting vitriolic, in heavy editorial fashion, when a famished face, a wolfish face, appeared between the flaps of the tent. “Look at—*that!*”

Politics vanished, war and death resumed their own.

The whole mess stared.

“Sth-hunderation, it’s an Imperialist!” lisped Crittenden of Nodaway. He pointed at the newcomer’s uniform, which was of the Batallon del Emperador.

“Well, bring him on in,” said Driscoll to the pickets gripping the man by either arm.

“He was trying to pass through our lines,” one explained. “And when we stopped him, he begged hard to be brought to the Coronel Gringo, that is, to you, señor.”

The mess turned curiously on Driscoll. Why a half dead soldier of the Batallon del Emperador should have a preference as to his jailer was beyond them. But they were yet more puzzled to hear Driscoll address the prisoner by name.

“See here, Murgie,” he said, “is this the occasion Rodrigo meant when he talked about my meeting you soon? Is it? Come, crawl out of the grass. Show us what you’re up to. No, wait, feed first. There’s plenty left.”

But the old man had not once glanced toward the table. Whatever the pangs of hunger, another torment was uppermost.

“What do you mean by this,” Boone demanded, as though personally offended, “you’ve got the hospital color, dull lead on yellow? Here, take

a drink. Yes, I know, it's mescal, out-and-out embalmed deviltry that no self-respecting drunkard would touch, but Lord A'mighty, man, you need *something!*"

Murguía shook his head irritably. Offers of what his body craved were annoying hindrances before the craving of his soul. He twitched himself free of the sentinels, and limped painfully to where Driscoll sat. He wore no coat, but his green pantaloons with their crimson stripes were rolled to the knee, and the white calzoncillos beneath flapped against his skeleton ankles. His feet were bare, the better for an errand of stealth in the night. He was a pitiful spectacle, yet a repulsive, and the Americans despised themselves for the strange impulse they had to kick him out like a dog. They watched him wonderingly as he tried to speak. He panted from his late rough handling by the sentry, and his half-closed wound gave excruciating pain. The muscles of his face jerked horribly, but his will was tremendous, merciless, and at last the cords of the jaw knotted and hardened.

"To-morrow morn-morning," he began, "the Emperor will fight. It is arranged for-for daybreak, señores. To to fight-to break through-to to ESCAPE!"

"W'y then," exclaimed Harry Collins, the Kansan, "*good* for him!"

The parson snatched off his brass-bowed spectacles, and his brow lowered fiercely over his cherubic eyes.

"And so *you* had to come and tell us?" he demanded.

But the traitorous old man had not the smallest thought of his shame, nor could have.

"You-you will let him *escape*?" he challenged them in frantic anger.

The mess stole abashed glances at one another. They would, they knew well enough, have to act on this information. But they were men for a fair fight, and they had no stomach to rob the besieged of a last desperate chance. For a moment they were enraged against the informer.

"We'll just keep him here," said one.

"Yes, till morning. Then he'll tell no one else, and we won't. Poor old Maxie!"

"Sure," ejaculated Collins, "give Golden Whiskers a show!"

The wolfish light in the sunken eyes quickened to a flash. Lust for Maximilian's capture turned to chagrin.

“Señores, señores mios,” he whined, “you do not know yet, you do not know, that if Maximilian is not taken—”

“Ah, here now,” growled Clay of Carroll, “you needn’t worry so much. He’ll be driven back into the town all right, I reckon.”

“And what then, señor? No, you do not know. Your general, señores—General Escobedo—has orders to—to raise the siege.”

“What?”

“Si señor, to *raise* the siege! The orders are from San Luis, from the Señor Presidente there. He—he thinks the siege has lasted long enough.”

“Great Scot!”

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“Precisamente. Yes, it would look like—defeat. It would, if—you don’t capture Maximilian by daybreak.”

Meagre Shanks brought his boot soles wrathfully to the ground, kicking the stool back of him. His whole mien exuded a newspaper man’s contempt for faking. “Now then, young fellow,” and he shook a long finger at the ancient Mexican, “here you know all that Maximilian knows. And here again you know all that the Presidente knows. All right, s’pose you just tell us now more or less about how mighty little you *do* know?”

“It’s—it’s like a message from El Chaparrito,” the parson demurred.

“From Shorty?” Daniel almost roared. “Oh come, Clem, don’t you go to mixing up the unseen and all-seeing guardian of the República with this dried-up, wild-eyed specimen of a dried-up—of, of an old rascal. No one ever hears from El Chaparrito ’less there’s a crisis on, and is there one on now? You know there ain’t. If there was, someone would be hearing from Shorty—Driscoll there, prob’bly. But there ain’t. Shucks, this old codger is only plum’ daft. Aren’t you now”—he appealed querulously to Murguía, “aren’t you just crazy—say?”

But even as the Americans breathed easier, they stared aghast at the old man.

“Crazy?” he repeated. “Crazy?” he fairly shrieked, clutching Boone by the sleeve. “No, I am not! Señor, say that I am not! No, no, no, I am not crazy, not yet—not—not before it is done, not—before—”

“God!” Boone half whispered. “Look at his eyes now!”

The old man checked himself in trembling. No help for him lay in human testimony. But there was his own will, which had driven his frail body. Now as a demon it gripped his mind and held it from the brink.

“Go, out of here, all of you!” he burst on them. “Go, I have more to tell—more, more, more, do you understand?—but I’ll tell it to no one, to no one, unless to Mister Dreescol.” 427

A raving maniac or not, canards or not, there might be in all this what was vital. The Americans stirred uneasily, in a kind of awe, and at a nod from Driscoll they left the tent.

Murguía grew quieter at once. His faculties tightened on the effort before him. He was alone with the man who would understand, so he thought; who had the same reason to understand, so he thought.

Driscoll had shared nothing of the late emotions. He had smoked impassively. His interest was of the coldest. Only his eyes, narrowed fixedly on the Mexican, betrayed the heed he gave. When the others were gone, he uncrossed his legs, and crossed them the other way, and thrust the corn cob into his pocket.

“Sit down!”

Murguía dropped to the nearest camp stool.

“Now then, you with your dirty little affairs, why do you come to me?”

Murguía leaned forward over the table between them, his bony arms among candles and a litter of earthen plates. The odor of meat assailed his nostrils. But the hunger in his leer had no scent for food.

“This is the time I meant, señor, when Rodrigo told you that you would see me.”

“About the ivory cross? But I gave you that a month ago.”

“A month ago—a month, wasted! How much sooner I would have come, only another had to be—persuaded—first.”

“Oh, had he? Then it’s not about the cross? And this other? Suppose I guess? He was—he was the red-haired puppy, my old friend the Dragoon, who carried you off wounded that day? Humph, the very first guess, too!”

Murguía darted at him a look of uneasy admiration.

“I would have told Your Mercy, anyway,” he said, half cringing. “Yes, 428
he is Colonel Lopez.”

“And you ‘persuaded’ him?”

“Events did. Since the siege began I’ve tried, I’ve worked, to convince him that these same events would happen. Ugh, the dull fool, he had to wait for them.”

“I can almost guess again,” said Driscoll, as though it were some curious game, “but if you’d just as soon explain—”

“Listen! You remember two years ago at my hacienda, when Lopez sentenced you to death? But why did he sentence you to death, why, señor?”

“That’s an easy one. It was because he didn’t want my offer of Confederate aid to reach Maximilian.”

“But why not? I will tell you. It was because he was trying even then to buy the Republic’s good will, in case—in case anything should happen. But he was *afraid* to change, the coward! He must first *know* which side would win. I am his orderly—he knows why I am—and I’ve tried to drive it into his thick wits that the Empire is damned and has been, but he still doubted, even when we were starving again, even when every crumb was gathered into the common store, even when it was useless to shoot men for not declaring hidden corn, even when forced loans were vain, since money could no longer buy. No señor, even with proofs like these, Miguel Lopez was stubborn.”

“I’d prob’bly guess he was a loyal scoundrel, after all.”

“More yet, he has fought bravely, making himself a marked man in the Republic’s eyes.”

“Then why—”

“Because so long as the Empire had a chance, or he thought it had, he hoped for more coddling. You see, señor, he thought Marquez was coming back with relief. There was that—that Frenchwoman you know of—who brought news from the capital. But Maximilian dared not make the news public. He forged a letter instead, a letter from Marquez, and he had its contents proclaimed. Marquez had been delayed, so all Querétaro read, but he had at last destroyed the Liberals in his path, and was then hurrying here with his victorious army. This false hope blinded Lopez with the others in there. But when Marquez did not come, when utter demoralization set in, when we were a starving town against thirty-five thousand outside, when there were scores of deserters every day, when any man who talked of surrender was executed, and still no Marquez, then Lopez began—”

“I see, he began to be persuaded?”

“Still, he wanted to be a general. But the other generals forced Maximilian not to promote him.”

“So he was disappointed?”

“And persuaded, señor. The sally was already planned for this morning, but Lopez argued obstacles, and so got it postponed until tomorrow morning. He wanted to—to act on his—persuasion. And that is why,” Murguía got to his feet and limped around the table to Driscoll, “and that is why,” he ended in a croaking whisper, “why I am here!”

“And the red puppy, how near here did *he* come with you?”

Again Murguía darted at his questioner that uneasy glance of admiration.

“Lopez is waiting between the lines,” he replied. “As to our own lines, we passed them easily, since Lopez commands the reserve brigade and places the sentinels himself around La Cruz monastery.”

“Oh, does he?” Driscoll whistled softly. “But what’s your plan?” He put the question sympathetically, which disturbed Don Anastasio vastly more than the American’s peremptory tone in the beginning. “What’s your plan?” he asked again, gently coaxing.

Murguía hesitated. This polite drawing-room interest was the most ironical of encouragement for villainy. Driscoll frowned impatiently, but at once he was smiling again. He placidly filled his corn-cob, and a moment later, his gaze piercing the tobacco smoke, he said, “Then I’ll tell you. You’re here to make a dicker, you and your tool between the lines. The monastery of La Cruz on top of the bluff is the citadel of Querétaro. Maximilian has his quarters there. The troops there are the reserve brigade. This puppy, this mongrel, commands the reserve brigade. He places the sentinels. And you are his orderly.—Oh, I haven’t forgotten how he let you off that time he condemned me!—So now you are his orderly, for your own reasons and his. And here you are, talking mysteriously about *capturing* Maximilian. But you don’t mean that, snake. You are here to *sell* him! Howsoever,” and smiling a little at the stilted phrasing, Driscoll paused and delicately rammed the tobacco tighter in the bowl, “howsoever, Murgie, you’ve come to the wrong market. No, there’s no demand for Maximilians just now, not in this booth. But why in blazes didn’t you go to Escobedo? With his Shylock beard, I reckon *he’d* take a flyer in human flesh.”

“I was going to him, but I came to you first, to take us there, to take Lopez and myself, I—I thought you would manage it all, because you—Your Mercy is the strongest, the most resourceful—”

“Resourceful enough, eh, to dodge the bullets you had fixed up for me once? Thanks, Murgie, but I liked your attentions then better than your slimy advances now. By the way, how are you going to get to Escobedo?”

The tone was honey itself.

Murguía gasped, yet not so much to find himself a prisoner, as to find himself mistaken in the American.

“Now maybe,” Driscoll suggested, “maybe you’ll be wondering yourself why you bring your dirty little affairs to me? Lopez may be an open book, but you seem to’ve read *me* wrong. Prob’bly the language is foreign.”

Murguía’s jaw dropped, and he gaped as one who beholds the collapse of high towering walls. It was his system of life, of motives calculated, of humanity weighed. It was the whole fabric of hate and passions which quivered and crashed and flattened in a chaos of dust before his wildly staring eyes.

“You mean, señor, you mean you do not want—as well, as *I!*—to bring to his end this libertine, this thief of girlhood, this prince who scatters death, who scatters shame, this—this—”

“Man alive, you’re screaming! Stop it!”

With his nails the old man combed the froth from his lips.

“But you too have cause,” he cried, “cause not so heavy, but cause enough, as well as I! There was my daughter, my little girl! With you there is that French wo—”

He stopped, for he thought he heard the sharp click of teeth. But Driscoll was only grave.

“Well, go on,” he said. “But—speak for your daughter only.”

“I can’t go on. I won’t go on,” Murguía burst out desperately, and flung up his arms. “If you don’t understand already, then I can’t make you. It’s useless. A book? You’re a stone! But any other, who had a heart for suffering, in your place would—”

“Oh shut up, Murgie!” cried Driscoll wearily, but in something akin to supplication.

With the serpent’s wisdom, the tempter struck no more on that side. His fangs were not for the blighted lover. What, though, of the soldier?

“No one doubts, señor,” he whined unctuously, “that Your Mercy is loyal to the Republic. So it cannot be that Y’r Mercy knows—”

“See here, Murgie, I’m getting sleepy. But I’ll find you a comfortable tent, with plenty to eat, and a polite guard—”

“Señor,” stormed the old man, “I tell you you don’t know what this⁴³² means to the Republic. Maximilian will escape, no matter the cost. At daybreak there is to be a concentrated attack on some point in your lines; but where, nobody knows except Miramon. Then Maximilian will cut through with the cavalry. The infantry will follow, if it can. And after them, the artillery. You Republicans may not even know it until too late, because meantime you will be fighting the townspeople, thinking you are fighting the whole army.”

Driscoll roused himself suddenly. “The townspeople?”

“Si señor, they are to be a decoy. Some volunteered, the rest were drafted. They have been armed, but they are only to be killed, they are only to draw the Republican strength, while the Emperor and the army escape.”

Driscoll sprang from his seat, in an agitation that was Murguía’s first hope.

“Do you mean to tell me,” he demanded, “that this Maximilian who makes speeches about not deserting intends now to sacrifice these poor helpless devils? Prove it!”

Murguía had touched neither lover nor soldier. But what man was here, in boots and woolen shirt, puffing angrily at a corn cob, yet sitting in judgment supreme on the proud Hapsburg himself? Blindly stumbling, Murguía had touched the inexplicable man who was of stone, and the baffled fiend that was in him leaped up with a cry of glee.

“To prove it?” he cried, “Ai, then Lopez shall walk with you in our outer trenches. For in them you shall see the doomed townsmen themselves, a thousand townsmen, sleeping there until the dawn. Afterward, when Maximilian is safe, they who are still alive will be free to surrender.”

“And then—” But Driscoll knew the temper of the siege. What with the chief prize lost, there would be scant mercy for surrendered townsmen.

“God in heaven,” he muttered fervently, “if there’s any to suffer, it⁴³³ might as well be the guilty one, and a thousand times better one than one thousand! A man’s a man, or alleged to be!—Murgie, you wait here, I’m going to call the others.”

The others came, and heard. It was the court en banc, five Missourians and a Kansan. And the culprit was a Cæsar. But they hewed forth their Justice as rugged and huge, and as true, as would the outlaw, Michel Angelo. Like him, they were their own law. Nor were they nice gentlemen, these Homeric men who spat tobacco. Finding their goddess pandered to by those who were nice gentlemen, and finding the gift of these a pretty scarf over her eye, they roughly tore it away. For them she was not that kind of a woman.

“W’y, this prince is no Christian,” Crittenden announced in querulous discovery.

“One thousand loyally dying for their sovereign,” Daniel mused, his romantic soul wavering. “Sho!” he cried the instant after, “that thing’s out-dated!”

“And the prince there—” began the Kansan angrily.

“May just go-to-the-devil!”

All swung round on one of their number. It was the parson himself who had pronounced sentence.

Then they set out under the stars to attend to it.

CHAPTER XVII

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UNDER A SPANISH CLOAK

“What misadventure is so early up,
That calls our person from our morning’s rest?”
—*Romeo and Juliet*.

Just within their own bivouac four Missourians waited with eight horses. Driscoll and Boone, and the small limping shadow of Murguía between them, went on outside the sentry line toward the Alameda. When they returned, a stranger accompanied them, a little distance apart.

“It’s true,” Driscoll whispered to those who had staid. “The trenches are filled with townsmen. *He* took me.”

The Americans glanced once the stranger’s way, and grunted. He was a large man, hidden to the eyes in a Spanish cloak. For all the charity of darkness, he seemed ill at ease, and held himself from them, a marked figure, alone. A leprosy in himself tainted his every thought. He would not willingly come near any man. He understood English, unhappily now for him, and Boone’s warning as they mounted seared like vitriol. “Look out, Harry, don’t touch the filthy skut! It’ll take the rotting of death to clean your fingers.” After that, even Murguía drew involuntarily away from the stranger.

They circled the town widely, having only Republican challenges to quiet, and they dismounted under the trees which shade the valley to the northeast, between the Sangremal, or mound of La Cruz, and the besiegers’ range of hills. Here, under La Cruz’s steep bluff, the Republican general-in-chief had his quarters, and here he kept a hawk’s⁴³⁵ jealous watch on the walls above, where slept his country’s invader.

Open battle is clear honor, so reckoned; but it takes a brave man to dive for a pearl in slime. Driscoll was the one to conduct Murguía and his gloomy companion into the presence of General Escobedo. When he rejoined the other five outside the tent, he was alone.

“Well, come on,” he said as he mounted under the trees. “We needn’t stay for the rest of it, thank God.”

For a while they rode in silence back toward their camp. They passed under the aqueduct and entered the open plain. Then the parson stretched out his hand to the pommel of Driscoll's saddle.

"Well?" he ventured softly.

"Well, Clem, it's done."

The others crowded their horses nearer.

"I want to tell you all," Driscoll abruptly began again. "I want to tell you that I've just seen the strangest thing of my whole life, right back there in that tent. I—well, it's simply flattened me out!"

"You mean Lopez, Din?" one asked tentatively.

"Lopez? No, no, there's nothing strange in him. Any low hound will sell out to save his hide. No, Dan, I mean the other. I mean the old man. He's the one who used to run the blockade off Mobile, and a whiter-livered, more contemptible old grandmother I never hope to see anywhere, no, never! Yet not a month ago, the day of that Cimatario scrimmage, I found him on the battlefield, and he had been wounded. But he didn't seem to know it. He didn't even seem to know that the shells were still banging all around him."

"An *old* coward, too!" someone muttered.

"But wait. He used to be one thing worse, one thing more, than a coward. He was a miser, and such a miser that he *made* himself face danger. You should have seen him running a blockade, with the Yankees chasing behind. He trembled—I tell you, he trembled like a withered cottonwood leaf on a broken stem. Yet he whined against stoking with turpentine, because it cost a little more. I'd 'a' thought, I did then, that the miser was in his bones until the last trumpet. But to-night, back in that tent just now—"

"Well?"

"Well, he *refused* money! He refused *gold*! He didn't seem to know what it was, any more than he did bullets a month ago. Escobedo asked him his price, and shoved a glittering heap across the table at him. You saw how he acted when we offered him something to eat? Well, he looked the same way at the gold. He acted impatient. He didn't want to see anything except Lopez. But you'd have called it a miser's eagerness, the way he watched that Lopez. Only a miser don't exult when it's someone else who pockets the money."

"Maybe they'll divide?"

“Not much, because Murgie could have had his share over and above. No, it wasn’t that. It wasn’t the gold. He was greedy—for a soul! He wanted to see Lopez *bought*, and no hitch. And when it was done, he wet those catfish lips of his with his tongue. I believe the devil in hell must look just that way when he gets some poor sinner. But to think of that old skinflint, to think of that old feeble cowardly shark not *knowing* danger, not *knowing* money—”

“Come, Din,” the parson’s blessed, cheery voice interrupted, “let’s hurry back and wash our hands. Then we’ll *all* feel better.”

While the six Americans rode gloomily away from what they had done, and from their own thoughts as they best could, a stealthy company was forming under the trees among the tents of the Republican general. After a time the seeming spectres began to move in unison, an undulating wave that spread as the grayish shadow of a low hanging cloud. The dim figures slowly swept the little space of valley, on toward the steep slope of La Cruz, and soon they were climbing, silently creeping, nearer and nearer the dark walls above.

Two seemed the leaders, and the third limped close behind. But one of the first two held a pistol ever near the heart of his companion, who was wrapped to the eyes in a Spanish cloak.

“Who goes—” cried an Imperialist sentry.

“Your colonel, fool!” he of the cloak stopped him short. “I, Miguel Lopez. I am changing the guard. Return now to your barracks and get what sleep you can before morning. One of these men with me will take your place.”

In like manner each later challenge was satisfied, and so on to a cannon-battered crevice in the wall. The spectres passed through the gap there into a field of graves on the mound’s level summit. The earth had an uncanny softness under their tread. The plots were mostly fresh, of slain Imperialists still keeping their rank according to battalion. But the living, the Reserve Brigade, were here as well, sleeping over the dead. They stirred and grumbled at being disturbed, but thought then no more of the intruders. The secret plans for the daybreak attack explained everything. Their colonel, whose voice they knew, was shifting forces in preparation. But when the dawn came, they awoke to find their weapons gone, and themselves defenseless prisoners.

Many of the spectral troop fell away to hold the cemetery, but the rest kept on, and entered the monastery garden. Here there was a battery of one gun, whose muzzle pointed the way to the Republican camp. Without a sound the Imperialist gunners were replaced by Republicans. The cannon was one captured during the Cimatario fight. It was called “La Tempestad,” and bore an inscription, “The Last Argument of Nations.” Its new possessors turned the muzzle squarely on the monastery, not fifty yards away, where Maximilian lay then asleep.

The shadowy host did not linger in the monastery itself. They swept through hastily, in at the garden entrance, along the corridor, and out by the great portico door upon La Cruz Plaza. They had passed the citadel. The town lay before them. But in the Plaza were more cannon, which had been taken from the trenches and massed for the supreme effort. They lay silent, under the silent bells of the church. They lay under the giant Cross of the Apparition, which was adorned by the Inditos with garlands in vague memory of pagan rites on that very spot. They lay under the splendid Arabian palms. They lay among defenders. To take them was like prowling with a torch among broken casks of gunpowder. Not a shot must be fired until the thing was done. Otherwise, a quick second shot was to find the heart of Lopez. So Lopez was exceedingly cautious. However, he commanded here. He was the Emperor’s favorite. Squad after squad, the drowsy Imperialists moved off, letting the strangers relieve them. So the critical work was achieved, even as day appeared over the eastern hills. Then he who had kept so close to Lopez put his revolver away.

“Your bargain is fulfilled, señor,” he said. “Accordingly, here’s the paper I was to give you. It is your safe conduct throughout the Republic. You are free. Go!”

Lopez clutched the thing that meant his life, but as his fingers tightened over it, his first greed vanished. He stared about him uncertainly. The Plaza swarmed with men. They were the gray battalion he had led there. In the dawning light they were still gray. They were the Supremos Poderes de la República. De la República? Yes, of the enemy, and he had brought them. But it was as though he had just awakened, and found them there. The enemy? The enemy was in La Cruz! With a sharp cry, he turned and ran back into the monastery. He brushed aside the hateful gray uniforms. He ran panting up the stone steps. In the dark hall

above he stopped at a cell door, and pounded, and tugged frantically at its latch.

“Señor, awake! Hurry! We are betrayed! Hurry! Escape—escape—”

Within came a startled sleepy voice, “What, what’s—” which changed at once to reproving dignity. “Can it be?—Lopez!”

“But señor—sire—the Chinacos, the Republicans, they are here already!”

“Colonel Lopez!” In its shocked surprise the voice was edged with rebuke. “Man, man, where are your years of training near my person? One would think you some boorish night-watchman.”

Lopez outside the door dropped his hands, and fell abjectedly silent, as servilely abashed in his lapse of etiquette as though he stood the traitor unmasked.

“Now then, Miguel,” spoke the Emperor more kindly, “go to General Mejía and the others. Let them have the goodness to attend me here.”

Lopez turned on down the corridor, stopped at the doors of Generals Mejía and Castillo, and the Prince Salm-Salm. At each he tapped lightly, as one dazed, and announced that the enemy surrounded them. Then, remembering, he fled.

Within the thick walls that narrowed his state into a friar’s cell, Maximilian rose from his iron couch. “So,” he sighed, almost in relief, “Destiny means it to end in this way.” He was calm, and he attired himself carefully. He chose his general’s uniform, with its rich dark blue, and scarlet cordon. Nor did he forget the star of some royal order, which to common men seemed a cotillion favor. When he should step forth that morning, it was to play a world rôle. The prince must be serene in the moment of trial. The nations must know that Destiny had him in hand.¹⁴⁰ And musing thus, he parted his golden beard with dainty precision. Within a month Europe would acclaim him reverently. He noted that his high boots glistened. Mejía and the other two, hurrying to him, fell back in admiration to behold how placid he was.

“Gentlemen,” said he, “to leave here, or die! There’s nothing else.”

He noticed a soft heap at the door, and picked it up.

“Lopez’s cloak, a disguise!” he exclaimed. “God bless the poor fellow, he left it for me.”

He wrapped the garment about him, took his pistols, and led the way. In the dark corridor down stairs a Republican sentry mistook the cool,

commanding figure for one of his own generals, and presented arms. Maximilian gravely saluted, and with his three companions passed out.

The Plaza was a blurred scene of confusion. Men were awakening to find their arms gone, and themselves covered by muskets. Shots had been fired. Curses abounded. Entire companies were being marched away as prisoners. Republican officers either thought that Maximilian was Lopez, from his cloak and height, or were too distracted to notice. It is possible, too, that the victors would have had him escape, that they might not have the trouble of his disposal, and that they preferred that he should not thrust it on them. At any rate, he and the three behind pushed their way undisturbed through cannon and brown stolid men in gray, and reached the spot where the Plaza narrows into a street that gently slopes down into the town. But here a guard was posted.

“Pues, hombre, they’re civilians, let them pass.”

Maximilian turned on him who spoke, and beheld the blackmailer, scout, deserter, Don Tiburcio. He wore now the uniform of a Republican explorador. His crossed eye gleamed so humorously up at the Emperor, it might have been insolence, but it was only the proffered sharing of a jest. His matter-of-fact tone prevailed, and the guard stood aside. The four passed on down the street. In comical melancholy Don Tiburcio looked after them, and then he perceived that a fifth had slipped by the guard and was following closely behind.

“The saints help us—help *him*, it’s Murguía!” Tiburcio muttered in horror. He recalled the night when María de la Luz was found dead.

The old man, coatless, barefoot, in his pantaloons of Imperial green, limped desperately to keep pace with the great strides of the four ahead. The broad crimson stripe down each pant leg would break, straighten, break again, in bizarre accord, with every painful step. It was a lope, and he more like a starved wolf, a lean, persistent shadow, ever ready for the chance to spring.

By hastening down into the town, Maximilian thought to rally what forces were there for a last stand; or, to be more exact, for a last tableau. The end of his empire must have *éclat*. He found the town panic-stricken, since all could see the Republic’s standard over the towers of La Cruz. Dumfounded officers had gotten to housetops, and were using their glasses. They beheld the enemy as busy as scurrying ants on the surrounding hills. Clouds of men from every point were sweeping across

the llano toward the town. The advance were already in the narrow streets. Killing, looting, had begun. Clanging bells, hoof beats, yells, musketry, and in the distance deep-voiced cannon! The Emperor and his three companions, with the malignant shadow hovering ever near, quickened their course through the town. They paused only to dispatch couriers. Miramon, when found, was to come at all speed with every possible man to the Cerro de las Campanas. They gained the adobe suburbs on the western edge, leaving behind the fearsome rising tide of human sound. An officer forced the Emperor to mount his horse. Many joined their flight. They crossed broken fields, and reached the summit of the wedge-shaped rock called las Campanas. Close behind, emerging from the town, were the first pursuers, who quickly grew to a thick black fringe around the hill. Shells were falling. The heavens seemed to flower vengefully, with the Campanas knoll as the one focus. The adobe stockade crowning the top was soon packed with fugitives, until those within, like shipwrecked creatures on a raft, barred out those still coming. The whisper spread that in the town Miramon had been taken shot through the cheek after shooting many others. The panic grew. Men knew themselves at bay. They recognized the deathtrap. On the outlying heights the cannon had their range. Grenades, bombs, grape, and canister, fell as hail.

The Emperor turned to General Mejía.

“Could we cut our way out?” he asked.

Mejía put down his glasses. He paused, then shook his head.

Straightway an orderly with a white flag was sent down the hill. But the firing did not cease for that. Maximilian, seeing that he could make no terms for those around him, seeing them fall by scores instead, himself followed the orderly; and following him, was the ever faithful shadow.

From out the dark fringe a man on a white horse, a black bearded man with monstrous flapping ears, General Escobedo, rode forth to meet the Hapsburg. Then Maximilian forgot the eyes of the world, and thought of her who had suffered with him, who had suffered more than he, to hazard this, their dream.

“It is our throne, Charlotte,” he murmured, and gave up his sword.

CHAPTER XVIII

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EL CHAPARRITO

“Meagre were his looks,
Sharp misery had worn him to the bones.”
—*Romeo and Juliet*.

A few days later Jacqueline and Berthe attended a performance at the Teatro de Iturbide. It was the first held there since the beginning of the siege, and to the place late foes were thronging eagerly in what seemed a most inordinate thirst for amusement. The playhouse was without a roof. Its metal covering had been widely sown in the shape of bullets, and only a canvas overhead kept out the sun. But the broiling pit was filled, as well as circling tier over tier of loges, and in the street a great crowd jostled and surged, like people who stare at the dead walls of a jail because a man is being hanged inside. If the curious cannot have both Time and Space to their liking, then the more ghoulish will gorge themselves on the coincidence of Time alone. “Now,” they whisper awesomely, “his hands and feet are being strapped! What *must* he be thinking this very instant, and we standing here?” So those outside the Teatro de Iturbide sweated patiently. In all evidence it was not an ordinary performance scheduled for that day.

“Buzzards?” said Jacqueline, looking up and seeing their outspread wings shadowed on the canvas roof, “*Fi donc, that effect is long since shabby!*” But it chilled her, nevertheless.

The curtain was up. A drop, showing fields in green and a receding road in brown, filled the back. The actors seemed actors solely, and this idea persisted with the Frenchwoman, as with many another, throughout.⁴⁴⁴ Seven military characters arranged themselves in a kind of state on the unpainted, slanting stage. They might have been supernumeraries, like the “senators” in “Othello.” At least their severe demeanor became them awkwardly. They wore uniforms, but not of appalling rank. He who presided was only a lieutenant colonel, the other six were captains. Before them, each on a square stool, sat two generals, one with a

bandaged cheek. There were legal gentlemen in plain black, while guards at stiff attention here and there completed the grouping. Beyond any doubt, it was a trial scene. And to confirm the surmise, one of the legal gentlemen, a very peaceable appearing youth, arose and in the Republic's name demanded the lives of Miguel Miramon and Tomas Mejía—here he indicated the two generals—and with impressive cadence, also in the Republic's name, demanded likewise the life of Fernando Maximiliano de Hapsburgo. The lieutenant colonel and the captains knitted their seven tawny brows portentously, but they were not in the least astounded at such a very extraordinary request.

There was no need of a theatrical production at all. Other Imperialists had not been so unnecessarily distinguished, as for instance, General Mendez, that ancient enemy of Régules and executioner of Republicans under the Black Decree. Caught the day Querétaro fell, he was shot in the back as a traitor. Yet he met a legal death. Taken in armed defiance of the Republic, identity established, the hollow square and shooting squad, such was the routine prescribed. But the lesser official relics of the Empire, six hundred in all, escaped generally with a few months of prison. The rank and file of the betrayed army had already melted away. But for the three arch-culprits a trial was deemed requisite, and President Juarez, in San Luis Potosi, so ordered. Hence the stage setting as above described.

Maximilian was at first surprised. He had said to Escobedo, “I am ⁴⁴⁵ ready to go whenever you can favor me with an escort to the coast, but first I require assurance that my loyal followers shall not suffer.” But the Republican chief had smiled oddly, and locked him up. Later, however, Maximilian had seemed content. A trial for his life, that would add the last needed glamour to the prestige of his return to Europe. So he affably humored his captors, and was rewarded with humiliation—his judges could hardly be more obscure. So as he was genuinely sick abed, he got himself excused from playing his part in the Teatro Iturbide.

The soi-disant Emperor had four conscientious defenders, chosen from Republican jurists, two of whom were then in San Luis to do what they might before Juarez. The other two spent eloquence and acumen on the court's seven tawny brows. Their first point came from Maximilian himself. It was complacent, this point. The naïveté of it was superb.

“I am no longer Emperor,” so the defense ran, “nor was I during the siege; because, before leaving the capital, I drew up my abdication, which was then countersigned by my ministers. However, it was not to take effect until I should fall prisoner.”

When the Republic recovered her breath, she felt in her amusement a wounded pride. This prince must think her very simple. So, she was to recognize the usurper’s abdication after she had fought and suffered to take the usurper? A captured thief draws from his pockets a quit-claim deed to the plunder he has stolen, and giving it to the court, would therefore go free! The tragedy changed for a spell to comic opera. And matters were not helped greatly when next were invoked “the immunities and privileges which pertain under any and all circumstances to an archduke of Austria.”

Though handicapped by their client’s arrogance, counsel yet did their utmost. They argued law and humanity, with tremulo effects. They prayed that “the greatest of victories be crowned by the greatest of pardons.” But it was of no use. The bloodthirsty stripling persisted in the Republic’s name. This Maximiliano was a Mexican. In many beautiful speeches the said Maximiliano had said so. Hence he could not evade responsibility to the laws of his adopted country. And there was, for instance, the law of 1862 concerning treason.

Well, in a word, the three accused were straightway sentenced to death; and Escobedo, approving, named Sunday, June 16th, for the execution. It might be mentioned of this Escobedo that on two former occasions, when the circumstances were exactly reversed, Mejía had each time saved his life. Since Querétaro, there have been comments on the vigor of Escobedo’s memory.

“Poor pliant Prince Max,” sighed Jacqueline, “he is still being influenced to stay in Mexico! Come, Berthe, we must make all speed to San Luis and see the Presidente.”

In the long hall of the Palacio Municipal at San Luis Potosi, before the old-fashioned desk there, sat an Indian. He was low and squat and pock-marked, and there was an ugly scar, livid against yellow, across the upper lip. He had a large mouth, high cheek-bones, and swarthy skin with a copperish tinge. He was a pure-blooded Indian. At twelve he did not know a word of Spanish. His race, the Zapotecas of Oaxaca, had all but

been extinguished by the Conquest. Except for the ungainly black he wore—excepting, too, his character—he might have been a peon, or still the servant he once had been. But the homely, heavy features of his round head did not, in any sense, repel. On the contrary, the countenance was frank, though yet inscrutable. The piercing black eyes were good eyes, and indomitable, like his muscled jaw. The flat, square forehead made one aware of intellect, and of force. So short and thick, he looked a sluggish man, but it was the phlegm of a rock, the calm of strength, and whatever the peril, almost inanimate. His country called him Benemérito de América, a title the noblest and rarest in its Spartan hint of civic virtue.

The Indian's desk was littered with messages from the princes of the earth. Like his expiring race, he had fought their order, and they had made of him a wandering fugitive. But now they were imploring him for one of their number, whose surrendered sword that moment lay across their petitions. Two of the letters, but not from princes, he had read with deep consideration. One was from the President of the United States, the other from Victor Hugo. But these also he shoved from him, though regretfully, and now he was gazing out over the Plaza, the line of his jaw as inflexible as ever.

But they were not many, the moments this man had to himself, and it was not long before a gendarme in coarse blue, serving as an orderly, disturbed him.

"Well, show her in then," he said, frowning at the card laid on his desk, nor did he rise when an unusually beautiful but very grave young woman entered the room.

"At your orders, Señorita de—d'Aumerle. You come, I suppose, to save him?—But," he added with the austerity of a parent, "it is not difficult to imagine why *you* are interested."

"No, Señor Presidente," he heard himself quietly contradicted, "Your Excellency can not imagine."

He looked up, into a pair of honest gray eyes. But her tone had already told him enough. He rose to his feet in rugged courtesy. The Indian was a wise man, and he knew now that other men had whispered falsely about one exquisite Parisienne.

"Pardon me, child," he said gently. "No, I cannot imagine."

Impulsively Jacqueline leaned over the desk and gave him her hand. "Thank you," she said, in a voice that trembled unexpectedly. From that

moment, too, she abandoned tactics. The wiles of courts would avail nothing against the primitive straightforwardness of the man before her. It seemed, moreover, good and homely, to cast them aside. She took a seat near the window, since he remained standing until she did, and waited. He should speak first, and afterward, she would accept. For there was nothing, she felt, that she could say. O rare tongue of woman, to so respect the leash of intuitions!

As for Don Benito Juarez, he had not meant to speak at all. But knowing her now to be not what he had thought, he spoke as he had not to any plenipotentiary of any crowned head.

"You are a Frenchwoman, señorita," he began. "Tell me, your coming must be explained by that?"

"Now," said Jacqueline, smiling on him cordially, "Your Excellency's imagination is getting better."

"And you wish to save Maximilian," the Presidente stated, rather than questioned, "because he is a victim of France."

"Because he will be considered so."

The old Roman smiled. "My dear young lady," he said, "an answer to France is the least of my obligations. Yet you expect it, and ask for clemency, though I deny all the great nations?"

"Oh señor, what's the use? Let him go!"

The keen black eyes regarded her quizzically. "Do you know," he said, "this is the second time I've heard that question to-day? One of our American officers had himself put in command of the escort for Maximilian's two lawyers here, and now I believe he did it simply because he too wanted to know, 'What's the use?' It was anti-climax, and a wet blanket over the fervid eloquence of the two lawyers. But nevertheless, he hit the one argument."

"Yes, yes!"

"In a word, why not brush aside our archduke? He's harmless, now, he's insignificant? Why not take from him the only dignity left, that of dying?"

"Of course, Señor Juarez! Of course!"

"And at the same time win bright renown for ourselves, instead of what will be called harsh cruelty?"

"Surely!"

The smile vanished. The large mouth closed tightly.

"No," spoke the judge of iron. "He dies! That is the truest mercy, a mercy to those who might otherwise follow him here. And we, señorita, we have already suffered enough from Europe."

"But the other two?" pleaded Jacqueline. "They are Mexicans."

"They are that, por Dios, and they make me proud of my race. Miramon, Mejía, they are the leaven. They redeem Lopez, they redeem Marquez, they redeem the deserters who now so largely form my armies, who before had deserted me for the French invasion. By the signal example of these two men to die to-morrow, the world shall know that Mexicans are not all traitors. And as we grow, we Mexicans, we may grow beyond the empty loyalty of glowing Spanish words. Remembering such an example, we may come to be, in our very hearts, breathing things of honor. We have been shackled because of infamy during the last centuries. Can you wonder, then, that we use the treacherous weapon of the Conquistadores?—But that's apart. The loyalty of Miramon and Mejía has been loyalty to an invader, a wrong their country will not forgive. But our cultured gentleman of Europe, our vain fool who would regenerate the poor Indito, he will perhaps not feel so ashamed of us, not when he has two such companions in death, and not when he learns, though painfully, that the rod of Mexican justice respects neither immunity nor privilege of birth. There, señorita, I've had to talk more about this one individual than about the hundreds of others who have been punished for much less than he."

"But it must be terrible to die, señor. And *he* doesn't realize, while a delay of only a few days—"

"Would suffice for his escape?"

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Jacqueline reddened guiltily. "No, to prepare for his end," she said.

The Presidente smiled tolerantly. "Never fear," he answered first her confusion, "our justice stands committed, and to wink at escape now would be cowardly. Yet, whether you meant it or not, you are right, and the execution stands postponed until the nineteenth. A doomed man may learn much in three days to comfort him—on his way. But the criminal of all is lacking."

"Marquez, you mean?"

"U'm, him also. But I was thinking of Louis Napoleon, *and* his wife."

The order of postponement, being openly telegraphed to Escobedo at Querétaro, was known at once in San Luis, and caused a fury of

excitement. For none doubted but that it meant eventual pardon. The tender hearted rejoiced. The rabid ones muttered. The wise shook dubious heads. And even as Jacqueline and Berthe were hurrying back to Querétaro in the canvas-covered coach, another caller was admitted roundly on the president's privacy, without so much as being announced. Juarez wondered if his orderly had gone crazy, for the newcomer thus obsequiously presented looked to be a species of ancient vagabond.

"Well, what is it?" the President asked, frowning heavily. He was curiously irritated. "Stay," he interposed, "those dusty, muddy rags you have on, that green and red, that's not a Republican uniform?"

"It's of the Batallon del Emperador," replied the stranger, unabashed.

"Bless me the saints! Well, well, well, I suppose you, too, want to save your Maximilian. But how does it happen that you're not under guard yourself?"

For answer the old man came nearer. He limped feebly, and the while he unbuttoned his coarse red jacket. Juarez watched him sluggishly, but with a hand upon a revolver under the papers on his desk. The stranger, however, drew forth nothing more sensational than five or six square bits of parchment. Yet these aroused the President more than a weapon could have done. They were blank, except at the bottom, and there the President read his own signature, "Benito Juarez, Libertad y Reforma."

"Your—Your Excellency remembers?"

"How well!" The admission came involuntarily. Juarez was laboring under an emotion that he could not at first control. He stared at his visitor in a new wonder. So gaunt, so hollow, so utterly insignificant! The President's wonder grew.

"You—you gained entrance here by one of these slips?" he questioned sharply. The old man nodded. "And it was countersigned by—"

"Si señor, by El Chaparrito. The slip said, 'Admit bearer at once.'"

"Then I cannot blame my orderly! But who are you?"

"Anastasio Murguía, to serve Your Mercy."

"Bien, Señor Murguía, and now will you explain what no other messenger from our unknown friend has done? Who—who is El Chaparrito?"

But, like the wretched messengers who had gone before, Anastasio Murguía only shrugged his shoulders blankly. "Your Excellency does not

know El Chaparrito?” he asked. “And yet you trusted him, a stranger, with your signature?”

There was a crafty stress on his words.

“Ah, señor,” Juárez placidly inquired, “what if a chief magistrate did not know when to trust? You are to be informed, then, that one year ago last October, at Chihuahua, I was saved from a French flying column by an Indito. The poor wretch had run across the desert with his warning.⁴⁵² But he could prove nothing. He couldn’t even tell who sent him, except that it was a short gentleman, a señor chaparro. Yet it was well for the Republic that I took his word and fled. Later, when I reached the Rio Grande, and he wanted my signature to some blank squares of parchment, which he was to take back to his señor chaparro—well, señor, I trusted again. That Indito in breech-clout obtained my autograph some twenty times over.”

The President, however, might have added that every Republican officer was advised first to test any warning on any bit of parchment signed “Benito Juárez.” Yet, as a matter of fact, there came to be such magic in the name of El Chaparrito that the name of Juárez thereto was only needed as a guarantee that the lesser name was genuine.

“Now, then, Señor Emissary,” said the President, “what danger hangs over our Republic this time?”

“None, señor. I return the parchment squares left over. El—El Chaparrito has no more thoughts for the Republic. He thinks,” and Murguía ground his knuckles into the desk top, “he thinks of no one, of no one—except Maximilian! And he has never thought of aught else. The Republic? Bah, the Republic was only his tool, Señor Presidente. Only his tool, but the tool needed sharpening. They say that’s the way with the guillotine, eh, Señor Presidente?”

“But hombre—No, our unseen friend of the Republic, our Chaparrito, would not ask for Maximilian’s pardon?”

“*Pardon!*”—It was fairly a cry of rage—“Yet you, Señor Presidente, *you* postpone the execution! *You* mean to pardon him!”

“Indeed?”

“Yes, I—I think so. But you shall not, Señor Presidente. I come to, to—”

“Now that’s curious. Possibly I, too, am to be sharpened into a kind of guillotine, eh, señor?”⁴⁵³

“All the others were,” Murguía returned stubbornly. “That is, all except one.”

“Ha, then El Chaparrito found one man who was incorruptible?”

“Yes. But still Your Excellency is mistaken. El Chaparrito did not use money to win his agents. That, señor, is the unsafest way of all.”

“You would tell me, señor, that El Chaparrito had a safe way?”

“Yes, and it was absolute. He awakened memory, the memory, Señor Presidente, of wrongs. For example, there was Your Excellency’s savior in breech-clout. He once lived in a forest village down in the Huasteca. One night Dupin came and burned the huts, and the Indito’s family perished with other women and children there. That village alone gave the Chaparrito many another messenger or spy, but memories left by the Empire were plentiful enough everywhere, and cheap. The Chaparrito simply drafted them, that was all. But once his system failed. Yet—well the man in that case was an American, and *they* are liable to be exceptions to any rule, to any passion. But in the end he was safe enough too, though something else, that I can’t understand, made him so.”

“And what did he do, this American?”

“He took me to Escobedo.”

“And you?”

“I took Lopez. That same night Querétaro fell.”

“*You*? Now—now to what particular wrong in *your* case, señor, does the Republic stand thus indebted?”

Juarez put the question lightly, even patronizingly. But his steadfast gaze had not once left his gaunt and battered visitor. By design, too, he had not asked a second time who the Chaparrito was, because he saw, or felt, that the old man knew, though former emissaries from that mysterious source had not known. And Juarez meant to possess the secret. But with his casual irony he never looked for any such kindling of memory as then flashed deep in the cavernous sockets opposite him. The eyes of the aged man glowed and darkened, glowed and darkened, and seemed the very breathing of some famished beast. It was a thing to startle even Benito Juarez, who during many, many years had learned the meaning of civil war. The President leaped to his feet, pointing a finger.

“You are,” he cried, “yes, *you* are the Chaparrito!—No?—Yes! Ha, I’ve struck, I’ve struck!”

He had indeed. The colossal guile and intellect and will, the giant whom men in awe called El Chaparrito, was only old, withered Anastasio Murguía. But the astute Juárez *knew* that he was right. He knew it in that one look of consuming, conquering hate. He knew the giant in that hate. The feeble flesh, Anastasio Murguía, was an incident. Yet even so, only the President's tenacity held him to where his instinct had leapt. For under discovery Murguía was changed to a huddled, abject creature, stammering denial. Yet it must be true, it must. The strangest, the most weird of contrasts in the same soul and body—yet it must, it *was* true!

And Murguía? He might have asked for reward, and had it. But his was rankest despair. His work was not finished, his goal not attained. And now his most potent instrument of all, the Chaparrito, was miserably identified in his own self, was taken from him.

Juárez rose and touched his shoulder, "Come," he said, "there's much too much tension here. Now then, sit down, so. Let me see, you said your name was—yes, Murguía. But—why, Dios mio, that's the Huasteca miser! Well, well, well, and so you are that rich old hacendado who never gave even a fanega of corn to Republic or French either, unless frightened into it? But hombre, we've had *big* sums from the Chaparrito, and all unasked!"

And yet must it still be true, yet must even this contrast accord. El Chaparrito had indeed given munificently. But in each case it was to bridge a crisis. As the shrewdest general he knew a vital campaign, and aided, if need be. But on a useless one the Republic's soldiers might starve, might freeze, might bleed and die, without ever the most niggardly solace ever reaching them from El Chaparrito. Economy was applied to vengeance, and made it unspeakably grim.

"Once though," Juárez pursued, "you all but lost your Maximilian? I mean last fall when he started for the coast. He could have escaped to Europe."

"I know," said Murguía quietly, "but I was near him. If he had not turned back, I would have done it myself."

"It?"

"The justice which Your Excellency has just postponed three days."

"Dios mio, but our Chaparrito is a dangerous person! He'd have to be locked up if Maximilian were pardoned."

"But—but Your Excellency will not pardon him!"

"To be sure, I had forgotten. I am to be given a memory. Well?"

"Your Excellency remembers, he remembers Zacatecas?"

"Last February? Certainly I do. Miramon came, but a warning from El Chaparrito, from you, came first, and a last time I escaped. As it was, I was reported captured, and I sometimes wonder what Maximilian would have done had that report been true."

"If I should tell you, señor?"

"Ah, that is beyond even you, since Maximilian has never had the chance to decide my fate."

"But he did decide, señor. He got word that you were taken at Zacatecas, and at once he sent orders to Miramon as to your treatment.⁴⁵⁶ But Miramon was already defeated, already fleeing to Querétaro."

"And the orders, the orders from Maximilian?"

"They never arrived. They were intercepted. They—yes, here they are, but before reading them, will Your Excellency promise to imagine himself in Miramon's power?"

"I would, naturally. Come, señor, hand them over."

It made curious reading, that weather-blotched dispatch. For Don Benito Juárez it was reading as curious as a man may ever expect to come by. In the handwriting of his prisoner, he read his own death sentence.

"Your—Your Excellency sees?" Murguía stammered hungrily.

"H'm, what, for example?"

"Why, that—that Maximilian would not have pardoned?"

"On the contrary, señor mio, that is precisely what the generous Maximilian did intend. Listen—Miramon was 'to delay execution until His Majesty should pass upon it.'"

"No—no, Your Excellency, he would not have—"

"O ho, so you think you've missed your last stroke! You think that there is no memory for me in this dispatch! But don't whine so, because, man, there is, there is! It may not be the memory of my intended death, but it is the memory of—intended insult. Oh, what a patriot he must have thought me, this good, regenerating prince! He had already offered to make me chief justice. But this time he would have saved me from his own Black Decree. And I would have been touched by his clemency? I would have accepted, the grateful tears streaming from my eyes? And thus I would be regenerated? It sounds beautiful. It sounds like the chivalrous Middle Ages, when there were Black Princes along with the

Black Decrees. My liege lord *he* would have been, but my liege Patria, what of her?—Well, well, well, he has three days in which to understand me better, and to think of his own regeneration a little.”

“Then,” cried Murgía, limping gleefully toward him, “then there will be no pardon?”

“I see,” said Juarez, suddenly cold and very calm, “I am now corrupted. I am now safe, like the others. Take that chair, wait!”

Saying which the Presidente left his desk, clapped his hands for the orderly, and seated himself near the window. To the orderly he said, “Go to the diligence office across the Plaza. Ask for Colonel Driscoll, the American officer who commands the escort of the two lawyers. Say that I wish to see him here at once.”

When Driscoll appeared, Juarez put to him this question, “Colonel—I’ll say ‘General’ whenever you decide to be a citizen among us—Colonel, can you reach Querétaro early to-morrow morning by riding all night?”

“Not with my own horse, sir. He’s getting old, and deserves better.”

“Then it’s all right, señor. You will take any horse you want. I have telegraphed to stop the execution, but there’s been no reply. You must therefore see General Escobedo yourself. Look on my desk. Do you find a packet there?”

“Yes.”

“Sealed? Well, break it open. Now read the contents to my visitor here.”

Driscoll unfolded a long sheet of foolscap, and began to read. Murgúa the while fidgeted in an agony, but listening further, his limbs grew tense, and a hideous joy overspread his face.

““But at sunrise of the nineteenth you will execute the sentence already approved.””

The prisoners were not to be deceived by false hopes. There would be no further appeal. The last, the final decision, had been made.

“I have signed it, I believe, Colonel Driscoll?”

“Yes.”

“Then seal it again, and hurry! Good-bye, sir, good-bye.”

When Driscoll was gone, the Benemérito of America turned to the grinning hyena-like old man who was his visitor. His own dark features were passionless, impenetrable.

“You observe, señor,” he said, “that Justice does not require corrupting, nor even a memory. So let El Chaparrito add this to his philosophy, that he need not boast again of an infallible spur to civic loyalty, for he will never find it, nor I. And yet—there is patriotism.”

CHAPTER XIX

IN ARTICULO MORTIS

“The centuries are conspirators against the sanity and majesty of the soul.... Man cannot be happy and strong until he lives in the present.”

—Emerson.

For Maximilian it was the eve of execution. The soul feels that there is much to decide at such a time, but under the nettling merciless load the soul will either flounder pitifully and decide nothing, else lie numb and in a half death vaingloriously believe that it has decided everything. So may the condemned be open-eyed or blind. Or, according to the police reporter, be either coward or stoic. But it really depends in large measure on whether realization be dulled, or no.

Maximilian had too late come to understand that his anointed flesh was violable at all. He learned it only when the death watch was actually set on his each remaining breath. And now he was *en capilla*, in the chapel of the doomed; he, Ferdinand Maximilian Joseph, Archduke of Austria, Prince of Hungary and Bohemia, Count of Hapsburg, Prince of Lorraine, Emperor of Mexico, even He!

They had given him the tower room of Querétaro's old Capuchin church, and against the wall was an improvised altar. But the sacrament waited. The tapers on the snow-white cloth were as yet unlighted. Instead the Most Serene Archduke—Emperor no longer—read from a battered volume of Universal History, which, with a book's queer vagaries, had strayed into his cell. He read how Charles of England had died, then he paused, blinking at the two candles on the rough table. They were vague shapes, they were horrors, which he now began to see, as the visions of Truth so often are when hazily perceived.

He bitterly envied that unhappy Stuart, who, before his palace window, among Cavaliers and Roundheads, had died in majesty, the bright central figure in a tragedy of august magnitude. But for the Hapsburg how sordid, how mean, it all would be! He could see already the gaping, yellow faces, sympathetic in their stupidity. *They* would not really know that a prince was dying. The very guard with shouldered bayonet outside his door was a deserter, and it was this man, more than aught else, that gave him to chafe against his ignoble lot. The fellow never uttered a word, indeed; but he had a heavy, malignant eye, and each time he passed the large inner window that opened on the corridor he would look into the

cell, as though to locate his prisoner. Then Maximilian could feel the insolent, mocking gleam upon himself, until for rage he clenched his fist.

Thus the Most Serene Archduke's first perception of calamity was not that royal blood was to flow, but that it was to flow obscurely. Even the ancient raven curse, the curse of the Habicht which had given his House its very name, was now fulfilled by unclean buzzards. He saw them each day, perched on the neighboring roofs.

He sighed and turned to his book. Universal History? Yes, but for hundreds and hundreds of years that history of millions and millions of people was no more than the record of his own little family group. Such a course of reading for such a man held a terrible grandeur, and it must have been a unique sensation of pride that touched the golden-bearded, ultra-refined viking prince. A spoilt child he was, and though so cruelly reproved by Life, he yet could learn no lesson in the passing footnote that *he* would add to that family record. He could not see that the light which made the printed characters so dazzling, yet distorted them. He could not know that the commonest man of the millions and millions might read that Universal History by quite a different and a calmer light. But he was aware of the sentinel's tread back of him, and aware too of the fellow's coarse, familiar leer.

One consolation he felt he might have had, and this was the dignity of martyrdom. But no one, alas, seemed to regard him as a martyr at all. He had begged that he alone should suffer. But the play at knightly generosity was too shallow. For at the time Maximilian believed that he would not suffer in any case. Later, though, when he knew that he must die, then with simple earnestness he had pleaded for Miramon and Mejía, and forgot himself altogether. But Juarez had hardly more than acknowledged the telegram, and now in the cell next him Miramon was confessing, and in the cell on his other side Mejía waited. Each of these two men would leave a wife and child.

Someone knocked. "No, father, not yet," Maximilian answered gently, although his mood was impatience. The confessor sighed in protest against the waste of precious time, but he did not move away, as he had already twice before during the night. Instead he came and stood at the corridor window. His lip trembled pityingly. There was news, he said.

Maximilian pushed back the book, and was on his feet. The priest meeting his eager look, shook his head sadly.

“It comes from—from Miramar.”

Maximilian fell back. One hand groped out involuntarily, as in appeal before a blow. “News of Charlotte?” he asked faintly.

Charlotte was dead, the priest told him.

During a long time, after the priest had gone, his head lay on his arms, between the two candles. He heard no more the sentry challenges, nor sensed the menace in every slightest sound of the dark night outside.⁴⁶² There was something else. “Death?” At first he did not consciously strive for an answer. But the question kept falling, and falling again, as a lash. The vulgar hands which plied the scourge, the stupid yellow faces, these no longer mattered. He felt the blows themselves, only the blows.

She had died, the poor maniac! She had died, a thing for the lowliest pity. And this was true of the haughty child of Orleans because she had wanted a throne. Slowly her husband raised his head; and staring at the wall, his tear-dimmed eyes opened wider and wider. Because she had wanted a throne? Because she had wanted a dais above the meek and lowly, above those who now pitied her! His eyes fell on the Universal History—the family record, and there grew in his eyes a look of detestation. Groaning suddenly, he buried his head again in his arms.

At dawn he too was to die, and because he too had craved a sceptre. Yet, and yet, he had meant to be an instrument of good. Born of kings, anointed by the Vicar of Christ, he had come as agent from the Almighty. But God had failed to sustain him, God had—again the blue eyes raised, but dry now, and stark in terror. “Yes, yes, yes,” so his reeling soul cried to him, “there is a God! There is, there is!” One sharp breath, and the mortal fear passed. In ghastly panic he crept back from the brink, either of the atheist’s despair or of the madman’s chaos. But the cost was heavy. Since God did exist, and God yet had failed him, then it was the man’s Divine Right that must be false. He, only a man, had mistaken his Destiny. Nay, had he a Destiny? Or why, more than another man? Here, then, was the cost. To keep his hope of Heaven, he stepped down among the millions and millions. His Divine Right, crumbling under the grandeur of partition among the millions, became for himself the most infinitesimal of shares, neither greater nor less than that of any other⁴⁶³ human being. But glorified now by the holy alchemy of Charity, the tiny grain became divine indeed, and he beheld it as a glowing spark, his own inalienable share in the rights of man. So, for a moment, the poet prince

knew again his old-time exultation. Even Truth, he now perceived, had her sublimities.

But the pall of horror fell again. To-morrow he was to die. He was to die because his life long he had sought to rob others of the tiny grain, of their God-given dignity as men, and that too, even as they were awaking to its possession. The vanity, the presumptuous, inconsistent vanity of it all! Under the dark mediæval cloak he had planned enlightenment, he, who had tried to rule without parliament, without constitution! He would have made a people believe in God's injustice, in God's choice of a man like them to be a demigod over them. Hence the blasphemous demigod had now to answer to human law. And it was meet and right. Purgatory was beginning on the eve of his death.

He, the torch of Progress! Maximilian smiled scornfully on himself. He was only a clod of grit caught in the world's great wheels. The foreign substance had wrought a discordant screech for a moment, and then was mercilessly ground into powder and thrust out of the bearings. He pondered on the first days of the Family Group, when there was extenuation; more, when there was necessity, for a king. At any rate the monarch then earned, or could earn, his pomp and state by services actually rendered. And now? The Hapsburg decided that there was not a more contemptible parasite on the body politic. The crowned head was simply the first among paupers. He had his bowl of porridge, which was the civil list.

The doomed prince sank to a depth of shame that may not be conceived. He was humanity's puny infant. He had dawdled among men centuries older than himself. His whole being was out of harmony with the universe. Fate had held his soul fast during those Dark Ages when he might have striven nobly, and now had cast it forth, an anachronism. It was a soul misplaced in eternity. The dire realization grew and grew, and with it the tragic agony, until with a sudden and the bitterest of cries he flung up his arms and fell heavily across the table.

"My life!" he moaned in piteous begging for something he might not have. "My life, to live my life over again!"

In the first light of morning Escobedo came. The Republican general unfolded a paper, and began to read. But instead of the death sentence, it was reprieve. President Juarez had postponed execution for three days.

“Three days?” Maximilian repeated, wearily shaking his head. “If your Republic could give me as many centuries, but three days!—Three days, in which to *live* my life!”

CHAPTER XX

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KNIGHTHOOD'S BELATED FLOWER

"Trusting to shew, in wordès few,
That men have an ill use
(To their own shame) women to
blame,
And causeless them accuse."

—*The Nut-Brown Maid.*

Later the same morning there sounded the ineffable swish of silken petticoats along the corridor and the clinking of high heels on the tiles. La Señorita Marquesa d'Aumerle had obtained permission to visit His Most Serene Highness. The sentinel of the evening before was again on duty, and his evil crossed eye seemed to lighten with vast humor as he presented arms for the lady to pass. She met his insolence with a searching, level gaze.

Maximilian hastened to the door of his bare cell, and took both her hands in his. "I am beginning to recognize my friends," he said simply. "I know, I know," he added, "you come to tell me that you failed to get the pardon. But you do bring reprieve."

He would have her believe that he valued that.

Jacqueline regarded steadily the tall, slight figure in black, with the pinioned sheep of the Golden Fleece about his neck, and she sighed. She was disappointed in him. She had thought that pride of race, if nothing more, would give him character during these last moments. She allowed, too, for the grief, and the remorse, in the blow of Charlotte's death. But she was not prepared for the roving eyes, the disordered mind, the feverish unrest of the condemned prince. Had his soul, then, been a cringing one throughout the night just past? It was the first time she had seen him, except at a distance, since the day she arrived in Querétaro, for she had chosen, and perhaps maliciously, to disconcert the tongue of slander. Hence she could not picture the ravages of sickness and anxiety, until now when she beheld his haggard face. It was one to bring a pang. The cheeks were hollow, the lines sharply drawn, and the skin was white,

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so very white, with never a fleck of pink remaining. And staring from the wasted flesh were the eyes, large and round and faded blue, and in them an appealing, a haunted look. But they softened at sight of her, as though comforted already.

“A reprieve is best,” he said. “You cannot think that I want a pardon, now that, that *she* is dead!”

“But sire—”

“‘Sire’? Ah, my lady, you are a little late, by something like a few hundred years. You see our American was right after all; a letter no longer makes a king.”

It was a bon mot that Maximilian had always enjoyed, it being his own, but this time he was most zealously in earnest.

“Monsieur, then,” she said, in no mood for reforms of etiquette. “Only, let me talk! We have three days, three days which are to be used. Your Highness must escape!”

But now she understood him less than before, for he only smiled wearily. It was, then, something else than fear that had broken him so.

Escape? And that guard in the corridor? Passing, ever passing, the diabolical humorist seemed to chuckle inwardly, as though to stand death-watch were the most exquisite of jokes.

“That man?” whispered Jacqueline. “Why, that’s Don Tiburcio. He was driven out of the Imperialist ranks by Father Fischer. But from his lips, this very night, Your Highness will hear that the road is open to Vera Cruz. Ah sire—monsieur—we have been working, we others. There will be horses ready, there will be a long ride, and then, you will safely board an Austrian ship waiting for you.”

Maximilian slowly shook his head. “No,” he said, “I am ready to die, as—as ready as I shall ever be.”

“But the remaining years of your natural life, Your Highness counts them as nothing! Yet you might live twice your present age!”

“My life—over again,” he murmured dreamily.

“Of course, why not?”

“One year to redeem each year that has gone.”

“Years of Destiny!” she cried, thinking to touch him there.

“No!” he exclaimed, so harshly and quick that it startled her. “But for me they will be years of dearest mercy. Wait, tell me first, Miramon and Mejía—”

“Yes, yes, we will save them too. Only, the risk is greater.”

“Bien!” He had almost accepted, but he smothered the word, and starting up, began to pace the room. At last he stopped. “The risk must be lessened, for them,” he said. “*I will remain.*”

“H’m’n,” the girl ejaculated, “Hamlet declines? Then there will be no play at all, at all.”

Maximilian knew how stubborn she could be; and so, reluctantly, he joined the plot.

“I have deserved Marquez and Fischer and Lopez,” he sighed. “But why there should be friends, even now, that I cannot understand.”

Yet she told him bluntly why she wanted his safety. It was on France’s account. Still, his gratitude was no less profound. She who would give life to others, what was her life to be henceforth? The mellowing sorrow, which her vivacity could not hide, smote him again, as it had that evening in Mexico when he came to her for counsel. He remembered. Out of a useless ambition for her country she had squandered her name, blighted her future. He remembered how, looking on her saddened face, he had been exalted to a pure devotion, and had burned with knightly fervor to do her some impossible service. But what was the service? There his memory failed, and he despised the chivalrous ardor which could be quenched with feeding on itself. After the fearful vigil of the night before, he had found a suit of armor beside him. In a word, he had forgotten self. Simple compassion was enough. That service? that service? If he could only remember. But he must. And in hot anger he strode back and forth, while Jacqueline sat and gazed in wonder. Once, turning from the corridor window, he paused. The guard had stopped a man, who now was evidently waiting until the prisoner should be unoccupied. Unseen himself, Maximilian recognized in the man the American named Driscoll. And then he remembered. He remembered Jacqueline’s secret, betrayed to him that evening in Mexico. He remembered that her happiness was lost in the loss of this man’s respect. Here, at last, lay the impossible service!

Maximilian glanced toward her stealthily. No, from where she sat she could not see the corridor, could not see the waiting American. A moment later Maximilian stood behind her; and when he spoke, she thought it odd that he should change from French to halting English.

“Miss d’Aumerle,” he began, in distinct if nervous phrasing, “yes, it was for France, all, all of which you haf done. Therefore is it that you haf come to this country, and here to Querétaro, whatever is to the contrary said.”

“De grace,” she laughed, rising abruptly, “there’s enough to do to-day without discussing—”

But he intercepted her even as she opened the door.

“Will Your Highness kindly let me pass?”

“And I know, I alone, that nefer haf you toward myself once felt, once shown, that which—”

A sharp, indignant cry escaped her. Following her gaze he saw the American pass on down the corridor and out of hearing.

“Now who,” exclaimed the chagrined prince, “would ever have imagined such delicacy of breeding!”

“And don’t ever again,” cried Jacqueline furiously, “imagine that *I* stand in need of being righted!” Wherewith she too was gone, leaving her clumsy knight staring blankly after her.

A few moments later Driscoll knocked.

It was the first meeting of these two men since the memorable afternoon at Cuernavaca, when Driscoll had surprised Jacqueline listening to royalty’s shameless suit. Now he beheld Fatality’s retribution for that day’s bitterness. Retribution, yes. But it was not restitution. The girl he loved had just passed him in the corridor with a slight casual nod, and he would not, could not, stretch forth a hand to stop her. Instead, the smile so ironical of Fate had touched his lips.

“I was sent by Señor Juarez, sir,” he addressed the archduke in the tone of military business. “The President is afraid your three days of reprieve will be misunderstood. He sent for me as I was leaving San Luis yesterday, and I—I was to tell you—”

“You need not hesitate, colonel.”

“Well, that you must not hope for pardon, for the sentence will positively be carried out day after to-morrow. That—I believe that is all.”

“But—” Maximilian called, staying him. “Dios mio, such news merits a longer telling. It seems to me too, Señor Americano, that you should enjoy it the more, since it was partly you who brought me to this.”

“I don’t know as I’d thought of that. How?”

“You ask how? Do you forget how you took the traitor Lopez to Escobedo, the night I was betrayed?”

Driscoll swung bluntly round on his questioner. “No I don’t,” he replied. “But you see, there was such a lot of bloodshed scheduled for the next day?”

“Isn’t that rather a curious reproof from a soldier? Loyal hearts would have bled, yes, and gladly. Noble fellows, they would have saved their Emperor!”

Driscoll half snorted, and turned on his heel. But he stopped, his lips pressed to a clean, hard line. “What of those townsmen in the trenches?” he demanded. “It wasn’t their fight.”

Maximilian’s eyes opened very wide, and slowly his expression changed. The thick lower lip drooped and quivered. Suddenly he came nearer the American, a trembling hand outstretched.

“I was saved that,” he murmured earnestly.

“They were,” the grim trooper corrected him.

“The townsmen, yes. But I—I was kept from murder. God in heaven, I would have murdered them! Ah, señor, if I could put to my account a night’s work such as yours, that night, when you used the traitor! I could almost thank Lopez. I do thank you.”

Still Driscoll failed to notice the proffered hand. He might have, had he seen his suppliant’s face, and the tense anguish there.

“Those innocent non-combatants, then,” Maximilian went on, “so they counted more than a prince with you?”

“Of course, there were a thousand of ’em.”

The other’s haggard look gave way to a smile, half sad, half amused, and taking the American by the shoulder in a grip almost affectionate, he said, “Colonel, did you ever happen to know of one Don Quixote of La Mancha? Well, lately I’ve begun to think that he was the truest of gentlemen, though now I believe I could name another who—”

“And,” interrupted Driscoll, “did you ever try to locate the most dignified animal that walks, bipeds not excepted? Well, sir, it’s the donkey. Take him impartially, and you’ll say so too.”

The strain was over. Maximilian laughed. “If Don Quixote had only had your sanity!” he began; “or rather,” he added, charmed with the conceit, “if knighthood had had it, then the poor don would never have been needed to be born at all.”

Ignoring the sincerity of the Hapsburg's new philosophy, and how tragically it was grounded, Driscoll only smiled in a very peculiar way. Knighthood? The word was supercilious cant, and irritated him. During that very moment, while listening to Chivalry's devotee, the young trooper thought of a little ivory cross in his pocket, a cross which was stained with a girl's blood. Murguía had given it to him, to give to Maximilian on the eve of execution. But Driscoll had not promised, and yet Murguía had implored him to take it, even without promising. The old man held faith in vengeance as a spring to drive all souls alike, and if Maximilian's last earthly moment could be embittered with sight of a cross, then, he firmly believed, the American needed only to be tempted with the means to do it. Moreover, in a sudden impulse, Driscoll had taken the holy symbol, "to do with as he chose." There was no message, Murguía had explained. The Señor Emperador would read the graven name, "Maria de la Luz," and that would suffice.

Looking now on the cultured gentleman caressing his beard, Driscoll thought again how hellishly distorted was the sign of salvation then in his pocket. But he left it there. He, too, had a king's pride, incapable of low spite. Charity alone, though, would have held him, if he had but known that Maximilian was ignorant of the dead girl's fate.

The archduke for his part had been amiable and conciliatory, because there was a certain delicate question he wished to ask.

"Oh by the way, mi coronel," he said abruptly, "I must extend my excuses for keeping you waiting in the corridor just now. But there was another visitor here. And as we happened to be talking of—well, of a rather personal matter, not intended for outside ears—"

"Do not worry. When you raised your voice, I turned and left."

"But perhaps," said Maximilian slowly, "it would have been better if you had overheard, either you or another knowing the cruel rumors which—which link my recent visitor's name with my own. Then the truth would have been made known. That truth, señor," he hastened to add, despite a hardening frown between the American's eyes, "means first that I have been honored, indeed, in my visitor's—"

He got no further. A broad hand closed over his mouth.

"Another word of that, and I'll—I'll—"

The threat was left unfinished. Gasping in the chair where he had fallen, Maximilian found himself alone. He was vaguely nonplussed.

There had been so many revelations of late that he thought this one simply a further re-adjusting of himself to the modern world of men. The present instance had to do with the critical juncture where the woman enters. But he had learned something else, too. The American loved her, and that was important. Yet lovers were very contrary beings, he mused lugubriously.

"Still, I shall try again," he decided. "One humble success against my career of distinguished failures should not be too much to expect."

The night that followed, a black, favorable night, was the time planned for escape. Horses ready saddled waited outside the town under the aqueduct. Certain guards were bribed, among them Don Tiburcio. The humorous rascal had driven a hard bargain, but only because the money was to be had. He would have sold himself as briskly for the cream of the jest.

Late the same night there came a frantic pounding at Driscoll's door,⁴⁷³ where he was quartered in the sacristy of the old Capuchin church. "Well?" he muttered, alert already.

"Hurry, mi coronel!" a cracked voice blended with the knocking. "Hurry, you are wanted!"

"Murgie!" Driscoll exclaimed, flinging wide the door. "Back from San Luis, and prowling round here as usual, eh? Well, what's the matter?"

"Quick, señor! Maximilian is sick. Go, go to him!"

Partly dressed, bootless, unarmed, Driscoll shoved the old man aside, and sped through the church, hopping over half awakened soldiers as he went. Once in the street, he glanced up at the tower room, which was Maximilian's, and thought it odd that no light streamed through the narrow slits there. The sentinels, too, were gone. But he ran up the steps and darted along the corridor, only to strike his head against a heavy wooden door that was ajar. He rushed inside the cell, and with arms outspread quickly covered the space of it, in the utter dark smashing a chair, crashing over a table, cursing a mishap to his toe. But he found no one.

"This here's a jail-break," he mumbled under his breath. "Dam' that Murgie, he's roped me in to stop 'em!" Whereat, all unconsciously, he smiled again at Fatality.

Groping his way back to the corridor, he felt rather than saw three dim figures steal past the door. Silently, swiftly, he gave pursuit. He heard a

fervent whisper just ahead.

“Hasten, dear friends, and may God—”

The next second he was grappling with someone. But his unknown captive did not resist.

“There, señor, loosen your fingers. I am not escaping. I am returning to my cell. But I had to make the other two think that I was with them.”

The voice was Maximilian’s.

“Hark! Ah, poor souls, they have failed!”

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The prince spoke truly. A fierce “Alto ahí!” sounded below. Then there were musket shots and the confusion of many scrambling feet. Murguía had routed out the church barracks. And when torches were brought, the soldiers discovered that they had hands on Miramon and Mejía. But the false sentinels were gone! In leaving the road clear they had used it themselves, already.

“You fools!” suddenly a half crazed wail arose. “Fools, *he* has escaped! He—”

“Oh dry up, Murgie,” said Driscoll, coming down the steps. “He’s gone back to his room, I reckon.”

CHAPTER XXI

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The Title of Nobility

“Hear, therefore, O ye kings, and understand.”
—*Wisdom of Solomon.*

One more sunset, one more sunrise! And then?...

Maximilian again confronted the ghostly enumeration. But this time his last day should be the day of a man's work, in simple-hearted humility. He no more searched the skies to find a supernal finger there. He let Destiny alone, and did his best instead. For a man's best is Destiny's peer.

The fiery June sun was dying in its larger shell of bronze over the western sierras, and the self-same blue that vaults beautiful Tuscany was taking on its richer, darker hue, when a foreigner in the land, Din Driscoll, walked under the Alameda trees, his pipe cold in his mouth, he perplexed before his heavy spirits. For he no longer had war to distract, to engross.

Maximilian's physician, an Austrian, found him in his reverie. Would the Herr Americano at once repair to His Highness attend? The señor's presence would a favor be esteemed, in reason that a witness was greatly necessitated.

Wondering not a little, Driscoll hastened back into the town. As the physician did not follow, he arrived alone. But in the door of the archduke's cell he stopped, angry and embarrassed. For his eyes encountered a second pair, which were no less angry, which moreover, were Jacqueline's. Maximilian and Padre Soria, the father confessor, were also there, but Driscoll at first saw no one but Jacqueline. As with him, she had been vaguely summoned, without knowing why. A last testament was to be signed, she imagined, but in his choice of witnesses she thought that Maximilian might at least have shown more delicacy. As to cruelty also, she would not confess, but cruelty it was, nevertheless. To see again this American was to know memory quickened into torture, and days afterward there would still be with her, vividly, hatefully, the beloved

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awkwardness of his strong frame, the splendid, roguish head, now so forbidding, and more than all, the way he smiled of late. It was a smile so cold, so cheerless, a something so changed in him since the old, piquant days of their first acquaintance. Despise herself as she might, Jacqueline knew how the sight of the man halted there would leave her whole woman's being athirst and panting.

Maximilian's thin white face lighted eagerly when he perceived that Driscoll had come. The haggard despair of two days before had given way to a serene calm, like that which soothes a dying man when the pain is no longer felt. In a gentleness of command that would not be denied, he rose and brought the American into the room.

"Colonel Driscoll," he began, "you know, of course, that a witness is the world's deputy. He is named to learn a certain truth, but afterward he must champion that truth, even against the world. So you find yourself here, but first I wish to thank—"

"Please don't mention it," Driscoll interposed. "I'm willing to do anything I can."

"Then remember," said Maximilian, "that you are a witness, and a witness only. Can you bear that in mind, señor, no matter what you may hear?"

Driscoll nodded, but the very first words all but made him a violent actor as well. Maximilian had turned to Jacqueline. For a moment he paused, then with a grave dignity spoke.

"Mademoiselle," he said, "reverently, prayerfully, I ask your hand in marriage."

She gasped, and so sharp and quick that certainly she was the most dumbfounded there. Her utter stupefaction amazed Driscoll as much again as the question itself. He stiffened as though struck. If this were a revelation? If it could be—if it could be that she really knew no reason why she should marry Maximilian?

The archduke observed them both, and his eyes shone with kindness. But making a gesture for patience, he hurried on. "Father Soria here," he said, "will come in the morning, just before the—the execution, to perform the ceremony. A judge of the Republic will come too, for the civil marriage. As to the banns—"

"But why—why, parbleu?"

Jacqueline stood before him, stung from her speechless trance by fury. Behind narrowed lids the gray eyes hardened as points of steel.

"You shall know, mademoiselle," he answered softly. "It is a boon I ask of you, the greatest, and the only one before I go—"

"Why? Tell me why!"

"Because it is *the* boon a true knight may crave. It is to right before the world the noblest woman a knight can ever know—"

"Sire!"

The word was rage and supplication both. It was a hurt cry, piteous to hear. Then the glint dying from her eyes blazed to tempestuous life in those of the Missourian. But the priest's hand touched his arm, and the priest's voice, low and gentle, stayed him.

Maximilian, though, had seen the outburst. "Ah yes, señor, I remember," he said, and smiled, "one may be slapped upon the mouth, yes, yes, for even breathing my lady's name when one talks of rumor."

Jacqueline darted at them a puzzled glance. She did not understand at first. Then she divined. And then, wide and gloriously, her eyes opened on Driscoll, her defender. But in the instant they sought a safer quarter. She could not, and would not, forgive him for being there at all.

"However," the obdurate prince continued, "our witness must bear with me this time, for I will—*will*, I tell each of you—speak plainly. The false scandal does exist. Deny it, dear lady, if you can.—Nay, señor, *you* believe it, or did. So, now, as the world's deputy here, you must be armed to foil those venomous tongues. But there is only one way. You shall tell them that they talk of Maximilian's widow—"

"But—"

Jacqueline, Driscoll, both spoke at once. But the girl flashed on the man an angry command for silence.

"Enough, enough!" she cried, "Let me speak, then end it. Whatever others may think, Your Highness extends me his respect? Bien, but that gives me a certain right, which is the right to consider just one thing in answering the question of Your Highness—just one lone, little thing."

"And that?"

"Is—is whether or not I have the honor to love Your Highness. Oh, the shame in such sacrifice, the shame you put on me! You should have known my answer already."

Her answer? Driscoll stirred uneasily. What, indeed, was her answer?

“Yet later, mademoiselle,” pursued her inflexible suitor, “when others aspire to your hand, there might come one for whom your answer would be favorable. How then, if this suitor, when pausing to hear what the world says of you—”

“He’d choke it down the world’s throat!” Driscoll burst forth. “He alone need know it’s a lie.”

Jacqueline started as she heard him speak, but the glad and unintended look she gave him changed as quick as thought to haughty resentment. After all, he was still there.

“But how else,” Maximilian persisted, “can such a man know so much?” 479

Then, a captive absolute to his lofty idea, the poet prince pleaded for it as one inspired. All things worked, as by Heaven’s own will, to sanction what he proposed. There was Charlotte’s death. There was his own. Dying, he was still a Mexican, and might wed in any station he chose. While if he lived, as an archduke of Austria he could not. But he detested life. With it he had bettered no one. Yet by his death he hoped to save more than life to another. This other was the girl before him. He had wrecked her dearest ambition. For France’s sake she would have lured him from peril. For that, and that alone, she had sacrificed her name. Such accounted for their interview at Cuernavaca. Such accounted for her coming to Querétaro. Yet through his own blind weakness she had failed. France had lost Mexico, he his life, and she—her happiness. But the last could yet be restored. And why not purchase it with his death, since he must have died in any case?

“Must have,” Driscoll interrupted, “must have died in any case?”

The American had listened perplexed, now with a quick, eager start, now with crinkled brows. First of all the old mystery and its anguish had assailed him. The hideous, gloomy tangle would wound him round again. Did Jacqueline care for this prince? Surely, because he had seen the evidence. But why had she intrigued against his Empire, why had she turned Confederate aid from him?

Then, as the ruined monarch spoke, the other man saw. He saw the truth. Truth that reconciled all contradictions. That explained what even the theory of her wanton heart had only half satisfied before. Explained everything by that heart of purest gold. The lover knew now why she had delivered him to Lopez and the Tiger, two years ago, though with the act 480

so perversely confessing her love for him. He knew why, at Boone's Córdova plantation, she had tempted him to hold her for his own, though even then she was returning to the capital, to Maximilian. No, it was not wanton sport. It was not contradiction. But it was conflict. In the contemplation of that conflict he stood unnerved. It was the conflict between a wild yet altogether French scheme of patriotic endeavor and her own good woman's love. His eyes wandered to her, half afraid, and the chill of months about his heart was gone, as some great berg of ice sinks in the warmth of sunny waters. From siren alluring flesh whose touch was woe, she was become a sceptred angel, far, far away, so tantalizingly far away!

Thus Driscoll listened on, happy in his soul of a man, yet abashed as a boy. But listening, at the last he was perplexed anew, though for another reason.

"Must have died, sir?" he repeated again. "But that wasn't what you thought last night. No sir, last night you thought you could escape. But just the same you turned back. You chose to die!"

"His Highness," spoke the gray-haired priest, "returned for the señorita's answer."

"My answer?" cried Jacqueline. "You mean, father, for my sake?"

"Yes."

Driscoll started violently, perplexed no longer. "By God, sir," he swore, and clapped Maximilian on the shoulder, "but you are a man!"

The prince recoiled, his instincts of breeding in arms against the savage equality. But then, slowly, a smile that was almost beatific touched his lips, and without knowing it, he straightened proudly, as majesty would.

"A man?" he murmured, breathing exaltation. "Then am I, at my last moment, come into harmony with God's own ordering of the universe. For he made man on the sixth day, not a Hapsburg. Man, and after His Own Image—Oh, but that is the title the hardest of all to win! You—you don't think, señor, that you would like to take it back?"

Driscoll reddened inexplicably. Murguía's ivory cross was still in his pocket.

"No!" he blurted out with sudden defiance. "It's the truth!"

"Then," said Maximilian solemnly, "on your word I stake my faith. Tomorrow, at the judgment-seat, I shall hope to hear myself called so."

“Your Highness,” questioned Jacqueline in a kind of daze, “Your Highness did not *intend* to escape last night?”

“No, he did not,” Driscoll answered for him. “He got Miramon and Mejía started all right, and then, without knowing that your plot had failed, he turned back to this cell here, alone.”

“Your Highness, you did that for—for—”

Her voice broke, and she stopped abruptly and went to the narrow window. With her back to them, she groped for the dainty bit of cambric that was her handkerchief.

“So you see, my daughter,” said the priest, drawing near her, “what he would have given, what, before Heaven, he has given, to tell you what you so hotly resent. Do you resent it now?”

The beautiful head shook slowly. She was touching her eyes with her handkerchief.

“Then you will not let his sacrifice be in vain? You will marry him?”

Impetuously she turned, and faced them. There were blinding drops, clear as diamonds, on the long lashes. “Oh Your Highness, Your—Oh, there is something you can tell me that is—that is inexpressibly better?”

“Let me know what it is.”

“It is if—if you can forgive me.—Mon Dieu, why did you need to heap ⁴⁸² this terrible sacrifice on me? Why could you not remember that I tried to drive you from your empire? That I plotted against you? That—”

“Hush, you would have saved me.”

“Oh, only incidentally, and you knew it. Yet you must—”

“Don’t! There’s nothing to forgive.—But wait, we will grant that there really is, but only that I may exact my price of forgiveness.”

“The price? Name it.”

“That you will marry me, here, to-morrow morning, before I die.”

Jacqueline raised her head. “Has Your Highness,” she demanded, smiling shyly behind her tears, “has he forgotten the woman’s, rather my consideration, before such a question?”

Driscoll straightened, squared his shoulders to take a blow. To his blindness her manner looked like awakening love for the other man—and for the man himself, not for the prince! His sense of loss, his agony, were extreme. But of the old bitterness he now knew nothing. His rival was putting the question. “And according to that consideration, mademoiselle?”

Driscoll did not see her swift glance toward himself. He was hurrying out lest he might hear her answer. And she let him go—till he reached the door. But there, like one frozen, he halted rigidly.

“Hélas, I do not love you, sire,” Jacqueline had answered, very quietly.

Maximilian, however, did not seem heart broken.

His attention was all for the mere witness. He saw the effect on that witness. In Driscoll’s glad face he read his own triumph, his own purpose achieved. Jacqueline was righted at last.

“No,” he agreed, “I could not hope for so much.—But another might.”

Then apropos of nothing, he went and flung his arms about Driscoll.⁴⁸³ The astounded trooper could only grip his hand, just once, without a word. Then he was gone.

Maximilian watched him go. The priest turned to Jacqueline. She, too, stood poised so long as his spurs rang through the corridor. At last silence fell on them. For a moment she hesitated. Then, trembling, her eyes moist, she held out her hand. “Good-bye,” she whispered. But, impulsively, she raised her arm and touched the doomed man’s forehead lightly with her finger tips, making a blurred sign of the cross. And, not daring an instant longer, she too fled.

Maximilian was alone with the priest. The room was growing dark. It was the last night.

“Now, father, light the tapers, there on the altar. Yes, I am ready. Ready? Blessed Mother in Heaven, it is more than I had thought to be!”

CHAPTER XXII

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The Abbey of Mount Regret

“O, here
Will I set up my everlasting rest,
And shake the yoke of inauspicious stars
From this world-wearied flesh.”

—*Romeo and Juliet.*

It is curious and humiliating, how Nature does not vex herself in the least for the dying of a man. And yet, to the man, the event is so very important! Each breath of spaceless night, each twinkle from the firmament, though but the phantom of a ray quenched ages before, everything, he teases into anxious commentary on his own puny end. There could not be more ado if the Universe were in the throes, writhing against a reconquering Chaos. Harassed creature, what ails him is only the pathetic fallacy, which is a soothing melody and stimulating to mortal pride. But the lapses into healthier realization are very, very hard to bear.

How cold it was, when Maximilian awoke! The chill seemed creeping nearer his heart, nearer the citadel. And how black the night, before the dawn! But where, now, were his matches? He had the same monotonous trouble of any other morning in getting one to light. Then the two candles guttered fitfully, sordidly, just as they had always done. The white cloths of the last communion seemed a ghostly intrusion on what was of every day. Maximilian drew his cloak about him. The chill was simply of the plateau, of the night, not the portent of death. The world without was dark and desolate, but that had no reference to the tomb. The world was merely taking its normal sleep. The heavy cloak ought to answer—but, it did not.

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He took up the snuffers, coaxing the yellow flames to brighter promise, then set the candles before him on the table. A piece of dripping tallow fell upon his hand, and the hand jerked back. The man pondered. So, even his flesh was part of Nature too, and heeded trivial pain, with no thought of the bullets to drive through it shortly.

He wrote two or three letters yet remaining, to friends, to his brother, the Emperor of Austria. He penned words of farewell, yet even as the tears welled in his eyes, he needed to stop and make sure that he had indeed not more than three hours yet to live. It was difficult, though, with the candles spluttering there, in the ordinary, every-day fashion. He signed the last letter, to his mother. He gazed at the signature, of characters squarely formed. He might have written it yesterday, or the year before. It looked the same. But the pen he had just dropped had dropped forever. No, no, that should not be! And he snatched it up again, and wrote, scribbled, covered paper, fearing to stop. But at last he did stop, with a shivering laugh. He must face this thing, he decided. And over and over again he told himself, "I have written my last. Yes, my last!" and steadfastly resisted the taunting, airy quill lying there. So, what was harder than farewell to loved ones, he nerved himself to end the small actions of his daily existence.

Maximilian had his life long been a dreamer, ever gazing wide-eyed as a child on the wonderful fantasies that came, whether entrancing or dreadful. But the child's fantasies are kindred with man's philosophies. Often, as he lay awaiting sleep, there was one particular thought that would bring him quickly, stark, staring awake. And this thought was, how certain things always came to pass. No matter how far away, nor how very slow their approach, making vague the hope or horror of them, yet the actual, present hour of their happening always struck at last. There was the eve of the day when he should be of age. Oh, but he had longed for that day! He had longed until he craftily suspected it never would arrive. And yet, despite those leaden-footed oxen, the minutes, arrive it did, in very fact. The eve of that day was a happy bed-time; but over his ardent reveries, over the vista of future achievements, there suddenly, darkly loomed another thought, a foretoken and clammy shroud, which smote the young prince with trembling. For would not the day of his death, however far away also, sometime be the present, passing moment, as surely, just as surely, as this anniversary of his birth? Here was a terrifying glimpse of mortality.

When, not fifteen years later, Maximilian opened his eyes in the black Capuchin cell, and comprehension grew on him of the present day's meaning, he recalled how the fantasy of a morning of death had first come to him. He was a boy, and he was to go on a voyage. The boy had

awakened when there was scarcely light as yet, and heard his mother at the door. "It is time, dear." She spoke low, not liking to break his slumber. But in the silence of all the world her voice was clear, and very sweet, and the words stood forth against his memory ever afterward. He was to be gone from her for a time, and this was in her mind as she called him. The boy, though, could think of nothing except that his little excursion among new and strange adventures was to begin, actually to begin. But then, quite unaccountably, there fell over his eagerness a chilling gloom. The delightful sprite named Expectation, who had whispered so piquantly of this same eventful morn, had basely changed herself into a hideous vampire, and she muttered at him, in frightful, raucous tones. Yet the hag's snarls were true promises. There was to come, surely, inexorably, a certain other eventful morn, and he would awake, and without his mother's calling him, he would know—*know*—that it was time!

Back in that childhood hour he had lain for a while quite inconsolable,⁴⁸⁷ until his mother came again, and rested her hand on his head, and told him—"Why, one would think the little goose was going away forever!" It was broad daylight by now, too; and wholly comforted, he had sprung up, joyfully alive. Eternity did not worry him any more for a week.

But the awakening of this later morning, in a Mexican prison! And when he understood that the old familiar fantasy was become a fact! When he remembered how once he had been consoled in his boyhood! For a moment the sense of loss and of helplessness was stifling, and he yearned—yearned frantically, as he never had as a boy—for the touch of his mother's hand, for her voice, so low and sweet. The horrid cruelty he could not, during that moment, bear. He felt that he must cry out for her, like a very child. And though he wept, it was the man, and the man's despair that his was not now the boy's need of comfort.

But when they came in the first dawn and knocked at his door, they found him serene, untroubled, and only the wonted shade of melancholy on his brow. He greeted them courteously, and was desirous that they should have no unnecessary difficulties on his account. Being dressed already, punctiliously, and in black, he himself went to call Miramon and Mejía, and brought them to his own cell, where they received the last sacrament together.

Later the three condemned were at breakfast—bread, chicken, a little wine and a cup of coffee—when horses' hoofs rang abruptly in the street

below, and as abruptly ceased under their window. There was a command, and sabres rasped against their scabbards to gain the light. Maximilian raised eyes filled with pity to his two companions. Mejía, an Indian thoroughly, made a gesture of impatience. The handsome Miramon, of French blood, shrugged his shoulders. Then both glanced timidly in their turn at Maximilian, and each finding a hand stretched forth, grasped it silently. But the priests of the condemned, who were waiting apart, felt their blood turn to icy beads. For them the quick metallic gust of strident life down in the street had the merciless quality of hammering upon a coffin lid.

Troops filed up the stairs, and along the corridor. They halted, faced the door, grounded arms. An officer stepped out, fumbled with a document, and read the death sentence. Maximilian gently released himself from one and another of those present, and turning to the Austrian physician, handed him his wedding ring. "You will give it to my mother," he said. Father Soria's eyes filled with tears, one plump fist clenched pathetically. Maximilian passed an arm over the good man's shoulder, and with him walked out among the soldiers. He nodded to them encouragingly, and so started on his little journey.

Three ramshackle public hacks, set high over wabbling wheels, and drawn by mules, waited at the door. Maximilian smiled an apology as he motioned Father Soria to precede him into the first. The troops used their spurs. A whip cracked. The springs jolted. Everywhere, on the curbs, in windows, on housetops, there were people. The archduke had the impression of breath tensely held, and of eyes, eyes strained, curious, and awed, like those of children who witness suffering and cannot understand.

Passing the convent of Santa Clara, Maximilian peered upward at the windows; and, as he hoped, he saw Jacqueline. She was leaning far out, and tremulously poised. Tender compassion was in every line of her tense body, but as their gaze met she tried to smile, bravely and cheerfully, and until the hack swung round the corner, there was her hand waving him farewell. The little journey might have been, a fête, and somehow, he was comforted.

"I wonder," he mused, "if I've done very much for her, after all. Or for that American, named Driscoll? Will she—" He shook his head, and sighed. "No, she is not the lass to have him, not after my little scene of

last night. But, the choice does rest with her, now. And for a girl, that is everything.—Alas, poor young man!”

His rueful prophecies were that moment interrupted by a woman’s scream. It rose piercingly over the clatter of their march. Maximilian put out his head and looked back. The woman was running beside Mejía’s hack, panting, stumbling through the dust, her black hair streaming. She held a babe in her rebosa, but with her free hand she clutched weakly at the spokes. To the clumsy, pitying soldiers who would force her away, she cried again, “Mercy ... Mercy ... Mercy....” A low murmuring grew on every side. Maximilian flung open his cab door. But the same instant it was slammed against him. He sank to his seat, with a stare of dumb pain in his eyes that the priest beside him never afterward forgot. The woman back there was Mejía’s wife. And Maximilian had had one glimpse of the husband’s face. It was a face stretched to agony, deadened to the color of lead.

“May I, may I—*pay* for this!” moaned the one-time Emperor. “O God, grant Thou that I do pay for this, hereafter!”

Beyond the last hovels of the suburbs, at the foot of the Cerro de las Campanas, the condemned were told to alight. Here again there was a throng, hundreds and hundreds of swarthy faces, blank in awed pity. One gaping fellow pointed wonderingly.

“Look, there they are! There—*los muertos!*!”

Maximilian overheard, and a cold shiver crossed his spine. To be identified already as “the dead one!”

Then he beheld his coffin, there, the longest of the three being borne up the hill. They were boxes of cheap wood, unpainted inside, smeared with black on the outside. A wavy streak of carmine simulated the drooping cord and golden tassels of richer caskets. It was the pomp and circumstance that pertains to the humblest peon clay.

Four thousand serried bayonets squared the base of the hill, and made a compact, bristling hedge to hold back the common people. Through it marched the doomed Imperialists, each with his confessor and a platoon of guards, and so toiled on up the slope. The archduke looked about him. There were many privileged spectators within the cordon, but nowhere did he see a former friend. All, all, had kept away, and in his heart he knew that it was better so. He could not ask that much of them. But stay—yes, a remembered figure caught his attention; a shriveled decrepit figure.

Here, too, mid every color Republican, he beheld in the man's garb a last surviving uniform of the vanished Empire. It was, however, scarcely to be distinguished as such. The red coat was threadbare, and soiled with dust. The ragged green pantaloons, held by a knotted rope, were grotesquely faded. Yet the prince, who had once gloried in dashing regimentals and mistook them for power, was deeply touched. He recognized a lone unit of what had been none other than the Batallon del Emperador. He paused, to have a word with the miserable derelict.

"So, you would be near me, even now?" he said. "Ah, ever faithful little old man, but are you brave enough for the horror of it? Are you?"

Red eyeballs rolled upward in their sockets, and for a space met the archduke's kindly gaze. Then the steady repellant hate in them seemed disconcerted, and the withered form cowered under the touch of the pale white hand. Inaudible words rattled in the old man's throat, and he trembled, as though to turn and run. Maximilian regarded him benevolently, thinking it a crisis of emotion.

"There, there," he said, "go if you wish. It's not well, you see, to think of me so much. But you must not imagine that I am ungrateful. When you believed yourself unseen, certainly when you had no hope of reward,¹⁹¹ throughout my misfortunes, you have always hovered near me, on the battlefield, and more lately under my prison window. Yes, yes, I have seen. And now, and now I thank you." The bloodshot eyes roved the ground, but did not lift again. "As humble, as loyal as a dog," Maximilian murmured as he turned away.

They indicated to him that he should take his place before a wall of adobe blocks which had been piled together near the crest of the hill, only a little lower than those very fortifications built by the Imperialists themselves. With a gesture of assent, he complied. The priests fell sorrowfully back behind the soldiers, and he and Miramon and Mejía were alone together, three tragic isolated figures in a little oblong patch of bare rocky hillside. One end of the oblong was the adobe shield. The other three sides were walls of living men, massed shoulder to shoulder, with bayonets pointed outward against the jostling peering crowd. The three who were to die could now see no human being beyond the dense, double row of soldiery. The remainder of earth for them was the hollow square, bounded by the slouching backs clothed in blue, by the white flats

of the képis, by the line of light playing over the thorns of steel. Beyond was the early morning sun; above, the mystery of space.

Through the gap of an instant the shooting squads tramped in, nearer and nearer, until they halted opposite the condemned. Maximilian then perceived which squad was to be his own. It numbered seven tiradores and a yellow, beardless officer. The seven were low, cumbersome, tawny, and they shuffled awkwardly. Their stripling chief thrust out his stomach, and he handled his large sword with an unaccustomed flourish. The pompous severity was, after all, only insolence. He had need to keep guard on his importance; he did not wish to hear the pounding of his heart. Yet his muscles twitched unbecomingly, which jerked his mouth, and sometimes his head.

Maximilian stepped forward and addressed them. To each he gave a ⁴⁹² gold piece bearing his effigy. It was his last expenditure in that coin. He requested them earnestly, gently, to aim at his body, not at his head. He was thinking of his mother. He would not have her see him with mangled features. Then with a final reassuring word, he turned back to the wall.

They were going to place him between the other two, but with a smile and shake of the head, he would not have it so. His last act was for precedence. Affectionately he drew Miramon to the place of honor, so that Mejía was on the right, and himself on the left.

Then the *fiscal* of the Republic appeared, and read the military law. For any who should ask the lives of the condemned, death was prescribed. But if there was anything the condemned themselves wished to say....

Maximilian removed his hat. "Mexicans," he said, "may my blood be the last to be spilled for this country's welfare. Long live Independence! Long live Mexico!"

He spoke the words calmly, gravely, and having concluded, he carefully adjusted a large handkerchief, so that his beard might not be burned by the powder. Then he crossed his arms on his breast, and gazed steadily into the barrels of the leveled muskets, waiting.

A wave of motion, of tendons stiffening, passed along the thick wall of flesh. Against it the tide without swelled higher, stronger. Tension strained upward to the supreme crash. The quiet of a multitude is pain.

But the other two Imperialists had not spoken yet. Mejía shook his head passionately. He saw only his young wife with her babe, panting, stumbling through the dust. He held a crucifix, and would not take it from

his lips. Miramon, however, raised his voice to protest against the charge of treason. Of that crime he died innocent. But he pardoned, as he hoped for pardon. Then he cried, "Long live Mexico! Long live the Emperor!"⁴⁹³

Maximilian started. These were the words that he thought he should like to hear. But now they grated. They recalled the mistake he had lived, the anachronism of his life. They were scorpions. They stung like the needle in an ulcer. He turned sharply, in tearful reproach. But a sword flashed, the volley came, and the three men fell, as under a crushing rock, one against the wall; his head broken over upon his breast. The pert young officer pointed his blade at three convulsive bodies, and through each a last bullet sped, burying itself in the earth beneath. The crowd pressed, surged, stood on tiptoe.

There was one other among the spectators, but keeping himself hidden, whom Maximilian would have been concerned to see there. He was Driscoll. He came to watch the shriveled derelict, Murguía. He came to stand guard over a soul, Maximilian's. What peace that soul had found should not be destroyed. And so he screened himself in the crowd, holding ready to crush a viper whose fangs were heavy with poison. When Maximilian paused and spoke to the old man, Driscoll was very near, near enough to hear, and to strike. But the old man had only wheezed and mumbled. Though why that old man did not utter a first word, though why he could not, will never be explained. But this much is true, that the ambushed soul, moving so calmly toward eternity, then stepping so near the coiled serpent, was yet its own guardian, unwittingly.

Until the very end Driscoll staid there alert. The old man, baffled, insatiate, might yet cry out what he knew. Driscoll's gaze never relaxed. He felt as though he watched a murderer while the murder was being done. But the old man only listened. Unable to see within the hollow square, he listened, and waited. His lower jaw hung open, and over his lip a white froth grew and grew, until it broke and trickled down his chin.⁴⁹⁴ The red eyeballs gleamed ravenously, as still he waited.

"When this is over," Driscoll said to himself, "he'll plump down in a fit and blow out. Else he'll go raving crazy. Lord, that look!"

When it *was* over, Driscoll went to him. He had but to reach forth a hand and fasten on his shoulder. He held him against a scurrying of spectators, whom the tragedy's close had that instant brought to life.

“Here, Murgie, here’s something that belongs to you,” he said. “Well, what’s the matter? Take it, I don’t want it.”

The old man looked up. An ivory cross was dangling from the other’s fingers. The cross still showed bloodstains; no later flowing of blood had washed *them* away. But the father of María de la Luz stared, stared vacantly at the trinket. The masterful, consuming rage of two years past was gone out of his eyes. Instead they were watery and senile. The brows, and even the lashes, had turned as white as the thin strands of hair, and contrasted gruesomely against the yellow, mottled skin, which stretched like clouded parchment over the bony death’s head. At last the old man put out his hand and took the cross, not comprehending.

“No, I didn’t give it to him,” Driscoll explained bluntly. “I told you I wouldn’t.”

Yet no spasm of chagrin distorted the weazen face.

“This chain here, it’s—it’s *gold!*” the old man cried.

Then he sputtered, choked. What had he betrayed? Would the strange donor reclaim the gift, knowing it was gold? He leered craftily at Driscoll, and with a hungry, gloating secrecy—his old slimy way of handling money—he smuggled the holy symbol under his jacket. But from cunning the leer changed to suspicion and quick alarm. He delved into his pockets, one after another. He searched greedily, wildly, until the last coin on him lay in his palm. Quaking in every feeble bone, he counted his poor wealth again and again. There was very little left. He glared at Driscoll. He glared at townsmen, officers, blanketed Inditos, all swarming past to gaze on the three corpses. He cried “Thief!” first at one unheeding passer-by, then at another.

“I had more than this!” he whined. “More—more than this! There was my hacienda, my peons, my cotton, my mills, my canvas bags. There was my blockade runner. She was Clyde-built, she was named *La Luz*, she cost twenty thousand English gold pieces. Who has taken these things from me? Who—where—Curse you, do *you* know?”

Dissipating his hoards, sacrificing his last chattel, all that was now a blank. But his hoards, his chattels, were all that were now worth while, and the miser clamored for them, and them only. Vengeance, however, is an ironical bargainer. Vengeance kept her pay, and “abhorred Styx, the flood of deadly hate,” had dried and left a stranded soul, parched by avarice. Driscoll was moved by a pity half ashamed.

“Look here, Murgie,” he threatened terribly, “Do you say *I* stole your—By the Great Horn Spoon, I’ll—” He flung his hand to his revolver.

The counter-irritant had instant effect. All moisture died out of the rat eyes, leaving them two little horrible beads. The miser shrank, groveled, in mortal terror of some physical hurt.

CHAPTER XXIII

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THE CONTRARINESS OF JACQUELINE

“Much adoe there was, God wot;
He wold love, and she wold not.”
—*Ballad of Phillida and Corydon.*

Maximiliano I. of Mexico was dead. His dynasty and his Empire were the frippery of a past time. Yet there was his capital, still holding out against the Republic. Leonardo Marquez, the Leopard, spitefully refused to capitulate. But why he would not, no one knew, neither the starving City, nor the patient besieger outside. No one, unless it was Jacqueline. The very day of the triple execution she called on Escobedo, commander in chief at Querétaro. She desired to return to the capital, and she wanted a pass through the Republic's lines there. She mentioned, in case it were any inducement, that the place would fall within twenty-four hours after her arrival. Jacqueline had difficulty to speak at all. She could not endure the general's monstrous flaps of ears, his rabbinical beard, his cruel black eyes.

“María purísima,” he exclaimed, “you cannot mean, señorita, that you, all alone, will deliver the City of Mexico into our hands?”

“It will certainly be an incident of my stay there,” she replied.

The hard, Jewish features lighted cunningly. “Then, por Dios, you are as wonderful as I've always heard! But may—may one be allowed a little curiosity?”

“I *might* say,” and Jacqueline forthwith said it, “that I have just had a cipher telegram from Louis Napoleon.”

“Which,” breathlessly demanded the other, “will interest Marquez, eh? Will disappoint him? Will cause him to surrender?”

“Your Excellency is of course entitled to his own conjectures.”

But the commander-in-chief was satisfied. “We must hasten your going by every means,” he declared. “You shall have an escort. You—”

“Then I choose the Gray Troop—because,” she added carefully, “they're the best.”

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Now, why, by all that's feminine, was she surprised next morning when the Gray Troop gathered round her coach, as though that were a coincidence? At least she arched her brows, and lifted one shoulder petulantly, and unmistakably showed that she expected a tedious time of it. The sunburned colonel of the Grays beamed so with happiness too, as he drew rein to report to her. They met for the first time since Maximilian's embarrassing little scene for their express benefit. Driscoll noted her disdain, and it is likely that he only grinned. He did that because he knew how helpless he was, and how merciless she could be. For she was not only beautiful, she was pretty—a demure, sweet, and very pretty girl. Some vague instinct of self-defense guided him. His broad smile was exasperating in the last degree, and it was not she, but the other young woman in the coach, whom he addressed.

"I got some side saddles, Miss Burt," he announced, "and a few extra mustangs, whenever anybody gets tired of traveling behind curtains." Curiously enough, both girls wore riding habits. "Oh, by the way," he inquired suddenly, "how's Miss Jack'leen this morning? Is she well and—docile?"

Jacqueline's chin dropped in astonishment. She seized the old canvas window flap and jerked it down. But at once she raised it again, and thoughtfully contemplated the trooper.

"I wonder," she mused aloud, in that quaint accenting of the English which cannot be described, "when is it that you are going to grow up, ever?"

"I did start to," Driscoll informed her soberly, "but it got tiresome as all creation, and I reckon I've backslided just since"—a world of earnestness came into his lowered voice. —"well, just since we had that talk with poor Maximilian."

The old canvas curtain fell for good then, and very abruptly.

A moment later, however, she was avenging her flushed cheeks on Mr. Daniel Boone, who rode at the other side, also sunburned, also effulgent with happiness.

"If it isn't the *animal disputans*!" she exclaimed. "Look Berthe, and rejoice; our sighing Monsieur le Troubadour!"

Driscoll hovered near a moment, then reluctantly rode ahead of his battered dusty warriors. So he and the wilful maid from France began a

second journey together, yet far, far apart. But only after many torturing hours did his first joy consent to perceive the distance between them.

Now and then, though rarely, and never when he hoped for such a thing, she would ride with him. And then he usually stirred up hostilities before he knew it, and notwithstanding all that was tender and humble which he meant to tell her. There was, however, cause enough for savagery. She made him the least of the troop, though he arranged each detail of speed and comfort, laid out tempting noon-day spreads, improvised cheer in the cheerless hostelrys, and all with a forethought showing pathetically how his every thought was of her. But if she divined the inwardness of this, which of course she did, outwardly she contrived to be oblivious. She thanked him sincerely and simply, the while that he craved repayment, as the heart repays. He yearned for only a chance to speak his mind, and to force hers. But now craftily she would bring the others flocking round, to decide for her if they did not think monsieur absurdly mistaken in this or that! The same instant she would conjure up the most trivial of arguments, and be vastly shocked over the ridiculous contentions which she herself assigned to Driscoll.

She grew honestly fond of the other Missouri colonels, with their ranger uniforms, and brawn scarred by weather and battle, and they and the marchioness became great friends. She was a dainty flower among them, but they were prime comrades, and she, the mad-cap tomboy her life long, took to them in the impulse that here were her own kind. Driscoll was proud to see it, without need of being generous. She gathered Berthe, as a soberer sister, into the merry communion, and she rode with Clay of Carroll, with Carroll of Clay, with Reub Marmaduke, with Crittenden, with cherubic Old Brothers and Sisters, with Hanks the bugler, and she mocked Meagre Shanks, that disputatious animal, because he tried to monopolize Berthe and would not dispute at all. She asked them questions. She asked Harry Collins if his tribe were the same as that of ces Missouriens-là, and the Kansan confessed that the two tribes had been a bit hostile of late, but what with raiding, razing, and murdering, he guessed they'd laid the foundation for a mutual self-respect, as behooved valiant redskins. So she often got strange answers for her inquisitiveness, but she had grown wary among Westerners, and she usually paid them back. They were a happy party. But Driscoll wanted a more definite focusing of the joy. And at times, indeed, yielding

to temptation herself, she permitted him to lose his heart deliciously over again. Shadows were lifted now, and she was just a lovable girl, just sweet Jacqueline. And he loved her with the boy's young strength of adoration and diffident awe. Precisely in which state she made him suffer exquisitely. No one could be more contrary and capricious than the lovable girl of a moment before. Whereat storms brewed within him.

There was one of the rare times when the Missourian and the maid⁷⁰ rode up and down the winding white ribbon of a Mexican highway, and for awhile both were quiet. This once they dared the risk—she did, rather—which lurks in the silence that requires no words. For him it brought the old time, and the rides of that time, when he wondered what was the matter with him, and she knew all along. And he thought how during the hard winter in the Michoacan mountains and swamps, he had caught himself almost crying aloud, that he wanted her, that he wanted her—wanted again the subtle comradeship of those silences which require no words. And here, at last, here she was, riding beside him!

He looked at her furtively. She was in profile. He looked again, to be sure that it was not memory, but the breathing girl herself. Yes, for a fact, it was the girl herself. And here was her own queenly head, here its regal poise, here the superb line of the neck to the shoulder. Reverence grew on admiration, for as he gazed he beheld her character revealed, of lines as stately, as womanly, and withal as flexible, too, before the cheery glow of each moment's life. He stirred, and was vaguely restive, and perhaps a little frightened also, because of the deep mystery of something within himself which he could not understand. The classic outline of her features was softened now in the warmth of flesh. Her vivacity was off guard, in the forgetfulness of reverie. The pure white of the little tip of ear was tinged with pink. Her eyes were lowered to the saddle horn. They were melting. They were almost blue.

"Jack'leen!" He burst out fervently, before he thought, with an arm half lifted toward her.

The drooping lashes raised. The eyes were gray again. She regarded him for awhile without speaking.

"Why don't you quarrel?" she asked finally.

The spell was broken. Her pounding heart had vent in a nervous laugh of raillery. She touched her horse with the riding crop in her gauntleted⁷¹ hand. Somehow she would not leave that dumb brute, the horse, in peace.

Driscoll's old Demijohn, however, was used to the game by now. He pointed his ears, and checkmated that last move by bringing his master once more to the lady's side.

"You used to," she went on, as though there had been no interruption, "nicely. You were of an interest then. In fact, I reckon—I know no one that I had rather have quarreled with."

But still he would not, though that "reckon" from her lips was most alluring. She stole a mischievous glance at his face, but the fixed look there made her lift *her* hand toward *him*. Perhaps, if he had seen and had spoken then—But he did see.

"Eh bien, since monsieur won't fight, won't, *won't*," she cried, "then it's more fun to—"

Evidently to seek livelier company. For she wheeled the mustang, swerved from a grasp at her bridle, and went galloping back to the coach. He twisted in his saddle, pushed his sombrero higher on his head, and dubiously watched her flying from him, a lithe, trim figure in snug Hungarian jacket, the burnished tendrils fluttering on the nape of her neck, the soft white veil trailing like a fleecy cloud from her black *amazona* hat. He bent a perplexed gaze to the road. "It's 'way, 'way beyond me," he told himself. Then he grew aware of a sense of warmth on his forearm. Yes, he remembered. For an instant she had laid a hand on his sleeve, and he had thrilled to the ineffable token of nestling. He was never immune from her tantalizing contradictions. He felt this one yet.

Hoofs pounded behind, and Mr. Boone drew up alongside. "She came back, and made me get away from the coach," he announced. "Prob'ly she wanted to cry some; she looked it."

Yet another of her contradictions!

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"Then why in the nation," Driscoll demanded, "do you keep hanging round that coach for? Look here Shanks, you make me plum' weary. The idea of you falling in—"

"No more'n you, you innocent gamboling lamb of an ol' blatherskite." But Daniel's steel blue eyes had softened to their gentlest. "Say Jack," he added, "she's going back to Paris."

"Don't I know it? Lord A'mighty!"

"Go on, never mind me," said Mr. Boone. "Groan out loud, if you want to. For she sho'ly is, yes, back to Paris. Now Buh'the"—The Troubadour's *r*'s always liquefied dreamily with that name—"Buh'the has been telling

me a few things, and I'm sure reporter enough to scout out the rest of the story, and it's just this—Jack, she's fair broken-hearted.”

“Miss Burt?”

“No, no, the marchioness. She staked out a campaign over here, and it's panned out all wrong, and it wasn't her fault either. Poor girl, no wonder she might like to cry a little. She's lavished everything she had on it too, ancestral château, and all that.”

“But,” said Driscoll quickly “she'll not suffer. There's her title—”

“Title?” exclaimed Daniel. “W'y, she's going to give that up too, not having any château any more, and she'll trip blithely down among the people again, where she says it's more comfortable anyhow. Title? Well, you've suhtinly noticed that she always did take that humorously. Her grandfather—Buh'the says—was right considerable of a jurist, used scissors and paste, and helped make a scrap-book called the Napoleonic code, and Nap the First changed him into a picayunish duke. But wasn't the nobility of intellect there already? Sho'ly! Miss Jacqueline, though, likes the father of her grandfather the best. He never was noble, technically ⁹³ I mean. His was the nobility of heart, and he'd have scorned to be tagged. He just baked bread, and fed most half of Saint Antoine for nothing at times, while the Dauphin at Versailles was throwing cakes to the swans. Howsoever,” Mr. Boone added hastily, as sop to his softness for princes, “I reckon that there Dauphin was noble too. Both of 'em fed the hungry mouths that were nearest.”

“But,” demanded Driscoll, “doesn't her title carry some sort of a—a compensation?”

“Not a red sou. The majorat—that's the male line—died out with her father, which means that the annuity died out too.”

“W'y, Great Scot, she's—”

“She's tired and disheartened, that's what she is, and she's going back to Paris, and you—” Boone paused, and glared at his companion, “—and you mean to let her!”

Old Demijohn felt a spur kicked against his flank, and he lifted his fore feet and sped as the wind. It was fully an hour later when Meagre Shanks caught up with horse and rider again. Rather, he met them coming back. His conversation was guileless, at first.

“Do you know, Din,” he began, “those two girls are only half educated? Yes sir, gastronomically, they are positively illiterate, and it's a

shame! W'y, they don't know hot biscuits and molasses. They don't know buttermilk. They don't know yams. Nor paw-paws, nor persimmons. They don't even know watermelon. Now isn't France a backward place?"

"Don't, Shanks!" Driscoll begged. "You'll have me heading for Missouri in a minute. You didn't, uh, mention peach cobbler?"

"*And* peach cobbler, big as an acre covered with snow. And just think, it's roastin' ea'ah time up there now, *now!*" How Daniel's voice did mellow under a tender sentiment! "And to think," he went on, "of the marchioness living on in such ignorance! It's a thing that's just got to be remedied, Jack."

"Then suppose you take her to Missouri," growled his friend, "and let me alone."

"I take *her*? Oh come now, Din, I see I've got to tell you something which is—" The Troubadour's accents grew low and fond, and the other man respected them, with something between a smile and a sigh for his own case. "Which is—well, nobody's noticed it, but the fact is that Buh'the, that Miss Buh'the—"

"Dan," interrupted Driscoll severely, "you're not going to tell me any secret. You mean that you weren't mistaken when you mistook her for a queen."

"That—that's it!" ejaculated Daniel. "Of coh'se," he added soothingly, "the other one is a—mighty nice girl, but—"

"Oh, *is* she? But Miss Burt is *the* one you want to take to Missouri? Well Dan, why don't you?"

"Because," was the doleful reply, "those two are just like orphan sisters together, and—well, she won't desert. She *is* a queen, by God, sir! Miss Jacqueline might make her, but I haven't got the heart to ask it. Now, uh, if—if you would just bring along the other one?"

So, here was the goal of all of Daniel's manœuvering!

Driscoll cast a leg over the pommel of his saddle, and faced Boone squarely. "Shanks," he demanded with tense vehemence, "do you suppose I need your woes for a prod? Don't you know how much—Lord A'mighty, how much!—I'd like to oblige you? But—she won't let me—even speak. There's, there's something the matter."

Boone's lank jaw fell. "What, I wonder?"

"And don't I wonder too?" Driscoll muttered savagely. "But it's *something*."

From which moment until the end of the journey, and afterward, there were two men who pondered on what could be the trouble with Jacqueline. But while one pondered gloomily and fiercely and with a semi-comic grin under the lash, the other let perplexity delve and ferret into the mystery. For Mr. Boone had grown aware that an enormous heap of happiness for four depended on himself alone.

CHAPTER XXIV

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THE JOURNALISTIC SAGACITY OF A DANIEL

“Ah, my Belovèd, fill the cup that clears
To-day of past Regret and future Fears.”

—Omar.

At last Jacqueline stabbed a dot after the word “Finis,” and so rounded out her chapter on “Failure.” Beyond doubt that tiny punctuation point saved many lives. The besiegers were waxing impatient to assault, and within the City famine mobs ran the streets, crying, “Corn and wood! Corn and wood!” Those who could fled to the Republican camp. The Austrians practically mutinied. Starving and dying thousands clamored for surrender. Yet the ugly, revolting pigmy who was lieutenant of the Empire held them back in the terror of his heartless cruelty.

Then the angel of mercy came. From her Marquez the tyrant learned that his speculation in treachery had collapsed. Louis Napoleon wanted no more of that stock. Besides, every French bayonet was needed in France. The rabid Leopard heard, and that night meanly crept away to save his own loathsome pelt. Bombs had begun to fall into the City, when a Mexican general worthier of the name took upon himself the heroic shame of unconditional surrender. The Oaxacans outside marched in, led by their young chief, Porfirio Diaz, and they fed the people, and of “traitors” shot only a moderate few.

Renovation became the order of the days that followed. The President of the Republic was to be welcomed back to his capital. The stubborn old patriot’s heart must be gladdened by every contrast to the dreary, rainy night years before when he fled into exile. Mexico would honor herself in honoring the Benemérito of America. So bunting was spread over every façade, along every cornice, green, white, and red, a festival lichen of magic growth. Flags cracked and snapped aloft, and lace curtains decked the outside of windows. Soldiers put on shoes and canvased their brown hands in white cotton gloves, and military bands rehearsed tirelessly.

Din Driscoll sat on a bench in the shady Zócalo, and contemplated the Palacio Nacional and the Cathedral in process of changing sides from Empire to Republic. Innumerable lanterns being hung along their massive outlines were for incense to a goddess restored. The Mexican eagle had prevailed over monarchical griffins, and held her serpent safely in the way of being throttled. The blunt homely visage of Don Benito Juarez, luxuriously framed, looked out from over the Palace entrance. It was a huge portrait, surrounded by the national standards. Among the emblems there was one other, the Stars and Stripes. The gaze of the ex-Confederate was fixed. It was fixed steadily on the Stars and Stripes. Now and then he felt a rising in his throat, which he had difficulty to swallow down again.

“Well, Jack?”

Boone stood over him. Driscoll’s eyes were oddly troubled as they turned from that flag opposite.

“Sure it’s hard,” said Boone quietly, “mighty hard, to forgive our enemies the good they do.”

“What enemies?”

“W’y, them,” and Daniel pointed to a flag as to a nation. “Yes sir, the Yanks have kept faith. Do you see a single one of their uniforms down here? Do you notice anywheres that Yankee protectorate we were predicting? No sir, you do not! The Yanks—” But the term was damning to eloquence. Mr. Boone found another. “The *Americans*, I repeat, have hurled back the European invader. They have given Mexico to the Mexicans. They have endowed a people with nationality. But they have not gobbled up one solitary foot of territory. Which is finer, grander, than your Napoleonic glory! And yet it’s selfish, of coh’s e it is. But listen here, there’ll never be any Utopia, Altruria, Millennium, or what not, that don’t coincide with self-interest. And first among the races of the earth, the Americans have *made* ’em coincide, and I want to know right now if the Americans are not the hope of the world!”

The orator paused for breath. He had to. And then surprise the most lugubrious unexpectedly clouded his lank features. “Darn it, Jack,” he exclaimed in alarm, “if I ain’t getting Reconstructed, right while I am standing here!”

“*Talked* yourself into it,” Driscoll observed scornfully. “But Dan, you can just put the South along with your Americans. The French laughed at

the North alone, but later, when—Well, just maybe it's a good thing we did get licked."

Mr. Boone gasped. Sparks of indignation darted from his steel blue eyes. The recoil needed a full minute to spend itself. Then a greater horror appalled him, a horror of himself. "The Lawd help me," he burst forth, "but you're right, Din Driscoll! You are! It *was* for the best. But don't you ever think I'm going to admit it again, to nary a living mortal soul, myself included. W'y, it would, it would knock my editorial usefulness—all *to* smash. There," he added, "that's decided, we're going back. The colonels want their mamas. They've been men long enough, and they're plum' homesick. All the old grudges up there must be about paid off by now, so's an ex-Reb can live in Missouri without train robbing. *Libertas et natale solum*—It's our surrender, *at* last."

Driscoll rose abruptly. "Lay down your pen, Shanks," he said. "You're only trying to convert the converted. Of course I'm going too. That there flag, being down here, did it. And don't you suppose *I've* had letters from home too?"

Meagre Shanks jumped with relief. He straightened throughout his spare length. As the smell of battle to the war charger, the pungent odor of printer's ink wet on galley proofs assailed his nostrils. There were visions, of double-leaded, unterrified thunderbolts crashing from the old Gutenberg, back in Booneville.

"Missouri," he breathed in fire, "Missouri will sho'ly stay Democratic."

Both men glowed. They were buoyant, happy. But these two could not so soon be quit of the enervating Land of Roses. A pair of countenances fell together. Daniel voiced their mutual thought.

"And Miss Jacqueline?" he queried boldly, with the air of meaning to persist, no matter what happened.

Driscoll showed weariness, anger.

"And Miss Burt?" he parried.

"She won't desert, I told you once."

"You mean that she's going to Paris too? I say, Shanks, they're leaving to-morrow."

Shanks knew that much, quite well enough.

"Have you *tried* to stop her?" he demanded sternly.

Driscoll only looked disgusted.

“But have you—*asked* her?”

Driscoll’s head jerked a nod, of wrath ascending.

The inquisitor wisely swerved. What her answer had been was, to say the least, palpable. But her reason for it was *the* question with Daniel.

“Is it,” he pursued, “is it because she hasn’t any dot? You know, Jack, that in France, when a young lady—”

“No, it’s not that. I know it’s not.”

“Oh ho,” said Daniel, “so you’ve been guessing too! And how many guesses did she give you? No, let me try just a few more. It ain’t because, because she’s an aristocrat?”

“But I *want* an aristocrat,” cried the young Missourian, “one to her finger tips, enough of one to be above aristocracy. And *she* is.”

“Then,” said his friend in despair, “it’s because she don’t, just simply don’t care for you?”

“You’re a long time finding that out.”

“What! You don’t mean—”

“Fact,” said Driscoll. “Even I guessed it at last. I told her I had been reckoning that she—”

“Cared, yes?”

Driscoll made a wry face. “And she said I mustn’t jump at conclusions, I might scare ’em.”

The Troubadour chuckled heartlessly. Neither was Driscoll’s sense of humor entirely gone.

““Oh, awful goddess! ever dreadful maid!”” Mr. Boone quoted.

“She’s sure a wonder,” the other owned gloomily.

“And you are a blind dunce, Jack.”

“Don’t talk axioms at me,” said Driscoll, with a warning light in his eye. “I don’t need ’em.”

“Well, now,” drawled Mr. Boone, “I can’t help it if I associate with you any longer, so I’ll just mosey round to the flower market. As they leave to-morrow, they’ll be wanting some violets.”

And he went, and Din Driscoll sat down again and hated him.

Daniel wended his way slowly, an attenuated ranger in gray mid carriages and blanketed forms. “Sho’”, he mused, “that girl’s heart is fair bleeding for him, can’t *I* see! Her eye-lashes, they’re *wet*, every now *and* then. And whatever the matter with her is, it’s nothing. But nothing is the very darndest thing to overcome in a girl. There’s got to be strong

measures. It's got to be *jolted* out of her. *Archimagnífico*, *there's* the point!"

Mr. Boone drew out a black cigar, and mangled it between his teeth. He pondered and pondered, absent-mindedly kicking at natives he bumped into. "Kidnap 'em!" he cried at length. "N-o," he reflected, "they go in the public stage, and what with the escort, somebody'd get hurt. We don't want any dead men at this wedding. Old Brothers and Sisters would balk anyhow, and our ecclesiastical officiator is the boy we *do* need. Now what the everlasting—"

He meant what salutary jolt he *could* invent, barring holdups, but in the same breath he meant also a most startling scene which revealed itself as he turned the corner.

A deafening crash of musketry was the first thing, and he looked up. He had come into a small plaza before a church, and against the church's blank wall a scene was taking place before an awe-stricken throng. He understood. Another proscribed "traitor" had just been caught; and executed, naturally. But no, not executed! For as the officer of the shooting squad approached to give the stroke of mercy, the prostrate victim raised himself by one hand and knocked aside the pistol at his head. Then he laughed in the officer's face, the most diabolical and unearthly mirth any there had ever heard. There was not a stain of blood on him. He had dropped in the breath of eternity before the bullets spattered past. But his uplifted face, with chin tilted back, was swollen, black, distorted, corded by pulsing veins, and one of the eyes—a crossed eye—bulged round and purple out of its socket, and *gleamed*. The demon of pain was tearing at the man's tissue of life, but by grip of will unspeakable the agony in that grimace changed to a smile.

"Yes, poison! Vitriol!" he chattered at them hideously. "Adios, imbeciles. It's my last—jest!"

Whereat he fell, writhing as the acid burned to his soul. Before the astounded officer could shoot, he had grown entirely quiet.

Boone strained and pushed against the crowd until he reached the spot. The cadaver was in tight charro garb of raw leather. His sombrero lay near, on which was worked a Roman sword, meaning "Woe to the conquered!" Boone turned inquiringly to the officer. The man, who was pallid, touched his thumb to his cap, recognizing the uniform of the Grays.

“You should know him, mi coronel,” he explained. “His name was Tiburcio. He deserted from the Imperialistas at Querétaro, but afterward he joined the plot for Maximilian’s escape. We had his description, and I found him. He wanted to take me to Marquez and Fischer, whom we would also like to find. He said that he risked himself here, to spy on them, and that he knew where they had fled, the Leopard disguised in the padre’s cloak. But of course I paid no attention. I did not delay even to tie his hands. As Your Mercy observes, I had the honor to do my duty, at once.”

“I see,” replied Boone dryly. “Lawd, this *is* a jolt!”

Then he got himself away from there.

“A jolt,” he muttered to himself again. “But shucks, it can’t—Yes, it can,” he decided fervently, “it can be used. We’ve got to have something terrifying, and poor cock-eyed Don Tibby won’t care. He’d appreciate it. And anyhow, I don’t seem to be able to stir up inspirations to-day, and this is the only thing.”

He was as pallid as the shooting squad he had just left.

“No matter,” he reflected, “I’ll need just this ghastly state of mind. But here, goodness gracious, I’ve got to be in a sweat,” with which he began to run, a lank knight in gray dented armor.

“Worse luck,” his thought pounded along with him, “this here’s the first time I’ve ever faked. And it’s a heap the hottest story I’ve ever handled, too. Our little Parisienne will get a frisson all right, all right, and such a one she’ll not be wanting any of again very soon. Dixie Land, I mustn’t smoke, I’m to be too excited.”

He came into the Zócalo, and drew up before Driscoll, who was still there and still ruminating.

“Listen here,” Boone panted, “here’s your cue.—In ten minutes—to the second—arrive—knock at her door—appear!”

“With violets?” inquired Driscoll.

“Oh shut up!—Quit, don’t stop me, I’m getting cooled off!—Only do what I say.—In just ten minutes—that is—if you want the girl.”

And Daniel was off again, “with high and haughty steps” towering along.

“That Meagre Shanks, there, isn’t a fool,” Driscoll mentally recorded, and he took out his watch.

The two girls were stopping at a hotel in Plateros Street, for Jacqueline had returned to find her beautiful residence, salon and all, ruthlessly dismantled, looted, robbed by Marquez while she was in Querétaro, which was a manner of levying contributions not unfamiliar to the Lieutenant of the Empire.

In the balcony room of their hotel suite the two girls strove valiantly. Crisp gowns and dainty allied mysteries lay spread over the upholstery. They were vanishing into cavernous trunks, with crushing indifference if Jacqueline seized on a garment, but gently when Berthe rescued it, which she always did. Through the double glass doors of the balcony the street sounds below rose to their ears, clarion notes and vivas, hurrying feet and prancing hoofs, and the National hymn a few blocks away in the Zócalo.

Suddenly a grim apparition loomed before the glass doors on the balcony. Berthe half screamed, in dismay clutching at ruffles and laces to hide them, when into the sweet-scented confusion strode Mr. Daniel Boone. He was the grim apparition. Jacqueline withheld her opinion, but she had one. The intruder's spurs were iconoclastic of carpeting, his abrupt presence of feminine sensibilities. But the lean, perspiring face drove away all thought of the conventions. Jacqueline snatched up a fleecy bank of petticoats, making room for him on the sofa. Daniel stared vacantly. The two girls looked very pretty. They were just flurried enough, and they wore white lawn, with sleeves short to the elbow. His fingers groped, and soon they closed over a small, instinctive hand. He kept hold upon that hand for strength, at the same time collapsing on the sofa.

"Now, if you please," said Jacqueline calmly, "what—"

"O Lawd!" Boone gulped, fighting for breath. "It don't matter much—maybe—to you all, but—O Lawd, I got to tell somebody!"

"Tell us, tell us!" cried she of the captured hand.

Daniel had sufficient presence of mind to retain it.

"You know that—that poor devil Tiburcio?" he gasped.

"Yes, yes!" But what anti-climax was here?

"Well, he—he's dead. I saw him.—Lawd!"

"Oh!" It was a little cry of relief.

"But some were—were killed—taking him." Boone noted Jacqueline's intake of breath, her first tremor of alarm. "He fought like a—a wildcat. He had a knife—and a machete—and a pistol—and—"

"Who was killed? Monsieur—Oh, mon Dieu, what *can* you have to tell me?"

Daniel almost repented, there was that in her gray eyes.

"Among them was my—" He nerved himself to it, some way—"my best friend, that peerless—"

"Who?" Her command was imperious, her white teeth were set.

"Din Driscoll!"

The man blurted it out like a whipped schoolboy. He could not look up. He could only feel that she stood there, stricken, suffering.

"Where is he?"

He could not believe that this was her voice. It was hardened, tearless, without emotion.

"Monsieur—where is he?"

The girl at his side sprang up with a sharp cry to her who questioned. Then he raised his eyes. Jacqueline was unaware of the sobbing girl who clung to her. Her face was changed to marble, her body as rigid.

"Take me to him," she spoke again, still with that deathly authority of the grave.

The man stammered before what he had done. The great beads stood out on his forehead. "You would not—you must not—you—"

"He is mine," she said simply. "Wait, I shall be ready, at once." She passed into an inner room, the portières falling after her.

"She's—she's getting on her hat," Boone muttered inanely. "Buh'the, she's got to be stopped! She's—God, why don't he come? It's shuah ten minutes. It's—What's that?"

Someone had knocked. In the instant Boone had the hall door ajar.

"Round to the balcony window, hurry!" he whispered.

Then he turned, caught Berthe by the hand, and drew her quickly out into the hall. As he closed the door behind him, he heard the portières rustle, but he dared not look back.

Jacqueline stepped into the room, and her hat was upon her head. It was of straw, with a drooping brim. She had thrown a long cloak over her thin dress. There was ice in her veins on this tropical June day. She paused, for she saw that the room was deserted. But no—there was a shadow between her and the balcony door. She stared at it, and her eyes grew big. The cloak slipped to the floor, and her fingers worked in the tapestry behind her. She fluttered weakly, like a wounded dove on the

ground. Her knees trembled under her. And the man there? He was gazing about him in a puzzled way, for the glare outside still blinded him. Then he saw. He reached her, and caught her as she sank. He felt two soft arms, but icy cold, drop as lead around his neck. The white form he held was rigid, and he thought of shrouds and the chilled death sweat. With savage despair he crushed her to him. After a time her body slowly began to relax.

“Oh, oh, my lad, my lad!” he heard her crying faintly, in a kind of hysteria.

He touched her hair dazedly, with unutterable tenderness.

“There, there—sweetheart!”

The word came, though he had never used it before.

Blood awoke, and coursed, sluggishly at first, through her being, until her heart tripped and throbbed and pounded against his own. Her head lay on his breast, the hat hanging by its ribbons over her back, and with the pulsing life the head and her whole body nestled closer. The soft arms grew warm against his neck, and tightened fiercely, to hold and keep him. Gently he forced up her chin, and her eyes, wet with hottest tears, opened under his. He bent and kissed the long lashes. But a small moist hand flattened against his brow and pushed back his head, and she raised on tiptoe. He understood, and—their lips met.

“Tu sais,” she murmured deliriously—nothing but her own dear French would answer now—“tu sais, que—oh, mon cœur, que je—que je *t’aime*!”

The oddest contrasts fall over life’s most sacred moments. The tone of her words thrilled him, set every fibre tingling, yet he thought of dry conjugations and declensions, conned over and over again in school, and he was conscious of vague wonderment that those things really, actually, had a meaning. Meaning? He believed now that no words in English could tell so much. He did not have to understand them. They bore the flesh and blood, the passion and the soul, of a woman who told him that she loved him.

With a hesitant gentleness which bespoke the deep and reverent awe in his yearning, he pressed her head back against its resting place. A man can do without words of any kind. She grew very quiet there. The tense quivering ceased, and she crept closer, and at last she sighed, purringly, contentedly.

But of course there was more which she simply had to say. And this time, when she raised her eyes, they were calm and earnest, and her beautiful forehead was white and very grave. "Do you know, dear," she said, "I should not care to live, I would not have lived, if what he said were—were—" But the eyes filled with tears, and angry with herself, she planted her fists against him to be free, and as impulsively crying, "Oh, my—my own dear lad!" she flung her arms about his neck again. "Oh, oh," she moaned, "he said that you were dead!"

For the first time it dawned on Driscoll that all this must have had a cause, and for the first time since entering the room he remembered Boone.

"*He told you—He—*"

But Driscoll did not finish. Putting her from him he sprang to the door and flung it open. There he waited. Boone was outside, and Boone walked expectantly in. Without a word Driscoll raised his fist, drew it back, his cruel arm muscled to kill. Jacqueline saw his anger for her, terrible in murder. She threw herself upon him, got hold of the knotted fist, got it to her lips. Another woman, too, had darted between him and the other man, and she faced him. The gentle Berthe was become a little tigress.

"Not that, not that!" It was Jacqueline's voice. "Listen, mon cheri, I—I thank him. Au contraire, I do! And—and you must, too!"

Driscoll stared at all three, first at one, then at another. He floundered, stupefied. Here was this loving girl, clinging to him as though he might vanish, and he had left her that morning a disdainful beauty. Then here was this Meagre Shanks with his mysterious ten minutes, and here was this dumfounding product of those ten minutes. Driscoll put forth an open hand.

"Dan," he muttered incoherently, "you're a—a wonder, too!"

Boone clenched the proffered hand in his own. "I never once thought, Jack," he said earnestly, contritely, "never once, that she cared so *everlastingly* much."

"Well," said Driscoll, "don't do it again."

"Not unless," ventured Boone, "not unless she should ever want a little antidote for ennui. By the way, mademoiselle, do you thank me for the quaver of emotion, for the frisson?"

“Frisson?” she repeated scornfully, with loathing. For once she had been unaware of the prized knife-like tremor. In the fear of losing one dear she had lost consciousness of self. She had *lived* the tremor, the agony, and it was too dreadful, “No, monsieur,” she said, “I want no more of art. I—I want to *live*!”

“You needed something, though,” said Berthe, “to make you find it out.”

Driscoll looked curiously at the two girls.

“Yes, J-Jack’leen”—how quaintly awkward he was, trying her old tomboy nickname without the “Miss!”—“Yes, what was the matter with you, anyhow?”

“Parbleu, I forgot!” cried Jacqueline in dismay. “I was not to have monsieur, no!” And Jacqueline’s chin, tilting back with elaborate hauteur, was meant to indicate that she was in her first mind about it.

Berthe laughed outright, and softly clapped her hands.

“Sho’,” declared Mr. Boone, “the matter was nothing, nothing *at all*!”

But before feminine caprices and scruples it is wiser to bow low into the dust. Jacqueline turned on the editorial personage with vast indignation. “You leave the room, Seigneur Troubadour,” she commanded, “and Berthe, you march with him. Haste, both of you!”

They went, meekly. Their attempt to hide content over the dismissal together was extreme, but transparent.

“What was it?” Driscoll insisted, when he and Jacqueline were alone once more.

“You mean,” she exclaimed, “that you are going to quarrel—now?”

“Jack’leen, what was it?”

“I reckon,” she observed demurely, “that the animal disputans was—was right, after all. It was nothing, I—reckon.”

He noted mockery, defiance. There was much too much independence after her late surrender. He went up to her and deliberately reassumed the mastery. He held her, by force. “Mon chevalier,” she murmured softly. So she confessed his strength.

“Tell me,” he said.

“And you did not guess? You—Oh, how I hated you! How I never wanted to see you, never again! Not after, not after—Mon Dieu, you were two exasperating idiots, you and poor Prince Max! He virtually *threw* me

into your arms. But I, monsieur, am not a person to be thrown. That is, unless—unless I do it myself, which—I did, hélas!”

The trooper’s grip tightened on her arms. “Then you,” he said earnestly, “would have let me lose you?”

She laughed merrily at him.

“And would not you have followed after me?”

“W’y, little girl, I reckon I certainly would of.”

“Don’t,” she gasped. “Let me come—closer. Oh dear, how can the bon Dieu let people be so happy—s-o happy!”

*** END OF THE PROJECT GUTENBERG EBOOK THE
MISSOURIAN ***

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